Child Care and Development Fund (CCDF) Plan
For
New Jersey
FFY 2019-2021

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1 Define CCDF Leadership and Coordination with Relevant Systems

This section identifies the leadership for the CCDF program in each Lead Agency and the entities and individuals who will participate in the implementation of the program. It also identifies the stakeholders that were consulted to develop the Plan and who the Lead Agency collaborates with to implement services. In this section respondents are asked to identify how match and maintenance-of-effort (MOE) funds are identified. Lead Agencies explain their coordination with child care resource and referral (CCR&R) systems, and outline the work they have done on their disaster preparedness and response plans.

1.1 CCDF Leadership

The Governor of a State or Territory shall designate an agency (which may be an appropriate collaborative agency), or establish a joint inter-agency office, to represent the State (or Territory) as the Lead Agency. The Lead Agency agrees to administer the program in accordance with applicable Federal laws and regulations and the provisions of this Plan, including the assurances and certifications appended hereto. (658D, 658E(c)(1)).Note: An amendment to the CCDF State Plan is required if the Lead Agency changes or if the Lead Agency official changes.

1.1.1 Which Lead Agency is designated to administer the CCDF program?

Identify the Lead Agency or joint interagency office designated by the state or territory. ACF will send official grant correspondence, such as grant awards, grant adjustments, Plan approvals, and disallowance notifications, to the designated contact identified here (658D(a)).

a) Lead Agency or Joint Interagency Office Information:

Name of Lead Agency: The Department of Human Services (DHS), Division of Family Development (DFD)

Street Address: New Jersey Department of Human Services, P.O. Box 716

City: Trenton

State: New Jersey

ZIP Code: 08625-0716

Web Address for Lead Agency: http://www.nj.gov/humanservices/

b) Lead Agency or Joint Interagency Official Contact Information:

Lead Agency Official First Name: Carole

Lead Agency Official Last Name: Johnson

Title: Commissioner of the New Jersey Department of Human Services

Phone Number: (609) 292-3717

Email Address: Carole.Johnson@dhs.state.nj.us

1.1.2 Who is the CCDF Administrator?

Identify the CCDF Administrator designated by the Lead Agency, the day-to-day contact, or the person with responsibility for administering the state's or territory's CCDF program. ACF will send programmatic communications, such as program announcements, program instructions, and data collection instructions, to the designated contact identified here. If there is more than one designated contact with equal or shared responsibility for administering the CCDF program, please identify the Co-Administrator or the person with administrative responsibilities and include his or her contact information.

a) CCDF Administrator Contact Information:

CCDF Administrator First Name: Natasha

CCDF Administrator Last Name: Johnson

Title of the CCDF Administrator: Director of the Division of Family Development

Phone Number: (609) 588-2401

Email Address: Natasha.Johnson@dhs.state.nj.us

Address for the CCDF Administrator (if different from the Lead Agency):

Street Address: 6 Quakerbridge Plaza, P.O. Box 716

City: Trenton

State: NJ

ZIP Code: 08625-0716

b) CCDF Co-Administrator Contact Information (if applicable):

CCDF Co-Administrator First Name: Margaret

CCDF Co-Administrator Last Name: Milliner

Title of the CCDF Co-Administrator: Assistant Director, Office of Child Care Operations

Description of the role of the Co-Administrator: Margaret Milliner oversees and administers the New Jersey Child Care Subsidy Program at the Division of Family Development, Department of Human Services.

Phone Number: (609) 292-2163

Email Address: Margaret.Milliner@dhs.state.nj.us

Address for the CCDF Co-Administrator (if different from the Lead Agency):

Street Address: 6 Quakerbridge Plaza, P.O. Box 716

City: Trenton

State: NJ

ZIP Code: 08625-0716

1.2 CCDF Policy Decision Authority

The Lead Agency has broad authority to administer (i.e., establish rules) and operate (i.e., implement activities) the CCDF program through other governmental, non-governmental, or public or private local agencies as long as it retains overall responsibility for the administration of the program (658D(b)). Administrative and implementation responsibilities undertaken by agencies other than the Lead Agency must be governed by written agreements that specify the mutual roles and responsibilities of the Lead Agency and other agencies in meeting the program requirements.

1.2.1 Which of the following CCDF program rules and policies are administered (i.e., set or established) at the state or territory level or local level? Identify whether CCDF program rules and policies are established by the state or territory (even if operated locally) or whether the CCDF policies or rules are established by local entities, such as counties or workforce boards (98.16(i)(3)). Check one.

- [x] All program rules and policies are set or established at the state or territory level. If checked, skip to question 1.2.2.
- [ ] Some or all program rules and policies are set or established by local entities. If checked, indicate which entities establish the following policies. Check all that apply.

1. Eligibility rules and policies (e.g., income limits) are set by the:
   - [ ] State or territory
   - [ ] Local entity (e.g., counties, workforce boards, early learning coalitions).

   If checked, identify the entity and describe the type of eligibility policies the local entity(ies) can set.

   - [ ] Other.

   Describe:

2. Sliding-fee scale is set by the:

☐ State or territory

☐ Local entity (e.g., counties, workforce boards, early learning coalitions).

If checked, identify the entity and describe the type of eligibility policies the local entity(ies) can set.

☐ Other.

Describe:

3. Payment rates are set by the:

☐ State or territory

☐ Local entity (e.g., counties, workforce boards, early learning coalitions).

If checked, identify the entity and describe the type of eligibility policies the local entity(ies) can set.

☐ Other.

Describe:

4. Other. List and describe other program rules and policies and describe (e.g., quality rating and improvement systems [QRIS], payment practices):

1.2.2 How is the CCDF program operated? In other words, which entity(ies) implement or perform these CCDF services? Check all that apply

a) Who conducts eligibility determinations?

☐ CCDF Lead Agency

☑ Temporary Assistance for Needy Families (TANF) agency

- [ ] Other state or territory agency
- [ ] Local government agencies, such as county welfare or social services departments
- [x] Child care resource and referral agencies
- [ ] Community-based organizations
- [ ] Other.

Describe

b) Who assists parents in locating child care (consumer education)?

- [x] CCDF Lead Agency
- [x] TANF agency
- [x] Other state or territory agency
- [x] Local government agencies, such as county welfare or social services departments
- [x] Child care resource and referral agencies
- [x] Community-based organizations
- [ ] Other.

Describe

c) Who issues payments?

- [x] CCDF Lead Agency
- [ ] TANF agency
- [ ] Other state or territory agency
- [ ] Local government agencies, such as county welfare or social services departments
- [x] Child care resource and referral agencies
- [ ] Community-based organizations
- [ ] Other.

Describe

1.2.3 Describe the processes the Lead Agency uses to monitor CCDF administration and implementation responsibilities performed by other agencies as reported above in 1.2.2, including written agreements, monitoring and auditing procedures, and indicators or measures to assess performance of those agencies (98.16(b)). Note : The contents of the written agreement may vary based on the role the agency is asked to assume or type of project, but must include at a minimum, tasks to be performed, schedule for completing tasks, budget which itemizes categorical expenditures in accordance with CCDF requirements, and indicators or measures to assess performance (98.11(a)(3)).

DHS/DFD contracts with the agencies though written agreements which detail the scope of work, administrative expectations, and performance standards. A few of the standards include correct eligibility determinations, the amount of collections on overpayments and the time to resolve payment disputes. Annual monitoring is conducted by program staff to evaluate and assess compliance with the contract, as well as assess and measure performance standards. Additionally, contract staff conduct quarterly reviews of fiscal, budget and expenditure activities.

In addition to conducting quarterly and annual reviews, monthly activity and service reports are tracked and monitored by DHS/DFD staff to ensure compliance with program, contract and fiscal management requirements and responsibilities.

1.2.4 Lead Agencies must assure that, to the extent practicable and appropriate, any code or software for child care information systems or information technology for which a Lead Agency or other agency expends CCDF funds to develop must be made available on request to other public agencies, including public agencies in other States, for their use in administering child care or related programs (98.15(a)(11)).

Assure by describing how the Lead Agency makes child care information systems available to public agencies in other states to the extent practicable and appropriate.

DHS/DFD will share code, software, or other information technology with other State agencies and other states upon request where appropriate and feasible.

1.2.5 Lead Agencies must have in effect policies to govern the use and disclosure of confidential and personally identifiable information about children and families receiving CCDF assistance and child care providers receiving CCDF funds (98.15(b)(13)).

Certify by describing the Lead Agency's policies related to the use and disclosure of confidential and personally identifiable information.

DFD administers CCDF assistance through contracts with local Child Care Resource and Referral Agencies (CCR&Rs). Information about children and families is only used or disclosed by DFD and the CCR&Rs for purposes directly connected with program administration and as otherwise permitted or required by law. Pursuant to DHS/DFD written contract policy and the a signed DHS standard language contract document, CCR&Rs are required to treat all personal records of applicants for and recipients of services in accordance with all applicable federal and State legislation and regulations, including Executive Orders, governing access to and confidentiality of records. With exceptions specified below, the Provider Agency may not release or disclose records except to authorized personnel of the Provider Agency, the Department, or another appropriate unit, agency, or agent of State or federal government which is approved by the Department for receipt of the information.

Pursuant to DHS/DFD contract policy, generally the CCR&Rs must keep adequate books and records, supporting documents, statistical records, client records, and all other records pertinent to the Contract shall retain all such books and records for three years in the agency and four years at a records center. Litigation may alter the retention schedule. Additionally, the retention schedule does vary by document type.

Additionally, DFD has specific polices related to the storage and destruction of both personally identifiable information and federal tax information.

1.3 Consultation in the Development of the CCDF Plan

The Lead Agency is responsible for developing the CCDF plan, which serves as the application for a 3-year implementation period. As part of the Plan development process, Lead Agencies must consult with the following:

(1) Appropriate representatives of units of general purpose local government-(658D(b)(2); 98.10(c); 98.12(b); 98.14(b)). General purpose local governments are defined by the U.S. Census at https://www.census.gov/newsroom/cspan/govts/20120301_cspan_govts_def_3.pdf.

(2) The State Advisory Council (SAC) on Early Childhood Education and Care (pursuant to 642B(b)(I)(A)(i) of the Head Start Act) (658E(c)(2)(R); 98.15(b)(1)) or similar coordinating body pursuant to 98.14(a)(1)(vii).

(3) Indian tribe(s) or tribal organization(s) within the state. This consultation should be done in a timely manner and at the option of the Indian tribe(s) or tribal organization(s) (658D(b)(1)(E)).

Consultation
involves meeting with or otherwise obtaining input from an appropriate agency in the development of the state or territory CCDF Plan. Describe the partners engaged to provide services under the CCDF program in question 1.4.1.

1.3.1 Describe the Lead Agency's consultation in the development of the CCDF plan.

a) Describe how the Lead Agency consulted with appropriate representatives of general purpose local governments.

DFD had general discussions with the CWA directors during various regular monthly meetings on issues such as background check implementation, the family friendly policies, the phase-out of license exempt care and referring clients to the CCR&Rs.

b) Describe how the Lead Agency consulted with the State Advisory Council or similar coordinating body.

DFD consulted with the New Jersey Council for Young Children (NJCYC). DHS/DFD presented sections of the plan to the Council for input and suggestions. Additionally, we discussed the Early Learning Standards and the Council's role in adopting those standards in New Jersey.

c) Describe, if applicable, how the Lead Agency consulted with Indian tribes(s) or tribal organizations(s) within the state. Note: The CCDF regulations recognize the need for States to conduct formal, structured consultation with Tribal governments, including Tribal leadership. Many States and Tribes have consultation policies and procedures in place.

N/A

d) Describe any other entities, agencies, or organizations consulted on the development of the CCDF plan.

Small workgroups were convened with representation from the CCR&Rs to discuss reauthorization requirements and strategies to meet the provisions of thelaw. CCR&Rs provided feedback and recommendations which were instrumental in the crafting many of the new family friendly policies outlined in the State Plan.

DFD discussed and/or shared a draft of the State Plan or portions thereof with representatives from the Department of Health (DOH), the Department of Children and Families, Office of Licensing (DCF/OOL), the DHS Office of Emergency

Management (DHS/OEM), and the Department of Education (DOE).

DFD hosted regional roundtable discussion with parents and parent advocacy groups throughout the state to discuss the impact of the Child Care Development Block State Plan/ CCDBG Grant funding increase and seek input on the State Plan. DFD conducted outreach through the NJ County Councils for Young Children to recruit parents for discussion.

1.3.2 Describe the statewide or territory-wide public hearing process held to provide the public with an opportunity to comment on the provision of child care services under this Plan (658D(b)(1)(C); 98.16(f)).

Reminder:
Lead Agencies are required to hold at least one public hearing in the state or territory, with sufficient statewide or territory-wide distribution of notice prior to such a hearing to enable the public to comment on the provision of child care services under the CCDF Plan. At a minimum, this description must include:

a) Date of the public hearing. 06/20/2018

Reminder: Must be no earlier than January 1, 2018, which is 9 months prior to the October 1, 2018, effective date of the Plan. If more than one public hearing was held, please enter one date (e.g. the date of the first hearing, the most recent hearing or any hearing date that demonstrates this requirement).

b) Date of notice of public hearing (date for the notice of public hearing identified in (a).
05/31/2018

Reminder: Must be at least 20 calendar days prior to the date of the public hearing. If more than one public hearing was held, enter one date of notice (e.g. the date of the first notice, the most recent notice or any date of notice that demonstrates this requirement).

c) How was the public notified about the public hearing? Please include specific website links if used to provide notice.

Written notice of the hearing was provided to the broad child care community, consisting of CCR&Rs and licensed/registered child care providers, via direct e-mail, a DFD Information Transmittal and the child care website.
The State Plan Public Hearing notice was made available on the Internet at:

www.ChildCareNJ.gov

Parents were provided notice through parent advocacy groups. Additionally, the State held regional meetings and invited parents and the parent advocacy groups to discuss and receive feedback on the plan.

d) Hearing site or method, including how geographic regions of the state or territory were addressed. The hearing is scheduled to take place at the New Jersey Forensic Science Technology Center, 1200 Negron Drive, Hamilton, New Jersey 08691. The hearing was held in two sessions: (1) 8:30 a.m. to 10:00 a.m. and 10:00 p.m. tp 12:30 p.m. The public hearing site is located in Mercer County which is a central location in New Jersey. This location allows fair geographic access from all regions.

e) How the content of the Plan was made available to the public in advance of the public hearing. (e.g. the Plan was made available in other languages, in multiple formats, etc.) DHS/DFD made the draft State Plan available by way of a DFD Information Transmittal to stakeholders and the New Jersey child care website. Prior to the hearings, copies of the CCDF State Plan public hearing notice, including a link to the website containing the plan, were distributed to several child care advisory groups including Child Care Aware of New Jersey (CCANJ) and NJCYC. The State Plan or Public Notice was made available to county public libraries throughout the state via the Internet at the child care website: www.ChildCareNJ.gov

f) How was the information provided by the public taken into consideration regarding the provision of child care services under this Plan? All information provided by the public before and during the hearing were reviewed and considered before the Plan was finalized.

1.3.3 Lead Agencies are required to make the submitted and final Plan, any Plan amendments, and any approved requests for temporary relief (i.e., waivers) publicly available on a website (98.14(d)). Please note that a Lead Agency must submit Plan amendments within 60 days of a substantial change in the Lead Agency's program. (Additional information may be found here: https://www.acf.hhs.gov/occ/resource/pi-2009-01)

a) Provide the website link to where the Plan, any Plan amendments, and/or waivers are available. Note: A Plan amendment is required if the website address where the Plan is posted is changed.

The amended State Plan and the Appendix A (Waiver Request) are available to the public at http://www.childcarenj.gov/Resources/Reports.

b) Describe any other strategies that the Lead Agency uses to make the CCDF Plan and Plan amendments available to the public (98.14(d)). Check all that apply and describe the strategies below, including any relevant website links as examples.

☑ Working with advisory committees.

Describe:

A copy of the hearing notice with the link to the Plan and any subsequent amendments will be sent directly to main contacts at the NJCYC.

☑ Working with child care resource and referral agencies.

Describe:

A copy of the hearing notice with the link to the Plan and any subsequent amendments will be sent directly to the directors of each CCR&R.

☐ Providing translation in other languages.

Describe:

☐ Sharing through social media (e.g., Twitter, Facebook, Instagram, email).

Describe:

☑ Providing notification to stakeholders (e.g., provider groups, parent groups).

Describe:

A copy of the hearing notice with the link to the Plan and any subsequent amendments will be sent directly to main contacts at our key stakeholder organizations.

☐ Other.

Describe:

1.4 Coordination with Partners to Expand Accessibility and Continuity of Care

Lead Agencies are required to describe how the state or territory will efficiently, and to the extent practicable, coordinate child care services supported by CCDF with programs operating at the federal, state/territory, and local levels for children in the programs listed below. This includes programs for the benefit of Indian children, infants and toddlers, children with disabilities, children experiencing homelessness, and children in foster care (98.14(a)(1)).

1.4.1 Describe how the Lead Agency coordinates the provision of child care services with the following programs to expand accessibility and continuity of care and to assist children enrolled in early childhood programs in receiving full-day services that meet the needs of working families (658E(c)(2)(O); 98.12(a); 98.14(a)).

This list includes agencies or programs required by law or rule, along with a list of optional partners that Lead Agencies potentially would coordinate with over the next 3 years to expand accessibility and continuity of care and to assist children enrolled in early childhood programs in receiving full-day services.

Include in the descriptions the goals of this coordination, such as:
-- extending the day or year of services for families;
-- smoothing transitions for children between programs or as they age into school;
-- enhancing and aligning the quality of services for infants and toddlers through school-age children;
-- linking comprehensive services to children in child care or school age settings; or
-- developing the supply of quality care for vulnerable populations (as defined by the Lead Agency) in child care and out-of-school time settings

Check the agencies or programs the Lead Agency will coordinate with and describe all that apply.

☑ (REQUIRED) Appropriate representatives of the general purpose local government, which can include counties, municipalities, or townships/towns.

Describe the coordination goals and process:

DFD works with the local County Welfare Agencies (CWAs) and county Boards of Social Services (BSSs) to ensure that TANF recipients who need full-day child care

are promptly referred to the CCR&Rs for assistance with locating and applying for child care services. Additionally, DFD coordinates with County Departments of Human Services regarding contracted child care slots. DFD established a CCDF-TANF workgroup in Fall 2018 with the goal of meeting on a regular basis to strategize how to improve coordination and alignment between the TANF and CCDF programs. Improved coordination and alignment will promote the 2 generation approach and the continuity of care for children in high quality child care settings so that their parents can focus on their goals for employment success and economic mobility.

☑ (REQUIRED) State Advisory Council on Early Childhood Education and Care (or similar coordinating body) (pursuant to 642B(b)(I)(A)(i) of the Head Start Act).

Describe the coordination goals and process:

The NJCYC is the State Advisory Council in New Jersey and was established in 2010. The DHS/DFD Child Care Administrator and the Grow NJ Kids Coordinator are members of the NJCYC and serve on subcommittees. Additionally, other DHS/DFD staff attend the meetings and conduct presentations related to the programs and services administered through the DHS/DFD. Staff also provide updated information to the NJCYC on DHS/DFD quality initiatives, professional development activities and the availability of scholarships.

In addition, the County Councils for Young Children (CCYC) were established in all 21 counties in New Jersey. This statewide initiative is in collaboration with the New Jersey Council for Young Children (NJCYC), DCF, DOE, DOH and DHS. The work of the CCYC is to strengthen collaboration between families and local community stakeholders. This shared leadership philosophy includes parents as active partners with service providers and community leaders helping to identify the needs and aspirations, as well as the successes of collective efforts to positively impact the health, education, and well-being of children from pregnancy to age eight. This body of community members (e.g. parents, community residents and community providers), come together and receive training and technical assistance in parent leadership and shared leadership models. These approaches embrace and encourage parents/community residents to be active partners with service providers and community leaders.

These partnerships and joint initiatives are coordinated to accomplish the main NJCYC goal; which is to ensure broad statewide coordination and collaboration

among the wide range of early childhood programs and services in the State, including child care, Head Start, early intervention, and preschool.

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☑ Check here if the Lead Agency has official representation and a decision-making role in the State Advisory Council or similar coordinating body.

☐ (REQUIRED) Indian tribe(s) and/or tribal organization(s), at the option of individual tribes.

Describe the coordination goals and process, including which tribe(s) was consulted:

☑ N/A-There are no Indian tribes and/or tribal organizations in the State.

☑ (REQUIRED) State/territory agency(ies) responsible for programs for children with special needs, including early intervention programs authorized under the Individuals with Disabilities Education Act (Part C for infants and toddlers and and Part B, Section 619 for preschool).

Describe the coordination goals and process:

The New Jersey special education offices are responsible for supervising and monitoring the implementation of the federal requirements of the Individuals with Disabilities Education Act of 2004 (IDEA) in local education agencies (LEAs) which include all school districts. The state special education offices provide leadership to ensure compliance with state and federal regulations and to establish standards that promote improved outcomes for students with disabilities. In order to serve parents and students who receive special education services, the special education policies and procedures office provides the following: Monitoring, dispute resolution, and complaint investigation; State and federal IDEA Part B grant applications and oversight; Approvals of Approved Private Schools for Students with Disabilities, clinics, agencies and community transition programs; Development of state policy, administrative code and guidance; Oversight of the Special Education Medicaid Initiative (SEMI); and Development of the State Performance Plan/Annual Performance Report.

In addition, DHS/DFD staff are members of the NJCYC and serve on subcommittees pertaining to different topic areas related to early education and child care. The NJCYC also has representation from early intervention coordinators for the Individuals with Disabilities Education Act (IDEA) Part B and the State 619 Coordinator. These groups meet on a regular basis with the goal of reviewing and discussing policies impacting infants and toddlers with special needs.

Within the context of the NJCYC subcommittees, DHS/DFD and the IDEA Part B Coordinator and State 619 Coordinator work to help ensure broad statewide coordination and collaboration among the wide range of early childhood programs and services in the state, including child care, Head Start, early intervention, and preschool as they relate to children with disabilities. Additionally, DHS/DFD contracts with the Statewide Parent Advisory Network (SPAN) on a quarterly basis in order to provide information, resources, technical assistance and trainings that cover screenings, early identification, family rights and inclusion.

The State of NJ has funded both the NJ School-Age Care Coalition (NJSACC) and the Statewide Parents Advocacy Network (SPAN), through its Inclusive Child Care Project in order to assist child care programs in meeting the challenges of inclusion.

Print and digital materials were developed as a collaborative effort of the New Jersey School Age NJSACC and the NJ Inclusive Child Care Project (NJICCP) and funded through DFD's Technical Assistance Grant to inform the public of the various agencies and organizations that are associated with specific disabilities (such as the United Cerebral Palsy Association of NJ, the NJ Speech and Hearing Association, the NJ Commission for the Blind and Visually Impaired) may be able to provide resources and training geared specifically to their area of expertise.

☑ (REQUIRED) State/territory office/director for Head Start state collaboration.

Describe the coordination goals and process:

The Child Care Administrator works together with the Head Start Administrator to review program updates and concerns as they emerge, as well as to strategize to improve coordinated efforts between Head Start and the Child Care Subsidy Program. During Winter 2017, DFD-DOE joint workgroups were established to develop the Early Head Start and Child Care Partnership in order to improve the eligibility process and expedite enrollment. In the Spring of 2017, DFD and DOE released joint policy guidance in an effort to improve coordinated services, strengthen communication, and stream line the eligibility process to support the Early Head Start/Child Care

Partnership initiative.

After the release of the guidance, the joint workgroups continued in order to assess the implementation of the new policy. A year later, in Spring 2018, a revised guidance document was drafted in response to feedback from parents, child care providers, DOE and CCRR workers and has been reviewed for dissemination.

The goal of coordination is focused on expanding accessibility and continuity of care. DHS/DFD and Head Start also work together to conduct joint community provider meetings to engage the public. The CCDF Administrator participates in Head Start Grantee meetings to assist with the implementation and coordination of the Early Head Start and CCDF partnership. This is an important relationship because DHS/DFD provides funding for eligible families to access before and after care for the State's preschool and Head Start programs.

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☑ (REQUIRED) State agency responsible for public health, including the agency responsible for immunizations.

Describe the coordination goals and process:

The Department of Health (DOH) is the state agency responsible for public health. DHS/DFD works with DOH to ensure continuity of care during summer months because DOH licenses summer youth camps. DHS/DFD and DOH began working collaboratively in 2015 to discuss the CCDBG Reauthorization's impact on the DOH Summer Youth Camp Program. Since then, DFD and DOH meet on a quarterly basis to discuss how to align camp licensing requirements with the new CCDF health and safety requirements. Several focused discussions took place in late 2017 and early 2018 to discuss DOH's integration into the New Jersey Child Care Information System (the state's newly developed licensing system). In the Summer of 2018, DFD and DOH agreed to take intermediary steps to ensure that the transition from the school year to the summer was seamless while still working towards CCDF compliance.

☑ (REQUIRED) State/territory agency responsible for employment services/workforce development.

Describe the coordination goals and process:

The New Jersey Department of Labor and Workforce Development (LWD) are responsible for Work First New Jersey (WFNJ) client work activities and Supplemental Nutrition Assistance Program (SNAP) Employment and Training activities (E&T). Employment related activities are administered at the local level by One-Stop Career Centers (OSCC) under LWD supervision. LWD also organizes career fairs and hiring events which are held 2-5 days per week in multiple locations throughout the state (north, central, and south). County Welfare Agency staff administering TANF coordinate the location of work activities to ensure that the location makes child care accessible to parents. DHS/DFD works closely with LWD on an ongoing basis to coordinate the implementation of these activities and two generation strategies to support families economic, wraparound supportive services and child care needs .

☑ (REQUIRED) State/territory agency responsible for public education, including prekindergarten (preK).

Describe the coordination goals and process:

The Department of Children and Families/Office of Licensing (OOL) is the regulatory agency for child care centers and registered homes and coordinates licensing and inspection activities. Both OOL and DFD have developed a joint licensing provider management system, the New Jersey Child Care Information System (NJCCIS). Representatives from both OOL and DFD have had weekly planning meetings to implement the system as well as montly meetings to coordinate different aspects of the system with the vendor. The goals of the meeting are to build a case management system for licensing that will include the universe of providers in NJ (licensed child care centers, registered home providers, approved homes, license-exempt providers, and summer youth camps).

☑ (REQUIRED) State/territory agency responsible for child care licensing.

Describe the coordination goals and process:

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☑ (REQUIRED) State/territory agency responsible for the Child and Adult Care Food Program (CACFP) and other relevant nutrition programs.

Describe the coordination goals and process:

The NJ Department of Agriculture's Division of Food and Nutrition administers the Child and Adult Care Food Program (CACFP). CACFP provides meals to children residing in homeless shelters and snacks to youth participating in after-school programs. These meals are vital to the children in full-day care. The child care program and the New Jersey Supplemental Nutrition Assistance Program (SNAP) are housed in the same Division and meet regularly with the goal of seamlessly providing child care services to SNAP recipients participating in work activities.

DFD contracts with the Child Care Resource and Referral Agencies to manage the Family Child Care Registration programs and in many instances they also serve as the vendors for the Child Care Food Program (CCFP) and encourage providers to participate. DHS/DFD also coordinates child care services with SNAP through the integration of EBT. In an effort to streamline service delivery, families that receive both SNAP and child care can use the same benefit card to access services.

☑ (REQUIRED) McKinney-Vento state coordinators for homeless education and other agencies providing services for children experiencing homelessness and, to the extent practicable, local McKinney-Vento liaisons.

Describe the coordination goals and process:

DHS/DFD assembled a workgroup comprised of the County Welfare Agencies, homeless services providers, a shelter operator representative, CCR&Rs, Head Start representative and State Collaborator, as well as the DOE McKinney-Vento homeless liaison and other key partners to discuss strategies to coordinate services and proposed policy recommendations to effectively service families experience homelessness and met between March and May 2017. The goal of the workgroup was to outline both the CCR&R's and homeless service providers' role and responsibilities

related to outreach, training collaboration, coordination and referrals to and from social service agencies, shelters, county welfare agencies and other key stakeholders. In Summer 2018, a draft policy was released for review and comment and is in the final review process for approval and dissemination.

☑ (REQUIRED) State/territory agency responsible for the Temporary Assistance for Needy Families program.

Describe the coordination goals and process:

DHS/DFD is also the State agency responsible for TANF. The CWAs and BSSs determine TANF eligibility and refer parents to the CCR&Rs to assist with locating child care services. Some CCR&Rs are colocated with the CWAs/BSSs. TANF funds are made available to the CCDF in order to expand access to care, avoid a waiting list, and allow full-day care. In Fall 2018, DFD staff responsible for administering the CCDF and TANF programs established a systems workgroup in order to make system modifications which will result in the integration of both systems. It has been determined that this integration will improve coordination and alignment between the TANF and CCDF programs.

☑ (REQUIRED) Agency responsible for Medicaid and the state Children's Health Insurance Program.

Describe the coordination goals and process:

The DHS/Division of Medical Assistance and Health Services (DMAHS) (the Medicaid lead agency), and their Children's Health Insurance Program (CHIP) provide health coverage for children. The CWAs implement these programs locally and assist families in the enrollment process. The programs allow children to get routine check-ups, immunizations and dental care. CWA's and CCR&Rs provide information about these services to families in person and through their websites. DHS/DFD and DHS/DMAHS work closely together and meet with the CWA Directors on a monthly basis. The goal of the coordination is to provide information and referrals to families that need health services.

☑ (REQUIRED) State/territory agency responsible for mental health

Describe the coordination goals and process:

The DOH/Division of Mental Health and Addiction Services (DMHAS) is the State

Mental Health Authority. The agency plans, monitors, evaluates and regulates New Jersey's mental health prevention, early intervention, treatment. CWA's and CCR&Rs provide information about these services to families in person and through their websites. The goal of these coordination efforts is to provide information and referrals to families that need help.

☑ (REQUIRED) Child care resource and referral agencies, child care consumer education organizations, and providers of early childhood education training and professional development.

Describe the coordination goals and process:

DFD contracts with the CCR&Rs to administer the Family Child Care Registration Program and other initiatives designed to improve the quality of child care services, manage the child care subsidy program for: low- to moderate-income working families, families seeking self-sufficiency and participating inWork First New Jersey (WFNJ), children under the supervision of the Department of Children and Families (DCF), children being cared for by relatives (Kinship Care) and children needing child care before/after Department of Education (DOE) preschool services in designated School Districts, and provide training and technical assistance to child care providers and consumer education organizations throughout the state.

The CCR&Rs are involved in all stages of policy planning and discussions pertaining to accessibility and continuity of care. CCR&Rs are also an integral in delivering technical assistance, training, and professional development to child care providers throughout the state in coordination with

☑ (REQUIRED) Statewide afterschool network or other coordinating entity for out-of-school time care (if applicable).

Describe the coordination goals and process:

The Statewide Network for New Jersey's Afterschool Communities (NJSACC) advocates for the implementation of the New Jersey Quality Afterschool Standards and promotes and supports the development, continuity, and expansion of out-of-school time programs. NJSACC works to build a strong network for afterschool program professionals in NJ, provide training conferences, workshops and information services, offer technical assistance, at no cost, for the development, expansion and improvement of afterschool programs throughout NJ, work closely with state and local

officials to define appropriate NJ State regulations and legislation, establish professional development opportunities, serve as the NJ Member of the National Afterschool Network, develop public awareness of afterschool issues, and be the state's national affiliate to the National AfterSchool Association (NAA). NSACC is funded in part by the New Jersey School-Age Care Coalition (NJSACC) is NJ's Statewide Afterschool Network. NJSACC works to build and support quality afterschool programs across New Jersey. NJSACC provides a variety of professional development opportunities and has partnered with the DHS/DFD Workforce Registry to provide professional development trainings. This partnership directly supports safe and appropriate care for school age children.

☑ (REQUIRED) Agency responsible for emergency management and response.

Describe the coordination goals and process:

After Hurricane Sandy in 2012, DHS/DFD and the Department of Children and Families, Office of Licensing (DCF/OOL), along with the Child Care Resource and Referral Agencies (CCR&Rs), collaborated to gather information on child care providers impacted by the storm. This was done so that NJ could evaluate their circumstances and respond to disaster-related needs. Under appropriate circumstances the state will continue to utilize the approach applied during and after Hurricane Sandy. The New Jersey Office of Emergency Management (OEM) is the Lead Agency responsible for planning, directing and coordinating emergency operations in the State of New Jersey. The goal of this partnership is to improve procedure before, during and after a disaster. Over a period of two years (2015-2016) DHS/OEM reviewed the DFD's disaster plan to make revisions in order to produce a final version in 2017.

The following are examples of optional partners a state might coordinate with to provide services. Check all that apply.

☑ State/territory/local agencies with Early Head Start - Child Care Partnership grants.

Describe

The Child Care Administrator works together with the Head Start Administrator to review program updates and concerns as they emerge, as well as to strategize to

improve coordinated efforts between Head Start and the Child Care Subsidy Program. During Winter 2017, DFD-DOE joint workgroups were established to develop the Early Head Start and Child Care Partnership in order to improve the eligibility process and expedite enrollment. In the Spring of 2017, DFD and DOE released joint policy guidance in an effort to improve coordinated services, strengthen communication, and stream line the eligibility process to support the Early Head Start/Child Care Partnership initiative.

After the release of the guidance, the joint workgroups continued in order to assess the implementation of the new policy. A year later, in Spring 2018, a revised guidance document was drafted in response to feedback from parents, child care providers, DOE and CCRR workers and has been reviewed for dissemination.

The goal of coordination is focused on expanding accessibility and continuity of care. DHS/DFD and Head Start also work together to conduct joint community provider meetings to engage the public. The CCDF Administrator participates in Head Start Grantee meetings to assist with the implementation and coordination of the Early Head Start and CCDF partnership. This is an important relationship because DHS/DFD provides funding for eligible families to access before and after care for the State's preschool and Head Start programs.

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☑ State/territory institutions for higher education, including community colleges

Describe

DHS/DFD frequently contracts with institutions for higher education, including community colleges for their expertise. Partnerships with Rowan University, Rutgers University, and William Patterson University include efforts to develop child care workforce credentials, develop and complete the statewide Market Rate Survey, manage the New Jersey Center for Quality Ratings, and develop Preschool Classroom Implementation Guidelines. The goal of all of these collaborations is to support access to continuous quality care. Grow NJ Kids entered into an agreement with Rutgers University, School of Social Work, and Institute for Families to handle all

logistical aspects of training related to Grow NJ Kids. The agreement took effect April of 2016. The New Jersey Center for Quality Ratings at WPU is the rating partner of Grow NJ Kids and is funded by the NJ Department of Education's Race to the Top Early Learning Challenge Grant. The NJCQR is responsible for electronic/onsite documentation review and administering structured classroom observations in order to provide each enrolled program a star level of rating. This partnership began in Summer 2017.

☐ Other federal, state, local, and/or private agencies providing early childhood and school-age/youth-serving developmental services.

Describe

☑ State/territory agency responsible for implementing the Maternal and Child Home Visitation programs grant.

Describe

DHS/DFD programs collaborate with the Department of Children and Families' Home Visitation Programs and Central Intake Hubs. The Hubs are located in all 21 counties. Through this partnerships, New Jersey has more than doubled its support for evidence-based home visiting programs and now has an expanded statewide capacity to reach over 5,000 families of infants and young children with three core home visiting models - Healthy Families, Nurse-Family Partnership, and Parents as Teachers since 2007. These three models are now available to families in all 21 counties. The goal of this partnership is to allow expecting families and families with young children to connect to home visitation programs, prenatal care programs, and many other services. Hubs enter into local partnerships and their advisory board members include individuals from the Maternal Child Health Consortia, CCR&Rs, and other community partners.

☑ Agency responsible for Early and Periodic Screening, Diagnostic, and Treatment.

Describe

The Department of Children and Families is the designated agency for early and

periodic screening, diagnostic, and treatment.

In November 2015, DCF entered a new phase of the reform. The Office of Child and Family Health (OCFH) and Clinical Services, now the Office of Clinical Services (OCS), was initially created to support the overall safety and well-being of families and children served by the department through developing and administering programs that provide seamless and quality prevention, intervention, primary and other healthcare services. The office was also created to support CP&P in ensuring families and children achieve the physical and behavioral health outcomes to maintain compliance with the state, federal and SEP standards. The primary roles of OCFH and Clinical Services include the Child Health Units (CHUs) and Child and Family Nurse programs, Medicaid and Medicaid Extension for Young Adults (MEYA), required examinations and screenings for children entering out-of-home placement, forensic, medical and psychological evaluations, including Regional Diagnostic and Treatment Centers (RDTCs) and management and oversight of pediatric/psychiatric consultation services. OCS is also responsible for providing Medicaid customer service for DCF staff, families and community partners and serving as the support for Medicaid and Managed Care Organizations (MCO) liaisons to ensure all children in out-of-home placement have health insurance.

In 2014, the OCFH was renamed to the Office of Clinical Early and Periodic Screening, Diagnosis and Treatment (EPSDT) is the Department of Human Service's Division of Medical Assistance and Health Service (Medicaid) comprehensive and preventive child health program for children birth through age 21 who are eligible for Medicaid and are enrolled in fee-for-service or managed care plans. This program provides regular medical checkups, dental checkups, treatment and services, at no cost, to children birth through age 21, including those who are in an out-of-home placement paid for by CP&P. Managed care plans provide different EPSDT benefit levels.

Screening is also a priority for several major federal initiatives that are currently in place in the state. These include Early Childhood Comprehensive Systems (ECCS), MIECHV, Help Me Grow (HMG), Project LAUNCH, and Race to the Top-Early Learning Challenge (RTT-ELC) Grants. NJ has a strong alignment of health service components with the Medicaid/NJ Family Care (CHIP) Early Periodic Screening, Diagnostic and Treatment requirements. In fact, NJ licensing standards for early learning programs require children to have a medical exam upon entry that includes immunizations, and lead testing, thus providing a basis for the Medicaid/NJ

FamilyCare (CHIP) Early Periodic Screening, Diagnostic and Treatment (EPSDT) program requirements.
In addition, County Welfare Agencies and Child Care Resource and Referral Agencies provide information about these services to families in person and through their websites. The goal of this coordination is to provide information and referrals to families that need these services.

☑ State/territory agency responsible for child welfare.

Describe

DCF's Division of Child Protection and Permanency (CP&P) is New Jersey's child welfare agency, responsible for investigating allegations of child abuse and neglect and providing supportive services to children and families in need. CP&P contracts with community-based agencies to provide services to children and families, including but not limited to counseling, parenting skills, and substance use treatment. If a child has been abused or neglected, or is at imminent risk of abuse or neglect, CP&P may ask the local family court to remove the child from the parent's custody and place the child in an out-of-home placement, commonly known as foster care. Whenever possible, the child is placed in a family setting, preferably with a relative caregiver. Both relative and non-relative foster homes in New Jersey are licensed and regulated by DCF's Office of Licensing. DHS/DFD and DCF/Division of Permanency and Protection (DCP&P) formed a partnership to ensure expedited access and continuity of care. The agencies implemented simplified application, placement, and payment procedures for children under DCP&P supervision. DCF/DCP&P and DHS/DFD meet regularly to discuss this coordination of services.

☑ State/territory liaison for military child care programs.

Describe

New Jersey National Guard's Family Programs established the NJ Family Assistance Centers (FACs) to provide support and assistance to Service Members and their Families. The FACs are geographically placed throughout NJ and are able to offer assistance to all branches of service. Family Assistance Centers are located in different geographic locations around the state. Each Family Assistance Center serves

the Service members and their families that live in that area. Not being located near a military installation or facility is no longer a roadblock to getting services and support. Family Assistance Centers can provide assistance and service that you need where you live. Families have the option of using the Family Assistance Center Specialist located within the armory in which they are stationed.

☑ Provider groups or associations.

Describe

Programs for Parents' Strengthening Families, the Essex County Council for Young Children, and the NJ First Steps Initiatives hosted Café Style conversations on children's temperament on April 29, 2017. This was a collaboration of the three initiatives to have their families, providers and stakeholders engage one another and have a mutual conversation on how caregivers can have effective interactions with children and knowing what strategies to use in certain circumstances.

☑ Parent groups or organizations.

Describe

DHS/DFD contracts with the Statewide Parent Advisory Network (SPAN) which provides information, resources, technical assistance and trainings that cover screenings, early identification, family rights and inclusion.

Additionally, all 21 counties have established a County Council for Young Children (CCYC). This shared leadership philosophy includes parents as active partners with service providers and community leaders helping to identify the needs, concerns aspirations and successes of State efforts to positively impact the health, education and well-being of children. DHS/DFD is part of this collaboration. The goal is to strengthen collaboration between parents, families, and local community stakeholders with health, early care and education, family support, and other service providers.

☑ Other.

Describe

In September 2018, DHS/DFD held its first child care advisory council meeting, distinct from the NYCYC. This new group includes advocacy groups, parents, representation from other government agencies including, DOE, DOH, DCF and DCA. The group will meet quarterly to help inform and make recommendations for the Child Care Subsidy Program. Since the NJCYC is operated out of DOE and represents the interest of young children in general, this council will focus more on issues surrounding subsidized child care.

The Department of Education Office of Early Childhood Services (OECS) in its partnership with the Statewide Parent Advocacy Network (SPAN) continued its Parent Leadership Development Training to parents and caregivers participating in the statewide network of CCYCs. The purpose of this grant is to strengthen engagement, participation, and shared leadership with Parent Partners within New Jersey's statewide network of early childhood service providers. The target population for this training is families with young children from pregnancy to age eight, aligning with the Race to the Top Early Learning Challenge target population; however the SPAN engaged all partners across sectors.

The expected outcomes of the Parent Leadership Development Training included:

- Strengthening the knowledge and skills of the CCYCs to effectively engage and retain parent partners; and actively employ a shared leadership model;
- Activating parents to embrace the role of Parent Partner (family, program, community and state) and actively participate in shared leadership to support early childhood efforts at local and state levels.

1.5 Optional Use of Combined Funds, CCDF Matching and Maintenance-of-Effort Funds

Optional Use of Combined Funds:

States and territories have the option to combine CCDF funds with any program identified as required in 1.4.1. These programs include those operating at the federal, state, and local levels for children in preschool programs, tribal early childhood programs, and other early childhood programs, including those serving infants and toddlers with disabilities, children experiencing homelessness, and children in foster care (658E(c)(2)(O)(ii)). Combining funds could include blending multiple funding streams, pooling funds, or layering funds together from multiple funding streams to expand and/or enhance services for infants, toddlers, preschoolers and school-age children and families to allow for the delivery of comprehensive quality care that

meets the needs of children and families. For example, state/territory agencies may use multiple funding sources to offer grants or contracts to programs to deliver services; a state/territory may allow a county/local government to use coordinated funding streams; or policies may be in place that allow local programs to layer CCDF funds with additional funding sources to pay for full-day, full-year child care that meets Early Head Start/Head Start Program Performance Standards or state/territory prekindergarten requirements in addition to state/territory child care licensing requirements.

As a reminder, CCDF funds may be used in collaborative efforts with Head Start programs to provide comprehensive child care and development services for children who are eligible for both programs. In fact, the coordination and collaboration between Head Start and CCDF is strongly encouraged by sections 640(g)(1)(D) and (E); 640(h); 641(d)(2)(H)(v); and 642(e)(3) of the Head Start Act in the provision of full working day, full calendar year comprehensive services. To implement such collaborative programs, which share, for example, space, equipment, or materials, grantees may layer several funding streams so that seamless services are provided (Policy and Program Guidance for the Early Head Start ' Child Care Partnerships:

https://www.acf.hhs.gov/sites/default/files/occ/acf_im_ohs_15_03.pdf
).

1.5.1 Does the Lead Agency choose to combine funding for CCDF services for any required early childhood program (98.14(a)(3))?

☐ No (If no, skip to question 1.5.2)
☑ Yes. If yes, describe at a minimum:

a) How you define "combine"

"Combine" is defined as the co-mingling of funds into one child care funding stream.

b) Which funds you will combine

Both TANF Block Grant funds and state matching funds which include $72 million in TANF funds and $44.24 million in matching state funds.

c) Your purpose and expected outcomes for combining funds, such as extending the day or year of services available (i.e., full-day, full-year programming for working families), smoothing transitions for children, enhancing and aligning quality of services, linking comprehensive services to children in child care or developing the

supply of child care for vulnerable populations

Combined funds will expand services to parents and ensure that there is no disruption to child care services.

d) How you will be combining multiple sets of funding, such as at the State/Territory level, local level, program level?

Overall DHS/DFD receives funds from the respective funding sources and maintains the funds in separate accounts where appropriate. DHS/DFD conducts quarterly reconciliations to ensure that the funds are spent in the designated program areas.

e) How are the funds tracked and method of oversight

These funds are tracked quarterly as part of the CCDF reconciliation process.

1.5.2 Which of the following funds does the Lead Agency intend to use to meet the CCDF matching and MOE requirements described in 98.55(e) and 98.55(h)?

Note:
The Lead Agency must check at least public and/or private funds as matching, even if preK funds also will be used.

Use of PreK for Maintenance of Effort: The CCDF final rule clarifies that public preK funds may also serve as maintenance-of-effort funds as long as the state/territory can describe how it will coordinate preK and child care services to expand the availability of child care while using public preK funds as no more than 20 percent of the state's or territory's maintenance of effort or 30 percent of its matching funds in a single fiscal year (FY) (98.55(h)). If expenditures for preK services are used to meet the maintenance-of-effort requirement, the state/territory must certify that it has not reduced its level of effort in full-day/full-year child care services (98.55(h)(1); 98.15(a)(6)).

Use of Private Funds for Match or Maintenance of Effort: Donated funds do not need to be under the administrative control of the Lead Agency to qualify as an expenditure for federal match. However, Lead Agencies do need to identify and designate in the state/territory Plan the donated funds given to public or private entities to implement the CCDF child care program

(98.55(f)).

☐ N/A - The territory is not required to meet CCDF matching and MOE requirements

☑ Public funds are used to meet the CCDF matching fund requirement. Public funds may include any general revenue funds, county or other local public funds, state/territory-specific funds (tobacco tax, lottery), or any other public funds.

-- If checked, identify the source of funds:

State general fund appropriations.

-- If known, identify the estimated amount of public funds that the Lead Agency will receive: $ 150.84 million

☐ Private donated funds are used to meet the CCDF matching funds requirement. Only private funds received by the designated entities or by the Lead Agency may be counted for match purposes (98.53(f)).

-- If checked, are those funds:

☐ donated directly to the State?

☐ donated to a separate entity(ies) designated to receive private donated funds?

-- If checked, identify the name, address, contact, and type of entities designated to receive private donated funds:

-- If known, identify the estimated amount of private donated funds that the Lead Agency will receive: $

☐ State expenditures for preK programs are used to meet the CCDF matching funds requirement.

If checked, provide the estimated percentage of the matching fund requirement that will be met with preK expenditures (not to exceed 30 percent):

-- If the percentage is more than 10 percent of the matching fund requirement, describe how the State will coordinate its preK and child care services:

-- If known, identify the estimated amount of preK funds that the Lead Agency will receive for the matching funds requirement: $

-- Describe the Lead Agency efforts to ensure that preK programs meet the needs of working parents:

☐ State expenditures for preK programs are used to meet the CCDF maintenance-of-effort requirements. If checked,
-- The Lead Agency assures that its level of effort in full-day/full-year child care services has not been reduced, pursuant to 98.55(h)(1) and 98.15(6).

☑ No

☐ Yes

-- Describe the Lead Agency efforts to ensure that preK programs meet the needs of working parents:

-- Estimated percentage of the MOE Fund requirement that will be met with preK expenditures (not to exceed 20 percent):

-- If the percentage is more than 10 percent of the MOE requirement, describe how the State will coordinate its preK and child care services to expand the availability of child care:

-- If known, identify the estimated amount of preK funds that the Lead Agency will receive for the MOE Fund requirement: $

1.6 Public-Private Partnerships

Lead Agencies are required to describe how they encourage public-private partnerships among other public agencies, tribal organizations, private entities, faith-based organizations, businesses or organizations that promote business involvement, and/or community-based organizations to leverage existing service delivery (i.e., cooperative agreement among providers to pool resources to pay for shared fixed costs and operation) (658E(c)(2)(P)). ACF expects these types of partnerships to leverage public and private resources to further the goals of the CCDBG Act. Lead Agencies are required to demonstrate how they encourage public-private partnerships to leverage existing child care and early education service-delivery systems and to increase the supply and quality of child care services for children younger than age 13, for example, by implementing voluntary shared service alliance models (98.14(a)(4)).

1.6.1 Identify and describe the entities with which and the levels at which the state/territory is partnering (level-state/territory, county/local, and/or programs), the goals of the partnerships, the ways that partnerships are expected to leverage existing service-delivery systems, the method of partnering, and examples of activities that have resulted from these partnerships (98.16(d)(2)).

The County Councils for Young Children (CCYC): CCYCs are established in all 21 counties in New Jersey. This statewide initiative is in collaboration with the New Jersey Council for Young Children (NJCYC), DCF, DOE, DOH and DHS. The work of the CCYC is to strengthen collaboration between families and local community stakeholders. This shared leadership philosophy includes parents as active partners with service providers and community leaders helping to identify the needs and aspirations, as well as the successes of collective efforts to positively impact the health, education, and well-being of children from pregnancy to age eight. This body of community members (e.g. parents, community residents and community providers), come together and receive training and technical assistance in parent leadership and shared leadership models. These approaches embrace and encourage parents/community residents to be active partners with service providers and community leaders.

CCYCs will allow for members to inform, impact, and develop local and state policies, services, and/or practices for improved responsiveness to the needs of families and children in the county and state. Efforts of the CCYC will also inform professional development and training opportunities for the local workforce to support proposed policies, services, and practices.

The CCYCs utilize local data to guide the work of the councils. They are encouraged to use state, county and municipal census data, NJ Kids Count, NJ Department of Education School Performance Reports and the Department of Health vital records, to name a few resources. The CCYCs served 1,841 unduplicated parents/community residents and 706 professionals/community stakeholders in FY 2017.

The Office of Early Childhood Services (OECS) in its partnership with the Statewide Parent Advocacy Network (SPAN) continued its Parent Leadership Development Training to parents and caregivers participating in the statewide network of CCYCs.

1.7 Coordination With Local or Regional Child Care Resource and Referral Systems

Lead Agencies may use CCDF funds to establish or support a system of local or regional child care resource and referral (CCR&R) organizations that is coordinated, to the extent determined by the state/territory, by a statewide public or private non-profit, community-based or regionally based, lead child care resource and referral organization (such as a statewide CCR&R network) (658E(c)(3)(B)(iii); 98.52).

- If Lead Agencies use CCDF funds for local CCR&R organizations, the local or regional CCR&R organizations supported by those funds must, at the direction of the Lead Agency, provide parents in the State with consumer education information concerning the full range of child care options (including faith-based and community-based child care providers), analyzed by provider, including child care provided during non-traditional hours and through emergency child care centers, in their area.

- To the extent practicable, work directly with families who receive assistance to offer the families support and assistance to make an informed decision about which child care providers they will use to ensure that the families are enrolling their children in the most appropriate child care setting that suits their needs and one that is of high quality (as determined by the Lead Agency).

- Collect data and provide information on the coordination of services and supports, including services under Section 619 and Part C of the Individuals with Disabilities Education Act;

- Collect data and provide information on the supply of and demand for child care services in areas of the state and submit the information to the State;

- Work to establish partnerships with public agencies and private entities, including faith- based and community-based child care providers, to increase the supply and quality of child care services in the state and, as appropriate, coordinate their activities with the activities of the state Lead Agency and local agencies that administer funds made available through CCDF (98.52(b)).

Nothing in the statute or rule prohibits States from using CCR&R agencies to conduct or provide additional services beyond those required by statute or rule.

Note: Use 1.7.1 to address if a state/territory funds a CCR&R organization, what services are provided and how it is structured and use section 7.6.1 to address the indicators of progress met by CCR&R organizations if they are funded by quality set-aside funds.

1.7.1 Does the Lead Agency fund a system of local or regional CCR&R organizations?

☐ No. The state/territory does not fund a CCR&R organization(s) and has no plans to establish one.

☑ Yes. The state/territory funds a CCR&R system. If yes, describe the following:

a) What services are provided through the CCR&R organization?

CCR&Rs provide the following core services which are not inclusive of the full list of services:

- Make eligibility determinations
- Enroll child care providers into the program
- Ensure that all families and providers represented in the service delivery area have access to information about child care such as program eligibility requirements, information on licensing, certification and registration and the benefits of high quality programs;
- Provide parents with written information about the benefits of highquality programs to assist them in evaluating preschool and child care environments;
- Provide referrals that match the parents' expressed needs and preferences, including additional referrals and resource information for other community services;
- Provide technical assistance to providers on how to become accredited and enroll in Grow NJ Kids, New Jersey's Quality Rating and Improvement System;
- Provide information about the full diversity of child care program settings and program types to help parents make informed decisions;
- Promote community and consumer awareness of DHS/DFD child care programs and quality initiatives to support community involvement in quality child care;
- Provide information via their websites on the Child Care Subsidy Program
- Administer the Family Child Care Registration Program, Approved Homes, and Summer Youth Camp provider application proces

b) How are CCR&R services organized, include how many agencies, if there is a statewide network and if the system is coordinated?

There are 14 CCR&R Agencies that administer New Jersey's Child Care Subsidy Program in the state's 21 counties. The agencies are contracted through the Request for Proposal process. The DHS/DFD supervises and guides the CCR&Rs in all

aspects of program operation.

1.8 Disaster Preparedness and Response Plan

Lead Agencies are required to establish a Statewide Child Care Disaster Plan (658E(c)(2)(U)). They must demonstrate how they will address the needs of children'including the need for safe child care, before, during, and after a state of emergency declared by the Governor or a major disaster or emergency (as defined by Section 102 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act, 42 U.S.C. 5122)'through a Statewide Disaster Plan that, for a State, is developed in collaboration with the State human services agency, the State emergency management agency, the State licensing agency, the State health department or public health department, local and State child care resource and referral agencies, and the State Advisory Council on Early Childhood Education and Care (designated or established pursuant to section 642B(b)(I)(A)(i) of the Head Start Act (42 U.S.C. 9837b(b)(1)(A)(i))) or similar coordinating body (98.16(aa)).

1.8.1 Describe how the Statewide Child Care Disaster Plan was developed in collaboration with the State human services agency, the State emergency management agency, the State licensing agency, the State health department or public health department, local and State child care resource and referral agencies, and the State Advisory Council on Early Childhood Education and Care or similar coordinating body:

In situations where a major disaster may be imminent, the Governor or his representative may declare a State of Emergency. The following entities are the main partners that DHS/DFD deals with on a day to day basis and that DHS/DFD would have the most interaction with in the event of an emergency.

1. Office of Emergency Management: State and local offices of emergency management (OEMs) play a critical role in the child care world, both in emergency situations as well as in more routine areas such as training child care providers. There is a Statewide OEM, as well as OEMs for each separate State department. Each of New Jersey’s 21 counties has an OEM, as do many municipalities. The relevant OEMSs work with all county and local agencies during emergencies and disasters.

2. Child Care Resource and Referral Agencies:

In New Jersey, delivery of child care services funded by CCDF are supervised at the State level by DHS/DFD and are administered at the local level by 14 regional Child Care Resource & Referral Agencies (CCR&Rs.)

3. Department of Children and Families/ Office of Licensing (DCF/OOL):
DCF/OOL regulates child care providers, including licensed centers, Head Start Programs and registered Family Child Care Providers. DCF/OOL requires regulated centers to notify local law enforcement or OEM of their written emergency plan and procedures through N.J.A.C. 3A:52, for licensed child care centers, including Head Start programs, and N.J.A.C. 3A:54 for family child care providers.

4. Department of Education:
CCDF funds serve many children in before and after school programs on-site in New Jersey public and private schools. The Department of Education's Office of School Preparedness & Emergency Planning (OSPEP) provides support to district and school leaders to assist with the establishment and maintenance of a school safety and security plan that addresses all hazards and follows the phases of crisis management planning – mitigation, preparedness, response, and recovery.

5. Department of Health:
The New Jersey Department of Health (DOH) serves as a partner with DHS/DFD as it licenses summer camps. Some summer camps are operated by child care centers that operate all year long. These camps already receive a license through DCF/OOL; however, most summer camps that operate only during the summer months are licensed by DOH. DOH is a key partner because they provide guidance for these summer camps in the event of an Emergency. Of equal importance is the role that the DOH would play in the event of some chemical related disaster or some other health epidemic.

6. The New Jersey Council for Young Children:
The Early Childhood Advisory Council in New Jersey is known as the New Jersey Council for Young Children (NJCYC). NJCYC offers expertise and connections in the child care world and was consulted as this plan was developed.

1.8.2 Describe how the Statewide Disaster Plan includes the Lead Agency's guidelines for the continuation of child care subsidies and child care services, which may include the provision of emergency and temporary child care services during a disaster and temporary operating standards for child care after a disaster:

In the event of a disaster, among other things, DHS/DFD relaxes documentary requirements for eligibility, utilizes a vendor supported back-up payment system, distributes extra EBT terminals as needed, provides emergency child care regardless of income, waives certain redetermination requirements and deadlines, and continues payments to providers to avoid the effect of excessive child absences.

1.8.3 Describe Lead Agency procedures for the coordination of post-disaster recovery of child care services:

Following a disaster, if available resources allow, DFD provides funds for the repair and renovation of child care centers impacted by the disaster. DFD administers the distribution of such funds.

Additionally, child care providers in New Jersey should have a variety of resources to assist with business continuity should a disaster occur. Providers receive training through the CCR&Rs, via a training module, in all key components of emergency preparedness, including adequate insurance coverage and protection of records and assets. The CCR&Rs also provide consumer education to providers on engaging business associations, community development financial institutions, and other organizations that could help allow providers to reopen.

Furthermore, providers can obtain information through the CCR&Rs and through the State's website about financial assistance available for rebuilding. The New Jersey 211 website also would have updated information on available financial assistance after a disaster. New Jersey has FEMA contacts to consult with regarding child care services that may be eligible for reimbursement under the Public Assistance Grant Program.

In the aftermath of a disaster, FEMA and other federal agencies, and State OEMs along with other State and local agencies, work together to facilitate recovery. OEMs coordinate with

FEMA and other agencies to direct available FEMA funds where they are needed. For instance, if a child care center is destroyed in a disaster, FEMA, State OEMs, and other agencies are expected to work together to direct available FEMA funds (like small business loans) to eligible needy child care providers.

1.8.4 Describe how the Lead Agency ensures that providers who receive CCDF funds have the following procedures in place-evacuation; relocation; shelter-in-place; lockdown; communications with and reunification of families; continuity of operations; and accommodations for infants and toddlers, children with disabilities, and children with chronic medical conditions:

The New Jersey Office of Emergency Management (OEM) is the Lead Agency responsible for planning, directing and coordinating emergency operations within the State of New Jersey beyond local control. OEM coordinates the emergency response efforts of state agencies, allied agencies, county Offices of Emergency Management, and the private sector. OEM is the leader in disaster management. All State entities adhere to their guidance and utilize their established partnerships as needed.

But while OEM provides coordination of the emergency response efforts, it does not specifically address the required coordination of services and provisions needed to support families and child care programs before, during or after a disaster.

Despite the DHS/DFD role in providing a subsidy on behalf of children that attend the child care facilities, DCF/OOL is the regulatory entity; therefore, the bulk of the response efforts are under the purview of DCF/OOL and the other State partners described below:

All Hazards Department of Children and Families Disaster Preparedness Plan
DCF maintains a Statewide plan known as the "All Hazards Department of Children and Families Disaster Preparedness Plan" (DPP) that addresses all entities under its purview, including licensed centers and registered homes. Generally the plan breaks disaster response into three specific phases (1) the Planning and Preparedness

Phase, (2) the Response and Mobilization Phase and (3) the Recovery Phase.

Immediately following a disaster, DCF/OOL reaches out to licensed child care centers in affected areas to assess conditions and needs. Licensed centers are required to notify OOL if they are impacted in an emergency.

After connecting with an impacted licensed center, OOL would then inspect the center and assess the situation, determining whether the center was completely unusable, whether part of the center can safely be used, etc. OOL would then issue an inspection report with its findings. In cases where a center is damaged, OOL determines a plan of action on a case-by-case basis to assist the center in attaining compliance with state licensing regulations. OOL works closely with local enforcing agencies to ensure the safety of the child care facility.
If a center is deemed unusable, OOL assists with emergency relocation so that the children will not be without care. Once an alternate temporary location is found by the local CCR&R, the OOL inspector, or through other entities, OOL works with local enforcing officials to ensure that the alternate location is safe.

Pursuant to the contracts between the State and each local CCR&R agency, CCR&Rs must meet various performance standards relating to emergency planning and preparedness. The contract provides that CCR&Rs are to utilize the disaster planning guide published by the NACCRRA or a comparable document, as guidance in fulfilling their obligations under the contract when an emergency arises.

Among other functions, CCR&Rs maintain lists of licensed child care providers as well as registered family care providers in their areas. After a disaster, if certain child care providers are unable to immediately resume services, the local CCR&R will provide referrals to such other approved providers.
CCR&Rs will distribute information to victims about available help, such as FEMA public assistance grants, state and local foundation grants, as well as information related to small business loans and emergency preparedness training.

In the event of a public health emergency, DOH in conjunction with OEM is the leads. Within the DOH sits the Division of Public Health Infrastructure, Laboratories and Emergency Preparedness (PHILEP). PHILEP works to coordinate New Jersey's local

public health agencies, laboratory services and preparedness for responses to emergencies.
PHILEP oversees the Emergency Preparedness and Operations Section, Office of Emergency Medical Services, Office of Local Public Health and the Public Health and Environmental Laboratories.
PHILEP interacts with other government agencies on the federal, state, county and local levels, as well as private and non-for-profit sector organizations.

The Department of Education (DOE) has a guidance document entitled the School Administrator Procedures: Responding to Critical Incidents. The document provides complementary procedures. The procedures focus on the topics of bomb threats, active shooter response, lockdowns, evacuations and public information. These procedures serve to strengthen the emergency response system in all schools and enhance collaboration, communication and coordination.
Each school has a school safety and security plan. The plan must be reviewed at least once a year. The DOE recommended that the review occur by the third week in October. Additionally, the safety and security plan must be reviewed and updated anytime weaknesses are identified during a drill or actual emergency.

1.8.5 Describe how the Lead Agency ensures that providers who receive CCDF funds have the following procedures in place for child care staff and volunteers-emergency preparedness training and practice drills as required in 98.41(a)(1)(vii):

Core functions that are handled by DFD in the case of a disaster include (1) establishing policy on any temporary eligibility criteria for CCDF subsidies, and (2) ensuring that there are mechanisms in place for continued subsidy payments to child care providers after a disaster. Local CCR&Rs then implement DFD policy and procedures. In the event of a disaster, DFD provides guidance on how to address temporary, disaster-related needs of impacted CCDF families and impacted child care providers. This typically is accomplished by issuing a program instruction to CCR&Rs or via other routes.

Additionally, child care providers in New Jersey should have a variety of resources to assist with business continuity should a disaster occur. Providers receive training through the CCR&Rs, via a training module, in all key components of emergency preparedness, including adequate insurance coverage and protection of records and assets. The CCR&Rs also provide consumer education to providers on engaging business associations, community development financial institutions, and other organizations that could help allow providers to reopen.
Furthermore, providers can obtain information through the CCR&Rs and through the State's website about financial assistance available for rebuilding.

1.8.6 Provide the link to the website where the statewide child care disaster plan is available:

http://www.childcarenj.gov/Resources/Reports

2 Promote Family Engagement through Outreach and Consumer Education

Lead Agencies are required to support the role of parents as child care consumers who need information to make informed choices regarding the services that best suit their needs. A key purpose of the CCDBG Act is to 'promote involvement by parents and family members in the development of their children in child care settings' (658A(b)). Lead Agencies have the opportunity to consider how information can be provided to parents through the child care assistance system, partner agencies, and child care consumer education websites.

The target audience for the consumer education information includes three groups: parents receiving CCDF assistance, the general public, and when appropriate, child care providers. In

this section, Lead Agencies will address how information is made available to families to assist them in accessing high-quality child care and how information is shared on other financial assistance programs or supports for which a family might be eligible. In addition, Lead Agencies will certify that information on developmental screenings is provided and will describe how research and best practices concerning children's development, including their social-emotional development, is shared.

In this section, Lead Agencies will delineate the consumer and provider education information related to child care, as well as other services, including developmental screenings, that is made available to parents, providers, and the general public and the ways that it is made available. This section also covers the parental complaint process and the consumer education website that has been developed by the Lead Agency and the manner in which it links to the national website and hotline. Finally, this section addresses the consumer statement that is provided to parents supported with CCDF funds.

2.1 Outreach to Families With Limited English Proficiency and Persons With Disabilities

The Lead Agency is required to describe how it provides outreach and services to eligible families with limited English proficiency and persons with disabilities and to facilitate the participation of child care providers with limited English proficiency and disabilities in the CCDF program (98.16(dd)). Lead Agencies are required to develop policies and procedures to clearly communicate program information, such as requirements, consumer education information, and eligibility information, to families and child care providers of all backgrounds (81 FR 67456).

2.1.1 Check the strategies the Lead Agency or partners utilize to provide outreach and services to eligible families for whom English is not their first language. Check all that apply.

- [x] Application in other languages (application document, brochures, provider notices)
- [x] Informational materials in non-English languages
- [x] Website in non-English languages
- [x] Lead Agency accepts applications at local community-based locations
- [x] Bilingual caseworkers or translators available

- [x] Bilingual outreach workers
- [x] Partnerships with community-based organizations
- [ ] Other.

Describe:

2.1.2 Check the strategies the Lead Agency or partners utilize to provide outreach and services to eligible families with a person(s) with a disability. Check all that apply.

- [ ] Applications and public informational materials available in Braille and other communication formats for access by individuals with disabilities
- [ ] Websites that are accessible (e.g. Section 508 of the Rehabilitation Act)
- [x] Caseworkers with specialized training/experience in working with individuals with disabilities
- [x] Ensuring accessibility of environments and activities for all children
- [x] Partnerships with state and local programs and associations focused on disability-related topics and issues
- [x] Partnerships with parent associations, support groups, and parent-to-parent support groups, including the Individuals with Disabilities Education Act (IDEA) federally funded Parent Training and Information Centers
- [x] Partnerships with state and local IDEA Part B, Section 619 and Part C providers and agencies
- [x] Availability and/or access to specialized services (e.g. mental health, behavioral specialists, therapists) to address the needs of all children
- [x] Other.

Describe:

DHS/DFD and the CCR&Rs comply with The Americans with Disabilities Act (ADA) to ensure the removal of barriers that prevent persons with disabilities from accessing services. Based on the needs of parents, reasonable accommodations are made, such as using Interpreter Services and the Language Lines, having flexible office hours, and granting extensions to submit and complete applications or documentation. Additionally, information is distributed by mail, phone, and internet and through alternate means if a person is unable to physically come to the agency. Additionally, the DHS/Division of Disability Services (DDS), the DHS/Commission for the Blind and Visually

Impaired (CBVI) and the DHS/Division of the Deaf and Hard of Hearing (DDHH) are all sister agencies in this Department. Executive staff for all of the divisions meet regularly.

2.2 Parental Complaint Process

The Lead Agency must certify that the state/territory maintains a record of substantiated parental complaints and makes information regarding such complaints available to the public on request (658E(c)(2)(C); 98.15(b)(3)). Lead Agencies must also provide a detailed description of the hotline or similar reporting process for parents to submit complaints about child care providers; the process for substantiating complaints; the manner in which the Lead Agency maintains a record of substantiated parental complaints; and ways that the Lead Agency makes information on such parental complaints available to the public on request (98.16; 98.32).

2.2.1 Describe the Lead Agency's hotline or similar reporting process through which parents can submit complaints about child care providers, including a link if it is a Web-based process:

All New Jersey residents are mandated reporters, meaning that by law anyone with a reasonable suspicion that a child has been abused or neglected is required to report it to authorities immediately. A concerned caller does not need proof to report an allegation of child abuse and can make the report anonymously. All reports of child abuse and neglect, including those occurring in institutional settings such as child care centers, schools, foster homes and residential treatment centers, must be reported to the State Central Registry (SCR). The Hotline is open 24-hours a day, 7-days a week.

New Jersey Child Abuse Hotline

1-877-NJ ABUSE

1-877-652-2873

TTY 1-800-835-5510

This number is listed on the childcarenj.gov website.

Parents are encouraged to discuss with the center any questions or concerns they might have. Parents may also file or make a complaint with the OOL (877-667-9845) who will investigate. Complaints may be made anonymously. If there is a licensing

complaint investigation, parents are entitled to review the OOL Complaint Investigation Summary Report, as well as any letters of enforcement or other actions taken against a center during its current licensing period.

In addition, the DHS/DFD hotline number 1-800-332-9227 allows anyone to report a complaint. The number connects with the local Child Care Resource and Referral Agencies or directly the DHS/DFD Office of Child Care, where complaints can be reported (this is also listed on the childcarenj.gov website).

With the development of the NJ Child Care Information System (NJCCIS) website, parents will also have the option of submitting complaints online through a web-based process. This system will be operational later this year.

2.2.2 Describe the Lead Agency's process and timeline for screening, substantiating and responding to complaints regarding CCDF providers, including whether the process includes monitoring:

The below process and timeline for screening applies to both CCDF and non-CCDF providers as this is a statewide process.

Statutes concerning child abuse can be found under Title 9. Children--Juvenile and Domestic Relations Courts (9:6-1). State law requires that a person immediately report reasonable cause to believe that a child has been abused or neglected to the authorities. If a person believes a child is in immediate danger, they must call local police by dialing 911. However, to report a complaint, suspicion of abuse or neglect, they must call the NJ Child Abuse Hotline at 1-877-NJ Abuse or 1-877-652-2873.

Pre and Post Investigation Caseworker-Supervisory Conferencing.

When a report indicates that a child may be at risk, the Division of Youth and Family Services will promptly investigate the allegations of child abuse and neglect within 24 hours of receipt of the report. The NJ Child Abuse Hotline has trained professionals who will conduct any follow-up inquiry. DCP&P policy requires caseworkers and supervisors to conference investigations prior to a field response, after the initial

contacts, and at the conclusion of the investigation in order to ensure a complete and thorough investigative process and sound decision-making.

At a minimum, the NJ Child Abuse Hotline professional that answers the call will ask the reporter to provide detailed information regarding the circumstances of their suspicion (i.e., the circumstances or observations that triggered their call). He or she will also ask the reporter to provide detailed information about the child, including his or her name, the names of his or her caretakers, as well as phone numbers, address, and other contact information for the family.

The Hotline is also a resource to report complaints, situations or issues that may not rise to the level of abuse and neglect. The screener will determine, in some instances, that a CWS- "Child Welfare Services" assessment should be done. Not all calls result in an investigation of child abuse and neglect. Other outcomes are possible depending on the situation. For example, an issue may become an internal matter within the center/school, it may become a legal matter for law enforcement to address, or there may be a need for available social services.
The screener should be able to tell the caller at the conclusion of a call, if it will be assigned as a "CWS" or an actual Child Abuse/Neglect investigation - and explain why.
"Child Welfare Services" is an intervention and assessment from a Division of Child Permanency and Protection (DCP&P) local office in which information and support services are offered to families in need, on a voluntary basis, and may be provided from either a DCP&P local office or a community-based agency.

Meeting the response times assigned to an investigation by SCR. Caseworkers must see or interview alleged victim children within specific time frames or demonstrate diligent efforts to do so.

Collecting all relevant information from child victims, family members, the historical record, community persons, the reporter(s), agency professionals and others in a timely manner in order to arrive at a valid finding and effective case resolution.
Through interviews and collateral contacts, the totality of available information must be integrated into Risk, Safety and Needs assessments to inform decisions about whether and how children can remain safely in their homes as well as provide

information for short and long-term case planning

After reporting, the investigation will be sent to certain state offices depending on where the complaint or report of abuse/neglect took place. If the report of suspected abuse/ neglect happens in the child's home, the case will be referred to the Division of Child Protection and Permanency (DCP&P) Local Office for investigation. If the report of suspected abuse/neglect happens in a school, Foster care/resource homes, Residential facilities, shelters, detention centers, Group homes, hospitals, Bus companies, or child care centers, the case is referred to the Institutional Abuse Investigation Unit.

Findings made after an investigation are sorted into 4 categories:

- **SUBSTANTIATED**
- **ESTABLISHED**
- **NOT ESTABLISHED**
- **UNFOUNDED**

SUBSTANTIATED

Deeming a case "Substantiated" is based on the following statutes, code and procedures:

The preponderance of the evidence indicates that a child is an "abused or neglected child" as defined in N.J.S.A. 9:6-8.21 and either the investigation indicates the existence of any of the circumstances in N.J.A.C. 10:129-7.4 or substantiation is warranted based on consideration of the aggravating and mitigating factors listed in N.J.A.C. 10:129-7.5.

These conditions are considered "absolutes":

1. The death or near death of a child as a result of abuse or neglect;

2. Subjecting a child to sexual activity or exposure to inappropriate sexual activity or materials;

3. The infliction of injury or creation of a condition requiring a child to be hospitalized or to receive significant medical attention;

4. Repeated instances of physical abuse committed by the perpetrator against any child;

5. Failure to take reasonable action to protect a child from sexual abuse or repeated instances of physical abuse under circumstances where the parent or guardian knew or should have known that such abuse was occurring; or
6. Depriving a child of necessary care which either caused serious harm or created a substantial risk of serious harm. (Severe neglect).

Aggravating Factors include:
1. Institutional abuse or neglect;
2. The perpetrator's failure to comply with court orders or clearly established or agreed-upon conditions designed to ensure the child's safety, such as a child safety plan or case plan;
3. The tender age, delayed developmental status or other vulnerability of the child;
4. Any significant or lasting physical, psychological, or emotional impact on the child;
5. An attempt to inflict any significant or lasting physical, psychological, or emotional harm on the child;
6. Evidence suggesting a repetition or pattern of abuse or neglect, including multiple instances in which abuse or neglect was substantiated or established; and
7. The child's safety requires separation of the child from the perpetrator.

Mitigating Factors include:
1. Remedial actions taken by the alleged perpetrator before the investigation was concluded;
2. Extraordinary, situational, or temporary stressors that caused the parent or guardian to act in an uncharacteristic abusive or neglectful manner;
3. The isolated or aberrational nature of the abuse or neglect; and
4. The limited, minor, or negligible physical, psychological, or emotional impact of the abuse or neglect on the child.

When case is not considered “substantiated”, it falls into the other categories listed above including “established”, “not established”, or “unfounded”. This is according to statute which says that the preponderance of the evidence indicates that a child is an "abused or neglected child" as defined in N.J.S.A. 9:6-8.21, but the act or acts committed or omitted do not warrant a finding of “Substantiated" as defined above.

ESTABLISHED

Under a finding determination of "Established," DCF has determined that the child IS an abused or a neglected child, BUT, in taking into account the aggravating and the mitigating factors, the abuse/neglect does not warrant a finding of Substantiated.

NOT ESTABLISHED

A finding of “Not Established” means there is not a preponderance of the evidence that a child is an abused or neglected child as defined in N.J.S.A. 9:6-8.21, but evidence indicates that the child was harmed or was placed at risk of harm.

Under a finding determination of "Not Established," Child Protection and Permanency (CP&P) or Institutional Abuse Investigation Unit IAIU has determined that child abuse/neglect did NOT occur. However, a child was harmed or placed at risk of harm. This includes situations where:

• A parent or caregiver accidentally injures or causes harm to his or her child;

• An investigation of child-on-child sexual abuse is conducted, where child–on–child sexual activity is found;

• A child alleges he or she was sexually abused, but there is not a preponderance of evidence of child sexual abuse;

• The perpetrator is not a parent or caregiver.

UNFOUNDED

A case finding of “unfounded” means there is not a preponderance of the evidence indicating that a child is an abused or neglected child as defined in N.J.S.A. 9:6-8.21, and the evidence indicates that a child was not harmed or placed at risk of harm. Under a finding determination of "Unfounded," CP&P or IAIU has determined that child abuse/neglect did NOT occur. A child was NOT harmed or placed at risk of harm, or no "incident" occurred.

Notification to the County Prosecutor:

Notification to the County Prosecutor may be made by DCP&P/IAIU for these six categories:

•Death of a child,

•Sexual abuse by a parent or caregiver,

•Injury or condition resulting in emergency room treatment or hospitalization,

•An injury or condition requiring more than superficial medical treatment (i.e. a broken bone at physician's office),
•Repeated violence committed against a child or substantially depriving a child of care over a period of time, and/or
•Abandonment of a child.

Notification Process

If IAIU conducted the investigation, the school district superintendent and the county superintendent are notified of the investigative finding.
•The parent of the alleged victim is notified.
•The alleged perpetrator is notified.
•Law enforcement will be notified, as appropriate, based on the Finding.
Investigation from a DCP&P Local Office:
•If a Local Office conducted the investigation, the school superintendent (and/or others) are notified only on the "need to know" basis.

Complaints not related to abuse/neglect may also come in through the Child Care Helpline (800) 332-9227 which directs callers to their corresponding county Child Care Resource and Referral (CCR&R) agency. If the caller does not select a CCR&R or if they choose "0" on the IVR prompt, the caller will be automatically routed to Division of Family Development DFD-Child Care Operations (DFD-CCO) office.

DFD-CCO Office administrative staff answer the calls on the main Child Care Helpline. Child Care Helpline calls are logged on a daily log to track calls by subject, county and where the call was referred for further assistance. Calls about the subsidy program are routed directly to DFD-CCO staff. DFD-CCO staff are assigned to specific counties and provide oversight and technical assistance to our CCR&R's, and also assist callers who reach our office with issues of concern or complaint with a child care center.

DFD-CCO staff address the caller's complaint and then contact the CCR&R to investigate the matter further. The investigation process may include field visits and onsite meetings with the child care provider. In addition follow-up recommendations are made as well.

When warranted, DFD will reach out to Department of Children and Families, Office of Licensing (DCF/OOL). As stated above, the Department of Children and Families, during the course of investigating an allegation of child abuse or neglect, may determine that corrective action is necessary to protect the children.

Both the statewide Child Abuse/Neglect Hotline and the Child Care Hotline are listed on the front page of childcarenj.gov with links and instructions on how to use each service.

2.2.3 Describe the Lead Agency's process and timeline for screening, substantiating and responding to complaints for non-CCDF providers, including whether the process includes monitoring:

The below process and timeline for screening applies to both CCDF and non-CCDF providers as this is a statewide process.

Statutes concerning child abuse can be found under Title 9. Children--Juvenile and Domestic Relations Courts (9:6-1). State law requires that a person immediately report reasonable cause to believe that a child has been abused or neglected to the authorities. If a person believes a child is in immediate danger, they must call local police by dialing 911. However, to report a complaint, suspicion of abuse or neglect, they must call the NJ Child Abuse Hotline at 1-877-NJ Abuse or 1-877-652-2873.

Pre and Post Investigation Caseworker-Supervisory Conferencing.

When a report indicates that a child may be at risk, the Division of Youth and Family Services will promptly investigate the allegations of child abuse and neglect within 24 hours of receipt of the report. The NJ Child Abuse Hotline has trained professionals who will conduct any follow-up inquiry. DCP&P policy requires caseworkers and supervisors to conference investigations prior to a field response, after the initial contacts, and at the conclusion of the investigation in order to ensure a complete and thorough investigative process and sound decision-making.

At a minimum, the NJ Child Abuse Hotline professional that answers the call will ask the reporter to provide detailed information regarding the circumstances of their suspicion (i.e., the circumstances or observations that triggered their call). He or she will also ask the reporter to provide detailed information about the child, including his or her name, the names of his or her caretakers, as well as phone numbers, address, and other contact information for the family.

The Hotline is also a resource to report complaints, situations or issues that may not rise to the level of abuse and neglect. The screener will determine, in some instances, that a CWS- "Child Welfare Services" assessment should be done. Not all calls result in an investigation of child abuse and neglect. Other outcomes are possible depending on the situation. For example, an issue may become an internal matter within the center/school, it may become a legal matter for law enforcement to address, or there may be a need for available social services.
The screener should be able to tell the caller at the conclusion of a call, if it will be assigned as a "CWS" or an actual Child Abuse/Neglect investigation - and explain why.
"Child Welfare Services" is an intervention and assessment from a Division of Child Permanency and Protection (DCP&P) local office in which information and support services are offered to families in need, on a voluntary basis, and may be provided from either a DCP&P local office or a community-based agency.

Meeting the response times assigned to an investigation by SCR. Caseworkers must see or interview alleged victim children within specific time frames or demonstrate diligent efforts to do so.

Collecting all relevant information from child victims, family members, the historical record, community persons, the reporter(s), agency professionals and others in a timely manner in order to arrive at a valid finding and effective case resolution.
Through interviews and collateral contacts, the totality of available information must be integrated into Risk, Safety and Needs assessments to inform decisions about whether and how children can remain safely in their homes as well as provide information for short and long-term case planning

After reporting, the investigation will be sent to certain state offices depending on where the complaint or report of abuse/neglect took place. If the report of suspected abuse/ neglect happens in the child's home, the case will be referred to the Division of Child Protection and Permanency (DCP&P) Local Office for investigation. If the report of suspected abuse/neglect happens in a school, Foster care/resource homes, Residential facilities, shelters, detention centers, Group homes, hospitals, Bus companies, or child care centers, the case is referred to the Institutional Abuse Investigation Unit.

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- **NOT ESTABLISHED**
- **UNFOUNDED**

<u>SUBSTANTIATED</u>

Deeming a case "Substantiated" is based on the following statutes, code and procedures:

The preponderance of the evidence indicates that a child is an "abused or neglected child" as defined in N.J.S.A. 9:6-8.21 and either the investigation indicates the existence of any of the circumstances in N.J.A.C. 10:129-7.4 or substantiation is warranted based on consideration of the aggravating and mitigating factors listed in N.J.A.C. 10:129-7.5.

These conditions are considered "absolutes":

1. The death or near death of a child as a result of abuse or neglect;

2. Subjecting a child to sexual activity or exposure to inappropriate sexual activity or materials;

3. The infliction of injury or creation of a condition requiring a child to be hospitalized or to receive significant medical attention;

4. Repeated instances of physical abuse committed by the perpetrator against any child;

5. Failure to take reasonable action to protect a child from sexual abuse or repeated instances of physical abuse under circumstances where the parent or guardian knew

or should have known that such abuse was occurring; or
6. Depriving a child of necessary care which either caused serious harm or created a substantial risk of serious harm. (Severe neglect).

Aggravating Factors include:
1. Institutional abuse or neglect;
2. The perpetrator's failure to comply with court orders or clearly established or agreed-upon conditions designed to ensure the child's safety, such as a child safety plan or case plan;
3. The tender age, delayed developmental status or other vulnerability of the child;
4. Any significant or lasting physical, psychological, or emotional impact on the child;
5. An attempt to inflict any significant or lasting physical, psychological, or emotional harm on the child;
6. Evidence suggesting a repetition or pattern of abuse or neglect, including multiple instances in which abuse or neglect was substantiated or established; and
7. The child's safety requires separation of the child from the perpetrator.

Mitigating Factors include:
1. Remedial actions taken by the alleged perpetrator before the investigation was concluded;
2. Extraordinary, situational, or temporary stressors that caused the parent or guardian to act in an uncharacteristic abusive or neglectful manner;
3. The isolated or aberrational nature of the abuse or neglect; and
4. The limited, minor, or negligible physical, psychological, or emotional impact of the abuse or neglect on the child.

When case is not considered “substantiated”, it falls into the other categories listed above including “established”, “not established”, or “unfounded”. This is according to statute which says that the preponderance of the evidence indicates that a child is an "abused or neglected child" as defined in N.J.S.A. 9:6-8.21, but the act or acts committed or omitted do not warrant a finding of “Substantiated" as defined above.

ESTABLISHED
Under a finding determination of "Established," DCF has determined that the child IS

an abused or a neglected child, BUT, in taking into account the aggravating and the mitigating factors, the abuse/neglect does not warrant a finding of Substantiated.

NOT ESTABLISHED

A finding of “Not Established” means there is not a preponderance of the evidence that a child is an abused or neglected child as defined in N.J.S.A. 9:6-8.21, but evidence indicates that the child was harmed or was placed at risk of harm.

Under a finding determination of "Not Established," Child Protection and Permanency (CP&P) or Institutional Abuse Investigation Unit IAIU has determined that child abuse/neglect did NOT occur. However, a child was harmed or placed at risk of harm. This includes situations where:

• A parent or caregiver accidentally injures or causes harm to his or her child;

• An investigation of child-on-child sexual abuse is conducted, where child–on–child sexual activity is found;

• A child alleges he or she was sexually abused, but there is not a preponderance of evidence of child sexual abuse;

• The perpetrator is not a parent or caregiver.

UNFOUNDED

A case finding of “unfounded” means there is not a preponderance of the evidence indicating that a child is an abused or neglected child as defined in N.J.S.A. 9:6-8.21, and the evidence indicates that a child was not harmed or placed at risk of harm. Under a finding determination of "Unfounded," CP&P or IAIU has determined that child abuse/neglect did NOT occur. A child was NOT harmed or placed at risk of harm, or no "incident" occurred.

Notification to the County Prosecutor:

Notification to the County Prosecutor may be made by DCP&P/IAIU for these six categories:

•Death of a child,

•Sexual abuse by a parent or caregiver,

•Injury or condition resulting in emergency room treatment or hospitalization,

•An injury or condition requiring more than superficial medical treatment (i.e. a broken bone at physician’s office),

•Repeated violence committed against a child or substantially depriving a child of care over a period of time, and/or
•Abandonment of a child.

Notification Process

If IAIU conducted the investigation, the school district superintendent and the county superintendent are notified of the investigative finding.
•The parent of the alleged victim is notified.
•The alleged perpetrator is notified.
•Law enforcement will be notified, as appropriate, based on the Finding.
Investigation from a DCP&P Local Office:
•If a Local Office conducted the investigation, the school superintendent (and/or others) are notified only on the "need to know" basis.

Complaints not related to abuse/neglect may also come in through the Child Care Helpline (800) 332-9227 which directs callers to their corresponding county Child Care Resource and Referral (CCR&R) agency. If the caller does not select a CCR&R or if they choose "0" on the IVR prompt, the caller will be automatically routed to Division of Family Development DFD-Child Care Operations (DFD-CCO) office.

DFD-CCO Office administrative staff answer the calls on the main Child Care Helpline. Child Care Helpline calls are logged on a daily log to track calls by subject, county and where the call was referred for further assistance. Calls about the subsidy program are routed directly to DFD-CCO staff. DFD-CCO staff are assigned to specific counties and provide oversight and technical assistance to our CCR&R's, and also assist callers who reach our office with issues of concern or complaint with a child care center.

DFD-CCO staff address the caller's complaint and then contact the CCR&R to investigate the matter further. The investigation process may include field visits and onsite meetings with the child care provider. In addition follow-up recommendations are made as well.

When warranted, DFD will reach out to Department of Children and Families, Office of Licensing (DCF/OOL). As stated above, the Department of Children and Families,

during the course of investigating an allegation of child abuse or neglect, may determine that corrective action is necessary to protect the children.

Both the statewide Child Abuse/Neglect Hotline and the Child Care Hotline are listed on the front page of childcarenj.gov with links and instructions on how to use each service.

2.2.4 Certify by describing how the Lead Agency maintains a record of substantiated parental complaints:

DCF-OOL maintains records of complaints pertaining to licensed centers. The CCR&Rs maintain documentation of complaints against providers, and a Complaint Investigation Report.

Pursuant to DFD internal policy, all complaints and resulting investigations are filed and maintained pursuant to State document retention guidelines.

Files maintained by the DCF-OOL are public records and must be readily accessible for examination by any person, under the direction and supervision of DCF-OOL personnel, except when public access to records is restricted, in accordance with the State Open Public Records Act or other applicable statutes.

In the future, electronic versions of these files will be available through the NJCCIS website: https://www.njccis.com.

2.2.5 Certify by describing how the Lead Agency makes information about substantiated parental complaints available to the public; this information can include the consumer education website discussed in section 2.3:

According to N.J.A.C. 3A:52-2.6, files maintained by the DCF- OOL are public records and must be readily accessible for examination by any person, under the direction and supervision of DCF-OOL personnel, except when public access to records is restricted, in accordance with the State Open Public Records Act or other applicable statutes. In the future, electronic versions of these files will be available through the New Jersey Child Care Information website: https://www.njccis.com.

2.2.6 Provide the citation to the Lead Agency's policy and process related to parental complaints:

N.J.A.C 3A:52-2.6

2.3 Consumer Education Website

States and Territories are required to provide information to parents, the general public, and when applicable, child care providers through a State website, which is consumer-friendly and easily accessible (658E(c)(2)(E)(i)(III)). The website must include information to assist families in understanding the policies and procedures for licensing child care providers. The website information must also include provider-specific information, monitoring and inspection reports for the provider, the quality of each provider (if such information is available for the provider), and the availability of the provider (658E(c)(2)(D); 98.33(a)). The website should also provide access to a yearly statewide report on deaths, serious injuries, and the number of cases of substantiated child abuse that have occurred in child care settings. To assist families with any additional questions, the website should provide contact information for local child care resource and referral organizations and any other agencies that can assist families in better

understanding the information on the website.

To certify, respond to questions 2.3.1 through 2.3.10 by describing how the Lead Agency meets these requirements and provide the link in 2.3.11. If the Lead Agency has not fully implemented the Consumer Education website elements identified in Section 2.3, then respond to question 2.3.12. Please note that any changes made to the web links provided below in this section after the CCDF Plan is approved will require a CCDF Plan amendment.

2.3.1 Describe how the Lead Agency ensures that its website is consumer-friendly and easily accessible:

DFD responds to feedback from CCR&Rs, parents, and providers, and other stakeholders in the on-going development of the www.ChildCareNJ.gov website. Over a 2-year period, the website underwent structural changes to improve the interface, usability, and accessibility to users.

2.3.2 Describe how the website ensures the widest possible access to services for families that speak languages other than English (98.33(a)):

Individual web pages on the www.ChildCareNJ.com website can be translated in over 100 languages.

2.3.3 Describe how the website ensures the widest possible access to services for persons with disabilities:

The State's Web Accessibility Policy 07-12-NJOIT is attached to all state websites, web-based applications, and online services including the www.ChildCareNJ.gov website. The purpose of the policy is to improve the ease with which all users, including those with disabilities, can access and benefit from web-based government services and information. While developing the website, special attention was put

into the development of “easy-to-read” and “frequently asked questions” documents with clear, user-friendly language. Some of the information on the website is available in alternative formats other than plain text such as audio recordings (including recorded webinars) and videos.
In addition, users who are deaf or hard of hearing may call TTY (877) 294-4356 to access any of the hotlines listed on the “Resources” page of the website (voice calls use 7-1-1 NJ Relay).

2.3.4 Lead Agency processes related to child care.

A required component of the consumer education website is a description of Lead Agency policies and procedures relating to child care (98.33(a) (1)). This information includes a description of how the state/territory licenses child care, a rationale for exempting providers from licensing requirements, the procedure for conducting monitoring and inspections of providers, and the policies and procedures related to criminal background checks.

a) Provide the link to how the Lead Agency licenses child care providers, including the rationale for exempting certain providers from licensing requirements, as described in section 5.3.6:
http://www.nj.gov/dcf/providers/licensing/laws/CCCmanual.pdf
http://www.nj.gov/dcf/providers/licensing/laws/FCCmanual.pdf
http://www.nj.gov/health/ceohs/documents/phss/youth_camp.pdf
http://www.ChildCareNJ.gov/Providers/HowTo

b) Provide the link to the procedure for conducting monitoring and inspections of child care providers, as described in section 5.3.2:
http://www.nj.gov/dcf/providers/licensing/laws/CCCmanual.pdf
http://www.nj.gov/dcf/providers/licensing/laws/FCCmanual.pdf
http://www.nj.gov/health/ceohs/documents/phss/youth_camp.pdf
http://www.ChildCareNJ.gov/Providers

c) Provide the link to the policies and procedures related to criminal background checks for staff members of child care providers and the offenses that prevent individuals from being employed by a child care provider or receiving CCDF funds, as described in sections 5.4.1 and 5.4.11:

http://www.nj.gov/dcf/providers/licensing/laws/CCCmanual.pdf

http://www.nj.gov/dcf/providers/licensing/laws/FCCmanual.pdf

http://www.nj.gov/health/ceohs/documents/phss/youth_camp.pdf

http://www.ChildCareNJ.gov/Providers/CCDBG

2.3.5 List of providers

The consumer education website must include a list of all licensed providers and, at the discretion of the Lead Agency, all providers eligible to deliver CCDF services, identified as either licensed or license-exempt. Providers caring for children to whom they are related do not need to be included. The list of providers must be searchable by ZIP Code.

a) Provide the website link to the searchable list of child care providers:

Quality Providers Search:

http://www.GrowNJKids.gov/ParentsFamilies/ProviderSearch

Licensed Child Care Center Providers Search:

https://data.nj.gov/childcare_explorer

Summer Youth Camps

http://healthapps.state.nj.us/youthcamps/camplist/county.aspx

A comprehensive searchable database of all child care providers in the state will be available in the future here:

www.ChildCareNJ.gov

b) In addition to the licensed providers that are required to be included in your searchable list, which additional providers are included in the Lead Agency's searchable list of child care providers (please check all that apply):

- ☑ License-exempt center-based CCDF providers
- ☑ License-exempt family child care (FCC) CCDF providers

- [x] License-exempt non-CCDF providers
- [x] Relative CCDF child care providers
- [ ] Other.

Describe

c) Identify what informational elements, if any, are available in the searchable results. Note: Quality information (if available) and monitoring results are required on the website but are not required to be a part of the search results.

Licensed Providers

- [x] Contact Information
- [x] Enrollment Capacity
- [ ] Years in Operation
- [ ] Provider Education and Training
- [ ] Languages Spoken
- [x] Quality Information
- [x] Monitoring Reports
- [x] Other.

Describe:

Ages Served

License-Exempt, non-CCDF Providers

- [ ] Contact Information
- [ ] Enrollment Capacity
- [ ] Years in Operation
- [ ] Provider Education and Training
- [ ] Languages Spoken
- [ ] Quality Information
- [ ] Monitoring Reports
- [ ] Other.

Describe:

License-Exempt CCDF Center Based Providers

- [x] Contact Information
- [ ] Enrollment Capacity
- [ ] Years in Operation
- [ ] Provider Education and Training
- [ ] Languages Spoken
- [x] Quality Information
- [ ] Monitoring Reports
- [ ] Other.

Describe:

License-Exempt CCDF Family Child Care

- [ ] Contact Information
- [ ] Enrollment Capacity
- [ ] Years in Operation
- [ ] Provider Education and Training
- [ ] Languages Spoken
- [ ] Quality Information
- [ ] Monitoring Reports
- [ ] Other.

Describe:

Relative CCDF Providers

- [ ] Contact Information
- [ ] Enrollment Capacity
- [ ] Years in Operation
- [ ] Provider Education and Training
- [ ] Languages Spoken
- [ ] Quality Information
- [ ] Monitoring Reports

☐ Other.

Describe:

Other.

Describe:

☐ Contact Information
☐ Enrollment Capacity
☐ Years in Operation
☐ Provider Education and Training
☐ Languages Spoken
☐ Quality Information
☐ Monitoring Reports
☐ Other.

Describe:

2.3.6 Lead Agencies must also identify specific quality information on each child care provider for whom they have this information. The type of information provided is determined by the Lead Agency, and it should help families easily understand whether a provider offers services that meet Lead Agency-specific best practices and standards or a nationally recognized, research-based set of criteria. Provider-specific quality information must only be posted on the consumer website if it is available for the individual provider.

a) How does the Lead Agency determine quality ratings or other quality information to include on the website?

☑ Quality rating and improvement system
☑ National accreditation
☑ Enhanced licensing system
☑ Meeting Head Start/Early Head Start requirements

☑ Meeting prekindergarten quality requirements

☐ School-age standards, where applicable

☐ Other.

Describe

b) For what types of providers are quality ratings or other indicators of quality available?

☑ Licensed CCDF providers.

Describe the quality information:

Center based providers and family child care providers that serve infants, toddlers, and preschool children in center-based settings that voluntarily participate in Grow NJ Kids (QRIS) with a rating level of 3, 4, or 5.

The rating levels are based on approximately 110 criteria. The criteria include health and safety criteria, teacher qualifications and others. The ratings factors can found through the following links:

http://www.GrowNJKids.gov/getattachment/76059975-cbf2-4447-bac4-d2964035d02e/3,-4-and-5-Star-Rating-Point-Requirements.aspx
http://www.GrowNJKids.gov/getattachment/3800f879-98bf-4482-8f8d-02c5d36241f4/3,-4-and-5-Star-Rating-Point-Requirements-FCC.aspx

School-age programs may be accredited by certain accrediting bodies.

☑ Licensed non-CCDF providers.

Describe the quality information:

Licensed non-CCDF providers may be accredited by certain accrediting bodies.

☐ License-exempt center-based CCDF providers.

Describe the quality information:

☐ License-exempt FCC CCDF providers.

Describe the quality information:

☐ License-exempt non-CCDF providers.

Describe the quality information:

☐ Relative child care providers.

Describe the quality information:

☑ Other.

Describe

Registered Homes can also enroll in Grow NJ Kids.

2.3.7 Lead Agencies are required to post monitoring and inspection reports on the consumer education website for each licensed provider and for each non-relative provider eligible to provide CCDF services on the consumer education website. These reports must include results of required annual monitoring visits and visits due to major substantiated complaints about a provider's failure to comply with health and safety requirements and child care policies. The reports must be in plain language and be timely to ensure that the results of the reports are available and easily understood by parents when they are deciding on a child care provider. Lead Agencies must post at least 3 years of reports when available, going forward (not retrospectively), beginning October 1, 2018.

Certify by responding to the questions below:

a) What is the Lead Agency's definition of plain language and describe the process for receiving feedback from parents and the public about readability of reports.

Plain language is defined as writing that is clear, concise, well-organized and follows best practices appropriate to the subject or field and intended audience. DFD receives feedback about the readability of reports through the Child Care helpline, 1 (800) 332-9227. The www.childcarenj.gov website also allows the public to submit comments.

b) Are monitoring and inspection reports in plain language?

☑ If yes,

include a website link to a sample monitoring report.

https://data.nj.gov/childcare_explorer

For a list of all licensed child care centers and their inspection reports, the user may leave all search boxes blank and click the "Submit" button.

In order to find the inspection report of a specific provider, the user may fill one or more search boxes to narrow their search. Each search box is optional. If user doesn't know the full name, street address, or phone number of the child care center, they may type % in front of your search term. (Example: %Main Street).

Once one or more the search boxes is filled, the user may click "Submit". The submission will return a list. The child care center's name will be listed on the far left hand column and a link to the provider's inspection report will be listed on the far right hand column. When the user clicks the "Inspection Reports" link, they will be taken to a page that lists all of the inspection reports associated with the provider listed on the previous page.

☐ If no,

describe how plain language summaries are used to meet the regulatory requirements and include a link to a sample summary.

c) Check to certify what the monitoring and inspection reports and/or their plain language summaries include:

☑ Date of inspection

☑ Health and safety violations, including those violations that resulted in fatalities or serious injuries.

Describe how these health and safety violations are prominently displayed.

Inspection citations (including health and safety violations) are currently listed on DCF/OOL inspection reports.

Child Care Inspection Reports/Summaries are currently undergoing revisions. Both DHS and DCF are working to ensure that the plain language summaries/inspection reports prominently display any health and safety violations.

☑ Corrective action plans taken by the State and/or child care provider.

Describe

When a violation is cited, inspection reports contain a plan of corrective action for the specific violation, as well as clear dates for abatement and subsequent follow-up inspections to ensure compliance.

d) The process for correcting inaccuracies in reports.

Providers may report inaccuracies by calling the Office of Licensing at the toll free number (877) 667-9845.

If the situation is not corrected through a phone call and the inaccuracy results in an action by the Division, it may be escalated to the level of a CCR&R or OOL hearing as requested by the provider.

If the provider is not satisfied by the results of the county level hearing by either CCR&R or OOL, it may be further escalated to the Office of Administrative Law.

e) The process for providers to appeal the findings in reports, including the time requirements, timeframes for filing the appeal, for the investigation, and for removal of any violations from the website determined on appeal to be unfounded.

Licensed Child care centers and Registered Family Child Care Homes may request a hearing through Office of Licensing or the CCR&R respectively. If the provider is not satisfied with the results of the CCR&R hearing findings, they may request a hearing with the Office of Administrative Law within 20 days.

There is a process in place for child care providers to request an Office of Administrative Law (OAL) Hearing when there is an action or finding of substantiated child abuse/neglect or an action of the Office of Licensing (due to a complaint inspection, etc.) that creates a Division action that the provider wishes to appeal. The process is outlined here:

1. **The provider must describe the Division of Child Protection and Permanency (CP&P) action or finding of substantiated child/abuse or action of the Office**

of Licensing (OOL) that they are appealing

2. **The provider must list the specific facts/statements/events in the CP&P or OOL investigative report with which they disagree**
3. **Provide a statement of the facts/description of the vents they are challenging in the CP&P or OOL investigative report.**
4. **Provide any additional information/legal argument they wish to raise at the hearing**
5. **Indicate why they believe the action or substantiated finding of child abuse or neglect should be overturned/changed if there are no facts that they are appealing**

An OAL hearing gives the provider a chance to tell what happened or say why they disagree with a certain CP&P or OOL action. The OAL is an impartial, separate agency that holds hearings for all State departments. The provider, CP&P and OOL may present and question witnesses in this hearing. Then, a judge makes a decision which is sent to the CP&P Assistant Commissioner who then makes a final agency decision.

Only cases with factual disagreements (disagreements about the actual events or results of your actions) are sent to OAL. Cases without factual disputes (disagreements about CP&P/OOL conclusions) are heard by the CP&P Assistant Commissioner on a motion for summary disposition.

When a request for an appeal is sent to CP&P, CP&P notifies the child care provider on whether the appeal will be sent to OAL for a hearing (as described above) or if the case will be placed directly before the CP&P Assistance Commissioner by a motion for a summary.

A motion for a summary disposition is a request from a CP&P Attorney to the CP&P Assistant Commissioner to make a decision regarding the provider's case based on the facts that have been agreed upon. At this point in the case, if the provider wants to add information for the CP&P Assistant Commissioner to consider, they may do so within 10 days of the date that they receive the motion. The CP&P Assistant Commissioner will then decide whether to uphold the CP&P/OOL action or send the case to the OAL for a hearing. If the finding or action is upheld, the provider has the opportunity to appeal the decision to the Appellate Division of the NJ Superior Court.

f) How reports are posted in a timely manner. Specifically, provide the Lead Agency's definition of 'timely' and describe how it ensures that reports are posted within its

timeframe. Note: While Lead Agencies define 'timely,' we recommend Lead Agencies update results as soon as possible and no later than 90 days after an inspection or corrective action is taken

Reports are posted within 30 days. DCF/OOL monitors to ensure that reports are posted in a timely manner.

g) Describe the process for maintaining monitoring reports on the website. Specifically, provide the minimum number of years reports are posted and the policy for removing reports (98.33(a)(4)(iv)).

Inspection reports are maintained on the website for 5 years. The State does not have automatic removal after any set period of time.

h) Any additional providers on which the Lead Agency chooses to include reports. Note - Licensed providers and CCDF providers must have monitoring and inspection reports posted on their consumer education website.

- ☐ License-exempt non-CCDF providers
- ☑ Relative child care providers
- ☐ Other.

  Describe

2.3.8 Aggregate data on serious injuries, deaths, and substantiated cases of child abuse that have occurred in child care settings each year must be posted on the consumer education website. This aggregate information on serious injuries and deaths must be organized by category of care (e.g., center, FCC, etc.) and licensing status for all eligible CCDF provider categories in the state. The information on instances of substantiated child abuse does not have to be organized by category of care or licensing status. The aggregate report should not list individual provider-specific information or names.

Certify by providing:

a) The designated entity to which child care providers must submit reports of any serious injuries or deaths of children occurring in child care (98.16 (ff)) and describe how the

Lead Agency obtains the aggregate data from the entity.

The child care program director must report serious injuries or deaths to the DCF/OOL by the next working day after the center learns of the occurrence and shall submit documentation to DCF/OOL within one week of the occurrence of the incident.

Summer Youth camps are required to report accidents resulting in death or serious injury using the "Annual Accident Report Youth Camp Safety Act" form. Additionally, this form must be submitted with the renewal application as a condition of the youth camp certificate approval process.

b) The definition of "substantiated child abuse" used by the Lead Agency for this requirement.

A preponderance of the evidence establishes that a child is an abused or neglected child as defined by statute; and either the investigation indicates the existence of any of the absolute conditions; or substantiation is warranted based on consideration of the aggravating and mitigating factors.

c) The definition of "serious injury" used by the Lead Agency for this requirement.

DHS/DFD follows the serious injury definition under the manual of requirements of centers and family child care providers regulated through the OOL, which is defined as requiring hospitalization, visiting the emergency room, involving a call to 911, any medical care that is conducted on-site, and head or facial injuries.

d) The website link to the page where the aggregate number of serious injuries, deaths, and substantiated instances of child abuse are posted.

New data fields and data collection processes were developed to prepare for the launch of New Jersey Child Care Information System website www.ChildCareNJ.gov . Aggregate data collection on the number of serious injuries, deaths, and substantiated instances of child abuse is set to begin at the end of calendar year 2018.

2.3.9 The consumer education website should include contact information on referrals to local child care resource and referral organizations. How does the Lead Agency provide referrals to local CCR&R agencies through the consumer education website? Describe and include a website link to this information:

On the www.ChildCareNJ.gov website, there is a "Parents" tab that contains general information on how to apply for the child care subsidy and how to find quality child care. There is a sub-tab that directs parents and the general public to a page with information on the CCR&Rs. The page contains a description of the CCR&R's function(s), as well contact information (name, address, phone, fax, and website) of each CCR&R by county.

2.3.10 The consumer education website should include information on how parents can contact the Lead Agency, or its designee, or other programs that can help the parent understand information included on the website. Describe and include a website link to this information:

The home page of the consumer education website contains a:

1. "How to Apply Tab" which contains the Child Helpline phone number and a link to the CCR&R contact page;
2. "Child Care Resource & Referral" Agency sub-tab to contact their local CCR&R;
3. "Contact" tab to send an email to DFD; or
4. "Resources" page to contact other programs and services that are in partnership with DFD
5. The phone number to the child care helpline.www.ChildCareNJ.gov/Parents/SubsidyProgram

2.3.11 Provide the website link to the Lead Agency's consumer education website. Note: An amendment is required if this website changes.

www.ChildCareNJ.gov or www.ChildCareNJ.com

2.3.12 Other. Identify and describe the components that are still pending per the instructions on
CCDF Plan Response Options for Areas where Implementation is Still in Progress
in the Introduction.

N/A

2.4 Additional Consumer and Provider Education

Lead Agencies are required to certify that they will collect and disseminate information about the full diversity of child care services to promote parental choice to parents of eligible children, the general public, and where applicable, child care providers. In addition to the consumer education website, the consumer education information can be provided through CCR&R organizations or through direct conversations with eligibility case workers and child care providers. Outreach and counseling can also be effectively provided via information sessions or intake processes for families (658E(c)(2)(E); 98.15(b)(4); 98.33(b)).

In questions 2.4.1 through 2.4.5, certify by describing:

2.4.1 How the Lead Agency shares information with eligible parents, the general public, and where applicable, child care providers about the availability of child care services provided through CCDF and other programs for which the family may be eligible, such as state preK, as well as the availability of financial assistance to obtain child care services. At a minimum, describe what is provided (e.g., such methods as written

materials, the website, and direct communications) and how information is tailored for these audiences.

DFD contracts with the CCR&Rs to provide consumer education and inform the general public about the full diversity of child care services and eligibility requirements. Through several outreach strategies, including community events and participation on several committees, such as the Human Service Advisory Councils (HSAC) and the New Jersey Child Care Resource and Referral Association (NJCCRRA), the CCR&Rs conduct and gather information on the child care needs of potential eligible families. Additionally, "Requests for Applications" for child care services are conducted in every county through the CCR&R and HSAC to meet the needs of families and the community. At regional and county level provider meetings information about child care needs are also communicated to inform and identify potential eligibility families.

CCR&Rs provide consumer education to parents of eligible children to help families make informed decisions about child care options through the dissemination of written/electronic materials, provider meetings, technical assistance, orientation and trainings.

In addition, DFD uses a variety of methods to share information about CCDF to providers and the types of child care programs for which families may be eligible including:

- www.ChildCareNJ.gov Website
- Parent Brochure
- Provider Handbook and Parent Handbook

2.4.2 The partnerships formed to make information about the availability of child care services available to families.

DFD's partners that assist with outreach efforts are the 14 Child Care Resource and Referral Agencies serving 21 counties, and the Department of Education, Department of Children and Families, Department of Health, the 21 County Welfare Agencies and Board of Social Services, the New Jersey Council for Young Children, the County Councils for Young Children, several universities, hospitals, and advocacy

organizations.

2.4.3 How the Lead Agency provides the required information about the following programs and benefits to the parents of eligible children, the general public, and where applicable, providers. In the description include, at a minimum, what information is provided, how the information is provided, and how the information is tailored to a variety of audiences and include any partners who assist in providing this information.

☑ Temporary Assistance for Needy Families program:

Both the NJ Child Care Subsidy Program and the TANF program are administered jointly by the 21 county welfare agencies and child care resource referral agencies under the supervision of the NJ Division of Family Development (DFD). Because both programs are housed under one division, information sharing with the general public and eligible families is seamless because of the in-person referral process that exists linking both programs.

The following resources also provide comprehensive information about the availability of social services (including TANF) in NJ to families:

- NJ 2-1-1 : The NJ 2-1-1 partnership is the sole administrator of the three digit dialing code and website that connects people to day care facilities, shelters, affordable housing units, social services such as TANF, employment training programs, senior services, medical insurance, and more.

- The NJ Helps screening/application process and NJOneApp Online application process covers the following New Jersey Social Services assistance programs. A application submitted online grants the user single entry screening for any of the following.•SNAP
  •Temporary Assistance to Needy Families(TANF)
  •General Assistance(GA - Work First New Jersey)
  The online screening and application processes are found at:
  https://oneapp.dhs.state.nj.us/
  https://www.njhelps.org/

- A list of social services is also included in consumer education materials like the Parent Brochure which is distributed by the county Child Care Resource and Referral Agencies in all 21 counties before applying for a child care subsidy and the Parent Handbook which is distributed at the time of an eligibility determination for child care. Both can downloaded on the right hand side the web page: http://www.childcarenj.gov/Parents/SubsidyProgram
- Parents may also access information on the above program on the Child Care website's Resources page at: www.ChildCareNJ.gov/resources

☑ Head Start and Early Head Start programs:

Department of Human Services, Division of Family Development (DHS/DFD) is a key partner of the Early Head Start and Child Care Partnership Initiative and the Child Care Resource Referral Agencies in each of the 21 counties are integral in sharing information regarding the Head Start and Early Head Start program to the general public and potentially eligible families. The following is an outline of activities and tasks that have developed over the last 2 years in order to improve coordinated services, outreach, and strengthen communication and the availability of eligibility information on these services:

Coordinated Efforts and Information Communication

- **Identify CCR&R staff to serve as the point person (liaison) to help facilitate the process and resolve problems**
- **Provide a checklist of required documents to families that are needed to determine eligibility**
- **CCR&R provide technical assistance to Head Start programs to inform of subsidy eligibility requirements**
- **CCR&R provide a copy of the families' pending letter to the Family Service Worker so they can follow-up and help families timely submit the necessary documents and paperwork**
- **Color-code the application (Blue) to identify respective families eligible for EHS/CC**
- **CCR&R provide families with the listing of EHS/CC partners that appear to be eligible for EHS/CC - to inform of child care options and increase enrollment**

The following resources also provide comprehensive information about the availability of social services (including Early/Head Start) in NJ to families:

- NJ 2-1-1 : The NJ 2-1-1 partnership is the sole administrator of the three digit dialing code and website that connects people to day care facilities, shelters, affordable housing units, social services such as TANF, employment training

programs, senior services, medical insurance, and more.
- A list of social services is also included in consumer education materials like the Parent Brochure which is distributed by the county Child Care Resource and Referral Agencies in all 21 counties before applying for a child care subsidy and the Parent Handbook which is distributed at the time of an eligibility determination for child care. Both can downloaded on the right hand side the web page: http://www.childcarenj.gov/Parents/SubsidyProgram
- Parents may also access information on the above program on the Child Care website's Resources page at: www.ChildCareNJ.gov/resources

☑ Low Income Home Energy Assistance Program (LIHEAP):

The Home Energy Assistance Program administered by the NJ Department of Community Affairs helps very low-income residents with their heating and cooling bills, and makes provisions for emergency heating system services and emergency fuel assistance within the Home Energy Assistance Program. Information on eligibility and how to apply are located on this website:
https://www.nj.gov/dca/divisions/dhcr/offices/hea.html
Families that may be eligible are encouraged to call the Help Line for more information (609) 510-3102.

The following resources also provide comprehensive information about the availability of social services (including LIHEAP) in NJ to families:
- NJ 2-1-1 : The NJ 2-1-1 partnership is the sole administrator of the three digit dialing code and website that connects people to day care facilities, shelters, affordable housing units, social services such as TANF, employment training programs, senior services, medical insurance, and more.
- A list of social services is also included in consumer education materials like the Parent Brochure which is distributed by the county Child Care Resource and Referral Agencies in all 21 counties before applying for a child care subsidy and the Parent Handbook which is distributed at the time of an eligibility determination for child care. Both can downloaded on the right hand side the web page: http://www.childcarenj.gov/Parents/SubsidyProgram
- Parents may also access information on the above program on the Child Care website's Resources page at: www.ChildCareNJ.gov/resources

☑ Supplemental Nutrition Assistance Programs (SNAP) Program:

Both the NJ Child Care Subsidy Program and the SNAP program are administered jointly by the 21 county welfare agencies and child care resource referral agencies under the supervision of the NJ Division of Family

Development (DFD). Because both programs are housed under one division, information sharing with the general public and eligible families is seamless because of the in-person referral process that exists linking both programs. Applicants have the choice of applying online at https://oneapp.dhs.state.nj.us/ . They may also text SNAP to 84700 to apply for food stamps and a hotline counselor will call them back within one business day, or they may apply in person at their local Board of Social Services.

For more information about NJ SNAP, families can also call the NJ SNAP Hotline: 800.687.9512.

The following resources also provide comprehensive information about the availability of social services (including SNAP) in NJ to families:

- NJ 2-1-1 : The NJ 2-1-1 partnership is the sole administrator of the three digit dialing code and website that connects people to day care facilities, shelters, affordable housing units, social services such as TANF, employment training programs, senior services, medical insurance, and more.

- The NJ Helps Screening/Application process and NJOneApp Online application process covers the following New Jersey Social Services assistance programs. A application submitted online grants the user single entry screening for any of the following.•SNAP
  •Temporary Assistance to Needy Families(TANF)
  •General Assistance(GA - Work First New Jersey)
  The online screening and application processes are found at:
  https://oneapp.dhs.state.nj.us/
  https://www.njhelps.org/
- A list of social services is also included in consumer education materials like the Parent Brochure which is distributed by the county Child Care Resource and Referral Agencies in all 21 counties before applying for a child care subsidy and the Parent Handbook which is distributed at the time of an eligibility determination for child care. Both can downloaded on the right hand side the web page: http://www.childcarenj.gov/Parents/SubsidyProgram
- Parents may also access information on the above program on the Child Care website's Resources page at: www.ChildCareNJ.gov/resources

☑ Women, Infants, and Children Program (WIC) program:

NJ WIC is a program that is designed to provide funds for the purchase of healthy food to low-income women, who are pregnant, postpartum, or

breastfeeding infants; and their children up to age 5. Families may apply for WIC by contacting their local WIC agency/community WIC clinic site and scheduling an appointment.

Further assistance is available by calling: 866.446.5942 (toll-free) 800.328.3838 (24-hour toll-free referral line). Information is provided to the public on the following site: https://www.state.nj.us/health/fhs/wic/participants/ . There is information on how to apply for WIC, how to find a New Jersey WIC Local agency, vendor or store, and other detailed information on the WIC program and WIC benefits. New Jersey WIC is in the process of developing a web based system that will enable all WIC participants and vendors to manage their New Jersey WIC accounts online by 2020.

The following resources also provide comprehensive information about the availability of social services (including WIC) in NJ to families:

- NJ 2-1-1 : The NJ 2-1-1 partnership is the sole administrator of the three digit dialing code and website that connects people to day care facilities, shelters, affordable housing units, social services such as TANF, employment training programs, senior services, medical insurance, and more.
- A list of social services is also included in consumer education materials like the Parent Brochure which is distributed by the county Child Care Resource and Referral Agencies in all 21 counties before applying for a child care subsidy and the Parent Handbook which is distributed at the time of an eligibility determination for child care. Both can downloaded on the right hand side the web page: http://www.childcarenj.gov/Parents/SubsidyProgram
- Parents may also access information on the above program on the Child Care website's Resources page at: www.ChildCareNJ.gov/resources

☑ Child and Adult Care Food Program(CACFP):

In partnership with the NJ Department of Agriculture, DFD refers those that may be eligible for CACFP to https://www.nj.gov/agriculture/divisions/fn/childadult/food.html where there are useful hints, resources, eligibility information and contacts regarding the program. For services specific to early childcare (preschool) and family day care homes, the website provides income eligibility information, applications, menus, handbooks, and other pertinent resources. There are also additional informational resources provided about the Department of Agriculture's Farm to

Preschool Initiative at

https://farmtoschool.nj.gov/agriculture/farmtoschool/summer-preschool/ece/ .

The following resources also provide comprehensive information about the availability of social services (including CACFP) in NJ to families:

- NJ 2-1-1 : The NJ 2-1-1 partnership is the sole administrator of the three digit dialing code and website that connects people to day care facilities, shelters, affordable housing units, social services such as TANF, employment training programs, senior services, medical insurance, and more.
- A list of social services is also included in consumer education materials like the Parent Brochure which is distributed by the county Child Care Resource and Referral Agencies in all 21 counties before applying for a child care subsidy and the Parent Handbook which is distributed at the time of an eligibility determination for child care. Both can downloaded on the right hand side the web page: http://www.childcarenj.gov/Parents/SubsidyProgram
- Parents may also access information on the above program on the Child Care website's Resources page at: www.ChildCareNJ.gov/resources

☑ Medicaid and Children's Health Insurance Program (CHIP):

NJ FamilyCare is New Jersey's publicly funded health insurance program - includes CHIP, Medicaid and Medicaid expansion populations. That means qualified NJ residents of any age may be eligible for free or low cost health insurance that covers doctor visits, prescriptions, vision, dental care, mental health and substance use services and even hospitalization. NJ provides a comprehensive one stop portal at http://www.njfamilycare.org/default.aspx which provides information about the program, income eligibility information, the online application, information on choosing a health plan, help with enrolling, how to use benefits, as well as enrollment statistics. There are English and Spanish applications available for download and all of the information on the website is available in 20 languages. There is also a Hotline 1-800-701-0710 (TTY: 1-800-701-0720).

The following resources also provide comprehensive information about the availability of social services (including CHIP) in NJ to families:

- NJ 2-1-1 : The NJ 2-1-1 partnership is the sole administrator of the three digit dialing code and website that connects people to day care facilities, shelters, affordable housing units, social services such as TANF, employment training programs, senior services, medical insurance, and more.
- The NJ Helps Screening/Application process and NJOneApp Online application

process covers the following New Jersey Social Services assistance programs. A application submitted online grants the user single entry screening for any of the following.•SNAP
•Temporary Assistance to Needy Families(TANF)
-NJ Family Care/Medicaid

The online screening and application processes are found at:
https://oneapp.dhs.state.nj.us/
https://www.njhelps.org/

- A list of social services is also included in consumer education materials like the Parent Brochure which is distributed by the county Child Care Resource and Referral Agencies in all 21 counties before applying for a child care subsidy and the Parent Handbook which is distributed at the time of an eligibility determination for child care. Both can downloaded on the right hand side the web page: http://www.childcarenj.gov/Parents/SubsidyProgram
- Parents may also access information on the above program on the Child Care website's Resources page at: www.ChildCareNJ.gov/resources

☑ Programs carried out under IDEA Part B, Section 619 and Part C:

The following website https://www2.ed.gov/about/inits/ed/earlylearning/early-intervention-specialed-30th.html provides a one stop directory for all resources, services and programs related to IDEA Part B, Section 619 (pertaining to Preschool Grants for children aged 3-5 years old) and IDEA Part C (pertaining to Infants and Toddlers with Disabilities birth-2 years old). There is specific information about the NJ Department of Education Programs including the Preschool Grants Initative for Children with Disabilites and Early Intervention Program for Infants and Toddlers with Disabilities. There is also information about the IDEA Technical Assistance Centers.

The following resources also provide comprehensive information about the availability of social services (including CHIP) in NJ to families:

- NJ 2-1-1 : The NJ 2-1-1 partnership is the sole administrator of the three digit dialing code and website that connects people to day care facilities, shelters, affordable housing units, social services such as TANF, employment training programs, senior services, medical insurance, and more.
- A list of social services is also included in consumer education materials like the Parent Brochure which is distributed by the county Child Care Resource and Referral Agencies in all 21 counties before applying for a child care subsidy and the Parent Handbook which is distributed at the time of an eligibility determination for child care. Both can downloaded on the right hand side the web page:

http://www.childcarenj.gov/Parents/SubsidyProgram

- Parents may also access information on the above program on the Child Care website's Resources page at: www.ChildCareNJ.gov/resources

2.4.4 Describe how the Lead Agency makes available to parents, providers, and the general public information on research and best practices concerning children's development, including physical health and development, particularly healthy eating and physical activity. Information about successful parent and family engagement should also be shared. At a minimum, include what information is provided, how the information is provided, and how the information is tailored to a variety of audiences and include any partners in providing this information.

Best practices in child development are already built into the mandated pre-service professional development health and safety trainings for CCDF child care providers. In addition, programs enrolled in Grow NJ Kids receive training and technical assistance to help them effectively communicate and inform parents about research and best practices in child development. Grow NJ Kids also includes these concepts as part of the basis of the ratings.

The ChildCareNJ.gov website has information, resources and links for parents to easily access information on child development; such as NJ Parent Link which provides information and resource needs for parents.

DFD also utilizes the CCR&Rs, quality initiatives contracts, and other state partners to make information widely available through the consumer education website, written publications, mailings, trainings and workshops. For additional information about child development, CCR&Rs refer parents to resources maintained by the NJCYC.

2.4.5 Describe how information on the Lead Agency's policies regarding the social-emotional and behavioral issues and early childhood mental health of young children, including positive behavioral intervention and support models based on research and best practices for those from birth to school age, are shared with families, providers, and the general public. At a minimum, include what information is provided, how the information is provided, and how information is tailored to a variety of audiences and include any partners in providing this information.

The New Jersey Inclusive Child Care Project (NJICCP) is funded by a Grant from New Jersey Department of Human Services, Division of Family Development. With this Grant, NJICCP is able to promote childcare providers to offer inclusive child care services and educate families and professionals of services available for children with disabilities and special needs in New Jersey (including children exhibiting social-emotional and behavioral issues). New Jersey's Quality Ratings and Improvement Scale, Grow NJ Kids initiative and Partnerships, provide a wealth of resources to early childhood professionals to promote and support inclusion. The project goals for the NJ Inclusive Child Care Project are to:

• Encourage and support childcare providers (family child care and center-based programs) to more effectively identify developmental delays, behavioral issues, and other special needs and offer inclusive child care;
• Educate parents, families, providers, and other key stakeholders of the services available for children with special needs including in identification, evaluation, development of service plans, and provisions of inclusive services; and
• Promote collaboration among the childcare provider community and special needs service providers and systems to improve the delivery of services to children with special needs

NJICCP's Statewide Parent Advocacy Network (SPAN) provides the following services:

A. Provide telephone assistance to parents and child care providers on screening, inclusion laws and strategies, appropriate community resources for parents and providers regarding children with special needs and behavioral issues, and partnering

with families and professionals across agencies;
B. Provide professional development trainings on a variety of social-emotional topics;
C. Conduct a series of teleconferences for families and providers (English and Spanish);
D. Collaborate with our State Conference Committee Partners, NJ School Age Coalition (NJSACC), Health in Child Care/Map to Inclusive Child Care, NJ Association for the Education of Young Children (NJAEYC), and Grown NJ Kids Partners;
E. Offer on-site Technical Assistance to early childhood programs, including family child care, focused on supporting their inclusion of young children with the full range of special needs including developmental, intellectual/cognitive, physical, and other disabilities

In addition, the New Jersey Inclusive Child Care Project offers a variety of workshops in English and Spanish for parents and child care professionals through their local Child Care Resource and Referral Agency in all 21 counties. Workshops are organized by topic and include:

Challenging Behaviors

This workshop concentrates on how to use positive techniques to understand challenging behaviors and establishing an environment that encourages desirable behavior in children.

Early Intervention and Special Education

This workshop provides tips on navigating the early intervention system, and local school district programs for children with disabilities and special needs.

Inclusion Awareness

This workshop provides the guiding principles of inclusion, information about the laws affecting it, how children are more alike than different and where to turn for

assistance when necessary.

Making Inclusion Happen

This workshop helps you understand how to teach to individual abilities and adapt activities to meet the needs of all children.

Observing and Recording Behavior

This workshop reviews typical child development milestones, observation strategies and how to share this information with parents.

Screening and Talking with Families

This workshop discusses the process of screening, screening tools available for providers, and tips about what to do when a screening is positive for a developmental concern.

All of the above resources are based on the research backed Birth to Three Early Learning and Development Standards developed by the NJ Council for Young Children. The Birth to Three Early Learning Standards were adapted from best practices in Minnesota and were developed around Minnesota's Early Learning Guidelines for Birth to Three.

The Division of Family Development funded Family Guide to Children's Mental Health Services developed by the NJ Statewide Parent Advocacy Network can be found at: http://www.spanadvocacy.org/sites/default/files/documents/Children%27s%20Mental%20Health-Family%20Guide-FINAL.pdf It provides crucial information on child mental, social, emotional, and behavioral health to families and how to access the array of supports and services throughout the state.
In addition the NJ Parent Link initiative is the State of New Jersey's Early Childhood,

Parenting and Professional Resource Center. As a statewide initiative, NJ Parent Link is a recognized best practice model for innovative IT/digital communication between government and citizens. (National Association of State Chief Information Officers, 2011). Families can access Parent Link at https://www.nj.gov/njparentlink/developmental/infants/

The NJ Parent Link website highlights NJ State services and resources, federal and community resources are also included. The focus of NJ Parent Link is to meet the information and resource needs of expectant parents, families with young children (newborns to children entering kindergarten) and professional stakeholders vested in the health & well-being of New Jersey's children & families. Parenting and support resources for families with older children, school aged to young adulthood, are also available. The goals of NJ Parent Link are to improve the accessibility, coordination and delivery of information and services to expectant parents and families with young children; to improve the communication capabilities between the public and private sectors; and to provide the IT foundation for interagency service collaborations and policy development. Website content includes early childhood health, development, early learning, parenting and family support resources. Family milestone topics include pre-conceptual/prenatal health, kindergarten readiness, back to work/staying at home and parenting older siblings.

2.4.6 Describe the Lead Agency's policies to prevent the suspension and expulsion of children from birth to age 5 in child care and other early childhood programs receiving CCDF funds (98.16(ee)), including how those policies are shared with families, providers, and the general public.

The Department of Human Services' policy statement on preventing expulsion and suspension will become effective October 1, 2018. The policy statement supports early childhood programs by providing best practices for preventing suspension and expulsion practices in early childhood settings.

This policy statement affirms and supports the States' efforts to eliminate expulsion and suspension in order to support the emotional, social, intellectual and behavioral development

of all children, in all early childhood settings and at home. Access to high-quality early learning experiences and environments has a positive impact on a child's learning and development. However, there are no beneficial short-term or long-term outcomes for a child when he/she cannot receive the needed supportive services due to out of school disciplinary measures.

The policy statement will be posted on our consumer education website, incorporated into the parent and provider handbooks, and will be communicated during parent and provider orientations, trainings, technical assistance sessions, and provider meetings.

2.5 Procedures for Providing Information on Developmental Screenings

Lead Agencies are required to provide information on developmental screenings, including information on resources and services that the State can deploy, such as the use of the Early and Periodic Screening, Diagnosis, and Treatment program under the Medicaid program carried out under title XIX of the Social Security Act and developmental screening services available under IDEA Part B, Section 619 and Part C, in conducting those developmental screenings and in providing referrals to services for children who receive subsidies. Lead Agencies must also include a description of how a family or child care provider can use these resources and services to obtain developmental screenings for children who receive subsidies and who might be at risk of cognitive or other developmental delays, which can include social, emotional, physical, or linguistic delays (658E(c)(2)(E)(ii)). Lead Agencies are required to provide this information to eligible families during CCDF intake and to child care providers through training and education (98.33(c)).

2.5.1 Certify by describing:

a) How the Lead Agency collects and disseminates information on existing resources and services available for conducting developmental screenings to CCDF parents, the general public, and where applicable, child care providers (98.15(b)(3)).

The Department of Human Services, Department of Health, and Department of Education are the lead partners in conducting developmental screenings and

referring families.

Additionally, relevant links are listed at www.ChildCareNJ.gov
All Medicaid covered beneficiaries under the age of twenty-one are entitled to receive any medically necessary service, including physician services that provide comprehensive developmental screenings. For those beneficiaries who receive benefits through a Managed Care Organization (MCO), the MCO provides written notification to its enrollees under twenty-one years of age when appropriate periodic assessments or needed services are due. MCOs are responsible to coordinate appointments for care and any necessary follow resulting from the appointments.
The requirements of Early and Periodic Screening, Diagnosis and Treatment Program (EPSDT) services can be found at Section 1905(r) of the Social Security Act (42 U.S.C. 1396(d) and federal regulation 42 CFR 441.50. The children of families participating in evidence-based Home Visiting, Head Start/Early Head Start, state-funded Preschools, and participating Grow NJ Kids child care centers undergo routine (and mandatory) developmental screening using a standardized tool.

DHS/DFD contracted with Montclair University to research and help inform DHS/DFD policy statement regarding the social, emotional and challenging behavior of young children best on best practices. DHS/DFD's consumer education and referral service documents and brochure provide families emotional services and support within their community and disseminate information to educate about interventions and services to address challenging behaviors. These can be found on the NJ Child Care website at:
http://www.childcarenj.gov/Resources and
http://www.childcarenj.gov/Parents/SubsidyProgram where parents can download the Parent Brochure (which is also distributed before applying for a child care subsidy) and the Parent Handbook which is disseminated at the time of a child care subsidy eligibility determination.

Additionally, DHS/DFD has contracts with training entities to provide social and emotional, developmental screening, and mental health trainings. All trainings and services are communicated through the contracted agencies, posted on DHS/DFD

child care website and published in the general information brochure which is distributed to the general public by the CCR&Rs and available on DHS/DFD Child Care and Grow NJ Kids websites.
Health consultants, and mental health on-site consultations and services are now available to providers to support programs, the workforce and families of children experiencing challenging behaviors.
Through all DHS/DFD quality initiatives, the professional development system, and collaboration with other state agency coordinated efforts, information about the above service and supports are shared and disseminated through DHS/DFD partners to make it available to families and the general public.

Besides in-person referrals, the main point of online dissemination of information on developmental screenings can be found on the NJ Parent Link portal. The NJ Parent Link initiative is the State of New Jersey's Early Childhood, Parenting and Professional Resource Center. As a statewide initiative, NJ Parent Link is a recognized best practice model for innovative IT/digital communication between government and citizens. (National Association of State Chief Information Officers, 2011). Families can access Parent Link at https://www.nj.gov/njparentlink/developmental/infants/

b) The procedures for providing information on and referring families and child care providers to the Early and Periodic Screening, Diagnosis, and Treatment program under the Medicaid program - carried out under Title XIX of the Social Security Act (42 U.S.C. 1396 et seq.) - and developmental screening services available under Section 619 and Part C of the Individuals with Disabilities Education Act (20 U.S.C. 1419, 1431 et seq.).
DHS/DFD or the CCR&Rs provide direct referrals to DMAHS and DOE. The programs are also mentioned in the "How to Apply for an NJ Child Care Subsidy" public brochure, and the "Parent Handbook."
DHS/DFD works in partnership with service providers and other state, county and municipal agencies to help families access these programs and services.
Users may access information on the above programs on the DHS website: **www.ChildCareNJ.gov/Resources** .

c) How the Lead Agency gives information on developmental screenings to parents receiving a subsidy as part of the intake process. Include the information provided, ways

it is provided, and any partners in this work.

The DMAHS and DOE are the lead partners in this area. Parents are referred to these entities on this topic. Additionally, relevant links are listed at **www.ChildCareNJ.gov** on the Resources page. Links to the website appear in the Parent Handbook and the Parent Brochure.

d) How CCDF families or child care providers receiving CCDF can use the available resources and services to obtain developmental screenings for CCDF children at risk for cognitive or other developmental delays.

Families are referred to the DMAHS or DOE and their related partners on this issue.

For those families and children that are eligible for Medicaid, the Medicaid Managed Care Organizations have methods for coordinating care and creating linkages with external organizations, including but not limited to school districts, child protective service agencies, early intervention agencies, behavioral health, and developmental disabilities service organizations, for those children identified with a need.

e) How child care providers receive this information through training and professional development.

CCDF child care providers currently receive pre-service training on child development appropriate for the ages of children served.

f) Provide the citation for this policy and procedure related to providing information on developmental screenings.

N.J.A.C. 10:15-2.4

2.6 Consumer Statement for Parents Receiving CCDF Funds

Lead Agencies must provide CCDF parents with a consumer statement in hard copy or electronically (such as referral to a consumer education website) that contains specific information about the child care provider they select. This information about the child care provider selected by the parent includes health and safety requirements met by the provider, any licensing or regulatory requirements met by the provider, the date the provider was last inspected, any history of violations of these requirements, and any voluntary quality standards met by the provider. It must also describe how CCDF subsidies are designed to promote equal access, how to submit a complaint through a hotline, and how to contact local resource and referral agencies or other community-based supports that assist parents in finding and enrolling in quality child care (98.33(d)). Please note that if the consumer statement is provided electronically, Lead Agencies should consider how to ensure that the statement is accessible to parents and that parents have a way to contact someone to address questions they have.

2.6.1 Certify by describing:

a) How the Lead Agency provides parents receiving CCDF funds with a consumer statement.

Parents receive information regarding child care services in many ways; however the Parent Handbook is a document that they must sign in order to acknowledge receipt. Parents receiving CCDF funds are given the Parent Handbook at the time an eligibility determination is made. It is available in English and Spanish. The Parent Handbook is essential because it provides parents with information to help them make informed decisions. The parent and provider agreement is another document that requires the parent's signature and describes the child care program, services, and parents and provider responsibilities. Lastly, DHS/DFD website provides parents with a wealth of information regarding services, support, provider information, and resources to help them make informed child care choices.

b) What is included in the statement, including when the consumer statement is provided to families.

Once a family is determined eligible, CCR&Rs provide the applicant/co-applicant the "Parent Handbook" and the finalized Preliminary Parent/Applicant/ Provider Agreement (PAPA).

The Parent Handbook contains information on child care agreements, selected a child care providers, finding quality child care and CCDF eligible child care providers, how to use their Electronic Child Care payment card to record time and attendance for child care payment, copayments, child attendance rules, how to change child care providers, how to report a change in family circumstances that may affect family copay, information on continuing benefits (eligibility redetermination and reasons for termination), parent rights, parent responsibilities, mandatory reporting requirements, how to request an administrative hearing, how to voice a concern/complaint, discrimination, and additional social and supportive services offered in the state. CCR&Rs instruct the applicant/co-applicant to sign the "Parent Handbook Acknowledgment" form which is attached to the Parent Handbook which indicates that they have received a copy of the handbook. Upon receipt, the signed acknowledgement is placed in the family's case file.

c) Provide a link to a sample consumer statement or a description if a link is not available.

http://www.childcarenj.gov/Parents/SubsidyProgram

The "Parent Handbook" is located on the right hand side of the page under "Forms" and can be downloaded.

3 Provide Stable Child Care Financial Assistance to Families

In providing child care assistance to families, Lead Agencies are required to implement these policies and procedures: a minimum 12-month eligibility and redetermination periods, a process to account for irregular fluctuations in earnings, a policy ensuring that families' work schedules are not disrupted by program requirements, policies to provide for a job search of not fewer than 3 months if the Lead Agency exercises the option to discontinue assistance, and policies for the graduated phase-out of assistance. Also, procedures for the enrollment of homeless children and children in foster care, if served, pending the completion of documentation, are required.

Note: Lead Agencies are not prohibited from establishing policies that extend eligibility beyond 12 months to align program requirements. For example, Lead Agencies can allow children enrolled in Head Start, Early Head Start, state or local prekindergarten, and other collaborative programs to finish the program year. This type pf policy promotes continuity for families receiving services through multiple benefit programs.

In this section, Lead Agencies will identify how they define eligible children and families and how the Lead Agency improves access for vulnerable children and families. This section also addresses the policies that protect working families and determine a family's contribution to the child care payment.

3.1 Eligible Children and Families

At the time when eligibility is determined or redetermined, children must (1) be younger than age 13; (2) reside with a family whose income does not exceed 85 percent of the State's median income for a family of the same size and whose family assets do not exceed $1,000,000 (as certified by a member of said family); and (3)(a) reside with a parent or parents who are working or attending a job training or educational program or (b) receives, or needs to receive, protective services and resides with a parent or parents not described in (3)(a.) (658P(4)).

3.1.1 Eligibility criteria based on a child's age

a) The CCDF program serves children

from Birth (0)

(weeks/months/years)

through 12

years (under age 13). . Note: Do not include children incapable of self-care or under court supervision, who are reported below in (b) and (c).

b) Does the Lead Agency allow CCDF-funded child care for children age 13 and above but below age 19 years who are physically and/or mentally incapable of self-care?(658E(c)(3)(B), 658P(3))

☐ No

☑ Yes,

and the upper age is 18

(may not equal or exceed age 19).

If yes, Provide the Lead Agency definition of physical and/or mental incapacity:
Physical or mental incapacity means a child who is under the age of 19 who is physically or mentally unable to self-care; as identified through a written referral from a county welfare agency, legal, medical, social service agency, emergency shelter, or school which indicates that the child has a serious physical, emotional, mental, or cognitive condition and child care services are required as part of a treatment plan designed to stabilize or ameliorate the situation.

c) Does the Lead Agency allow CCDF-funded child care for children age 13 and above but below age 19 years who are under court supervision? (658P(3), 658E(c)(3)(B))

☐ No.

☑ Yes

and the upper age is 18

(may not equal or exceed age 19)

d) How does the Lead Agency define the following eligibility terms?

"residing with":

Means living in the permanent or temporary residence of the eligible parent, legal guardian, or person standing in loco parentis.

"in loco parentis":

Means serving as the primary caretaker without legal confirmation for the child(ren) on behalf of whom services are requested.

3.1.2 Eligibility criteria based on reason for care

a) How does the Lead Agency define "working or attending a job training and educational program" for the purposes of CCDF eligibility at the time of determination? Provide the

definitions below for:

"Working":

At initial eligibility working means full-time employment, which is employment that totals 30 or more hours per week. At redetermination working means employment that totals 25 or more hours per week.

"Job training":

Job training is full-time training in a vocational/occupational program that includes classroom instruction, on the job training, and/or apprenticeships for 20 hours or more and is required for eligibility.

"Education":

Education is being enrolled full-time in and attending a college, university, or other educational facility a total of 12 credits hours or more per term or the equivalent number of continuing education units (CEU) and nine credit hours or more during the summer term or the equivalent number of CEUs.

"Attending job training or education" (e.g. number of hours, travel time):

Same as "Job Training" and "Education" definitions above.

3.1.2 Eligibility criteria based on reason for care

b) Does the Lead Agency allow parents to qualify for CCDF assistance on the basis of education and training participation alone (without additional minimum work requirements)?

☐ No.

If no, describe the additional work requirements:

☑ Yes.

If yes, describe the policy or procedure:

Applicant(s) can be deemed eligible for assistance if they are attending a full-time education or training program and/or a combination of work/school/training equivalent to a full-time activity. Job-search time limit is not applicable here.

3.1.2 Eligibility criteria based on reason for care

c) Does the Lead Agency consider seeking employment (engaging in a job search) an eligible activity at initial eligibility determination (at application) and at the 12-month eligibility redetermination? (Note: If yes, Lead Agencies must provide a minimum of three months of job search)

☐ No.

☑ Yes.

If yes, describe the policy or procedure. (including any differences in eligibility at initial eligibility determination vs. redetermination of eligibility):

The job search period cannot be applied at the initial eligiblity determination. The three month Job Search period only applies to families (both applicant and co-applicant) that experienced a cessation of work, training, or education that exceeded three months and requested additional child care assistance for job search or enrollment activities after they have gone through the initial eligibliity determination. In some cases, a Job Search period may be applied at a family's redetermination.

3.1.2 Eligibility criteria based on reason for care

d) Does the Lead Agency provide child care to children in protective services?

☐ No.

☑ Yes. If yes:

i. Please provide the Lead Agency's definition of "protective services":

Child Protective Services (CPS) are services on behalf of any child, under age 19, considered at risk of abuse, neglect, or exploitation; or found to be abused, neglected, exploited or abandoned, as identified by the Division of Child Protection and Permanency (DCP&P).

The term, unless otherwise specified, includes services provided to children in out-of-home settings under the supervision of DCP&P.

With regard to child care, the work status of a foster parent does not affect the child's eligibility to receive CCDF based child care.

Note: Federal requirements allow other vulnerable children identified by the Lead Agency not formally in child protection to be included in the Lead Agency's definition of protective services for CCDF purposes. A Lead Agency may elect to provide CCDF-funded child care to children in foster care when foster care parents are not working or are not in education/training activities, but this provision should be included in the protective services definition above.

ii. Are children in foster care considered to be in protective services for the purposes of eligibility at determination?

- [ ] No
- [x] Yes

iii. Does the Lead Agency waive the income eligibility requirements for cases in which children receive, or need to receive, protective services on a case-by-case basis (658E(c)(5))?

- [ ] No
- [x] Yes

iv. Does the Lead Agency provide respite care to custodial parents of children in protective services?

- [ ] No
- [x] Yes

3.1.3 Eligibility criteria based on family income. Note: The question in 3.1.3 relates to initial determination. Redetermination is addressed in 3.1.7.

a) How does the Lead Agency define "income" for the purposes of eligibility at the point of determination?

Income is defined as the amount of current gross income earned by all members of the family unit through the receipt of wages including overtime, tips, bonuses or commissions from activities in which he/she is engaged as an employee from his/her self-employment.

Unearned income such as social security, pensions, retirement, unemployment, worker's compensation, public assistance, child support, alimony and any other income required for federal and state tax reporting purposes is calculated in the income.

b) Provide the CCDF income eligibility limits in the table below at the time of initial determination. Complete columns (a) and (b) based on maximum eligibility at initial entry into CCDF. Complete columns (c) and (d) *only if* the Lead Agency is using income eligibility limits lower than 85 percent of the current state median income (SMI) at the initial eligibility determination point. Fill in the chart based on the most populous area of the state (the area serving the highest number of CCDF children). If the income eligibility limits are not statewide, please respond to c) below the table.

	(a)	(b)	(c)	(d)
Family Size	100% of SMI($/Month)	85% of SMI ($/Month) [Multiply (a) by 0.85]	(IF APPLICABLE) ($/Month) Maximum Initial or First Tier Income Limit (or Threshold) if Lower Than 85% of Current SMI	IF APPLICABLE) (% of SMI) [Divide (c) by (a), multiply by 100] Income Level if Lower Than 85% of Current SMI
1	$62,933.00	$53,493.05	$24,280.00	38.6%
2	$75,305.00	$64,009.25	$32,920.00	43.7%
3	$93,656.00	$79,607.60	$41,560.00	44.4%
4	$114,886.00	$97,653.10	$50,200.00	43.7%
5	$123,286.00	$104,793.10	$58,840.00	47.7%

c) If the income eligibility limits are not statewide, describe how many jurisdictions set their own income eligibility limits and provide the income limit ranges across the jurisdictions (e.g. range from [lowest limit] to [highest limit])(98.16(i)(3)).

The income eligibilty limits are statewide.

Reminder: Income limits must be established and reported in terms of current SMI based on the most recent data published by the Bureau of the Census (98.20(a)(2)(i)) even if the federal poverty level is used in implementing the program. SMI guidelines are available at: https://www.acf.hhs.gov/ocs/resource/liheap-im2017-03.

d) SMI source and year. 2017 Census Bureau Median Family Income By Family Size , Department of Justice

e) Identify the most populous area of the State used to complete the chart above.

The income eligibilty limits are statewide.

f) What was the date (mm/dd/yyyy) that these eligibility limits in column (c) became effective? 03/01/2018

g) Provide the citation or link, if available, for the income eligibility limits.
https://www.justice.gov/ust/eo/bapcpa/20170501/bci_data/median_income_table.htm

3.1.4 Lead Agencies are required to ensure that children receiving CCDF funds do not have family assets that exceed $1,000,000, as certified by a family member (98.20(a)(2)(ii)).

a) Describe how the family member certifies that family assets do not exceed $1,000,000 (e.g., a checkoff on the CCDF application).

A family member certifies that family assets do not exceed $1,000,000 by completing an application addendum during the Child Care Subsidy Program application process. The addendum contains a certification that the parent's assets do not exceed the maximum amount.

b) Does the Lead Agency waive the asset limit on a case-by-case basis for families defined as receiving, or in need of, protective services?

☐ No.

☑ Yes.

If yes, describe the policy or procedure and provide citation:

The limit is waived for children being served by NJ's Child Protective Services Agency (Department of Children and Families, Child Protection and Permanency -CP&P) and children in the Post Adoption Child Care Program. DFDI 17-12-02

3.1.5 Describe any additional eligibility conditions or priority rules applied by the Lead Agency during eligibility determination or redetermination (98.20(b)).

Currently, there is no waiting list in New Jersey; therefore, no priority rules are being applied. In the event there is a need to prioritize eligibility, regulations exist in various parts of N.J.A.C. 10:15 that spell out admission priorities. For example, priority ranking is based on things like CP&P involvement, status as a TANF recipient or being

at risk of becoming homeless.

3.1.6 Lead Agencies are required to take into consideration children's development and promote continuity of care when authorizing child care services (98.21(f); 98.16(h)(6)). Check the approaches, if applicable, that the Lead Agency uses when considering children's development and promoting continuity of care when authorizing child care services.

- [x] Coordinating with Head Start, prekindergarten, or other early learning programs to create a package of arrangements that accommodates parents' work schedules
- [x] Inquiring about whether the child has an Individualized Education Program (IEP) or Individual Family Services Plan (IFSP)
- [x] Establishing minimum eligibility periods greater than 12 months
- [x] Using cross-enrollment or referrals to other public benefits
- [x] Working with IDEA Part B, Section 619 and Part C staff to explore how services included in a child's IEP or IFSP can be supported and/or provided onsite and in collaboration with child care services
- [x] Providing more intensive case management for families with children with multiple risk factors;
- [x] Implementing policies and procedures that promote universal design to ensure that activities and environments are accessible to all children, including children with sensory, physical, or other disabilities
- [x] Other.

Describe:

DHS/DFD authorizes before and after care and pays an enhanced rate for children with a disability. Until recently this enhanced rate only applied to family child care. The special rate now also applies to licensed centers. CCR&R agency staff work with the parent to find a child care provider that meets the parent's and the child's specific needs.

Through the Early Head Start-Child Care Partnership (EHS-CCP) initiative, CCDF

eligible families' subsidy is utilized to help provide comprehensive and continuous services to low-income infants, toddlers, and their families.

CCDF eligible children that are dually eligible for EHS are identified at the local CCR&R agencies enrolled in this partnership program. The EHS grantees track the number of children and communicate enrollment with the local CCR&Rs

3.1.7 Policies and processes for graduated phase-out of assistance at redetermination.

Lead Agencies are required to provide for a graduated phase-out of assistance for families whose income has increased above the state's initial income threshold at the time of redetermination but remains below the federal threshold of 85 percent of the state median income. Providing a graduated phase-out promotes continuity by allowing for wage growth, allows for a tapered transition out of the child care subsidy program as income increases, and supports long-term self-sufficiency for families.

i. 85 percent of SMI for a family of the same size
ii. An amount lower than 85 percent of SMI for a family of the same size but above the Lead Agency's initial eligibility threshold that:

(A) Takes into account the typical household budget of a low-income family
(B) Provides justification that the second eligibility threshold is:
(1) Sufficient to accommodate increases in family income over time that are typical for low-income workers and that promote and support family economic stability
(2) Reasonably allows a family to continue accessing child care services without unnecessary disruption.

At redetermination, a child shall be considered eligible if his or her parents are working or attending a job training or educational program even if their income exceeds the Lead Agency's income limit to initially qualify for assistance as long as their income does not exceed the second tier of eligibility (98.21(a); 98.21(b)(1)). Note that once deemed eligible, the family shall be considered eligible for a full minimum 12-month eligibility period, even if their income exceeds the second tier of eligibility during the eligibility period, as long as it does not exceed

85 percent of SMI.

A family eligible for services via the graduated phase-out of assistance is considered eligible under the same conditions as other eligible families with the exception of the copayment restrictions, which do not apply to a graduated phase-out. To help families transition off of child care assistance, Lead Agencies may gradually adjust copay amounts for families whose children are determined eligible under a graduated phase-out and may require additional reporting on changes in family income. However, Lead Agencies must still ensure that any additional reporting requirements do not constitute an undue burden on families.

a) Check and describe the option that best identifies the Lead Agency's policies and procedures regarding the graduated phase-out of assistance.

- ☐ N/A - The Lead Agency sets its initial eligibility threshold at 85 percent of SMI and, therefore, is not required to provide a graduated phase-out period.
- ☐ N/A - The Lead Agency sets its exit eligibility threshold at 85 percent of SMI and, therefore, is not required to provide a graduated phase-out period.
- ☑ The Lead Agency sets the second tier of eligibility at 85 percent of SMI.

Describe the policies and procedures.

The second tier is set at the equivalent of 85% of SMI. NJ's Graduated Phase-Out Period of Assistance is a one year period of continued assistance that is granted when a family's income has exceeded 250 percent of the FPL but remains below 85 percent of the SMI at re-determination, The Graduated Phase-Out Period of Assistance is a one year period of continued assistance that is granted when a family's income has exceeded 250 percent of the FPL but remains below 85 percent of the SMI at re-determination. A Graduated Phase-Out Period of Assistance commences at the beginning of a new eligibility period.

The Exit Level threshold is 250% of FPL ($51,950) to 85% of SMI ($79,608).

Provide the citation for this policy or procedure.

DFDI 17-04-02

- ☑ The Lead Agency sets the second tier of eligibility at an amount lower than 85 percent of SMI for a family of the same size but above the Lead Agency's initial eligibility threshold.

Provide the second tier of eligibility for a family of three.

250 % of FPL ($51,950)

Describe how the second eligibility threshold:

i. Takes into account the typical household budget of a low-income family:

The second eligibility level allows a family with increased income additional time to receive subsidized child care. This has a positive impact on the household budget for an extended period of time.

ii. Is sufficient to accommodate increases in family income over time that are typical for low-income workers and that promote and support family economic stability:

The difference between the first and second eligibility thresholds amounts to $10, 390 for a family of three.

iii. Reasonably allows a family to continue accessing child care services without unnecessary disruption:

A family does not have to report when their income exceeds 250% FPL. Their eligibility simply continues.

iv. Provide the citation for this policy or procedure:

DFDI 17-04-02

☐ Other.

Identify and describe the components that are still pending per the instructions on *CCDF Plan Response Options for Areas where Implementation is Still in Progress* in the Introduction.

3.1.7 b) To help families transition from assistance, does the Lead Agency gradually adjust copays for families eligible under the graduated phase-out period?

☐ No

☑ Yes

i. If yes, describe how the Lead Agency gradually adjusts copays for families under a graduated phase-out.

Providing a graduated phase-out promotes continuity by allowing for wage growth, a tapered transition out of the child care subsidy program, and supports long-term financial stability to help families get to a point where they no longer need the subsidy. NJ Division of Family Development adjust co-pays for families during this period to create a gradual shift in how families must adjust their budget to cover the full cost of care once they are no longer receiving a subsidy. However, this only occurs when the family requests a copay adjustment. A family is not required to contact the agency if their income rises (thus affecting copay), this approach minimizes paperwork and reporting burdens on working families.

ii. If yes, does the Lead Agency require additional reporting requirements during the graduated phase-out period? *(Note: Additional reporting requirements are also discussed in section 3.3.3 of the plan.)*

☐ No.

☑ Yes.

Describe:

During graduated phase-out period a family must report when:

- The family income rises to an amount that requires a copay due to a change in circumstances;
- The family needs a Temporary Change Period or Job Search period while in Graduated Phase-Out status;
- The family's income falls to an amount at or below 200 % FPL. At that point they can reapply for the subsidy under the standard eligibility provisions;
- The family's income exceeds 85% of the State Median Income (SMI).

3.1.8 Fluctuation in earnings.

Lead Agencies are required to demonstrate how their processes for initial determination and redetermination take into account irregular fluctuations in earnings (658E(c)(2)(N)(i)(II)). The Lead Agency must put in place policies that ensure that temporary increases in income, including temporary increases that can result in a monthly income exceeding 85 percent of SMI

(calculated on a monthly basis) from seasonal employment or other temporary work schedules, do not affect eligibility or family copayments (98.21(c)). Check the processes, if applicable, that the Lead Agency uses to take into account irregular fluctuations in earnings and describe, at a minimum, how temporary increases that result in a monthly income exceeding 85 percent of SMI (calculated on a monthly basis) do not affect eligibility or family copayments.

☑ Average the family's earnings over a period of time (i.e. 12 months).

Describe:

DFD averages a family's previous month of paystubs and multiplies that amount by 12 to calculate income.

☑ Request earning statements that are most representative of the family's monthly income.

Describe:

Work hours are verified by submitting original, electronic (i.e., both paperless paystubs and verifications received via email), or copies of current paystubs documenting at least four weeks of work hours . In order to provide flexibility to parents and ensure that earning statements are representative of the family's monthly income, the four weeks of paystubs can be nonconsecutive paystubs received anywhere in the six weeks prior to the date the application is received or in the six weeks after the application is received.

☑ Deduct temporary or irregular increases in wages from the family's standard income level.

Describe:

If a family does happen to earn over 85% of the SMI in one month during the year, it may not impact eligibility because the entire year is considered.

☐ Other.

Describe:

3.1.9 Lead Agencies are required to have procedures for documenting and verifying that children receiving CCDF funds meet eligibility criteria at the time of eligibility determination and redetermination (98.68(c)). Check the information that the Lead

Agency documents and verifies and describe, at a minimum, what information is required and how often. Check all that apply.

☑ Applicant identity.

Describe:

The identity of each applicant applying for child care is verified through U.S. passports, certificates of naturalization, driver's licenses, permits or state identification cards, U.S. military cards, non U.S. passports, or school identification cards at the time of application.

☑ Applicant's relationship to the child.

Describe:

The applicant's relationship to the eligible child is verified by one or more of the following: birth certificate, medical and school records, or a court order of custody at the time of application.

☑ Child's information for determining eligibility (e.g., identity, age, citizen/immigration status).

Describe:

The child's identity and age are verified by one of the following documents: birth certificate, U.S. passport or alien registration card at the time of application.

☑ Work.

Describe:

Work hours are verified through current paystubs provided at the time of the application. In the event that paystubs do not reflect work hours, the applicant(s) may submit a "New Jersey Verification of Employment" form supplied by the CCR&R or a letter verifying such on the employer's letterhead.

☑ Job training or educational program.

Describe:

Job training and Education Program hours are verified through a school registration document, a schedule, or a letter from the training program. In the event that the above documentation cannot be provided, the Applicant/Co-

Applicant may submit a "New Jersey Verification of School and Training" form provided by the CCR&R.

☑ Family income.

Describe:

Family income is verified through pay stubs, employer letters, statements of benefits, court orders of support, etc.

☑ Household composition.

Describe:

Household composition is verified through a self-certification on the application; however, collateral information and documents such as birth certificates and tax records can be used to corroborate. Applicants are asked to provide birth certificates, court decrees/custody agreements, or tax records to verify the number of dependents residing in the home.

☑ Applicant residence.

Describe:

The address of an applicant is verified through one of the following: utility bills, property tax bills, mortgage documents, home owner's insurance documents, a residential lease agreements or a driver's license.

☐ Other.

Describe:

3.1.10 Which strategies, if any, will the Lead Agency use to assure the timeliness of eligibility determinations upon receipt of applications?

☑ Time limit for making eligibility determinations

Describe length of time:

CCR&Rs must screen all applications within 10 days and immediately process applications that are complete and satisfy all the eligibility criteria. The CCR&R

must process an application, make an eligibility determination, and notify the applicant of the decision within 45 days after it is received.

☑ Track and monitor the eligibility determination process

☐ Other.

Describe:

DHS/DFD conducts monitoring by program staff to evaluate and assess compliance with the eligibility determination process.
In addition to conducting quarterly and annual reviews, monthly activity and service reports are tracked and monitored by DHS/DFD staff to ensure compliance with the eligibility determination process.

☐ None

3.1.11 Informing parents who receive TANF benefits about the exception to the individual penalties associated with the TANF work requirement.

Lead Agencies are required to inform parents who receive TANF benefits about the exception to the individual penalties associated with the work requirement for any single custodial parent who has a demonstrated inability to obtain needed child care for a child younger than age 6 (98.16(v); 98.33(f)).

Lead Agencies must coordinate with TANF programs to ensure that TANF families with young children will be informed of their right not to be sanctioned if they meet the criteria set forth by the state/territory TANF agency in accordance with Section 407(e)(2) of the Social Security Act.

In fulfilling this requirement, the following criteria or definitions are applied by the TANF agency to determine whether the parent has a demonstrated inability to obtain needed child care.

Note: The TANF agency, not the CCDF Lead Agency, is responsible for establishing the following criteria or definitions. These criteria or definitions are offered in this Plan as a matter of public record.

a) Identify the TANF agency that established these criteria or definitions: DHS/DFD

b) Provide the following definitions established by the TANF agency:

"Appropriate child care":

The child care provider is open for the hours and days that the parent would need child care in order to comply with the work requirement, the provider is able and willing to provide child care services (including being able to serve a child with a disability, if that is the case) and the provider meets all other regulatory standards.

"Reasonable distance":

The child care provider is located at a site that allows the provider to get from home, to the provider and then to the work activity within 90 minutes.

"Unsuitability of informal child care":

If the following minimum requirements are not met, then an informal child care arrangement is unsuitable: (1) there must be satisfactory results of a Child Abuse Record Information (CARI), (2) there must be a negative background check on all household members 14 years of age and older, (3) there must be a satisfactory health and safety inspection of the home using the "Self-Arranged Care Inspection" and "Interview Checklists," and (4) there must be a standard interview with the provider and family members. Providers that do not meet the above criteria are cannot operate as an Approved Home.

"Affordable child care arrangements":

A child care arrangement is considered affordable for a child care subsidy program participant as long as the cost does not exceed DHS/DFD's reimbursements rate.

c) How are parents who receive TANF benefits informed about the exception to the individual penalties associated with the TANF work requirements?

- ☑ In writing
- ☑ Verbally
- ☑ Other.

Describe:

The information is provided in the Work First New Jersey parent handbook, comprehensive social assessment and communicated through the case managers.

d) Provide the citation for the TANF policy or procedure:

N.J.A.C. 10: 15-1-2 and N.J.A.C. 10:90-4.1b

3.2 Increasing Access for Vulnerable Children and Families

Lead Agencies are required to give priority for child care assistance to children with special needs, which can include vulnerable populations, in families with very low incomes and to children experiencing homelessness (658E(c)(3)(B); 98.46(a)). The prioritization of CCDF assistance services is not limited to eligibility determination (i.e., the establishment of a waiting list or the ranking of eligible families in priority order to be served).

Note:
CCDF defines "child experiencing homelessness" as a child who is homeless, as defined in Section 725 of Subtitle VII-B of the McKinney-Vento Act (42 U.S.C. 11434a) (98.2).

3.2.1 Describe how the Lead Agency defines:

a) "Children with special needs":

Currently, a "Special Needs Child" means a child who is under the age of 19 who is physically or mentally incapable of self-care; or a child who has been identified through a written eferral from a county welfare agency, legal, medical, social service agency, emergency shelter, or public school which indicates that the child has a serious physical, emotional or mental, or cognitive condition and child care services are required as part of a treatment plan designed to stabilize or ameliorate the situation. A regulatory change is pending changing that will change that designation to a "child with a disability."

b) "Families with very low incomes":

C **urrently, a family with very low income is defined as having income at or below 100% FPL. As mentioned above, children with very low income will fall into one of the priority categories**

3.2.2 Describe how the Lead Agency will prioritize or target child care services for the following children and families.

a) Identify how services are prioritized for children with special needs. Check all that apply:

- [x] Prioritize for enrollment
- [x] Serve without placing these populations on waiting lists
- [ ] Waive copayments
- [x] Pay higher rates for access to higher-quality care
- [ ] Use grants or contracts to reserve slots for priority populations
- [x] Other.

  Describe:

  Until recently this enhanced rate only applied to family child care. The special rate now also applies to licensed centers.

b) Identify how services are prioritized for families with very low incomes. Check all that apply:

- [x] Prioritize for enrollment
- [x] Serve without placing these populations on waiting lists
- [x] Waive copayments
- [ ] Pay higher rates for access to higher-quality care
- [ ] Use grants or contracts to reserve slots for priority populations
- [ ] Other.

  Describe:

c) Identify how services are prioritized for children experiencing homelessness, as

defined by the CCDF. Check all that apply:

- [x] Prioritize for enrollment
- [x] Serve without placing these populations on waiting lists
- [ ] Waive copayments
- [ ] Pay higher rates for access to higher-quality care
- [ ] Use grants or contracts to reserve slots for priority populations
- [ ] Other.

  Describe:

d) Identify how services are prioritized, if applicable, for families receiving TANF program funds, those attempting to transition off TANF through work activities, and those at risk of becoming dependent on TANF (98.16(i)(4)). Check all that apply:

- [x] Prioritize for enrollment
- [x] Serve without placing these populations on waiting lists
- [ ] Waive copayments
- [ ] Pay higher rates for access to higher-quality care
- [ ] Use grants or contracts to reserve slots for priority populations
- [ ] Other.

  Describe:

3.2.3 List and define any other priority groups established by the Lead Agency.

- Children with parents who are employed and who are enrolled in the SNAP Program;
- Children residing with adolescent parents who are head of their household, who are not on WFNJ/TANF, and who are otherwise eligible for assistance under the CCDF Subsidy;
- Children under DCP&P supervision who reside in their own home with their parent(s) who are employed full-time and not on WFNJ/TANF;
- Children in two parent families where one parent is incapacitated or there is a child with special needs and/or special circumstances.

3.2.4 Describe how the Lead Agency prioritizes services for the additional priority groups identified in 3.2.3.

Currently there is no waiting list; therefore, there is no active prioritization in progress.

3.2.5 Lead Agencies are required to expend CCDF funds to (1) permit the enrollment (after an initial eligibility determination) of children experiencing homelessness while required documentation is obtained, (2) provide training and TA to child care providers and the appropriate Lead Agency (or designated entity) staff on identifying and serving homeless children and families (addressed in section 6), and (3) conduct specific outreach to homeless families (658E(c)(3); 98.51).

a) Describe the procedures to permit the enrollment of children experiencing homelessness while required documentation is obtained.

The applicant will self-identify as homeless on the Child Care application. A family will verify homeless status by completing a CCR&R provided "Waiver for Child Care Services" form which will be provided by the CCR&R. Forms transmitted by a community organization (shelter, transitional program, etc.) that indicates an applicant's need for child care services would be acceptable as well. CCR&Rs will examine all documentation and where appropriate, provide a one-month grace period that gives families more time to gather the required documentation. Applicants who identify as homeless and are not able to provide documentation to verify work, school, or employment qualify for the one month grace period at the time of application. Applicants will be eligible for a one month extension if additional time is needed.

b) Check, where applicable, the procedures used to conduct outreach for children experiencing homelessness (as defined by CCDF Rule) and their families.

- [x] Lead Agency accepts applications at local community-based locations
- [x] Partnerships with community-based organizations
- [x] Partnering with homeless service providers, McKinney-Vento liaisons, and others who work with families experiencing homelessness to provide referrals to child care
- [x] Other

DHS/DFD has consulted with the New Jersey State Coordinator of Education for Homeless Children & Youth Program to ensure that DHS/DFD has information on the full range of child care services. DFD also posts child care information in CWAs. DHS/DFD is developing additional outreach strategies.

Note: The Lead Agency shall pay any amount owed to a child care provider for services provided as a result of the initial eligibility determination, and any CCDF payment made prior to the final eligibility determination shall not be considered an error or improper payment (98.51(a)(1)(ii)).

3.2.6 Lead Agencies must establish a grace period that allows homeless children and children in foster care to receive CCDF assistance while providing their families with a reasonable time to take any necessary actions to comply with immunization and other health and safety requirements (as described in section 5). The length of such a grace period shall be established in consultation with the state, territorial, or tribal health agency (658E(c)(2)(I)(i)(I); 98.41(a)(1)(i)(C)).

Note:
Any payment for such a child during the grace period shall not be considered an error or improper payment (98.41(a)(1)(i)(C)(2)).

a) Describe procedures to provide a grace period to comply with immunization and other health and safety requirements, including how the length of the grace period was established in consultation with the state, territorial, or tribal health agency for:

Children experiencing homelessness (as defined by Lead Agency's CCDF)

For each child not enrolled in a public or private school, upon admission, the child care center shall maintain on file at the center a Universal Child Health Record (Department of Health Form CH-14) or its equivalent, updated annually, along with an immunization record, and a special care plan, if applicable. A 30-

day grace period is permitted for children experiencing homelessness as defined by The McKinney-Vento Act, 42 U.S.C. § 11434a(2). The length of the grace period was established through DCF regulations, in alignment with DOH regulations.

Provide the citation for this policy and procedure.

N.J.A.C 3A:52-7.3; N.J.A.C 8:57-4.5(e)

Children who are in foster care.

For each child not enrolled in a public or private school, upon admission, the child care center shall maintain on file at the center a Universal Child Health Record (Department of Health Form CH-14) or its equivalent, updated annually, along with an immunization record, and a special care plan, if applicable. A 30-day grace period is permitted for children who are in foster care. The length of the grace period was established through DCF regulations, in alignment with DOH regulations.

Provide the citation for this policy and procedure.

N.J.A.C 3A:52-7.3; N.J.A.C 8:57-4.5(e)

b) Describe how the Lead Agency coordinates with licensing agencies and other relevant state, territorial, tribal, and local agencies to provide referrals and support to help families with children receiving services during a grace period comply with immunization and other health and safety requirements (98.41(a)(1)(i)(C)(4)).

The CCR&Rs work with applicants to help them obtain missing documentation, including immunization records. When necessary, CCR&Rs make referrals to Medicaid in order to facilitate medical appointments.

c) Does the Lead Agency establish grace periods for other children who are not experiencing homelessness or in foster care?

☐ No.

☑ Yes.

Describe:

For each child not enrolled in a public or private school, upon admission, the

child care center shall maintain on file at the center a Universal Child Health Record (Department of Health Form CH-14) or its equivalent, updated annually, along with an immunization record, and a special care plan, if applicable. A 30-day grace period is also permitted:

- For children coming from other states or countries;
- For children enrolled in a public or private school as long as the child care centers obtains a written statement from each child's parent;
- For children when immunizations are contraindicated for medical reasons;
- For children whose parents object to immunizations because it conflicts with the child's exercise of bona fide religious tenets or practices.

3.3 Protection for Working Families

3.3.1 12-Month eligibility.

The Lead Agency is required to establish a minimum 12-month eligibility and redetermination period, regardless of changes in income (as long as the income does not exceed the federal threshold of 85 percent of the state median income) or temporary changes in participation in work, training, or educational activities (658E(c)(2)(N)(i) and (ii)).

This change means that a Lead Agency may not terminate CCDF assistance during the 12-month period if a family has an increase in income that exceeds the state's income eligibility threshold, but not the federal threshold of 85 percent of SMI. The Lead Agency may not terminate assistance prior to the end of the 12-month period if a family experiences a temporary job loss or a temporary change in participation in a training or educational activity. A temporary change in eligible activity includes, at a minimum, any time-limited absence from work for an employed parent due to such reasons as the need to care for a family member or an illness; any interruption in work for a seasonal worker who is not working; any student holiday or break for a parent participating in a training or educational program; any reduction in work, training, or education hours, as long as the parent is still working or attending a training or educational program; any other cessation of work or attendance at a training or educational program that does not exceed 3 months or a longer period of time established by the Lead Agency; a child turning 13 years old during the 12-month eligibility period (except as described in 3.1.1); and any changes in residency within the state, territory, or tribal service area.

a) Describe the Lead Agency's policies and procedures in implementing the minimum 12-month eligibility and redetermination requirements, including when a family experiences

a temporary change in activity.

NJ provides at least 12 months of CCDF eligibility to a child before the child's next re-determination. This is regardless of changes in the family's income (as long as income does not exceed the federal threshold of 85% of State Median Income) or temporary changes in the parent's participation in work, training, or education activities.

This essentially provides for continuous eligibility for families throughout the minimum 12-month period as long as they do not exceed the federal income threshold or experience a non-temporary change in work, education or training that affects eligibility

To clarify, at initial eligibility, families that meet all eligibility requirements shall have a 12-month eligibility period, including families experiencing an approved temporary change condition or changes in the family income. At redetermination a family is also authorized for a minimum of 12 months. Families must continue to follow the basic program requirements for the continued receipt of child care assistance. While a family's period of eligibility is authorized for no less than 12 months, a family can voluntarily receive less if the family decides that there is a shorter period of service that more appropriately meets their needs. Under no circumstances, can a family's income exceed 85 % of the State Median Income (SMI) for a family of the same size and remain eligible for assistance

b) How does the Lead Agency define "temporary change?'

DFD defines a temporary change to include:

1.Any time-limited absence from work for an employed parent due to reasons such as need to care for a family member or an illness;

2.Any interruption in work for a seasonal worker who is not working between regular industry work seasons;

3.Any student holiday or break for a parent participating in training or education;

4.Any reduction in work, training or education hours, as long as the parent is still working or attending training or education; and

5.Any other cessation of work or attendance at a training or education program that does not exceed three months

The above circumstances represent temporary changes to the parents' schedule or conditions of employment, but do not constitute permanent changes to the parents' status as being employed or attending a job training or educational

program.

c) Provide the citation for this policy and/or procedure.

DFDI 17-04-02

3.3.2 Option to discontinue assistance during the 12-month eligibility period.

Lead Agencies have the option, but are not required, to discontinue assistance during the 12-month eligibility period due to a parent's non-temporary loss of work or cessation of attendance at a job training or educational program, otherwise known as a parent's eligible activity (i.e., if the parent experiences a temporary change in his or her status as working or participating in a training or educational program, as described in section 3.3.1 of the plan).

If the Lead Agency chooses the option to discontinue assistance due to a parent's non-temporary loss or cessation of eligible activity, it must continue assistance at least at the same level for a period of not fewer than 3 months after each such loss or cessation for the parent to engage in a job search and to resume work or resume attendance in a job training or educational program. At the end of the minimum 3-month period of continued assistance, if the parent has engaged in a qualifying work, training, or educational program activity with an income below 85 percent of SMI, assistance cannot be terminated, and the child must continue receiving assistance until the next scheduled redetermination or, at the Lead Agency option, for an additional minimum 12-month eligibility period.

a) Does the Lead Agency choose to discontinue assistance during the 12-month eligibility period due to a parent's non-temporary loss or cessation of eligible activity and offer a minimum 3-month period to allow parents to engage in a job search and to resume participation in an eligible activity?

- ☐ No, the state/territory does not allow this option to discontinue assistance during the 12-month eligibility period due to a parent's non-temporary loss of work or cessation of attendance at a job training or educational program.
- ☑ Yes, the Lead Agency discontinues assistance during the 12-month eligibility period due to a parent's non-temporary loss of work or cessation of eligible activity and provides a minimum 3-month period of job search. If yes:

i. Provide a summary describing the Lead Agency's policies and procedures for discontinuing assistance due to a parent's non-temporary change:

A temporary Change is defined in 3.3.1 (b). If a family experiences one of the above qualifying temporary changes during their eligibility period, the family will remain eligible to receive the subsidy for three months. If the temporary change goes beyond 3 months, it is considered a non-temporary change.

ii. Describe what specific actions/changes trigger the job-search period.

Job Search Child Care Assistance is a maximum of three months of continued assistance that allows parents to engage in job search activities or education/training enrollment.

If a Temporary Change results in a cessation of work, training or school that exceeds three months, the change will be considered permanent and will allow the applicant to apply for Job Search Child Care Assistance.

Job Search Child Care Assistance is only available to families (both applicant and co-applicant) that have been out of work, school or a training program longer than three months and have reported the need for additional child care assistance.

iii. How long is the job-search period (must be at least 3 months)?

3 months

iv. Provide the citation for this policy or procedure.

DFDI 17-04-02

b) The Lead Agency may discontinue assistance prior to the next 12-month redetermination in the following limited circumstances. Check and describe any circumstances in which the Lead Agency chooses to discontinue assistance prior to the next 12-month redetermination. Check all that apply.

☐ Not applicable.

☑ Excessive unexplained absences despite multiple attempts by the Lead Agency or designated entity to contact the family and provider, including the prior notification of a possible discontinuation of assistance.

i. Define the number of unexplained absences identified as excessive:

The amount of absences that qualify as excessive is determined on a case by

case basis.

ii. Provide the citation for this policy or procedure:

DFD Instruction 12-09-05

☑ A change in residency outside of the state, territory, or tribal service area.

Provide the citation for this policy or procedure:

DFDI 17-04-02

☑ Substantiated fraud or intentional program violations that invalidate prior determinations of eligibility.

Describe the violations that lead to discontinued assistance and provide the citation for this policy or procedure.

Substantiated instances of a program violation or a misrepresentation of information may also result in recoupment and/or termination.

DFDI 17-04-02

3.3.3 Change reporting during the 12-month eligibility period.

The Lead Agency must describe the requirements for parents to report changes in circumstances during the 12-month eligibility period and describe efforts to ensure that such requirements do not place an undue burden on eligible families, which could impact the continuity of care for children and stability for families receiving CCDF services (98.16(h)(1)).

Note: Responses should exclude reporting requirements for a graduated phase-out, which were described in question 3.1.7(b).

Families are required to report a change to the Lead Agency at any time during the 12-month eligibility period if the family's income exceeds 85 percent of the state median income, taking into account irregular fluctuations in income (98.21(e)(1)). If the Lead Agency chooses the option to terminate assistance, as described in section 3.3.2 of the plan, they may require families to report a non-temporary change (as described in section 3.3.3 of the plan) in work, training or educational activities (otherwise known as a parent's eligible activity).

a) Does the Lead Agency require families to report a non-temporary change in a parent's eligible activity?

- [ ] No
- [x] Yes

b) Any additional reporting requirements during the 12-month eligibility period must be limited to items that impact a family's eligibility (e.g., income changes over 85 percent of SMI or that impact the Lead Agency's ability to contact the family or pay the child care providers (e.g., a family's change of address, a change in the parent's choice of child care provider).

Check and describe any additional reporting requirements required by the Lead Agency during the 12-month eligibility period. Check all that apply.

- [x] Additional changes that may impact a family's eligibility during the 12-month period.

  Describe:

  The Lead Agency may discontinue assistance prior to the next re-determination in limited circumstances where there have been:

  1.Excessive unexplained absences despite multiple attempts by the Lead Agency or designated entity to contact the family and child care provider, including prior notification of possible discontinuation of assistance;

  2.A change in residency outside of the state, territory, or tribal service area; or

  3.Substantiated fraud or intentional program violations that invalidate prior determinations of eligibility.

  4. Income changes over 85 percent of SMI

- [x] Changes that impact the Lead Agency's ability to contact the family.

  Describe:

  The Lead Agency may discontinue assistance prior to the next re-determination in limited circumstances where there have been a change in residency outside of the state, territory, or tribal service area; or

- [x] Changes that impact the Lead Agency's ability to pay child care providers.

Describe:

Any additional reporting requirements that the Lead Agency chooses, as its option to require from parents during the 12-month eligibility period, shall not require an office visit. In addition, the Lead Agency must offer a range of notification options to accommodate families.

Any additional reporting requirements that the Lead Agency chooses, as its option to require from parents during the 12-month eligibility period, shall not require an office visit. In addition, the Lead Agency must offer a range of notification options to accommodate families.

c) How does the Lead Agency allow for families to report changes to ensure that reporting requirements are not burdensome and to avoid an impact on continued eligibility between redeterminations? Check all that apply.

- [x] Phone
- [x] Email
- [ ] Online forms
- [ ] Extended submission hours
- [x] Postal Mail
- [x] FAX
- [x] In-person submission
- [ ] Other.

Describe:

d) Families must have the option to voluntarily report changes on an ongoing basis during the 12-month eligibility period. Lead Agencies are required to act on information reported by the family if it will reduce the family's co-payment or increase the family's subsidy. Lead Agencies are prohibited from acting on information reported by the family that would reduce the family's subsidy unless the information reported indicates that the family's income exceeds 85 percent of SMI after considering irregular fluctuations in income or, at the option of the Lead Agency, the family has experienced a non-temporary change in eligible activity.

i. Describe any other changes that the Lead Agency allows families to report.

Families are allowed to report changes in family circumstances such as medical leave or cessation of employment, training or school at any time during the 12-month eligibility period.

However, if the family would like to have their copay reassessed due to a Temporary Change, the family must notify the State and include supporting documentation within ten (10) business days of the change.

A family shall report a change during their 12-month eligibility period if there is a copay adjustment needed due to the loss of a job, reduced income, or if the family income exceeds 85 % of the SMI.

ii. Provide the citation for this policy or procedure.

DFDI 17-04-02

3.3.4 Prevent the disruption of employment, education, or job training activities

Lead Agencies are required to have procedures and policies in place to ensure that parents (especially parents receiving assistance under the TANF program) are not required to unduly disrupt their employment, education, or job training activities to comply with the Lead Agency's or designated local entity's requirements for the redetermination of eligibility for assistance (658E(c)(2)(N)(ii); 98.21(d)).

Examples include developing strategies to inform families and their providers of an upcoming redetermination and the information that will be required of the family, pre-populating subsidy renewal forms, having parents confirm that the information is accurate, and/or asking only for the information necessary to make an eligibility redetermination. In addition, states and territories can offer a variety of family-friendly methods for submitting documentation for eligibility redetermination that considers the range of needs for families in accessing support (e.g. use of languages other than English, access to transportation, accommodation of parents working non-traditional hours, etc.).

a) Identify, where applicable, the Lead Agency's procedures and policies to ensure that parents (especially parents receiving TANF program funds) do not have their employment, education, or job training unduly disrupted to comply with the state/territory's or designated local entity's requirements for the redetermination of eligibility.

- [x] Advance notice to parents of pending redetermination
- [x] Advance notice to providers of pending redetermination
- [x] Pre-populated subsidy renewal form
- [ ] Online documentation submission
- [ ] Cross-program redeterminations
- [x] Extended office hours (evenings and/or weekends)
- [x] Other.

Describe:

An applicant has the ability to submit copies of eligibility documents, such as pay stubs and utility bills, by email, at initial application and at redetermination. Families can also make appointments for telephone or in person meetings or they can walk in at their convenience. In addition, DFD has created a user-friendly application, including a document checklist to help inform applicants of what documents to submit, so that there are no errors in the first application.

DFD Instruction 15-08-01

b) How are families allowed to submit documentation, described in 3.1.9, for redetermination? Check all that apply.

- [x] Postal Mail
- [x] Email
- [x] Online forms
- [x] FAX
- [x] In-person submission
- [ ] Extended submission hours
- [ ] Other.

Describe:

3.4 Family Contribution to Payments

Lead Agencies are required to establish and periodically revise a sliding-fee scale for CCDF families that varies based on income and the size of the family to determine each family's contribution (i.e., co-payment) that is not a barrier to families receiving CCDF funds (658E(c)(5)). In addition to income and the size of the family, the Lead Agency may use other factors when determining family contributions/co-payments. Lead Agencies, however, may NOT use cost of care or amount of subsidy payment in determining copayments (98.45(k)(2)).

Note: To help families transition off of child care assistance, Lead Agencies may gradually adjust co-pay amounts for families determined to be eligible under a graduated phase-out. However, section 3.4 applies only to families in their initial/entry eligibility period. See section 3.1.7 Graduated Phase-Out regarding co-pays during the graduated phase-out period.

3.4.1 Provide the CCDF co-payments in the chart below according to family size for one child in care.

a) Fill in the chart based on the most populous area of the State (area serving highest number of CCDF children).

	(a)	(b)	(c)	(d)	(e)	(f)
Family Size	**Lowest Initial or First Tier Income Level Where Family Is First Charged Co-Pay (Greater Than $0)**	**What Is the Monthly Co-Payment for a Family of This Size Based on the Income Level in (a)?**	**The Co-Payment in Column (b) is What Percentage of the Income in Column (a)?**	**Highest Initial or First Tier Income Level Before a Family Is No Longer Eligible**	**What Is the Monthly Co-Payment for a Family of This Size Based on the Income Level in (d)?**	**The Co-Payment in Column (e) is What Percentage of the Income in Column (d)?**
1	$12,141.00	$76.51	0.63%	$24,280.00	$163.50	0.67%
2	$16,461.00	$133.89	0.81%	$32,920.00	$286.13	0.87%
3	$20,780.00	$133.89	0.64%	$41,560.00	$286.13	0.69%

	(a)	(b)	(c)	(d)	(e)	(f)
4	$25,101.00	$133.89	0.53%	$50,200.00	$286.13	0.57%
5	$29,241.00	$133.89	0.46%	$58,840.00	$286.13	0.49%

b) What is the effective date of the sliding-fee scale(s)? March 1, 2018

c) Identify the most populous area of the state used to complete the chart above.

The sliding-fee scale is statewide.

d) Provide the link to the sliding-fee scale: www.ChildCareNJ.gov/Resources/Reports

e) If the sliding-fee scale is not statewide, describe how many jurisdictions set their own sliding-fee scale (98.16(i)(3)).

The sliding-fee scale is statewide. http://www.childcarenj.gov/Parents/SubsidyProgram

The sliding fee scale is labeled "FY2017 Child Care Co-Pay Schedule" and can be found on the bottom right hand side of the page (it is available for viewing and download).

3.4.2 How will the family's contribution be calculated, and to whom will it be applied? Check all that apply.

- [x] The fee is a dollar amount and:
  - [x] The fee is per child, with the same fee for each child.
  - [x] The fee is per child and is discounted for two or more children.
  - [ ] The fee is per child up to a maximum per family.
  - [x] No additional fee is charged after certain number of children.
  - [x] The fee is per family.
  - [ ] The contribution schedule varies because it is set locally/regionally (as indicated in 1.2.1).

    Describe:

  - [ ] Other.

    Describe:

- [x] The fee is a percent of income and:
  - [ ] The fee is per child, with the same percentage applied for each child.
  - [x] The fee is per child, and a discounted percentage is applied for two or more children.
  - [x] The fee is per child up to a maximum per family.
  - [x] No additional percentage is charged after certain number of children.
  - [x] The fee is per family.
  - [ ] The contribution schedule varies because it is set locally/regionally (as indicated in 1.2.1).

    Describe:

  - [ ] Other.

    Describe:

3.4.3 Does the Lead Agency use other factors in addition to income and family size to determine each family's co-payment (658E(c)(3)(B))? Reminder ' Lead Agencies may NOT use cost of care or amount of subsidy payment in determining copayments (98.45(k)(2)).

- [ ] No.
- [x] Yes, check and describe those additional factors below.
  - [x] Number of hours the child is in care.

    Describe:

    The amount of copayment that the family pays differs when the child is in full-time care versus part time care.

  - [ ] Lower co-payments for a higher quality of care, as defined by the state/territory.

    Describe:

  - [ ] Other.

Describe:

3.4.4 The Lead Agency may waive contributions/co-payments from families whose incomes are at or below the poverty level for a family of the same size (98.45(k)) or for families who are receiving or needing to receive protective services, as determined for purposes of CCDF eligibility, or who meet other criteria established by the Lead Agency (98.45(k)(4)). Does the Lead Agency waive family contributions/co-payments for any of the following? Check all that apply.

- ☐ No, the Lead Agency does not waive family contributions/co-payments.
- ☑ Yes, the Lead Agency waives family contributions/co-payments for families with an income at or below the poverty level for families of the same size.
- ☑ Yes, the Lead Agency waives family contributions/co-payments for families who are receiving or needing to receive protective services, as determined by the Lead Agency for purposes of CCDF eligibility.

Describe the policy and provide the policy citation.

Children who are under DCP&P supervision are eligible to receive subsidized assistance or services whenever child care is required as part of a case treatment plan. If family income exceeds the income eligibility level, services may be provided without regard to income and the co-payment is assessed based upon the highest amount indicated in the appropriate child care co-payment scale for the size of the family. For children who are in paid foster placement, the co-payment is assessed based on the income of the child. Since in most cases, the child has no income, the assessed child care co-payment is almost always $0. For children under the supervision of DCP&P who are residing with a related caregiver, para-foster care provider or in their own home with their parents, the co-payment is assessed on the basis of family size and income. If it has been determined that payment of the full co-payment amount will cause undue hardship to the family or place the child, the siblings or the protective service case plan in jeopardy, the DCP&P Case Manager may reduce or waive the co-payment on a case-by-case basis. (DFDI 16-07-02). This rule is based on administrative regulations at NJAC 10:15-9.1(f) which can be assessed online at https://www.state.nj.us/humanservices/providers/rulefees/regs/ The Rule Name is entitled "10:15 Child Care Services" on the list provided.

☐ Yes, the Lead Agency waives family contributions/co-payments for other criteria established by the Lead Agency.

Describe the policy and provide the policy citation.

4 Ensure Equal Access to Child Care for Low-Income Children

A core purpose of CCDF is to promote parental choice and to empower working parents to make their own decisions regarding the child care services that best suit their family's needs. Parents have the option to choose from center-based care, family child care or care provided in the child's own home In supporting parental choice, the Lead Agencies must ensure that families receiving CCDF funding have the opportunity to choose from the full range of eligible child care settings and must provide families with equal access to child care that is comparable to that of non-CCDF families. Lead Agencies must employ strategies to increase the supply and to improve the quality of child care services, especially in underserved areas. This section addresses strategies that the Lead Agency uses to promote parental choice, ensure equal access, and increase the supply of child care. Note: In responding to questions in this section, the Office of Child Care (OCC) recognizes that each State/Territory identifies and defines its own categories and types of care. The OCC does not expect States/Territories to change their definitions to fit the CCDF-defined categories and types of care. For these questions, provide responses that closely match the CCDF categories of care.

4.1 Parental Choice in Relation to Certificates, Grants, or Contracts

The parent(s) of each eligible child who receive(s) or is offered financial assistance for child care services has the option of either receiving a child care certificate or, if available, enrolling his or her child with a provider that has a grant or contract for providing child care services (658E(c)(2)(A); 98.30(a)). Even if a parent chooses to enroll his or her child with a provider who has a grant or contract, the parent will select the provider, to the extent practicable. If a parent chooses to use a certificate, the Lead Agency shall provide information to the parent on the range of provider options, including care by sectarian providers and relatives. Lead Agencies must require providers chosen by families to meet health and safety standards and has the option to require higher standards of quality. Lead agencies are reminded that any policies and procedures should not restrict parental access to any type of care or provider (e.g. center care,

home care, in-home care, for-profit provider, non-profit provider or faith-based provider, etc.) (98.15 (a)(5)).

4.1.1 Describe the child care certificate, including when it is issued to parents (before or after the parent has selected a provider) and what information is included on the certificate (98.16 (q)).

The parent is given the information about available child care and then the parent makes a choice. Once the choice is made, the parent will receive a copy of the PAPA Preliminary Parent/Applicant/ Provider Agreement that contains the provider's information. The PAPA must be signed by both the parent and the provider. The PAPA is the document that displays charges, hours of care, co-pay, etc.

The information is provided during the application, intake, or redetermination process, or when the CCR&Rs are providing consumer education.

4.1.2 Describe how the parent is informed that the child certificate allows the option to choose from a variety of child care categories, such as private, not-for-profit, faith-based providers; centers; FCC homes; or in-home providers (658E(c)(2)(A)(i); 658P(2); 658Q). Check all that apply.

- [x] Certificate that provides information about the choice of providers
- [x] Certificate that provides information about the quality of providers
- [x] Certificate not linked to a specific provider, so parents can choose any provider
- [x] Consumer education materials on choosing child care
- [x] Referral to child care resource and referral agencies
- [x] Co-located resource and referral in eligibility offices
- [x] Verbal communication at the time of the application
- [x] Community outreach, workshops, or other in-person activities
- [ ] Other.

Describe:

4.1.3 Child care services available through grants or contracts.

a) In addition to offering certificates, does the Lead Agency provide child care services through grants or contracts for child care slots (658A(b)(1))? Note: Do not check 'yes' if every provider is simply required to sign an agreement to be paid in the certificate program.

☐ No. If no, skip to 4.1.4.

☐ Yes, in some jurisdictions but not statewide.

If yes, describe how many jurisdictions use grants or contracts for child care slots.

☑ Yes, statewide. If yes, describe:

i. How the Lead Agency ensures that parents who enroll with a provider who has a grant or contract have choices when selecting a provider:

All 21 counties in New Jersey have a designated amount of the child care slots for certain child care programs. In areas where there are contracted services there are a variety of providers in the geographic area.

ii. The type(s) of child care services available through grants or contracts:

Contracted providers provide the same services that is offered by all other service providers.

iii. The entities that receive contracts (e.g., shared services alliances, CCR&R agencies, FCC networks, community-based agencies, child care providers):

CCR&R Agencies and Child Care Providers

iv. The process for accessing grants or contracts:

The contracted slots are granted through the Request For Applications process.

v. How rates for contracted slots are set through grants and contracts:

The rates for contracted slots match the rates paid to all other providers

vi. How the Lead Agency determines which entities to contract with for increasing supply and/or improving quality:

Contracts are established on a fist come first serve rolling basis. Providers must meet all applicable licensing, health and safety and other standards.

vii. If contracts are offered statewide and/or locally:

Contracts are offered statewide.

4.1.3 Child care services available through grants or contracts.

b) Will the Lead Agency use grants or contracts for child care services to increase the supply and/or quality of specific types of care? Check all that apply.

- [x] Programs to serve children with disabilities
- [x] Programs to serve infants and toddlers
- [x] Programs to serve school-age children
- [x] Programs to serve children needing non-traditional hour care
- [x] Programs to serve children experiencing homelessness
- [x] Programs to serve children in underserved areas
- [x] Programs that serve children with diverse linguistic or cultural backgrounds
- [x] Programs that serve specific geographic areas
  - [x] Urban
  - [x] Rural
- [ ] Other

Describe

4.1.3 Child care services available through grants or contracts.

c) Will the Lead Agency use grants or contracts for child care services to increase the quality of specific types of care? Check all that apply.

- [x] Programs to serve children with disabilities
- [x] Programs to serve infants and toddlers
- [ ] Programs to serve school-age children
- [ ] Programs to serve children needing non-traditional hour care
- [ ] Programs to serve homeless children
- [ ] Programs to serve children in underserved areas
- [ ] Programs that serve children with diverse linguistic or cultural backgrounds
- [ ] Programs that serve specific geographic areas
  - [ ] Urban
  - [ ] Rural
- [ ] Other

Describe

4.1.4 Certify by describing the Lead Agency's procedures for ensuring that parents have unlimited access to their children whenever their children are in the care of a provider who receives CCDF funds (658E(c)(2)(B); 98.16(t)).

According to 3A:52-6.8(b)&(c), centers shall allow parent(s) of enrolled children to visit the center at any time during the center's hours of operation to observe its operation and program activities without requiring the parent(s) to secure prior approval.

According to 3A:54-6.21 (e), the provider in a home setting shall permit the parents of enrolled children to visit the home at any time when enrolled children are present. Parents may be restricted to visit only those areas of the home designated for family child care.

4.1.5 The Lead Agency must allow for in-home care (i.e., care provided in the child's own home) but may limit its use (98.16(i)(2)). Will the Lead Agency limit the use of in-home care in any way?

☐ No.

☑ Yes. If checked, what limits will the Lead Agency set on the use of in-home care? Check all that apply.

☑ Restricted based on minimum the number of children in the care of the provider to meet the Fair Labor Standards Act (minimum wage) requirements.

Describe:

In home providers may receive payment for a maximum of 8 children which may include:

- Five sibling children of one family
- Two non-sibling children from different households
- Three children that are the children of the provider

☑ Restricted based on the provider meeting a minimum age requirement. (A relative provider must be at least 18 years of age based on the definition of eligible child care provider (98.2).

Describe:

Approved Home Providers must be 18 years of age or older. The age of the provider is verified by the CCR&R.

☑ Restricted based on the hours of care (i.e., certain number of hours, non-traditional work hours).

Describe:

In-home providers must provide care for less than twentyfour (24) hours per day.

☐ Restricted to care by relatives.

Describe:

☐ Restricted to care for children with special needs or a medical condition.

Describe:

☐ Restricted to in-home providers that meet additional health and safety requirements beyond those required by CCDF.

Describe:

☐ Other.

Describe:

4.2 Assessing Market Rates and Child Care Costs

Lead Agencies have the option to conduct a statistically valid and reliable (1) market rate survey (MRS) reflecting variations in the price to parents of child care services by geographic area, type of provider, and age of child and/or (2) an alternative methodology, such as a cost estimation model (658E(c)(4)(B)). A cost estimation model estimates the cost of care by incorporating both data and assumptions to model what expected costs would be incurred by child care providers and parents under different cost scenarios. Another approach would be a cost study that collects cost data at the facility or program level to measure the costs (or inputs used) to deliver child care services. The MRS or alternative methodology must be developed and conducted no earlier than 2 years before the date of submission of the Plan.

Note - Any Lead Agency considering using an alternative methodology, instead of a market rate survey, is required to submit a description of its proposed approach to its ACF Regional Child Care Program Office for pre-approval in advance of the Plan submittal (see https://www.acf.hhs.gov/occ/resource/ccdf-acf-pi-2016-08). Advance approval is not required if the Lead Agency plans to implement both a market rate survey and an alternative methodology. In its request for ACF pre-approval, a Lead Agency must:

- Provide an overview of the Lead Agency's proposed approach (e.g., cost estimation model, cost study/survey, etc.), including a description of data sources.

- Describe how the Lead Agency will consult with the State's Early Childhood Advisory Council or similar coordinating body, local child care program administrators, local child care resource and referral agencies, organizations representing child care caregivers, teachers and directors, and other appropriate entities prior to conducting the identified alternative methodology.

- Describe how the alternative methodology will use methods that are statistically valid and reliable and will yield accurate results. For example, if using a survey, describe how the Lead Agency will ensure a representative sample and promote an adequate response rate. If using a cost estimation model, describe how the Lead Agency will validate the assumptions in the model.

- If the proposed alternative methodology includes an analysis of costs (e.g., cost estimation model or cost study/survey), describe how the alternative methodology will account for key factors that impact the cost of providing care'such as: staff salaries and benefits, training and professional development, curricula and supplies, group size and ratios, enrollment levels, licensing requirements, quality level, facility size, and other factors.

- Describe how the alternative methodology will provide complete information that captures the universe of providers in the child care market.

- Describe how the alternative methodology will reflect variations by provider type, age of children, geographic location and quality.

- Describe how the alternative methodology will use current, up to date data.

- Describe the estimated reporting burden and cost to conduct the approach.

4.2.1 Please identify the methodology(ies) used below to assess child care prices and/or costs.

- [x] MRS
- [ ] Alternative methodology.
  Describe:

- [ ] Both.
  Describe:

4.2.2 Prior to developing and conducting the MRS or alternative methodology, the Lead Agency is required to consult with the (1) State Advisory Council or similar coordinating body, local child care program administrators, local child care resource and referral

agencies, and other appropriate entities and (2) organizations representing caregivers, teachers, and directors (98.45 (e)).

Describe how the Lead Agency consulted with the:

a) State Advisory Council or similar coordinating body:

DHS/DFD consulted with leadership from various County Councils For Young Children. Additionally, a member of DFD senior management is on the New Jersey Council for Young Children. Consultation regarding the MRS occurred during scheduled meetings.

b) Local child care program administrators:

Representatives across the various early care and education systems and key partners, including child care providers, local child care administrators and the CCR&Rs provided input and feedback on the scope of work for the MRS and assisted with the outreach efforts to engage providers to complete the survey.

c) Local child care resource and referral agencies:

Representatives across the various early care and education systems and key partners, including child care providers, local child care administrators and the CCR&Rs provided input and feedback on the scope of work for the MRS and assisted with the outreach efforts to engage providers to complete the survey.

d) Organizations representing caregivers, teachers, and directors:

N/A

e) Other. Describe:

A Memorandum of Understanding (MOU) was entered into between Rutgers School of Social Work Research Department, the DHS Office of Research and Evaluation and DFD for Rutgers to develop a strategic plan to capture the required data for the MRS.

During the design phase, an extensive review of seven other states' instruments were reviewed which provided best practices of critical program characteristics and quality elements to include in the instrument. In addition, the instrument was

pre tested, randomly selecting licensed centers.

4.2.3 Describe how the market rate survey is statistically valid and reliable. To be considered valid and reliable, the MRS must represent the child care market, provide complete and current data, use rigorous data collection procedures, reflect geographic variations, and analyze data in a manner that captures other relevant differences. For example, market rate surveys can use administrative data, such as child care resource and referral data, if they are representative of the market. If an alternative methodology, such as cost modeling, is used, demonstrate that the methodology used reliable methods.

The NJ MRS targeted all child care providers in the State. This included provider data from the CCR&R NACCRR-Aware database system and Office of Licensing's database. It used three different survey collection methods—mail, online and telephone to maximize provider responses and participation. The survey collected market prices reported by child care providers and did not use any conversion method to estimate prices. This was done to avoid using prices that may not actually exist in the market. The survey also collected data so that variations in market prices could be analyzed by provider type (center and family providers), age of the children (infant, toddler, preschool and schoolage), price mode (daily, weekly, and monthly rates), geographic location (county, and zip code), and child care quality indicators.

The universe of this provider data study came from the list of a total of 3,910 child care centers licensed by the Office of Licensing across New Jersey in 2017. Approximately 92.35% (3,611 centers) was contacted for the Qualtrics survey for this study. Of those, 2,132 centers (approximately 60% of 3,611 centers) participated in the survey. Two hundred fourteen centers were deemed ineligible for this study and removed from the analysis as they were public free and/or Head Start programs that did not charge child care service fees. This left 1,918 licensed child care centers (53% of 3,611 centers) eligible for the analytic sample of this study.

Of the 1,918 centers, approximately 94% (1,804 centers) completed the survey, and close to 76% (1,370 centers) provided at least one price data in the survey.

In the data analysis steps, a variety of approaches were taken to further ensure the

validity and reliability of child care market prices. In addition, the representative 50th and 75th percentile market prices were analyzed weighing the price distributions with the number of maximum slots to capture families' real experiences when paying for child care services

4.2.4 Describe how the market rate survey or alternative methodology reflects variations in the price or cost of child care services by:

a) Geographic area (e.g., statewide or local markets). Describe:

Price variations by geographic location were analyzed by grouping zip code areas with similar representative price data for infants, toddlers and preschoolers.

b) Type of provider. Describe:

Price clusters were mapped separately by provider type to allow a visual examination of all price variations possible by zip code and county boundaries. Additionally, price variations by quality indicators were analyzed by using three domains of program characteristics: accreditation status, educational qualifications of teachers, and curricular and program quality. Prices were also analyzed for extended care, discounts, and special fees.

c) Age of child. Describe:

Researchers conducted distinct weighted analyses for infants, toddlers, and preschoolers.

d) Describe any other key variations examined by the market rate survey or alternative methodology, such as quality level.

The MRS also explored price variations by child care quality indicators.

4.2.5 After conducting the market rate survey or alternative methodology, the Lead Agency must prepare a detailed report containing the results of the MRS or alternative methodology. The detailed report must also include the estimated cost of care (including any relevant variation by geographic location, category of provider, or age of child) necessary to support (1) child care providers' implementation of the health, safety, quality, and staffing requirements and (2) higher quality care, as defined by the Lead Agency using a quality rating and improvement system or other system of quality indicators, at each level of quality. For States without a QRIS, the States may use other quality indicators (e.g. provider status related to accreditation, pre-K standards, Head Start performance standards, or State defined quality measures.)

Describe how the Lead Agency made the results of the market rate survey or alternative methodology report widely available to the public (98.45(f)(1)). by responding to the questions below.

a) Date of completion of the market rate survey or alternative methodology (must be no earlier than July 1, 2016, and no later than July 1, 2018). 07/01/18

b) Date the report containing results was made widely available - no later than 30 days after the completion of the report. 09/19/2018

c) Describe how the Lead Agency made the detailed report containing results widely available and provide the link where the report is posted.

The report containing the results of the Market Rate Survey will be posted to DFD's Child Care website at **www.ChildCareNJ.gov/Resources/Reports** .

d) Describe how the Lead Agency considered stakeholder views and comments in the detailed report.

The vendor frequently interacted with the DHS/DFD, the CCR&Rs, and DCF-OOL in preparing this report. These interactions mostly involved collecting data but also involved strategies to approach the market.

4.3 Setting Payment Rates

The Lead Agency must set CCDF subsidy payment rates, in accordance with the results of the current MRS or alternative methodology, at a level to ensure equal access for eligible families to child care services that are comparable with those provided to families not receiving CCDF funds. The Lead Agency must re-evaluate its payment rates at least every 3 years.

4.3.1 Provide the base payment rates and percentiles (based on the most recent MRS) for the following categories below. Percentiles are not required if the Lead Agency conducted an alternative methodology only (with pre-approval from ACF), but must be reported if the Lead Agency conducted an MRS alone or in combination with an alternative methodology. The ages and types of care listed below are meant to provide a snapshot of the categories on which rates can be based and are not intended to be comprehensive of all categories that might exist or to reflect the terms used by the Lead Agency for particular ages. Please use the most populous geographic region (area serving highest number of CCDF children) to report base payment rates below, if they are not statewide. Note: If the Lead Agency obtained approval to conduct an alternative methodology, then reporting of percentiles is not required.

a) Infant (6 months), full-time licensed center care in the most populous geographic region
Rate $ $723.98 per month unit of time (e.g., daily, weekly, monthly)

Percentile of most recent MRS: N/A

b) Infant (6 months), full-time licensed FCC home in the most populous geographic region
Rate $ $670.28 per month unit of time (e.g., daily, weekly, monthly)

Percentile of most recent MRS: N/A

c) Toddler (18 months), full-time licensed center care in the most populous geographic region
Rate $ $717.04 per month unit of time (e.g., daily, weekly, monthly)

Percentile of most recent MRS: N/A

d) Toddler (18 months), full-time licensed FCC care in the most populous geographic region
Rate $ $670.28 per month unit of time (e.g., daily, weekly, monthly)

Percentile of most recent MRS: N/A

e) Preschooler (4 years), full-time licensed center care in the most populous geographic region
Rate $ $585.42 per month unit of time (e.g., daily, weekly, monthly)

Percentile of most recent MRS: N/A

f) Preschooler (4 years), full-time licensed FCC care in the most populous geographic region
Rate $ $526.52 per month unit of time (e.g., daily, weekly, monthly)

Percentile of most recent MRS: N/A

g) School-age child (6 years), full-time licensed center care in most populous geographic region
Rate $ $579.36 per month unit of time (e.g., daily, weekly, monthly, etc.)

Percentile of most recent MRS: N/A

h) School-age child (6 years), full-time licensed FCC care in the most populous geographic region
Rate $ $526.52 per month unit of time (e.g., daily, weekly, monthly)

Percentile of most recent MRS: N/A

i) Describe how part-time and full-time care were defined and calculated.

Non-TANF programs utilize 'Full-Time Care' and 'Part-Time Care' rates. 'Full Time Care' is 6 hours per day or more, for a minimum of 5 days a week or 30 hours per week for a minimum of three days. 'Part Time Care' is less than 6 hours per day.

Proportionate to the full-time and part-time rates listed in the child care rate chart, maximum amounts paid through the Work First New Jersey (TANF) program and Transitional Child Care program allow payments for as little as 4 hours or even one hour per day.

j) Provide the effective date of the current payment rates (i.e., date of last update based on most recent MRS). 05/07/2018

k) Identify the most populous area of the state used to complete the responses above.

Base payment rates are statewide.

l) Provide the citation or link, if available, to the payment rates.

www.ChildCareNJ.gov/Resources/Reports

m) If the payment rates are not set by the Lead Agency for the entire state/territory, describe how many jurisdictions set their own payment rates (98.16(i)(3)).

N/A

4.3.2 Lead Agencies can choose to establish tiered rates, differential rates, or add-ons on top of their base rates as a way to increase payment rates for targeted needs (i.e., a higher rate for special needs children as both an incentive for providers to serve children with special needs and as a way to cover the higher costs to the provider to provide care for special needs children).

Check and describe the types of tiered reimbursement or differential rates, if any, the Lead Agency has chosen to implement. In the description of any tiered rates or add-ons, at a minimum, indicate the process and basis used for determining the tiered rates, including if the rates were based on the MRS and/or an alternative methodology, and the amount of the rate. Check all that apply.

☐ Differential rate for *non-traditional hours*.

Describe:

☑ Differential rate for *children with special needs*, as defined by the state/territory.

Describe:

The following programs qualify for New Jersey's higher tier of reimbursement (approximately 18% above the base rate) for serving children with special needs:

- Registered Family Child Care homes

- Accredited Family Child Care Homes
- Approved Homes

☑ Differential rate for *infants and toddlers*. Note: Do not check if the Lead Agency has a different base rate for infants/toddlers with no separate bonus or add-on.

Describe:

Payment rates for center-based programs that serve infants/toddlers currently receive a higher tier of reimbursement than preschool and school-age programs. $1.2 million has been made available to create a $100-per-infant-per-month incentive for new infant care slots - available for 12 months on top of the base rate and any Grow NJ Kids incentive payment increases - to provide a further incentive for child care centers to expand infant care.

☐ Differential rate for *school-age programs*. Note: Do not check if the Lead Agency has a different base rate for school-age children with no separate bonus or add-on.

Describe:

☑ Differential rate for higher quality, as defined by the state/territory.

Describe:

Tiered payments range from 4 percent (4%) to 24 percent (24%) above the base rate, depending upon the age of the child, the type of care, and the quality rating of the program. The Grow NJ Kids tiered reimbursement based on quality is currently limited to infants, toddlers, and preschool age center-based settings that have voluntarily enrolled in the program. This year marks the initial year of the Grow NJ Kids tiered reimbursement. Participation is expected to increase in the years ahead.

The following programs receive a 5 percent (5%) differential above the base rate for school age childen and home based care.

- Registered Family Child Care providers accredited by the National Association for Family Child Care;
- School age child care programs accredited by the National School Age Child Care Alliance;

Summer camps accredited by the American Camping Association receive

☐ Other differential rates or tiered rates.

Describe:

☐ Tiered or differential rates are not implemented.

4.4 Summary of Facts Used To Determine That Payment Rates Are Sufficient To Ensure Equal Access

4.4.1 Lead Agencies must certify that CCDF payment rates are sufficient to ensure equal access for eligible families to child care services comparable to those provided by families not receiving CCDF assistance (98.16(a)). Certify that payment rates reported in 4.3.1 are sufficient to ensure equal access by providing the following summary of facts (98.45(b)):

a) Describe how a choice of the full range of providers eligible to receive CCDF is made available; the extent to which eligible child care providers participate in the CCDF system; and any barriers to participation, including barriers related to payment rates and practices.

Parents have the opportunity to choose from a full range of providers including non for profit and for profit licensed centers, accredited programs, public and private schools, state contracted pre k programs, Family Child Care and Approved Homes.

b) Describe how payment rates are adequate and have been established based on the **most recent MRS or alternative methodology** . Note: Per the preamble (81 FR 67512), in instances where a MRS or alternative methodology indicates that prices or costs have increased, Lead Agencies must raise their rates as a result.

MRS provided valuable information to help inform the State of market prices and price variations throughout the State and within the same county. Data from the MRS helped guide efforts to begin restructuring the infant and toddler grouping and changing the subsidy reimbursement rates.

To begin aligning rates closer to recommended benchmark market prices, DHS/DFD employed multiple strategies. First, infants and toddlers were changed from the same infant/toddler rate into their own independent age-group rate structure, such as an infant

rate and toddler rate.
In January 2018, there were a cross the board rate increase for center-based programs, with the highest percentage going towards infant care, followed by an additionally rate increase in May 2018, exclusively for infant care, and taking into consideration the cost of providing higher quality care. The base rate increases, especially for infant care, have been increased by 22%, and approximately 29% for high-quality programs rated in Grow NJ Kids for licensed centers.
With the addition of approximately $38 million dollars in one-time CCDF funding, DHS/DFD is looking to further increase the subsidy rates, to ensure adequate payment rates. To that end, DHS/DFD is currently working to implement another rate increase in January 2019, which will also include a special care rate for special needs children in licensed centers.

c) Describe how base payment rates enable providers to meet health, safety, quality, and staffing requirements under CCDF.
Along with rate increases in January and May 2018, DHS/DFD also offered per-service training at no cost to providers. DHS/DFD offered CPR and First Aid Training certification through the Child Care Resource and Referral Agencies at a subsidized rate to minimize the cost. These efforts helped providers to meet health and safety trainings requirements. Lastly, with the additional CCDF funds, grants will become available to help providers off-set the cost to pay for teachers time-away or substitutes, which will also enable provides to meet the training requirements.

d) Describe how the Lead Agency took the cost of higher quality into account, including how payment rates for higher-quality care, as defined by the Lead Agency using a QRIS or other system of quality indicators, relate to the estimated cost of care at each level of quality. Note: For States without a QRIS, the States may use other quality indicators (e.g. provider status related to accreditation, Pre-K standards, Head Start performance standards, or State defined quality measures).
NJ's QRIS System (Grow NJ Kids) provides a standardized way to determine a provider's quality and sets them on a path to improve. The federal Administration for Children and Families identifies QRIS as having five components: clear standards, accompanying financial incentives, monitoring practices, support for program participants and consumer education.

Having a QRIS with these 5 components are designed to raise the quality of child care and early childhood education by providing support and resources to programs and technical assistance, professional development training and opportunity to the workforce.

Administrative data for Grow NJ Kids was examined in conjunction with this Market Price Study analysis. Visual data from the Market Price study illustrated variations in the 75th percentile monthly prices by Grow NJ Kids participation status which informed DFD of how to take the cost of higher quality into account when setting the tiered reimbursement rates for quality.

e) How will the Lead Agency ensure that the family contribution/co-payment, based on a sliding-fee scale, is affordable and is not a barrier to families receiving CCDF funds (98.16 (k))? Check all that apply.

☑ Limit the maximum co-payment per family.

Describe: .

If more than two children in a family are receiving child care services, the full-time (100%), co-pay is assessed for the first child, while the co-pay for a sibling is assessed at 75% of the full time fee for the second child, and no-copayment required for the third and subsequent children in the family.

☑ Limit the combined amount of co-payment for all children to a percentage of family income. List the percentage of the co-payment limit and

The amount of the required co-payment is based on a family's gross income, family size, hours of care needed, and the number of children in care. The copayment rates are around 4 percent of the family income.

☑ Minimize the abrupt termination of assistance before a family can afford the full cost of care ('the cliff effect') as part of the graduated phase-out of assistance discussed in 3.1.7.

For the Graduated Phase-Out Period of Assistance, the co-pay assessed must be based on income calculated at the time of re-determination.

☐ Other.

Describe:

f) To support parental choice and equal access to the full range of child care options, does the Lead Agency choose the option to allow providers to charge families additional amounts above the required co-payment in instances where the provider's price exceeds the subsidy payment (98.45(b)(5))?

☐ No

☑ Yes. If yes:

i. Provide the rationale for the Lead Agency's policy to allow providers to charge families additional amounts above the required co-payment, including a demonstration of how the policy promotes affordability and access for families.

DFD allows providers to charge additional fees to encourage providers to serve families that utilize the subsidy and not limit the number of children they serve. This also allows parents greater choice in the child care market.

ii. Provide data (including data on the size and frequency of such amounts) on the extent to which CCDF providers charge additional amounts to families.

DFD does not have data on the extent to which CCDF providers charge additional amounts to families.

iii. Describe the Lead Agency's analysis of the interaction between the additional amounts charged to families with the required family co-payment, and the ability of current subsidy payment rates to provide access to care without additional fees.

The additional amounts charged do not impact the copayment amount. Furthermore, our data tells us that the current subsidy rate in most cases allows sufficient access to care in settings that do not charge additional fees.

g) Describe how Lead Agencies' payment practices described in 4.5 support equal access to a range of providers.

DFD's E Child Care (ECC) system is an automated web-based application that serves as the basis for payments to child care providers. Benefits are calculated based on time and attendance and funds are directly deposited into provider

accounts on a bi-weekly basis or two weeks in arrears.

DFD's retroactive, attendance-based payment practices ensure stability and consistent funding.
E-Child care terminals are provided to the entire range of providers to help ensure equal access.

h) Describe how and on what factors the Lead Agency differentiates payment rates. Check all that apply.

☐ Geographic area.

Describe:

☑ Type of provider.

Describe:

Payment rates for center-based programs that serve infants/toddlers currently receive a higher tier of reimbursement than preschool and school-age programs.

☑ Age of child.

Describe:

Payment rates for center-based programs that serve infants/toddlers currently receive a higher tier of reimbursement than preschool and school-age programs.

☑ Quality level.

Describe:

New Jersey is phasing in higher rates for providers that offer higher-quality care.

☑ Other.

Describe:

Providers are paid a higher rate per child with a disability.

i) Describe any additional facts that the Lead Agency considered in determining its payment rates to ensure equal access. Check all that apply and describe:

☐ Payment rates are set at the 75th percentile benchmark or higher of the most recent MRS.

Describe:

☐ Based on the approved alternative methodology, payments rates ensure equal access.

Describe:

☐ Feedback from parents, including parent surveys or parental complaints.

Describe:

☐ Other.

Describe:

4.5 Payment Practices and the Timeliness of Payments

Lead Agencies are required to demonstrate that they have established payment practices applicable to all CCDF child care providers that include ensuring the timeliness of payments by either (1) paying prospectively prior to the delivery of services or (2) paying within no more than 21 calendar days of the receipt of a complete invoice for services. To the extent practicable, the Lead Agency must also support the fixed costs of providing child care services by delinking provider payments from a child's occasional absences by (1) paying based on a child's enrollment rather than attendance, (2) providing full payment if a child attends at least 85 percent of the authorized time, (3) providing full payment if a child is absent for 5 or fewer days in a month, or (4) using an alternative approach for which the Lead Agency provides a justification in its Plan (658E(c)(2)(S)(ii); 98.45(l)(2)).

Lead Agencies are required to use CCDF payment practices that reflect generally accepted payment practices of child care providers who serve children who do not receive CCDF-funded assistance. Unless a Lead Agency is able to demonstrate that the following policies are not generally accepted in its particular state, territory, or service area or among particular categories or types of providers, Lead Agencies must (1) pay providers based on established

part-time or full-time rates rather than paying for hours of service or smaller increments of time and (2) pay for reasonable, mandatory registration fees that the provider charges to private-paying parents (658E(c)(2)(S); 98.45(l)(3)).

In addition, there are certain other generally accepted payment practices that are required. Lead Agencies are required to ensure that child care providers receive payment for any services in accordance with a payment agreement or an authorization for services, ensure that child care providers receive prompt notice of changes to a family's eligibility status that could impact payment, and establish timely appeal and resolution processes for any payment inaccuracies and disputes (98.45(l)(4) through (6); 658E(c)(2)(S)(ii); 98.45(l)(4); 98.45(l)(5); 98.45(l)(6)).

4.5.1 Certify by identifying and describing the payment practices below that the Lead Agency has implemented for all CCDF child care providers.

a) Ensure the timeliness of payments by either (Lead Agency to implement at least one of the following):

☐ Paying prospectively prior to the delivery of services.

Describe the policy or procedure.

☑ Paying within no more than 21 calendar days of the receipt of a complete invoice for services.

Describe the policy or procedure.

Benefits are calculated based on time and attendance and funds are directly deposited into provider accounts on a bi-weekly basis or two weeks in arrears.

b) To the extent practicable, support the fixed costs of providing child care services by delinking provider payments from a child's occasional absences by: (Note: The Lead Agency is to choose at least one of the following):

☐ Paying based on a child's enrollment rather than attendance.

Describe the policy or procedure.

☐ Providing full payment if a child attends at least 85 percent of the authorized time.

Describe the policy or procedure.

☐ Providing full payment if a child is absent for five or fewer days in a month.

Describe the policy or procedure.

☑ Use an alternative approach for which the Lead Agency provides a justification in its Plan.

If chosen, please describe the policy or procedure and the Lead Agency's justification for this approach.

A child must attend child care services at least 80 percent of the service period in order for a full payment to be made to a provider. With the implementation of the E-Child Care (ECC) System, the 80% level of service requirement is based on a two week service period. Payment for sick days will be authorized for a maximum of ten consecutive days; however, a request for a payment for six or more sick days cannot be authorized without a doctor's note. The physician's note may indicate the illness of either the child or parent and must cover the dates of absence from child care. All absences, other than sick, scheduled holidays and approved facility/home closings are considered unexcused absences. The 80% level of service requirement is not met when there are three or more unexcused absences within the 2 week service period.

c) The Lead Agency's payment practices reflect generally accepted payment practices of child care providers who serve children who do not receive CCDF subsidies. These payment practices must include the following two practices unless the Lead Agency provides evidence that such practices are not generally accepted in its state (658E(c)(2)(S); 98.45(l)(3)).

i. Paying on a part-time or full-time basis (rather than paying for hours of service or smaller increments of time).

Describe the policy or procedure and include a definition of the time increments (e.g., part time, full-time).

ECC is designed to make payments based on the authorized care type (full-time or part time). Providers are paid based on the authorized care type regardless of the number of hours a child is in care.

Non-TANF programs utilize 'Full Time Care' and 'Part Time Care' rates. 'Full Time Care' is 6 hours per day or more (for a minimum of 5 days a week or 30 hours per week for a minimum of three days) and 'Part Time Care' is less than 6 hours per day.

Proportionate to the full time and part time rates listed in the child care rate chart, maximum amounts paid through the Work First New Jersey (TANF) program and Transitional Child Care program allow payments for as little as 4 hours or even one hour per day.

ii. Paying for reasonable mandatory registration fees that the provider charges to private-paying parents.

Describe the policy or procedure.

Providers are paid a one time initial registration fee, not to exceed $50.00, for WFNJ/TANF participant's child care service.

Providers may receive a payment for transporting a child of a WFNJ/TANF participant to and from a licensed child care center or summer day camp, when this cost is not included in the child care center rate or available from another source. The amount allowed is up to $10.00 per week per child. In addition, when it is essential for physical health and safety, the cost of transporting a disabled child to and from a family child care home may also be authorized when this cost is not included in the rate or available from another source.

d) The Lead Agency ensures that providers are paid in accordance with a written payment agreement or an authorization for services that includes, at a minimum, information regarding provider payment policies, including rates, schedules, any fees charged to providers, and the dispute-resolution process. Describe:

All CCDF based Parent Applicant Provider Agreements (PAPAs) and WFNJ TANF Agreements, and Transitional Child Care (TCC) agreements reflect the maximum daily rate, daily co-payment, and the daily rate.

The Agreement clearly authorizes payments only for the period of service

indicated on the agreement. It contains the parent/child information; child care start date and stop date for each child; summary of payment information for each child; and provider information. It also includes the Parent/Provider/Agency Certification page that fully explains the agency, parent, and provider responsibilities affecting the child care services.

e) The Lead Agency provides prompt notice to providers regarding any changes to the family's eligibility status that could impact payments, and such a notice is sent no later than the day that the Lead Agency becomes aware that such a change will occur. Describe:

When a termination notice is issued to the family, the contracted agency must concurrently issue a written notice of termination to all providers rendering services to the family. The termination notice issued to the provider(s) must indicate that the termination is effective a minimum of 5 days after receiving the notice.

f) The Lead Agency has a timely appeal and resolution process for payment inaccuracies and disputes. Describe:

If the provider has a payment issue, the provider can request a review of his/her case by the CCR&R and/or DFD. The CCR&R must inform the provider of his/her right to request a review. A timely request must be made within 10 days of the date of the disqualification notice. If the provider is not satisfied with a CCR&R review, the provider can request a review by DHS/DFD.

g) Other. Describe:

N/A

4.5.2 Do payment practices vary across regions, counties, and/or geographic areas?

☑ No, the practices do not vary across areas.

☐ Yes, the practices vary across areas.

Describe:

4.6 Supply-Building Strategies to Meet the Needs of Certain Populations

Lead Agencies are required to develop and implement strategies to increase the supply of and to improve the quality of child care services for children in underserved areas; infants and toddlers; children with disabilities, as defined by the Lead Agency; and children who receive care during non-traditional hours (658 E(c)(2)(M); 98.16 (x)).

4.6.1 Lead Agencies must identify shortages in the supply of high-quality child care providers. List the data sources used to identify shortages, and describe the method of tracking progress to support equal access and parental choice.

☐ In licensed family child care.

☐ In licensed child care centers.

☑ Other.

Currently New Jersey does not have any data sources that identify shortages and track progress towards supporting equal access and parental choice.

4.6.2 Describe what method(s) is used to increase supply and to improve quality for the following.

a) Children in underserved areas. Check and describe all that apply.

☑ Grants and contracts (as discussed in 4.1.3).

Describe:

New Jersey's Abbott program ensures that 3- and 4- year old children in the highest poverty districts in the state began to enroll in a new high-quality preschool education program. This program has been designed to prepare them to enter school with the knowledge and skills necessary to meet the New Jersey Preschool Teaching and Learning Expectations: Standards of Quality (NJ Department of

Education, 2004b) and the Kindergarten New Jersey Core Curriculum Content Standards (NJDOE, 2004a). Through a Department of Education (DOE) and Department of Human Services (DHS) partnership, Abbott preschool classrooms combine a DOE-funded six-hour, 180-day component with a DHS-funded wrap-around program that provides daily before- and after-care and summer programs. In total, the full-day, full-year program is available up to 10 hours per day, 245 days a year.

31 Abbott districts served over 43,000 3- and 4-year-old children in preschool - about 80 percent of the population. The preschool program is delivered by a mixed public-private delivery system overseen by the public schools. Private child care providers and Head Start agencies contract with local boards of education to serve about two-thirds of the children. The rest are served in public school classrooms.

☐ Family child care networks.

Describe:

☐ Start-up funding.

Describe:

☐ Technical assistance support.

Describe:

☐ Recruitment of providers.

Describe:

☐ Tiered payment rates (as discussed in 4.3.2).

Describe:

☐ Support for improving business practices, such as management training, paid sick leave, and shared services.

Describe:

☐ Accreditation supports.

Describe:

☐ Child Care Health Consultation.

Describe:

☐ Mental Health Consultation.

Describe:

☐ Other.

Describe:

4.6.2 Describe what method(s) is used to increase supply and to improve quality for the following.

b) Infants and toddlers. Check and describe all that apply.

☑ Grants and contracts (as discussed in 4.1.3).

Describe:

With a combination of RTTELC grant funding and existing quality funds, NJ expanded the technical assistance that is provided to programs enrolled in Grow New Jersey Kids, enhanced the incentives offered to programs that serve infants and toddlers, and improved the NJ Workforce Registry to support a comprehensive tracking of professional development.

☐ Family child care networks.

Describe:

☐ Start-up funding.

Describe:

☑ Technical assistance support.

Describe:

First Steps is NJ's infant toddler specialist network. Through this network, there are nine Parent Infant Toddler Care (PITC) trained, Infant Toddler Specialists. These specialists provide onsite technical assistance, coaching

and training to providers that care for infants and toddlers. CCR&Rs administer the First Steps Initiative, the Statewide Parent Advocacy Network (SPAN), and professional development trainings for providers that serve infants and toddlers. The goal of these initiatives is to improve providers' knowledge and expertise in developmentally appropriate practices. Providers are able to select from an array of topics that provide information, training and resources on the latest research on infant and toddler development.

☑ Recruitment of providers.

Describe:
DHS/DFD contracts with the CCR&Rs to conduct community events targeted at encouraging providers to participate in the subsidy program as well as enroll in the Grow N Kids. Additionally, with the increased CCDF allocation, DHS/DFD will be issuing grants designed to incentivize providers currently not serving families in subsidy program to enroll infants.

☑ Tiered payment rates (as discussed in 4.3.2) .

Describe:

New Jersey has implemented a tiered system of reimbursement payment fo quality in order to provide recognition and incentives to child care centers that serve infants and toddlers and achieve a Grow NJ Kids QRIS rating of 3 4, or 5.

☑ Support for improving business practices, such as management training, paid sick leave, and shared services.

Describe:

☐ Accreditation supports.

Describe:

☐ Child Care Health Consultation.

Describe:

☐ Mental Health Consultation.

Describe:

☐ Other.

Describe:

4.6.2 Describe what method(s) is used to increase supply and to improve quality for the following.

c) Children with disabilities. Check and describe all that apply.

☐ Grants and contracts (as discussed in 4.1.3).

Describe:

☐ Family child care networks.

Describe:

☐ Start-up funding.

Describe:

☑ Technical assistance support.

Describe:

Through a partnership with the Center for Autism and Early Childhood Mental Health at Montclair State University, NJ has been offering a series of provider trainings for early childhood professionals which support the emotional, social and neurological foundations for all development and learning.

☐ Recruitment of providers.

Describe:

☑ Tiered payment rates (as discussed in 4.3.2).

Describe:

Registered Family Child Care homes, Accredited Family Child Care Homes, and Approved Homes qualify for New Jersey¿s higher tier of reimbursement for serving children with special needs.

☐ Support for improving business practices, such as management training, paid sick leave, and shared services.

Describe:

☐ Accreditation supports.

Describe:

☐ Child Care Health Consultation.

Describe:

☐ Mental Health Consultation.

Describe:

☐ Other.

Describe:

4.6.2 Describe what method(s) is used to increase supply and to improve quality for the following.

d) Children who receive care during non-traditional hours.Check and describe all that apply

☐ Grants and contracts (as discussed in 4.1.3).

Describe:

☐ Family child care networks.

Describe:

☐ Start-up funding.

Describe:

☐ Technical assistance support.

Describe:

☑ Recruitment of providers.

Describe:

NJ ensures that Approved Homes are available as a choice for parents receiving child care assistance. Most parents depend on NJ's Approved Home providers (including in-home and family, friend and neighbor care (FFN care) when they have jobs with non-traditional hours (that includes evening, overnight, weekend, or irregular hours).

☐ Tiered payment rates (as discussed in 4.3.2) .

Describe:

☐ Support for improving business practices, such as management training, paid sick leave, and shared services.

Describe:

☐ Accreditation supports.

Describe:

☐ Child Care Health Consultation.

Describe:

☐ Mental Health Consultation.

Describe:

☐ Other.

Describe:

4.6.2 Describe what method(s) is used to increase supply and to improve quality for the following.

e) Other. Check and describe all that apply:

☑ Grants and contracts (as discussed in 4.1.3).

Describe:

N/A

☑ Family child care networks.

Describe:

N/A

☑ Start-up funding.

Describe:

N/A

☑ Technical assistance support.

Describe:

N/A

☑ Recruitment of providers.

Describe:

N/A

☑ Tiered payment rates (as discussed in 4.3.2).

Describe:

N/A

☑ Support for improving business practices, such as management training, paid sick leave, and shared services.

Describe:

N/A

☑ Accreditation supports.

Describe:

N/A

☑ Child Care Health Consultation.

Describe:

N/A

☑ Mental Health Consultation.

Describe:

N/A

☑ Other.

Describe:

N/A

4.6.3 Lead Agencies must prioritize investments for increasing access to high-quality child care and development services for children of families in areas that have significant concentrations of poverty and unemployment and do not currently have sufficient numbers of such programs.

a) How does the Lead Agency define areas with significant concentrations of poverty and unemployment?

Abbott districts are school districts in New Jersey covered by a series of New Jersey Supreme Court rulings, that found that the education provided to school children in poor communities was inadequate and unconstitutional and mandated that state funding for these districts be equal to that spent in the wealthiest districts in the state. They were created in 1985 as a result of the first ruling of Abbott v. Burke, a case filed by the Education Law Center. The ruling asserted that public primary and secondary education in poor communities throughout the state was unconstitutionally substandard. The Abbott II ruling in 1990 had the most far-reaching effects, ordering the state to fund the (then) 28 Abbott districts at the average level of the state's wealthiest districts. The Abbott District system was replaced in 2007 by the New Jersey Schools Development Authority.

There are now 31 "Abbott districts" in the state, which are now referred to as "SDA Districts" based on the requirement for the state to cover all costs for school building and renovation projects in these districts under the supervision of the New Jersey Schools Development Authority. The term "Abbott district" is still in common use since the Abbott districts receive very high funding levels for K-12 and are the only districts in New Jersey where the state pays for Pre-K for all students.

The Court identified the specific factors used to designate districts as "Abbott districts." These districts:

- must be those with the lowest socio-economic status, thus assigned to the lowest categories on the New Jersey Department of Education's District Factor Groups (DFG) scale;
- "evidence of substantive failure of thorough and efficient education;" including "failure to achieve what the DOE considers passing levels of performance on the High School Proficiency Assessment (HSPA);"
- have a large percentage of disadvantaged students who need "an education beyond the norm;"
- existence of an "excessive tax [for] municipal services" in the locality where the district is located.

Using these factors, the Court in Abbott II identified 28 districts as Abbott districts. The Court also gave the New Jersey Legislature or the Commissioner of Education the authority to classify additional districts as Abbott districts based on these factors, which would then entitle the children to the Abbott programs and reforms. In 1998, the Legislature classified 3 additional districts, bringing the 2009 total of Abbott districts to 31.

Licensed Child Care Centers -

NJ's market price study reflects variations in the cost of child care services by geographic area, type of provider, and age of child and has been used to investigate shortages of quality child care and identify geographic areas with a supply shortage issue.

The universe of this provider data study came from the list of a total of 3,910 child care centers licensed by the Office of Licensing across New Jersey in 2017 who were contacted to participate in an online survey. Geospatial mapping of child care providers was then done to aid supply shortage study and data presentation. Using ArcMap Spatial Join Function, maps were produced for the geo-analytics results to display geographic dispersion of young children and child care slots across school districts.
For the mapping, additional data obtained on population density from NJGIN and child poverty rates from the U.S. Census Bureau for each school district were used to overlap the population density and poverty data against child care slot data.

The findings in the study revealed that:
- Child care supply shortage exists in less populous and/or poor school districts with limited resources, across the state.
- Most slots were highly concentrated in urban districts.
- Distribution of child care slots show that school districts with a child care supply shortage issue are concentrated in areas with a low population density

b) Describe how the Lead Agency prioritizes increasing access to high-quality child care and development services for children of families in areas that have significant concentrations of poverty and unemployment and that do not have high-quality programs

New Jersey's Abbott program ensures that 3- and 4- year old children in the highest poverty districts in the state began to enroll in a new high-quality preschool education program. This program has been designed to prepare them to enter school with the knowledge and skills necessary to meet the New Jersey Preschool Teaching and Learning Expectations: Standards of Quality (NJ Department of Education, 2004b) and the Kindergarten New Jersey Core Curriculum Content Standards (NJDOE, 2004a). Through a Department of Education (DOE) and Department of Human Services (DHS) partnership, Abbott preschool classrooms combine a DOE-funded six-hour, 180-day component with a DHS-funded wrap-around program that provides daily before- and after-care and summer programs. In total, the full-day, full-year program is available up to 10 hours per day, 245 days a year.

31 Abbott districts served over 43,000 3- and 4-year-old children in preschool - about 80 percent of the population. The preschool program is delivered by a mixed public-private delivery system overseen by the public schools. Private child care providers and Head Start agencies contract with local boards of education to serve about two-thirds of the children. The rest are served in public school classrooms.

The Court established basic program standards for preschool education in the Abbott districts that included a maximum class size of 15, certified teachers with early childhood expertise, assistant teachers in every classroom, comprehensive services and a developmentally appropriate curriculum designed to meet learning standards.

5 Establish Standards and Monitoring Processes To Ensure the Health and Safety of Child Care Settings

Lead Agencies are required to certify that there are in effect licensing requirements applicable to all child care services in the state/territory, which supports the health and safety of all children in child care. States and territories may allow licensing exemptions. Lead Agencies must describe how such licensing exemptions do not endanger the health, safety, and development of CCDF children in license-exempt care (98.16 (u)).

Lead Agencies also must certify that there are in effect health and safety standards and training requirements applicable to providers serving CCDF children, whether they are licensed or license-exempt. These health and safety requirements must be appropriate to the provider setting and age of the children served, must include specific topics and training on those topics, and are subject to monitoring and enforcement procedures.

The organization of this section begins with a description of the licensing system for providers of child care in a state or territory and then moves to focus in on CCDF providers who may be licensed, exempt from licensing, or relative providers. The section then covers the health and safety requirements and training, and monitoring and enforcement procedures to ensure that CCDF child care providers comply with licensing and health and safety requirements (98.16(n)). Lead Agencies are also asked to describe any exemptions for relative providers (98.16(l)). This section also addresses group size limits; child-staff ratios; and required qualifications for caregivers, teachers, and directors (98.16(m)) serving CCDF children.

Note: When responding to questions in this section, the OCC recognizes that each State/Territory identifies and defines its own categories of care. The OCC does not expect States/Territories to change their definitions to fit the CCDF-defined categories of care. For these questions, provide responses that closely match the CCDF categories of care.

Criminal background check requirements are included in this section (98.16(o)). It is important to note that these requirements are in effect for all child care staff members that are licensed, regulated or registered under state/territory law and all other providers eligible to deliver CCDF services.

5.1 Licensing Requirements

Each state/territory must certify it has in effect licensing requirements applicable to all child care services provided within the state/territory (not restricted to providers receiving CCDF funds) and provide a detailed description of these requirements and how the requirements are effectively enforced (658E(c)(2)(F)). If any types of providers are exempt from licensing requirements, the state/territory must describe those exemptions and describe how these exemptions do not endanger the health, safety, or development of children. The descriptions must also include any exemptions based on provider category, type, or setting; length of day; and providers not subject to licensing because the number of children served falls below a Lead Agency-defined threshold and any other exemption to licensing requirements (658E(c)(2)(F);

98.16(u); 98.40(a)(2)(iv)).

5.1.1 To certify, describe the licensing requirements applicable to child care services provided within the state/territory by identifying the providers in your state/territory that are subject to licensing using the CCDF categories listed below? Check all that apply and provide a citation to the licensing rule.

☑ Center-based child care.

Describe and Provide the citation:

A child care center is any home or facility that is maintained for the care, development, or supervision of six or more children under 13 years of age who attend for less than 24 hours a day. This includes, but not be limited to, day care centers; drop-in centers; night-time centers; recreation-type centers sponsored and operated by a county or municipal government recreation or park department or agency; day nurseries; nursery and play schools; cooperative child centers; centers for children with special needs; centers serving sick children; infant-toddler programs; school-age child care programs; employment-related centers that had been licensed by the Department of Human Services prior to the enactment of the Child Care Center Licensing Act of 1984; and kindergartens and pre-kindergartens that are not an integral part of a private educational institution or system offering elementary education in grades kindergarten through sixth. (Citation New Jersey Administrative Code (N.J.A.C.) 3A:52 Manual of Requirements for Child Care Centers).

Youth camps are required to be licensed under the Youth Camp Safety Act of New Jersey, pursuant to N.J.S.A. 26:12-1 et seq. and are exempt from licensing under (N.J.A.C 3A:52). A youth camp program must have a valid and current license as a youth camp, issued by the New Jersey Department of Health (New Jersey Administrative Code (N.J.A.C.) 8:25 (New Jersey Youth Camp Safety Standards).

☑ Family child care.

Describe and Provide the citation:

A family child care home is the private residence of the family child care provider in which child care services are provided to no fewer than three and no more than

five children at any one time for no fewer than 15 hours per week (Citation: New Jersey Administrative Code (N.J.A.C.) 3A:54 (Manual of Requirements for Family Child Care Registration).

☑ In-home care (care in the child's own home).

Describe and provide the citation (if applicable):

DFD Approved Home Providers are child care providers that are not registered pursuant to the Family Child Care Provider Registration Act (N.J.A.C. 3A:54), but whose home has been evaluated and authorized for payment through the CCR&Rs, using the Self-Arranged Care Inspection and Interview Checklist (see N.J.A.C. 10:15-2.4(a)10). The prospective approved home provider and all members of the household who are 14 years of age and older must pass a Child Abuse Record Information (CARI) background check.

5.1.2 Describe if any providers are exempted from licensing requirements and how such exemptions do not endanger the health, safety, and development of children (658E (c)(2)(F); 98.40(a)(2)).

Note: Additional information about exemptions related to CCDF providers is required in 5.1.3.

No. DFD has phased out the practice of paying subsidies to license exempt providers. All providers must obtain some form of State license, registration or approval. There are remaining providers that are going through the process of being licensed pursuant to N.J.A.C. 3A:52.

5.1.3 Check and describe any CCDF providers in your state/territory who are exempt from licensing (98.40(2)(i) through (iv))? Describe exemptions based on length of day, threshold on the number of children in care, ages of children in care or any other factors applicable to the exemption

☐ Center-based child care.

If checked, describe the exemptions.

☐ Family child care.

If checked, describe the exemptions.

☐ In-home care.

If checked, describe the exemptions.

5.2 Health and Safety Standards and Requirements for CCDF Providers

5.2.1 Standards on ratios, group sizes, and qualifications for CCDF providers.

Lead Agencies are required to establish child care standards for providers receiving CCDF funds, appropriate to the type of child care setting involved, that address appropriate ratios between the number of children and number of providers in terms of the age of the children, group size limits for specific age populations, and the required qualifications for providers (658E(c)(2)(H); 98.41(d); 98.16(m)). For ease of responding, this section is organized by CCDF categories of care, licensing status, and age categories. Respondents should map their Lead Agency categories of care to the CCDF categories.

a) Licensed CCDF center-based care

1. Infant

-- How does the State/territory define infant (age range):

Birth-18 months

-- Ratio:

1:4

-- Group size:

4

-- Teacher/caregiver qualifications:

Each center shall have one or more of the applicable qualified staff members, as specified in the charts below for each program type offered; and additional staff members, as necessary, to meet staff/child ratio requirements, as specified in N.J.A.C. 3A:52-4.3. Based on the center's licensed capacity, the center shall have one or more head teachers, group teachers, and/or consulting head teachers, as specified in the charts on pg 28-31 below:

https://www.nj.gov/dcf/providers/licensing/laws/CCCmanual.pdf

2. Toddler

-- How does the State/territory define toddler (age range):

18 months to 2.5 years

-- Ratio:

1:6

-- Group size:

6

-- Teacher/caregiver qualifications:

See charts on pg 28-31below:

https://www.nj.gov/dcf/providers/licensing/laws/CCCmanual.pdf

3. Preschool

-- How does the State/territory define preschool (age range):

2.5 to 5 years

-- Ratio:

1:10 for 2.5-4 years; 1:12 for 4 years

-- Group size:

10-12

-- Teacher/caregiver qualifications:

See charts on pg 28-31below:

https://www.nj.gov/dcf/providers/licensing/laws/CCCmanual.pdf

4. School-age

-- How does the State/territory define school-age (age range):

5-13 years

-- Ratio:

1:1

-- Group size:

15

-- Teacher/caregiver qualifications:

For school-age child care programs, the center shall have one or more program supervisors and additional staff members, as necessary, to meet staff/child ratio requirements, as specified in N.J.A.C. 3A:52-4.3 at each site as specified in the chart below:

See charts on pg 21 below:

https://www.nj.gov/dcf/providers/licensing/laws/CCCmanual.pdf

5. If any of the responses above are different for exempt child care centers, describe which requirements apply to exempt centers

N/A

6. Describe, if applicable, ratios, group sizes, and qualifications for classrooms with mixed age groups.

When children of mixed ages requiring different staff/child ratios are in one room or

area within a large divided room, the center shall compute the staff/child ratios applicable for each group separately to the nearest tenth decimal. If the resulting cumulative figure for all age groups is any fraction above a whole number, an additional staff member shall be required.

7. Describe the director qualifications for licensed CCDF center-based care, including any variations based on the ages of children in care.

For early childhood programs licensed to serve more than 30 children, the director shall meet the qualification requirements specified in one of the options set forth below for education and experience:

- Master's Degree in any field related to children or business or;
- Bachelor's Degree with One year of managerial or supervisory experience

b) Licensed CCDF family child care provider

1. Infant

-- How does the State/territory define infant (age range):

Birth-18 months

-- Ratio:

1:3

-- Group size:

Three children below one year of age.

Both the provider and a second caregiver (either the alternate provider, substitute provider or provider assistant) shall be present whenever one or more children below six years of age are present in addition to the maximum number of infants or toddlers specified in (a) above.

-- Teacher/caregiver qualifications:

The executive director or administrator and designee, if applicable, designated in N.J.A.C. 3A:54-3.2(a) shall possess the following:

1. A bachelor's degree; or
2. Three years of managerial or supervisory experience in the field of human services, child care services, child development, education, nursing, social

work, or business.

A family child care provider, in order to be eligible for a Certificate of Registration, shall:

1. Be at least 18 years of age;
2. Be of good character and reputation, with sufficient knowledge, intelligence, stability, energy and maturity to maintain a family child care home and to care for children;
3. Be in sufficient physical, mental and emotional health to care properly for children to be placed in the home;
4. Reside in the family child care home; and
5. Demonstrate to the satisfaction of the sponsoring organization and the Office of Licensing that he or she complies with all applicable requirements of the Manual of Requirements.

See N.J.A.C. 3A:54-5.1

2. Toddler

-- How does the State/territory define toddler (age range):

18 months-2.5 years

-- Ratio:

1:4

-- Group size:

Four children below two years of age, of which no more than two shall be below one year of age

-- Teacher/caregiver qualifications:

See above

3. Preschool

-- How does the State/territory define preschool (age range):

5 years and older

-- Ratio:

See below

-- Group size:

See above

-- Teacher/caregiver qualifications:

See above

4. School-age

-- How does the State/territory define school-age (age range):

5 to 13 years old

-- Ratio:

See below

-- Group size:

The provider shall care for no more than five children at any one time with the following exception:

The provider shall be permitted to care for up to three additional children, up to a maximum of eight children at any one time, only if:

- The additional children reside with the provider and are below six years of age. Children six years of age or older who reside with the provider shall not be included in the limit of eight children; or
- The additional children reside with the alternate provider, the substitute provider or the provider assistant, and receive care in the family child care home for no payment. The alternate provider, the substitute provider or the provider assistant shall be present when any child who resides with that person is present.

-- Teacher/caregiver qualifications:

See above

5. If any of the responses above are different for exempt family child care homes, please describe which requirements apply to exempt homes

N/A

c) In-home CCDF providers:

1. Describe the ratios

If the provider does not have children of their own in the home, the ratios are as follows;

- 1:2 (for non-sibling children) or;
- 1:5 (for sibling children)

2. Describe the group size

- Up to 5 children (if three of the children are the provider's own children, and the other 2 children in subsidized care are non-siblings) or;
- Up to 7 seven children (if three of the children are the provider's own children, and the other 5 children in subsidized care are siblings)

3. Describe the maximum number of children that are allowed in the home at any one time.

All family providers who serve three or more non-sibling children shall be registered pursuant to the Manual of Requirements for Family Child Care Registration (see N.J.A.C. 10:54) in order to qualify for payment of child care services through these programs.

4. Describe if the state/territory requires related children to be included in the child-to-provider ratio or group size

An approved home provider may care for or no more than eight children if three of the children are her own.

An approved home provider may care for or no more than eight children if three of the children are her own.

5. Describe any limits on infants and toddlers or additional school-age children that are allowed for part of the day

An approved home provider who cares for no more than five children, or no more than eight children if three of the children are her own, who has been approved by the Department of Human Services, may receive payment for a

maximum of:

- Two non-sibling children; or
- Up to five non-resident sibling children under 13 years of age

5.2 Health and Safety Standards and Requirements for CCDF Providers

5.2.2 Health and safety standards for CCDF providers.

States and territories must establish health and safety standards for programs (e.g., child care centers, family child care homes, etc.) serving children receiving CCDF assistance relating to the topics listed below, as appropriate to the provider setting and age of the children served (98.41(a)). This requirement is applicable to all child care providers receiving CCDF funds regardless of licensing status (i.e., licensed or license-exempt). The only exception to this requirement is for providers who are caring for their own relatives because Lead Agencies have the option of exempting relatives from some or all CCDF health and safety requirements (98.42(c)).

a) To certify, describe how the following health and safety standards for programs serving children receiving CCDF assistance are defined and established on the required topics (98.16(l)). Note: This question is different from the health and safety training requirements, which are addressed in question 5.2.3.

1. Prevention and control of infectious diseases (including immunization)

   -- Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

   Licensed Child Care Centers Requirements for the Prevention and control of infectious diseases

   For early childhood programs, the following standards are in place for the prevention and control of infectious diseases.

   Each child not enrolled in a public or private school shall have had a health examination for the prevention and control of infectious diseasesperformed by a health care provider within:

   - Six months prior to admission, for children who are 2½ years of age or younger; or
   - One year prior to admission, for children above 2½ years of age; Note: A 30-day

grace period is permitted for certain children in N.J.A.C. 8:57-4.5(e);
- Providers must keep a record of the child's health examination and immunizations, as specified on file **Family Child Care Requirements for the Prevention and control of infectious diseases**
Each child shall have had a health examination for the prevention and conrol of infectious diseases performed by a health care provider within:

- Six months prior to or within one month following admission to the home for children who are 2½ years of age or younger; or
- One year prior to or within one month following admission to the home for children who are above 2½ years of age.
- Providers must keep an up to date a record of the child's health examination and immunizations on file. **Approved Homes requirements for the prevention and control of infectious diseases**
A record of the health examination and immunization history shall be provided by the child's parent to the provider upon or within one month following admission to the home for prevention and control of infectious diseases..

Summer Youth Camps requirements for the prevention and control of infectious diseases
All campers shall:
Be immunized, with the vaccinations required for child-care center, preschool or school attendance, as appropriate for the camper's age, according to the immunization schedule. This is for the prevention and control of infectious diseases.

All provider types listed above also undergo a Better Kids Care Training which includes a module called "Health and Safety Basics" which addresses the prevention and control of infectious diseases. In addition, the training teachers providers that colds, stomach viruses, and ear infections top the list of common illnesses for infants and toddlers. This training offers strategies to reduce the spread of germs in infant/toddler care and helps to assess current practices and develop ways to keep young children and adults healthy including handwashing and diapering.

-- List all citations for these requirements, including those for licensed and license-exempt programs

Licensed Child Care Centers: N.J.A.C 3A:52-7.3, N.J.A.C. 3A:52-7.3(a)

https://www.nj.gov/dcf/providers/licensing/laws/CCCmanual.pdf

Family Child Care Homes: N.J.A.C 3A:54-6.8

https://www.nj.gov/dcf/providers/licensing/laws/FCCmanual.pdf

Summer Youth Camps: N.J.A.C 8:25(3)(d)(1)

https://www.nj.gov/health/ceohs/documents/phss/youth_camp.pdf

Approved Homes (NJAC 10:15)

https://www.state.nj.us/humanservices/providers/rulefees/regs/NJAC%2010_15%20Child%20Care%20Services.pdf

-- Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

The following variations in requirements regarding the prevention and control of infectious diseases exist in the following categories of care:

Licensed Child Care Centers

For early childhood programs, the following shall apply:

Each child not enrolled in a public or private school shall have had a health examination performed by a health care provider within:

- Six months prior to admission, for children who are 2½ years of age or younger; or
- One year prior to admission, for children above 2½ years of age; Note: A 30-day grace period is permitted for certain children in N.J.A.C. 8:57-4.5(e);
- Providers must keep a record of the child's health examination and immunizations, as specified on file **Family Child Care**

Each child shall have had a health examination performed by a health care provider within:

- Six months prior to or within one month following admission to the home for children who are 2½ years of age or younger; or
- One year prior to or within one month following admission to the home for children who are above 2½ years of age.
- Providers must keep an up to date a record of the child's health examination and immunizations on file. **Approved Homes**

A record of the health examination and immunization history shall be provided by the child's parent to the provider upon or within one month following admission to the home.

Summer Youth Camps

All campers shall:

Be immunized, with the vaccinations required for child-care center, preschool or school attendance, as appropriate for the camper's age, according to the immunization schedule.

-- Describe any variations based on the age of the children in care

For Family Child Care, there are variations based on the age of the children in care:

Each child shall have a health examination performed by a health care provider within six months prior to or within one month following admission to the home for children who are 2 1/2 years of age or younger; or one year prior to or within one month following admission to the home for children who are above 2 1/2 years of age.

-- Describe if relatives are exempt from this requirement

Relatives are not exempt from this requirement.

2. Prevention of sudden infant death syndrome and the use of safe-sleep practices

-- Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

The Better Kid Care Training module is utilized tohelp licensed center and family child caer providers understand that providing high quality sleep environments and understanding Sudden Unexpected Infant Deaths (SUID) are an essential part of a child care provider's job. The training focuses on defining SUID (Sudden unexpected **infant** death (**SUID**) is a term used to describe the sudden and unexpected death of a **baby** less than 1 year old in which the cause was not obvious before investigation) and identifying behaviors that affect and reduce the risk of sleep-related SUID. Through this training,

1. common beliefs and misconceptions about SUID.
2. behaviors that affect the risk of sleep-related SUID.
3. safe sleep practices for infants.

-- List all citations for these requirements, including those for licensed and license-exempt providers

Licensed Child Care Centers: N.J.A.C 3A:52-4.8

https://www.nj.gov/dcf/providers/licensing/laws/CCCmanual.pdf

Family Child Care Homes: N.J.A.C 3A:54-4.2

https://www.nj.gov/dcf/providers/licensing/laws/FCCmanual.pdf

-- Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

There are variations regarding the prevention of sudden infant death syndrome and use of safe-sleep practices by the categories of care listed below:

Licensed Child Care Centers

Family Child Care

The only policies and procedures on these two issues are related to mandatory training.

-- Describe any variations based on the age of the children in care

Policies **for the p**revention of sudden infant death syndrome and the use of safe-sleep practices **apply to infants and toddlers.**

-- Describe if relatives are exempt from this requirement

Relatives are not exempt from this requirement.

3. Administration of medication, consistent with standards for parental consent

-- Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

Licensed Child Care Centers

For early childhood programs, the following shall apply:

Among other things, the center shall develop and follow a policy on the administration of medication to children. Medication shall be administered only after receipt of written approval from the child's parents. The center shall designate staff members who are trained in and authorized to administer medication. The center shall limit the dispensing of non-prescription over-the-counter medication to certain types of medicine; however, the list can be expanded.

Family Child Care

The provider must maintain, at the home, documentation of the child's name and written authorization from the parent or legal guardian for the provider to administer medication; and the date and time medication was administered to a child and the name of the person who administered it.

Summer Youth Camps

The health director or adult designee shall administer prescription medication only after receipt of written authorization from the camper's parent, guardian, prescriber, or in accordance with the camp's treatment procedures.

Approved Homes

The provider shall maintain, at the home, documentation of the child's name and written authorization from the parent or legal guardian for the provider to administer medication before the child is admitted in the home.

-- List all citations for these requirements, including those for licensed and license-exempt providers

Licensed Child Care Centers : N.J.A.C 3A:52-7.3, N.J.A.C. 3A:52-7.3(a)
https://www.nj.gov/dcf/providers/licensing/laws/CCCmanual.pdf

Family Child Care Homes: N.J.A.C 3A:54-6.8
https://www.nj.gov/dcf/providers/licensing/laws/FCCmanual.pdf

Summer Youth Camps: N.J.A.C 8:25(3)(d)(1)
https://www.nj.gov/health/ceohs/documents/phss/youth_camp.pdf

Approved Homes
https://www.state.nj.us/humanservices/providers/rulefees/regs/NJAC%2010_15%20Child%20Care%20Services.pdf

-- Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

See above

-- Describe any variations based on the age of the children in care

Licensed Child Care Centers

N/A

-- Describe if relatives are exempt from this requirement

Relatives are not exempt from this requirement.

4. Prevention of and response to emergencies due to food and allergic reactions

-- Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

The following standards are in place regarding the prevention of and response to emergencies due to food and allergic reactions for the listed categories of care:

Licensed Child Care Centers

The provider shall maintain an individual record for each child in care including allergies. The only other policy and procedures on these issues are related to mandatory training.

Family Child Care

The provider shall maintain an individual record for each child in care including allergies. The only other policy and procedures on these issues are related to mandatory training.

Summer Youth Camps

At the time of admission, the parent or guardian of a camper shall complete and submit a written health history for the camper to the youth camp for review by the director, including all known allergies. The only other policy and procedures on this issue are related to mandatory training.

In addition, the above listed provider types are required to take a Better Kids

Care Training on the Mangement and Prevention of Food Allergies. This training

This lesson describes food allergies and what early care and education professionals need to know to ensure the health and safety of children with food allergies. Providers learn how to

- Understand the difference between food allergy and food intolerance.
- Identify the proper procedures for preventing an allergic reaction at child care or school.
- List the most common food allergens.
- Describe how a child might indicate he/she is experiencing an allergic reaction.
- Explain the proper procedures for handling a food allergy emergency.

-- List all citations for these requirements, including those for licensed and license-exempt providers

Licensed Child Care Centers: N.J.A.C 3A:52-4.8

https://www.nj.gov/dcf/providers/licensing/laws/CCCmanual.pdf

Family Child Care Homes: N.J.A.C 3A:54-4.2 & 6.14

https://www.nj.gov/dcf/providers/licensing/laws/FCCmanual.pdf

Summer Youth Camps: N.J.A.C 8:25(3)(d)(1)

https://www.nj.gov/health/ceohs/documents/phss/youth_camp.pdf

Approved Homes: N.J.A.C. 10:15-2.4

https://www.state.nj.us/humanservices/providers/rulefees/regs/NJAC%2010_15%20Child%20Care%20Services.pdf

-- Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

The following variatioins exist based on categories of care:

Licensed Child Care Centers

The provider shall maintain an individual record for each child in care including allergies. The only other policy and procedures on these issues are related to mandatory training.

Family Child Care

The provider shall maintain an individual record for each child in care including allergies. The only other policy and procedures on these issues are related to mandatory training.

Summer Youth Camps

At the time of admission, the parent or guardian of a camper shall complete and submit a written health history for the camper to the youth camp for review by the director, including all known allergies. The only other policy and procedures on this issue are related to mandatory training.

-- Describe any variations based on the age of the children in care

There are no variations for these standards based on the age of the children in care.

-- Describe if relatives are exempt from this requirement

Relatives are not exempt from this requirement.

5. Building and physical premises safety, including the identification of and protection from hazards that can cause bodily injury, such as electrical hazards, bodies of water, and vehicular traffic

-- Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

Standards regarding building and physical premises safety are outlined for each category of care as follows:

Licensed Child Care Centers

Building premises safety in child care centers is guided by DCF regulations. The rules provide guidance on such things as floors and carpets, waste receptacles, storage of hazardous materials, window guards, electrical outlets, lead paint, building code compliance, etc.

Licensed centers that are housed in public schools are covered by DOE.

Family Child Care

Family child care premised safety is controlled by DCF regulations. The rules cover such things as floors and walls, pay equipment, electricity, sanitation, the fire code, the Uniform Construction Code, etc.

Summer Youth Camps

Summer youth camp premises safety is guided by DOH regulations. The rules cover issues such as hazardous materials, certificates of occupancy, hot water, pools and power equipment.

In addition, the Better Kid Care Training moduels teaches child care workers

who work with infants and toddlers to assess play spaces (indoor and outdoor), children's experiences, and current practices to maximize children's safety. Training includes the identification of and protection from hazards, bodies of water, and vehicular traffic.

-- List all citations for these requirements, including those for licensed and license-exempt providers

Licensed Child Care Centers: N.J.A.C 3A:52-5.3

N.J.A.C. 6-26-12

https://www.nj.gov/dcf/providers/licensing/laws/CCCmanual.pdf

https://www.state.nj.us/education/code/current/title6a/chap26.pdf

Family Child Care Homes: N.J.A.C 3A:54-4

https://www.nj.gov/dcf/providers/licensing/laws/FCCmanual.pdf

Summer Youth Camps: N.J.A.C 8:25-4

https://www.nj.gov/health/ceohs/documents/phss/youth_camp.pdf

Approved Homes: N.J.A.C. 10:15-2.4

https://www.state.nj.us/humanservices/providers/rulefees/regs/NJAC%2010_15%20Child%20Care%20Services.pdf

-- Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

Variations in care exist for the following categories of care:

Standards regarding building and physical premises safety are outlined for each category of care as follows:

Licensed Child Care Centers

Building premises safety in child care centers is guided by DCF regulations. The rules provide guidance on such things as floors and carpets, waste receptacles, storage of hazardous materials, window guards, electrical outlets, lead paint, building code compliance, etc.

Licensed centers that are housed in public schools are covered by DOE.

Family Child Care

Family child care premised safety is controlled by DCF regulations. The rules cover such things as floors and walls, pay equipment, electricity, sanitation, the fire code, the Uniform Construction Code, etc.

Summer Youth Camps

Summer youth camp premises safety is guided by DOH regulations. The rules cover issues such as hazardous materials, certificates of occupancy, hot water, pools and power equipment.

-- Describe any variations based on the age of the children in care

The Better Kids Care training modules contain trainings specific to outdoor play in playgrounds, as well as safe spaces for infant and toddlers (safe sleep environments, and eliminating choking hazards for infants and toddlers)

-- Describe if relatives are exempt from this requirement

Relatives are not exempt from this requirement.

6. Prevention of shaken baby syndrome, abusive head trauma, and child maltreatment

-- Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

Licensed Child Care Center and Family Child Care Providers are required to be trained in the prevention of shaken baby syndrome, abusive head trauma, and child maltreatment. NJ provides this training through the Better Kids Care Training website. All caregivers/teachers who are in direct contact with children, including substitute caregivers/teachers and volunteers receive training on preventing shaken baby syndrome and abusive head trauma; recognition of potential signs and symptoms of shaken baby syndrome and abusive head trauma; strategies for coping with a crying, fussing, or distraught child; and the development and vulnerabilities of the brain in infancy and early childhood.

-- List all citations for these requirements, including those for licensed and license-exempt providers

Licensed Child Care Centerand Family Child Care Homes are required to take training related to the prevention of shaken baby syndrome, abusive head trauma, and child maltreatment.

Licensed Child Care Centers: N.J.A.C 3A:52-4.8

https://www.nj.gov/dcf/providers/licensing/laws/CCCmanual.pdf

Family Child Care Homes: N.J.A.C 3A:54-4.2

https://www.nj.gov/dcf/providers/licensing/laws/FCCmanual.pdf

-- Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

Variations in the category of care exist for the following categories of care:

Licensed Child Care Centers: N.J.A.C 3A:52-4.8

https://www.nj.gov/dcf/providers/licensing/laws/CCCmanual.pdf

Family Child Care Homes: N.J.A.C 3A:54-4.2

https://www.nj.gov/dcf/providers/licensing/laws/FCCmanual.pdf.

-- Describe any variations based on the age of the children in care

This standard applies to providers that care for infants.

-- Describe if relatives are exempt from this requirement

Relatives are not exempt from this requirement.

7. Emergency preparedness and response planning for emergencies resulting from a natural disaster or a human-caused event (such as violence at a child care facility), within the meaning of those terms under section 602(a)(1) of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5195a(a)(1)). Emergency preparedness and response planning (at the child care provider level) must also include procedures for evacuation; relocation; shelter-in-place and lockdown; staff and volunteer training and practice drills; communications and reunification with families; continuity of operations; and accommodations for infants and toddlers, children with disabilities, and children with chronic medical conditions.

-- Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

Licensed Child Care Centers

The following are the procedures in place for ensuring the safety of children and communicating with parents in the event of evacuation, lockdown, natural or civil disaster, and other emergencies. The requirements include a plan for informing parents of their children's whereabouts; details of connections to the local law enforcement agency or emergency management office; the center's emergency procedures must be readily accessible in a designated location within the center; and ensure that at least two lockdown drills are performed per

year, recorded and kept on file. Emergency procedures shall be readily accessible in a designated location within the center.

Family Child Care

The provider must maintain and post in a prominent location a written plan for an emergency evacuation, relocation, shelter-in-place, or lockdown of the children in the event of natural or civil disaster or other emergency. In the event of an evacuation, shelter-in-place, or lockdown, the registered family child care provider must notify the appropriate local law enforcement agency or emergency management office. The provider must practice and document fire, shelter-in-place, lockdown, and evacuation drills with each child from all exit locations at varied times of day and during varied activities, including nap-time.

Summer Youth Camps

Each camp director must ensure that the youth camp establishes written emergency procedures that address, at a minimum, evacuation of the camp, fires, natural disasters, serious accidents, illness or injury, and lost camper(s). Camp directors must conduct fire and emergency drills at least once each camp period or every two weeks, whichever is more frequent.

-- List all citations for these requirements, including those for licensed and license-exempt providers

Licensed Child Care Centers: N.J.A.C 3A:52-4.8

N.J.A.C. 6-26-12

https://www.nj.gov/dcf/providers/licensing/laws/CCCmanual.pdf

https://www.state.nj.us/education/code/current/title6a/chap26.pdf

Family Child Care Homes: N.J.A.C 3A:54-4.2

N.J.A.C. 3A:54-6.4

https://www.nj.gov/dcf/providers/licensing/laws/FCCmanual.pdf

Summer Youth Camps: N.J.A.C 8:25-6.1

https://www.nj.gov/health/ceohs/documents/phss/youth_camp.pdf

-- Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

Variations in categories of care exist for licensed childc are centers, family child care homes, summer youth camps as outlined.

Licensed Child Care Centers

The following are the procedures in place for ensuring the safety of children and communicating with parents in the event of evacuation, lockdown, natural or civil disaster, and other emergencies. The requirements include a plan for informing parents of their children's whereabouts; details of connections to the local law enforcement agency or emergency management office; the center's emergency procedures must be readily accessible in a designated location within the center; and ensure that at least two lockdown drills are performed per year, recorded and kept on file. Emergency procedures shall be readily accessible in a designated location within the center.

Family Child Care

The provider must maintain and post in a prominent location a written plan for an emergency evacuation, relocation, shelter-in-place, or lockdown of the children in the event of natural or civil disaster or other emergency. In the event of an evacuation, shelter-in-place, or lockdown, the registered family child care provider must notify the appropriate local law enforcement agency or emergency management office. The provider must practice and document fire, shelter-in-place, lockdown, and evacuation drills with each child from all exit locations at varied times of day and during varied activities, including nap-time.

Summer Youth Camps

Each camp director must ensure that the youth camp establishes written emergency procedures that address, at a minimum, evacuation of the camp, fires, natural disasters, serious accidents, illness or injury, and lost camper(s). Camp directors must conduct fire and emergency drills at least once each camp period or every two weeks, whichever is more frequent.

-- Describe any variations based on the age of the children in care

N/A

-- Describe if relatives are exempt from this requirement

No, relatives are not exempt from this requirement.

8. Handling and storage of hazardous materials and the appropriate disposal of bio-contaminants

-- Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

Licensed Child Care Centers

In general, all corrosive agents, insecticides, bleaches, detergents, polishes, any products under pressure in an aerosol can, and any toxic substance shall be stored in a locked cabinet or in an enclosure located in an area not accessible to children.

Family Child Care

All items that may be hazardous to children, including medicines, poisonous plants, toxic substances, tobacco products, matches and sharp objects, must be stored out of the reach of children. The provider must ensure that play equipment, materials, and furniture for indoor and outdoor use are of sturdy and safe construction, non-toxic, easy to clean, and free of hazards that may be injurious to young children including any hazardous equipment.

Summer Youth Camps

The camp director must ensure that the storage and handling of flammable liquids and hazardous substances conforms to the requirements of the New Jersey Uniform Construction Code at N.J.A.C. 5:23 and applicable local laws and ordinances.

-- List all citations for these requirements, including those for licensed and license-exempt providers

Licensed Child Care Centers: N.J.A.C. 3A:5.2-5.3

https://www.nj.gov/dcf/providers/licensing/laws/CCCmanual.pdf

Family Child Care Homes: N.J.A.C 3A:54-6.3 & 6.5

https://www.nj.gov/dcf/providers/licensing/laws/FCCmanual.pdf

Summer Youth Camps: N.J.A.C 8:25-6.2

https://www.nj.gov/health/ceohs/documents/phss/youth_camp.pdf

-- Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

Licensed Child Care Centers

In general, all corrosive agents, insecticides, bleaches, detergents, polishes, any products under pressure in an aerosol can, and any toxic substance shall be stored in a locked cabinet or in an enclosure located in an area not

accessible to children.

Family Child Care

All items that may be hazardous to children, including medicines, poisonous plants, toxic substances, tobacco products, matches and sharp objects, must be stored out of the reach of children. The provider must ensure that play equipment, materials, and furniture for indoor and outdoor use are of sturdy and safe construction, non-toxic, easy to clean, and free of hazards that may be injurious to young children including any hazardous equipment.

Summer Youth Camps

The camp director must ensure that the storage and handling of flammable liquids and hazardous substances conforms to the requirements of the New Jersey Uniform Construction Code at N.J.A.C. 5:23 and applicable local laws and ordinances.

-- Describe any variations based on the age of the children in care

There are no variations based on the age of the children in care.

-- Describe if relatives are exempt from this requirement

Relatives are not exempt from this requirement.

9. Precautions in transporting children (if applicable)

-- Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

Licensed Child Care Centers

All vehicles that are utilized to transport children must be equipped with car seats (child passenger restraint systems) and booster seats that meet Federal motor vehicle safety standards, as appropriate for the age and weight of the children transported, in accordance with applicable provisions of Motor Vehicle Commission (MVC) law, pursuant to N.J.S.A. 39:3-76.2a and f or 39:3B-10 and 11, as applicable. The center must have a written policy and procedures to ensure the safe transportation of children, including, but not limited to, ensuring that children are secured in appropriate restraints. The center shall train each regularly-scheduled driver and additional adult on this policy prior to starting his or her position.

Family Child Care

Whenever the provider transports enrolled children, the provider must comply with all applicable State laws and rules regarding:

- The use of infant seats, child passenger restraint systems, and seat belts pursuant to N.J.S.A. 39:3-76.2a et seq.;
- The possession of a valid automobile driver's license and valid vehicle inspection sticker; and
- The possession of vehicle liability insurance

Summer Youth Camps

The camp director must ensure that transportation for campers provided by the camp conforms to the requirements of Motor Vehicles and Traffic law, N.J.S.A. 39:1-1 et seq., and the Motor Vehicle Commission rules promulgated at N.J.A.C. 13:21.

Each bus or vehicle used to transport children who are under 18 months of age must be equipped with child passenger restraint systems which meet federal motor vehicle safety standards, in accordance with provisions of the Motor Vehicle Commission, pursuant to N.J.S.A 39:3-76.2a.

-- List all citations for these requirements, including those for licensed and license-exempt providers

Licensed Child Care Centers: N.J.A.C 3A:52-9.5

https://www.nj.gov/dcf/providers/licensing/laws/CCCmanual.pdf

Family Child Care Homes: N.J.A.C 3A:54-6.7

https://www.nj.gov/dcf/providers/licensing/laws/FCCmanual.pdf

Summer Youth Camps: N.J.A.C 8:25-8.1

https://www.nj.gov/health/ceohs/documents/phss/youth_camp.pdf

-- Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

Licensed Child Care Centers

All vehicles that are utilized to transport children must be equipped with car seats (child passenger restraint systems) and booster seats that meet Federal motor vehicle safety standards, as appropriate for the age and weight of the children transported, in accordance with applicable provisions of Motor Vehicle Commission (MVC) law, pursuant to N.J.S.A. 39:3-76.2a and f or 39:3B-10 and 11, as applicable. The center must have a written policy and procedures to

ensure the safe transportation of children, including, but not limited to, ensuring that children are secured in appropriate restraints. The center shall train each regularly-scheduled driver and additional adult on this policy prior to starting his or her position.

Family Child Care

Whenever the provider transports enrolled children, the provider must comply with all applicable State laws and rules regarding:

- The use of infant seats, child passenger restraint systems, and seat belts pursuant to N.J.S.A. 39:3-76.2a et seq.;
- The possession of a valid automobile driver's license and valid vehicle inspection sticker; and
- The possession of vehicle liability insurance

Summer Youth Camps

The camp director must ensure that transportation for campers provided by the camp conforms to the requirements of Motor Vehicles and Traffic law, N.J.S.A. 39:1-1 et seq., and the Motor Vehicle Commission rules promulgated at N.J.A.C. 13:21.

Each bus or vehicle used to transport children who are under 18 months of age must be equipped with child passenger restraint systems which meet federal motor vehicle safety standards, in accordance with provisions of the Motor Vehicle Commission, pursuant to N.J.S.A 39:3-76.2a.

-- Describe any variations based on the age of the children in care

Licensed Child Care Centers

All vehicles that are utilized to transport children must be equipped with car seats (child passenger restraint systems) and booster seats that meet Federal motor vehicle safety standards, as appropriate for the age and weight of the children transported, in accordance with applicable provisions of Motor Vehicle Commission (MVC) law, pursuant to N.J.S.A. 39:3-76.2a and f or 39:3B-10 and 11, as applicable. The center must have a written policy and procedures to ensure the safe transportation of children, including, but not limited to, ensuring that children are secured in appropriate restraints. The center shall train each regularly-scheduled driver and additional adult on this policy prior to starting his or her position.

Family Child Care

Whenever the provider transports enrolled children, the provider must comply

with all applicable State laws and rules regarding:

- The use of infant seats, child passenger restraint systems, and seat belts pursuant to N.J.S.A. 39:3-76.2a et seq.;
- The possession of a valid automobile driver's license and valid vehicle inspection sticker; and
- The possession of vehicle liability insurance

Summer Youth Camps

The camp director must ensure that transportation for campers provided by the camp conforms to the requirements of Motor Vehicles and Traffic law, N.J.S.A. 39:1-1 et seq., and the Motor Vehicle Commission rules promulgated at N.J.A.C. 13:21.

Each bus or vehicle used to transport children who are under 18 months of age must be equipped with child passenger restraint systems which meet federal motor vehicle safety standards, in accordance with provisions of the Motor Vehicle Commission, pursuant to N.J.S.A 39:3-76.2a.

-- Describe if relatives are exempt from this requirement

No

10. Pediatric first aid and cardiopulmonary resuscitation (CPR) certification

-- Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

Licensed Child Care Centers

At least two staff members must have current certified basic knowledge of first aid principles and cardiopulmonary resuscitation (CPR), as defined by a recognized health organization (such as the American Red Cross). The trained staff must be in the center at all times when enrolled children are present.

Family Child Care

At least one person providing supervision shall be certified in cardiopulmonary resuscitation (CPR).

The home must maintain documentation of a current certification in cardiopulmonary resuscitation (CPR) and completion of a first aid course taken every three years. The course must be certified through one of the following: American Heart Association; American Red Cross; National Safety Council: Infant and Toddler CPR (if care is limited to infants and toddlers), or Medic

Pediatric Course.

The first aid training and CPR certification must be applicable to any of the ages of the children enrolled in the Family Child Care Home at any given time.

Summer Youth Camps

All day and resident youth camp health directors shall hold a certification from the American Red Cross, American Heart Association, or other certification agency approved by the DOH and listed in the list of "Recognized Certifications."

-- List all citations for these requirements, including those for licensed and license-exempt providers

Licensed Child Care Centers: N.J.A.C 3A:52-5.3

https://www.nj.gov/dcf/providers/licensing/laws/CCCmanual.pdf

Family Child Care Homes: N.J.A.C 3A:54-4.1-4.2, 6.6

https://www.nj.gov/dcf/providers/licensing/laws/FCCmanual.pdf

Summer Youth Camps: N.J.A.C 8:25-5.2

https://www.nj.gov/health/ceohs/documents/phss/youth_camp.pdf

-- Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

The following

Licensed Child Care Centers

At least two staff members must have current certified basic knowledge of first aid principles and cardiopulmonary resuscitation (CPR), as defined by a recognized health organization (such as the American Red Cross). The trained staff must be in the center at all times when enrolled children are present.

Family Child Care

At least one person providing supervision shall be certified in cardiopulmonary resuscitation (CPR).

The home must maintain documentation of a current certification in cardiopulmonary resuscitation (CPR) and completion of a first aid course taken every three years. The course must be certified through one of the following: American Heart Association; American Red Cross; National Safety Council: Infant and Toddler CPR (if care is limited to infants and toddlers), or Medic Pediatric Course.

The first aid training and CPR certification must be applicable to any of the ages of the children enrolled in the Family Child Care Home at any given time.

Summer Youth Camps

All day and resident youth camp health directors shall hold a certification from the American Red Cross, American Heart Association, or other certification agency approved by the DOH and listed in the list of "Recognized Certifications."

-- Describe any variations based on the age of the children in care

There are no variations based on the age of the children in care.

-- Describe if relatives are exempt from this requirement

Relatives are not exempt from this requirement.

11. Recognition and reporting of child abuse and neglect

-- Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

The following standards apply to all providers.

Any person who has reasonable cause to believe that a child enrolled in a child care program has been or is being subjected to any kind of child abuse/neglect by any person, whether in the child care center/home or not, is required by State law to report such allegations to the Department's State Central Registry at 877 NJ-ABUSE ((877) 652-2873) pursuant (Such reports may be made anonymously).

In addition to the reporting requirements specified above, the sponsor, sponsor representative, director, or any staff member shall advise the parent(s) of the occurrence of any unusual incident(s) that occurred and that might indicate possible abuse or neglect involving the child. Such notification shall be made on the same day on which the incident occurred.

Orientation trainings on the topic of recognizing and reporting child abuse or neglect are required for all providers.

-- List all citations for these requirements, including those for licensed and license-exempt providers

N.J.S.A. 9:6-8.9, 8.10, 8.13 and 8.14

https://www.nj.gov/dcf/reporting/links/

N.J.A.C. 3A:52-4.9;

https://www.nj.gov/dcf/providers/licensing/laws/CCCmanual.pdf

NJAC 3A:54-3.4

https://www.nj.gov/dcf/providers/licensing/laws/FCCmanual.pdf

NJAC 8:25-3.1-3.2

https://www.nj.gov/health/ceohs/documents/phss/youth_camp.pdf

-- Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

All providers are subject to the statutory requirement of the recognition and reporting of child abuse and neglect

-- Describe any variations based on the age of the children in care

There are no variations based on teh age of the children in care.

-- Describe if relatives are exempt from this requirement

Relatives are not exempt from thsi requirement.

b) Does the Lead Agency include any of the following optional standards?

☐ No, if no, skip to 5.2.3.

☑ Yes, if yes provide the information related to the optional standards addressed.

1. Nutrition

--Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

Licensed Child Care Centers

Centers must ensure that food and beverages are in accordance with minimum Child and Adult Care Food Program (CACFP) standard, including portion size and nutritional value.

Family Child Care

The provider must ensure that all food prepared by the center meets certain standards in regards to who is preparing the meal and the schedule for when it is being prepared. The provider shall ensure that a child has breakfast, lunch and dinner based on the duration of care. The provider shall have back-up food, in the event that the parent forgets a meal. The provider must have clean and sanitary drinking water.

Summer Youth Camps

The camp director shall ensure that the youth camp conforms to Sanitation in Retail Food Establishments and Food and Beverage Vending Machines, N.J.A.C. 8:24, with respect to foods and food service. In addition, the camp director must ensure that the youth camp provides food of sufficient quantity and nutritional quality to provide for the dietary needs of each camper.

-- List all citations for these requirements, including those for licensed and license-exempt providers

Licensed Child Care Centers: N.J.A.C 3A:52-6.3

https://www.nj.gov/dcf/providers/licensing/laws/CCCmanual.pdf

Family Child Care Homes: N.J.A.C 3A:54-4.2, 6.14

https://www.nj.gov/dcf/providers/licensing/laws/FCCmanual.pdf

Summer Youth Camps: N.J.A.C 8:25-3.1

https://www.nj.gov/health/ceohs/documents/phss/youth_camp.pdf

--Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

Licensed Child Care Centers

Centers must ensure that food and beverages are in accordance with minimum Child and Adult Care Food Program (CACFP) standard, including portion size and nutritional value.

Family Child Care

The provider must ensure that all food prepared by the center meets certain standards in regards to who is preparing the meal and the schedule for when it is being prepared. The provider shall ensure that a child has breakfast, lunch and dinner based on the duration of care. The provider shall have back-up food,

in the event that the parent forgets a meal. The provider must have clean and sanitary drinking water.

Summer Youth Camps

The camp director shall ensure that the youth camp conforms to Sanitation in Retail Food Establishments and Food and Beverage Vending Machines, N.J.A.C. 8:24, with respect to foods and food service. In addition, the camp director must ensure that the youth camp provides food of sufficient quantity and nutritional quality to provide for the dietary needs of each camper.

-- Describe any variations based on the age of the children in care.

N/A

--Describe if relatives are exempt from this requirement

No

2. Access to physical activity

--Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

Licensed Child Care Centers

Children must be provided with daily structured and unstructured developmentally appropriate indoor and outdoor energetic physical activity as follows:

- At least 30 total minutes daily for children receiving child care less than four hours;
- At least 60 total minutes daily for children receiving child care more than four hours
- The use of a television, computers, and other video equipment shall be limited to educational and instructional use

Family Child Care

Programs must offer such things as:

- Dramatic play and language development (for example, dress-up clothes, puppets, books, play telephones and unbreakable dishes);
- Visual and small muscle development (for example, mobiles, unbreakable mirrors, blocks, rattles, puzzles, sorting and stacking toys);
- Large muscle development (for example, swings, balls, bicycles, large boxes and wagons).

- Infants shall have age-appropriate, supervised tummy time at least twice a day.

Summer Youth Camps

Generally, there are no specific policies around access to physical activity, but they do exist in this setting.

- A high risk activity includes, but is not limited to, archery, swimming and other aquatic activities, horseback riding, riflery, rope courses, motorized vehicles, and rock climbing.
- High risk activities shall be conducted by a qualified adult activity specialist.

-- List all citations for these requirements, including those for licensed and license-exempt providers

Licensed Child Care Centers: N.J.A.C 3A:52-6.1

https://www.nj.gov/dcf/providers/licensing/laws/CCCmanual.pdf

Family Child Care Homes: N.J.A.C 3A:54-6.12

https://www.nj.gov/dcf/providers/licensing/laws/FCCmanual.pdf

Summer Youth Camps: N.J.A.C 8:25-1.4, 3.2

https://www.nj.gov/health/ceohs/documents/phss/youth_camp.pdf

-Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

See above

-- Describe any variations based on the age of the children in care.

N/A

--Describe if relatives are exempt from this requirement

N/A

3. Caring for children with special needs

--Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

Licensed Child Care Centers

The following staff/child ratios shall apply for centers serving children, 50 % or more of whom have special needs, as a result of a cognitive, socio-emotional, or physical disability or disorder:

- Under 2½ years-1:3
- 2½ years of age and over (non-ambulatory)-1:3
- 2½ years of age and over (ambulatory)-1:5

The center must also provide reasonable accommodations for the administration of medication or health care procedures to a child with special needs, if failure to administer the medication or health care procedure would jeopardize the health of the child or prevent the child from attending the center.

Family Child Care

When a provider identifies or suspects an enrolled child as having a developmental delay or disability, the provider shall inform the child's parent and contact the sponsoring organization for technical assistance in meeting the child's needs.

In addition, when the provider enrolls a child with special needs, the provider shall request that the parent provide a written up-to-date special needs care plan completed by the child's primary health care provider or any other person who has evaluated or treated the child.

Summer Youth Camps

Special accommodations and extra care must be given to campers with disabilities.

-- List all citations for these requirements, including those for licensed and license-exempt providers

Licensed Child Care Centers: N.J.A.C 3A:52-4.3; 7.5

https://www.nj.gov/dcf/providers/licensing/laws/CCCmanual.pdf

Family Child Care Homes: N.J.A.C 3A:54-6.18

https://www.nj.gov/dcf/providers/licensing/laws/FCCmanual.pdf

Summer Youth Camps: N.J.A.C. 8:25-8.5

https://www.nj.gov/health/ceohs/documents/phss/youth_camp.pdf

--Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

See above

-- Describe any variations based on the age of the children in care.

N/A

--Describe if relatives are exempt from this requirement

No

4. Any other areas determined necessary to promote child development or to protect children's health and safety (98.44(b)(1)(iii)).

Describe:

N/A

--Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

N/A

-- List all citations for these requirements, including those for licensed and license-exempt providers

N/A

--Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

N/A

-- Describe any variations based on the age of the children in care.

N/A

--Describe if relatives are exempt from this requirement

N/A

5.2.3 Health and safety training for CCDF providers on required topics.

Lead Agencies are required to have minimum pre-service or orientation training requirements (to be completed within 3 months), as appropriate to the provider setting and the age of children

served, that address the health and safety topics described in 5.2.2, and child development. Lead Agencies must also have ongoing training requirements on the health and safety topics for caregivers, teachers, and directors of children receiving CCDF funds (658E(c)(2)(I)(i); 98.44(b)(1)(iii)). The state/territory must describe its requirements for pre-service or orientation training and ongoing training. These trainings should be part of a broader systematic approach and progression of professional development (as described in section 6) within a state/territory. Lead Agencies have flexibility in determining the number of training hours to require, but they may consult with Caring for our Children Basics for best practices and the recommended time needed to address these training requirements.

Pre-Service or Orientation Training Requirements

a) Provide the minimum number of pre-service or orientation training hours on health and safety topics for caregivers, teachers, and directors required for the following:

1. Licensed child care centers:

10 hours **(plus CPR/First Aid, hours vary)**

2. Licensed FCC homes:

10 hours (plus CPR/First Aid, hours vary)

3. In-home care:

12 hours (plus CPR/First Aid, hours vary)

4. Variations for exempt provider settings:

N/A

b) Provide the length of time that providers have to complete trainings subsequent to being hired (must be 3 months or fewer)

New hires must complete pre-service health and safety trainings within two (2) weeks of hire.

c) Explain any differences in pre-service or orientation training requirements based on the ages of the children served

The foundation of the CCDBG required pre-service training is the "New Jersey Health and Safety Basics" training module. NJ offers two versions of this 8 hour module. Each version is dependent on the ages of the children that the provider serves. One version was created for providers serving children from birth to

preschool age and the other version is for providers that serve school age children in centers/summer camp settings.

d) Describe how the training is offered, including any variations in delivery (e.g. across standards, in rural areas, etc.) Note: There is no federal requirement on how a training must be delivered

As part of their orientation, staff at licensed child care centers, registered and approved homes, and summer youth camps, must complete a DFD procured training module that covers health and safety and other topics as part of their orientation (as described in section 5.2.3(e)). The module consists of 8 hours of training that covers topics (2) through (12). The other two hours is fulfilled by staff through an in-person First Aid/CPR course (topic (1)) usually offered by the CCR&Rs, for a total of 10 hours. The owner/director of a child care home must take an additional course though DFD's online module that consists of an DCF/OOL policy review, Business Practices, and Program Management, for a total of 12 hours.

e) Identify below the pre-service or orientation training requirements for each topic (98.41(a)(1)(i through xi)).

1. Prevention and control of infectious diseases (including immunizations)

   Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

   The relevant citations are as follows:

   Licensed Centers: N.J.A.C. 3A:52-4.8, DFD Instruction 17-02-05

   Family Child Care: N.J.A.C. 3A:54-4.2, DFD Instruction 17-10-07

   Summer Youth Camps: N.J.A.C. 8:25-3.2(d), DFD Instruction 18-03-01

   Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF programs are allowed to care for children unsupervised?

   - [x] Yes
   - [ ] No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

☑ Yes

☐ No

Describe if relatives are exempt from this requirement

NJ is in the process of determining which relatives, if any will be exempt from this requirement.

5.2.3e 2. Prevention of sudden infant death syndrome and the use of safe-sleep practices

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Licensed Centers: N.J.A.C. 3A:52-4.8, DFD Instruction17-02-05

Family Child Care: N.J.A.C. 3A:54-4.2, DFD Instruction 17-10-07

Summer Youth Camps: N.J.A.C. 8:25-3.2(d), DFD Instruction 18-03-01

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF are allowed to care for children unsupervised?

☑ Yes

☐ No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

☑ Yes

☐ No

Describe if relatives are exempt from this requirement

NJ is in the process of determining which relatives, if any will be exempt from this requirement.

5.2.3e 3. Administration of medication, consistent with standards for parental consent

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Licensed Centers: N.J.A.C. 3A:52-4.8, DFD Instruction17-02-05

Family Child Care: N.J.A.C. 3A:54-4.2, DFD Instruction 17-10-07

Summer Youth Camps: N.J.A.C. 8:25-3.2(d), DFD Instruction 18-03-01

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF programs are allowed to care for children unsupervised?

☑ Yes

☐ No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

☑ Yes

☐ No

Describe if relatives are exempt from this requirement

NJ is in the process of determining which relatives, if any will be exempt from this requirement.

5.2.3e 4. Prevention and response to emergencies due to food and allergic reactions

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

The relevant citations are as follows:

Licensed Centers: N.J.A.C. 3A:52-4.8, DFD Instruction 17-02-05

Family Child Care: N.J.A.C. 3A:54-4.2, DFD Instruction 17-10-07

Summer Youth Camps: N.J.A.C. 8:25-3.2(d), DFD Instruction 18-03-01

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF programs are allowed to care for children unsupervised?

☑ Yes

☐ No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

☑ Yes

☐ No

Describe if relatives are exempt from this requirement

NJ is in the process of determining which relatives, if any will be exempt from this requirement.

5.2.3e 5. Building and physical premises safety, including the identification of and protection from hazards, bodies of water, and vehicular traffic

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

The relevant citations are as follows:

Licensed Centers: N.J.A.C. 3A:52-4.8, DFD Instruction 17-02-05

Family Child Care: N.J.A.C. 3A:54-4.2, DFD Instruction 17-10-07

Summer Youth Camps: N.J.A.C. 8:25-3.2(d), DFD Instruction 18-03-01

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF programs are allowed to care for children unsupervised?

☑ Yes

☐ No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

☑ Yes

☐ No

Describe if relatives are exempt from this requirement

NJ is in the process of determining which relatives, if any will be exempt from this requirement.

5.2.3e 6. Prevention of shaken baby syndrome, abusive head trauma, and child maltreatment

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

The relevant citations are as follows:

Licensed Centers: N.J.A.C. 3A:52-4.8, DFD Instruction 17-02-05

Family Child Care: N.J.A.C. 3A:54-4.2, DFD Instruction 17-10-07

Summer Youth Camps: N.J.A.C. 8:25-3.2(d), DFD Instruction 18-03-01

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF programs are allowed to care for children unsupervised?

- [x] Yes
- [ ] No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

- [x] Yes
- [ ] No

Describe if relatives are exempt from this requirement

NJ is in the process of determining which relatives, if any will be exempt from this requirement.

5.2.3e 7. Emergency preparedness and response planning for emergencies resulting from a natural disaster or a human-caused event

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

The relevant citations are as follows:

Licensed Centers: N.J.A.C. 3A:52-4.8, DFD Instruction 17-02-05

Family Child Care: N.J.A.C. 3A:54-4.2, DFD Instruction 17-10-07

Summer Youth Camps: N.J.A.C. 8:25-3.2(d), DFD Instruction 18-03-01

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF programs are allowed to care for children unsupervised?

☑ Yes

☐ No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

☑ Yes

☐ No

Describe if relatives are exempt from this requirement

NJ is in the process of determining which relatives, if any will be exempt from this requirement.

5.2.3e 8. Handling and storage of hazardous materials and the appropriate disposal of bio contaminants

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

The relevant citations are as follows:

Licensed Centers: N.J.A.C. 3A:52-4.8, DFD Instruction 17-02-05

Family Child Care: N.J.A.C. 3A:54-4.2, DFD Instruction 17-10-07

Summer Youth Camps: N.J.A.C. 8:25-3.2(d), DFD Instruction 18-03-01

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF programs are allowed to care for children unsupervised?

☑ Yes

☐ No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

☑ Yes

☐ No

Describe if relatives are exempt from this requirement

NJ is in the process of determining which relatives, if any will be exempt from this requirement.

5.2.3e 9. Appropriate precautions in transporting children (if applicable)

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

The relevant citations are as follows:

Licensed Centers: N.J.A.C. 3A:52-4.8, DFD Instruction 17-02-05

Family Child Care: N.J.A.C. 3A:54-4.2, DFD Instruction 17-10-07

Summer Youth Camps: N.J.A.C. 8:25-3.2(d), DFD Instruction 18-03-01

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF programs are allowed to care for children unsupervised?

☑ Yes

☐ No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

☑ Yes

☐ No

Describe if relatives are exempt from this requirement

NJ is in the process of determining which relatives, if any will be exempt from this requirement.

5.2.3e 10. Pediatric first aid and CPR certification

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

The relevant citations are as follows:

Licensed Centers: N.J.A.C. 3A:52-4.8, DFD Instruction 17-02-05

Family Child Care: N.J.A.C. 3A:54-4.2, DFD Instruction 17-10-07

Summer Youth Camps: N.J.A.C. 8:25-3.2(d), DFD Instruction 18-03-01

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF programs are allowed to care for children unsupervised?

☑ Yes

☐ No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

☑ Yes

☐ No

Describe if relatives are exempt from this requirement

NJ is in the process of determining which relatives, if any will be exempt from this requirement.

5.2.3e 11. Recognition and reporting of child abuse and neglect

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

The relevant citations are as follows:

Licensed Centers: N.J.A.C. 3A:52-4.8, DFD Instruction 17-02-05

Family Child Care: N.J.A.C. 3A:54-4.2, DFD Instruction 17-10-07

Summer Youth Camps: N.J.A.C. 8:25-3.2(d), DFD Instruction 18-03-01

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF programs are allowed to care for children unsupervised?

☑ Yes

☐ No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

☑ Yes

☐ No

Describe if relatives are exempt from this requirement

NJ is in the process of determining which relatives, if any will be exempt from this requirement.

5.2.3e 12. Child development (98.44(b)(1)(iii))

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

The relevant citations are as follows:

Licensed Centers: N.J.A.C. 3A:52-4.8, DFD Instruction 17-02-05

Family Child Care: N.J.A.C. 3A:54-4.2, DFD Instruction 17-10-07

Summer Youth Camps: N.J.A.C. 8:25-3.2(d), DFD Instruction 18-03-01

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF programs are allowed to care for children unsupervised?

☑ Yes

☐ No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

☑ Yes

☐ No

Describe if relatives are exempt from this requirement

NJ is in the process of determining which relatives, if any will be exempt from this requirement.

5.2.3e 13.

Describe other training requirements, such as nutrition, physical activities, caring for children with special needs, etc..

N/A

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

N/A

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF programs are allowed to care for children unsupervised?

- ☐ Yes
- ☐ No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

- ☐ Yes
- ☐ No

Describe if relatives are exempt from this requirement

Ongoing Training Requirements

5.2.4 Provide the minimum number of annual training hours on health and safety topics for caregivers, teachers, and directors required for the following.

a) Licensed child care centers:

12 hours of continuing staff development each year

b) Licensed FCC homes:

20 hours of in-service training within a 3 year registration period (or approximately 8 hours of in-service training per year)

c) In-home care:

8 hours of in-service training per year

d) Variations for exempt provider settings:

N/A

5.2.5 Describe the ongoing health and safety training for CCDF providers by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

1. Prevention and control of infectious diseases (including immunizations)

-- Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Licensed Child Care Centers Child care centers must ensure that all staff members who work at the center complete 12 hours of continuing staff development each year.

Family Child Care

In-service training is provided on a semi-annual basis by means of group or individual instruction and written material. In-service training includes continued reinforcement of the subjects presented during the pre-service training. A total of at least eight hours of in-service training are offered to providers each year.

The relevant citations are as follows:

Licensed Child Care Centers: N.J.A.C. 3A:52-4.8

DFD instruction: 17-02-05

Family Child Care: N.J.A.C. 3A:54-4.2

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed CCDF programs?

☑ Annually

☐ Other

Describe:

Licensed Child Care Centers Child care centers must ensure that all staff members who work at the center complete 12 hours of continuing staff development each year. There is no specific requirement that any particular health and safety topic has to be completed annually. Similarly, there is no specification of the format or medium of the ongoing trainings.

Family Child Care

In-service training is provided on a semi-annual basis by means of group or individual instruction and written material. In-service training includes continued reinforcement of the subjects presented during the pre-service training. A total of at least eight hours of in-service training are offered to providers each year.

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed-exempt CCDF programs?

☑ Annually

☐ Other

Describe:

Summer Youth Camp

Staff at summer youth camps must complete training annually. Going forward, each year staff at camps that serve CCDF families must complete the training offered on the New Jersey child care website. As such, staff at these camps complete all of the health and safety trainings annually.

Approved Homes and license-exempt providers that receive oversight from the Department of Education are also required to undergo ongoing training annually.

Health and safety training policies are outlined in the following policy guidance documents and state regulation.

DFD Instruction 18-03-01

DFD Instruction: 17-10-07

DFD Instruction 17-10-09

DFD Instruction 17-10-05

Summer Youth Camps: N.J.A.C. 8:25-3.2(d)

2. Prevention of sudden infant death syndrome and the use of safe-sleep practices

-- Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Licensed Child Care Centers Child care centers must ensure that all staff members who work at the center complete 12 hours of continuing staff development each year.

Family Child Care

In-service training is provided on a semi-annual basis by means of group or individual instruction and written material. In-service training includes continued reinforcement of the subjects presented during the pre-service training. A total of at least eight hours of in-service training are offered to providers each year.

The relevant citations are as follows:

Licensed Child Care Centers: N.J.A.C. 3A:52-4.8

DFD instruction: 17-02-05

Family Child Care: N.J.A.C. 3A:54-4.2

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed CCDF programs?

☐ Annually

☑ Other

Describe:

Licensed Child Care Centers Child care centers must ensure that all staff members who work at the center complete 12 hours of continuing staff development each year.

Family Child Care

In-service training is provided on a semi-annual basis by means of group or individual instruction and written material. In-service training includes

continued reinforcement of the subjects presented during the pre-service training. A total of at least eight hours of in-service training are offered to providers each year.

The relevant citations are as follows:

Licensed Child Care Centers: N.J.A.C. 3A:52-4.8

DFD instruction: 17-02-05

Family Child Care: N.J.A.C. 3A:54-4.2

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed-exempt CCDF programs?

☑ Annually

☐ Other

Describe:

Summer Youth Camp

Staff at summer youth camps must complete training annually. Going forward, each year staff at camps that serve CCDF families must complete the training offered on the New Jersey child care website. As such, staff at these camps complete all of the health and safety trainings annually.

Approved Homes and license-exempt providers that receive oversight from the Department of Education are also required to undergo ongoing training annually.

Health and safety training policies are outlined in the following policy guidance documents and state regulation.

DFD Instruction 18-03-01

DFD Instruction: 17-10-07

DFD Instruction 17-10-09

DFD Instruction 17-10-05

Summer Youth Camps: N.J.A.C. 8:25-3.2(d)

3. Administration of medication, consistent with standards for parental consent

-- Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Licensed Child Care Centers Child care centers must ensure that all staff

members who work at the center complete 12 hours of continuing staff development each year.

Family Child Care

In-service training is provided on a semi-annual basis by means of group or individual instruction and written material. In-service training includes continued reinforcement of the subjects presented during the pre-service training. A total of at least eight hours of in-service training are offered to providers each year.

The relevant citations are as follows:

Licensed Child Care Centers: N.J.A.C. 3A:52-4.8

DFD instruction: 17-02-05

Family Child Care: N.J.A.C. 3A:54-4.2

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed CCDF programs?

☑ Annually

☐ Other

Describe:

<u>Licensed Child Care Centers</u> Child care centers must ensure that all staff members who work at the center complete 12 hours of continuing staff development each year.

Family Child Care

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Describe:

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Approved Homes and license-exempt providers that receive oversight from the Department of Education are also required to undergo ongoing training annually.

Health and safety training policies are outlined in the following policy guidance documents and state regulation.

DFD Instruction 18-03-01

DFD Instruction: 17-10-07

DFD Instruction 17-10-09

DFD Instruction 17-10-05

Summer Youth Camps: N.J.A.C. 8:25-3.2(d)

4. Prevention and response to emergencies due to food and allergic reactions

-- Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Licensed Child Care Centers Child care centers must ensure that all staff members who work at the center complete 12 hours of continuing staff development each year.

Family Child Care

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DFD Instruction 17-10-05

Summer Youth Camps: N.J.A.C. 8:25-3.2(d)

5. Building and physical premises safety, including the identification of and protection from hazards, bodies of water, and vehicular traffic

-- Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

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Family Child Care

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DFD Instruction 17-10-09

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Summer Youth Camps: N.J.A.C. 8:25-3.2(d)

6. Prevention of shaken baby syndrome, abusive head trauma, and child maltreatment

-- Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

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Family Child Care

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7. Emergency preparedness and response planning for emergencies resulting from a natural disaster or a human-caused event

-- Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

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Family Child Care

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8. Handling and storage of hazardous materials and the appropriate disposal of bio-contaminants

-- Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

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9. Appropriate precautions in transporting children (if applicable)

-- Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

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10. Pediatric first aid and CPR certification

-- Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

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Summer Youth Camps: N.J.A.C. 8:25-3.2(d)

11. Recognition and reporting of child abuse and neglect

-- Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

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12. Child development (98.44(b)(1)(iii))

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

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13. Describe other requirements such as nutrition, physical activities, caring for children with special needs, etc..

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Provide the citation for other training requirements, including citations for both licensed and license-exempt providers

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5.3 Monitoring and Enforcement Policies and Practices for CCDF Providers

5.3.1 Enforcement of licensing and health and safety requirements

Lead agencies must certify that procedures are in effect to ensure that child care providers caring for children receiving CCDF services comply with all applicable State and local health and safety requirements, including those described in 98.41 (98.42(a)). This may include, but is not limited to, any systems used to ensure that providers complete health and safety trainings, any documentation required to be maintained by child care providers or any other monitoring procedures to ensure compliance. Note: Inspection requirements are described starting in 5.3.2.

To certify, describe the procedures to ensure that CCDF providers comply with all applicable State and local health and safety requirements

The provisions of N.J.A.C. 3A:52 (Manual of Requirements for Child Care Centers) are promulgated pursuant to the Child Care Center Licensing Act, N.J.S.A. 30:5B-1 and require certain public and private child care centers to be licensed by the Department of Children and Families (DCF) and to undergo examinations and inspections by the state and local fire, health, and building officials to determine the center's compliance with State and local ordinances, codes, and regulations.

The provisions of N.J.A.C. 3A:54 (Manual of Requirements for Family Child Care Registration) are promulgated pursuant to the Family Day Care Provider Registration Act, N.J.S.A. 30:5B-16 and require certain family child care homes to be inspected and monitored to determine compliance with the health and safety regulations before receiving a Certification of Registration.

Approved Home Providers are child care providers not registered pursuant to the Family Day Care Provider Registration Act, but whose homes have been evaluated

and approved for payments. "Approved Home Providers" include both "Family, Friend and Neighbors (FFN) and "In-Home Providers." The minimum requirements for approval of the home are an inspection of the home using the Self-Arranged Care Inspection and Interview Checklist (see N.J.A.C. 10:15-2.4(a)10)), an interview with the provider and family members, and a CARI check completed for all prospective approved home providers and all household members of the home 14 years of age and older conducted by the Department of Children and Families.

Summer Youth Camps are required to be licensed under the Youth Camp Safety Act N.J.S.A 26:12-1 and are regulated through the New Jersey Department of Health (NJDOH) and are exempt from licensing laws specified in NJAC 3A:52.

In addition, NJ is in the process of developing a joint system that allows for the automation and standardization of DFD and DCF processes. The system is called the New Jersey Child Care Information System (NJCCIS) and will increase the use of automation in the licensing process, by: (1) Allowing providers to apply for licenses on-line (2) Allowing users to communicate with administrative staff via dashboard notification. NJCCIS will allow DFD and DCF staff to collect, manage and track programs and providers quality improvement efforts, licensing and inspection activities, background checks, and training progress.

NJCCIS will accurately track the activities of all licensed, regulated, registered and license exempt; such as licensed centers, family child care, approved and in-home providers, public and private schools, and camps (both subsidized and non-subsidized) in the state.

5.3.2 Inspections for licensed CCDF providers.

Lead agencies must require licensing inspectors to perform inspections-with no fewer than one pre-licensure inspection for compliance with health, safety, and fire standards-of each child care provider and facility in the state/territory. Licensing inspectors are required to perform no fewer

than one annual, unannounced inspection of each licensed CCDF provider for compliance with all child care licensing standards; it shall include an inspection for compliance with health and safety (including, but not limited to, those requirements described in 98.41) and fire standards; inspectors may inspect for compliance with all three standards - health, safety, and fire - at the same time (658E(c)(2)(K)(i)(II); 98.16 (n); 98.42(b)(2)(i)). Certify by responding to the questions below to describe your state/territory's monitoring and enforcement procedures to ensure that licensed child care providers comply with licensing standards, including compliance with health and safety (including, but not limited to, those requirements described in 98.41) and fire standards.

a) Licensed CCDF center-based child care

1. Describe your state/territory's requirements for *pre-licensure inspections* of licensed child care center providers for compliance with health, safety, and fire standards

Pursuant to NJAC 3A:52, DCF/OOL is required to conduct an inspection prior to issuing a license to ensure compliance with all relevant local/state law and regulations as well as CCDBG federally mandated health and safety requirements. OOL inspectors check for compliance with State and local fire, health and building rules, as well as federal CCDBG requirements including ratio and staff qualification requirements. The inspections must be conducted prior to the issuance of the license and the results reported to DCF within 60 days after the request for licensure.

2. Describe your state/territory's requirements for annual, unannounced inspections of licensed CCDF child care center providers

DCF/OOL is authorized to conduct an annual unannounced inspection of the physical plant or facilities, including, but not limited to, storage areas and additional floor levels of a child care center without delay or an escort. DCF-OOL can inspect all documents, records, files, or other data maintained during the center's normal operating hours and without prior notice to ensure compliance with local, State, and federal CCDBG health and safety requirements.

3. Identify the frequency of unannounced inspections:

- [x] Once a year
- [ ] More than once a year

Describe:

4. Describe the monitoring procedures (including differential monitoring, if applicable) and how the inspections ensure that child care center providers comply with the applicable licensing standards, including health, safety, and fire standards.

Monitoring inspections occur throughout the year for licensed child care centers (and are conducted once a year at a minimum or more in response to complaints). The Office of Licensing may deny an application or suspend, revoke or refuse to renew a license or a Certificate of Life/Safety Approval for good cause, including the following, as applicable:

- Failure to comply with the laws specified in NJAC 3A:52-1.1(a)
- Violations of the terms and conditions of a license of Certificate of Life/Safety approval
- Refusal to furnish the Dept. with files, reports, or records as required by NJAC 3A:52
- Refusal to permit an authorized representative of the Dept. to gain admission to the center and/or to conduct an inspection or investigation during the center's operating horus
- Any activity, policy or staff conduct that adversely affects or presents serious hazard to the education, health safety, well being or development of a child attending a center, or that otherwise demonstrates unfitness by a staff member to operate a center
- Failure to provide developmental activities that meet the physical, social, emotional, and cognitive needs of the children served
- Failure by the child care sponsor to secure and maintain on file conviction disclosures as specified in NJAC 3A52-4.1, Child Abuse Record Information (CARI) background checks as specified in NJAC 3A:52 - 4.9, or Criminal History Record Information (CHRI) fingerprint background checks as specified in NJAC 3A:52 - 4.10
- A determination by the Department's Institutional Abuse Investigation Unit that children in the center are at risk of harm
- Refusal by the sponsor to consent to a Child Abuse Record Information background check for himself or herself, or terminate the employment of a staff member who refuses to consent to a Child Abuse Record information background check.
- Refusal of a staff member when a Child Abuse Record Information backgroundcheck reveals that an incident of child abuse or neglect has been substantiated against
  the staff member;
- Child Abuse Record Information background check that reveals that an incident of child abuse or neglect has been substantiated against the sponsor/sponsor

representative; or
- Failure to comply with the provisions of P.L. 1998, c.35, which prohibit smoking in child care centers, as specified in N.J.A.C. 3A:52 -7.7(d).

If the Office of Licensing denies an application or revokes or refuses to renew a center's license or Certificate of Life/Safety Approval, as specified above due to a monitoring inspection, the sponsor/sponsor representative of the center shall be prohibited from reapplying for a license or a Certificate of Life/Safety Approval for one year from the date of the denial, revocation or refusal to renew.

5. List the citation(s) for your state/territory's policies regarding inspections for licensed CCDF center providers

N.J.A.C. 3A:52-1.1(a), 2.8, 4.1, 4.9, 4.10, 5.3

b) Licensed CCDF family child care home

1. Describe your state/territory's requirements for *pre-licensure inspections* of licensed family child care providers for compliance with health, safety, and fire standards

CCR&Rs are required to conduct an inspection to ensure that each provider complies with all relevant local and State health and safety requirements , as well as CCDBG mandated federal health, safety, and fire requirements before issuing new or renewal Certificates of Registration to family child care providers. The provide shall permit and participate in an inspection prior to renewal of the Certificate of Registration.

2. Describe your state/territory's requirements for annual, unannounced inspections of licensed CCDF family child care providers

The CCR&R must conduct annual, unannounced monitoring inspections prior to renewing the certificate of registration.

3. Identify the frequency of unannounced inspections:

☑ Once a year

☐ More than once a year

Describe:

4. Describe the monitoring procedures (including differential monitoring, if applicable) and how the inspections ensure that CCDF family child care providers comply with the

applicable licensing standards, including health, safety, and fire standards.

The Office of Licensing conducts a triennial comprehensive programmatic inspection of the CCR&Rs to ensure that they are monitoring providers appropriately.

5. List the citation(s) for your state/territory's policies regarding inspections for licensed CCDF family child care providers

NJAC 3A:54-4.7, 5.4

c) Licensed in-home CCDF child care

☑ N/A. In-home CCDF child care (care in the child's own home) is not licensed in the State/Territory. Skip to 5.3.2 (d).

1. Describe your state/territory's requirements for *pre-licensure inspections* of licensed in-home child care providers for compliance with health, safety, and fire standards

2. Describe your state/territory's requirements for annual, unannounced inspections of licensed CCDF in-home child providers

3. Identify the frequency of unannounced inspections:

☑ Once a year

☐ More than once a year

Describe:

4. Describe the monitoring procedures (including differential monitoring, if applicable) and how the inspections ensure that in-home CCDF child care providers comply with the applicable licensing standards, including health, safety, and fire standards.

5. List the citation(s) for your state/territory's policies regarding inspections for licensed in-home CCDF providers

d) List the entity(ies) in your state/territory that are responsible for conducting pre-licensure inspections and unannounced inspections of licensed CCDF providers

i. Department of Children and Families, Office of Licensing conducts pre-licensure and unannounced inspections for licensed child care centers.

ii. Department of Children and Families, Office of Licensing's sponsoring organization(s)(the Child Care Resource and Referral Agencies) conduct pre-licensure and unannounced inspections for registered family child care homes.

5.3.3 Inspections for license-exempt CCDF providers

Lead Agencies must have policies and practices that require licensing inspectors (or qualified monitors designated by the Lead Agency) to perform an annual monitoring visit of each license-exempt CCDF provider for compliance with health, safety (including, but not limited to, those requirements described in 98.41), and fire standards (658E(c)(2)(K)(i)(IV); 98.42(b)(2)(ii)). Lead Agencies have the option to exempt relative providers (as described in section (658P(6)(B)) from this requirement. To certify, respond to the questions below to describe the policies and practices for the annual monitoring of:

a) License-exempt center-based CCDF providers, including if monitoring is announced or unannounced, occurs more frequently than once per year, and if differential monitoring is used

Public School districts: The Health and Safety Evaluation of School Buildings Checklist is done as a part of the New Jersey Quality Single Accountability Continuum (NJQSAC) for the evaluation of school buildings including public school districts, private schools, charter schools, and any other school setting to ensure compliance with state and local health and safety laws. The checklist is part of a 3 year evaluation process and is completed annually.

Summer Youth Camps: The Department of Health or local health authority (county level) shall inspect every youth camp as required by Recognized Public Health Activities and Minimum Standards of Performance for Local Boards of Health in New Jersey, pursuant to N.J.A.C. 8:52 prior to operating, and as often as the Department deems necessary thereafter. The Department of Health Commissioner may issue a provisional certificate of approval for a camp director to establish and operate a day or resident youth camp prior to inspection by the Department of Health. Conversion to and issuance of final approval

shall be contingent upon the completion of two unannounced satisfactory inspections conducted while the camp is operational.

Provide the citation(s) for this policy or procedure

Public School districts : NJAC 18A:7A-3

Summer Youth Camps: NJAC 8:52; NJAC 8:25-2.3 & 14.2

b) License-exempt family child care CCDF providers, including if monitoring is announced or unannounced, occurs more frequently than once per year, and if differential monitoring is used

Approved Homes (Family, Friends, and Neighbors (FFN) child care takes place in the home of the provider)

"Approved home" or "approved home provider" means a child care provider not registered pursuant to the Family Child Care Provider Registration Act (see N.J.A.C. 3A:54), whose home has been evaluated and authorized for payment through the Department of Human Services, Division of Family Development child care services programs, using the Self-Arranged Care Inspection and Interview Checklist. FFN Approved homes are subject to at least one unannounced monitoring inspection.

Provide the citation(s) for this policy or procedure

N.J.A.C. 10:15-2.4(a)10)

DFD Instruction 17-10-07

c) License-exempt in-home CCDF providers, including if monitoring is announced or unannounced, occurs more frequently than once per year, if relative care is exempt from monitoring, and if differential monitoring is used

Approved Homes (In-Home child care takes place in the home of the child)

"Approved home" or "approved home provider" means a child care provider not registered pursuant to the Family Child Care Provider Registration Act (see N.J.A.C. 3A:54), whose home has been evaluated and authorized for payment through the Department of Human Services, Division of Family Development child care services programs, using the Self-Arranged Care Inspection and Interview Checklist. FFN Approved homes are subject to at least one unannounced monitoring inspection.

Provide the citation(s) for this policy or procedure

N.J.A.C. 10:15-2.4(a)10)

DFD Instruction 17-10-07

d) Lead Agencies have the option to develop alternate monitoring requirements for care provided in the child's home (98.42(b)(2)(iv)(B)). Does your state use alternate monitoring procedures for monitoring in-home care?

☑ No

☐ Yes. If yes,

decsibe:

e) List the entity(ies) in your state/territory that are responsible for conducting inspections of license-exempt CCDF providers

i. The Child Care Resource and Referral Agencies (under the authority of the Division of Family Development) conduct pre-licensure inspections and unannounced inspections for approved homes (including Family Friend and Neighbor and In-Home Providers)

ii. The Department of Health & Local Health Authorities license and inspect summer youth camps.

iii. The Department of Education and local health authorities conducts inspections for school districts

5.3.4 Licensing inspectors.

Lead Agencies will have policies and practices that ensure that individuals who are hired as licensing inspectors (or qualified monitors designated by the Lead Agency) are qualified to inspect child care providers and facilities and have received health and safety training appropriate to the provider setting and age of the children served. Training shall include, but is not limited to, those requirements described in 98.41(a)(1) and all aspects of the State's licensure requirements (658E(c)(2)(K)(i)(I); 98.42(b)(1-2)).

a) To certify, describe how the Lead Agency ensures that licensing inspectors (or qualified monitors designated by the Lead Agency) are qualified to inspect child care facilities and providers and that those inspectors have received training on health and safety requirements that are appropriate to the age of the children in care and the type of

provider setting (98.42(b)(1-2)).

Child Care Quality Assurance Inspectors are employees of the Department of Children and Family's Office of Licensing and are trained to conduct inspections and evaluations of physical facilities and residential treatment center programs, pregnant and parenting adolescent programs, children's residential adventure programs, juvenile sex offender programs, partial care programs, youth case management programs, children's shelters and shelter homes, children's group homes, supervised transitional living homes, treatment homes, teaching family homes, psychiatric community residences for youth, resource family homes and parents, child care centers, registered family care homes, sponsoring organizations and adoption agencies to ensure their compliance with state and federal statutes and regulations and with department standards of child care centers, family child care homes, resource family homes.

An individual must possess the following education and experience in order to qualify as a Child Care Quality Assurance inspector: Graduation from an accredited college or university with a Bachelor's degree; Two (2) - Three (3) years of experience in the licensing, regulation, inspection or evaluation of child care centers, family day care homes, child placement agencies, residential or shelter facilities, group homes, resource family homes, or other facilities or homes for children or, as a manager, director, administrator, supervisor or comparable position in a child care placement agency, child care center, residential facility, shelter, group home or other facility/home for children, or

Two (2) to three (3) years of experience in social services, direct support counseling, guidance and/or casework involving high risk child abuse and neglect or other problematic socioeconomic situations involving counseling services to clients with social, emotional, psychological, or behavioral problems including gathering and analyzing information, determining needs, and planning and supporting and/or carrying out treatment plans.

b) Provide the citation(s) for this policy or procedure

Child Care Licensing Act (NJSA 30:5-1) and the Resource Family Parent Licensing Act (NJSA 30:4C-27.3).

5.3.5 The states and territories shall have policies and practices that require the ratio of licensing inspectors to child care providers and facilities in the state/territory to be maintained at a level sufficient to enable the state/territory to conduct effective inspections of child care providers and facilities on a timely basis in accordance with federal, state, and local laws (658E(c)(2)(K)(i)(III); 98.42(b)(3)).

a) To certify, describe the state/territory policies and practices regarding the ratio of licensing inspectors to child care providers (i.e. number of inspectors per number of child care providers) and facilities in the state/territory and include how the ratio is sufficient to conduct effective inspections on a timely basis.

Although there is no ratio defined in law, inspections and monitoring are generally completed with the required frequency. Through terms established in a Memorandum of Agreement, DHS/DFD provides DCF additional annual funding to help ensure a sufficient amount of full-time employee positions for monitoring centers that accept CCDF families. As **part of NJ's CCDBG plan for federal FY 2016-2018, the Department of Children and Families was required to conduct annual unannounced inspections of child care providers that accept**
State subsidies. This requirement also newly applies to previously license-exempt providers accepting CCDBG funds, including public schools, summer camps, and family day care homes. On, May 2, 2016, the DCF indicated that the previously license-exempt providers were being transitioned into the licensing system, and that it was anticipating approximately 500 additional child care inspections for licensure. The Department of Children and Families (DCF) indicated that the Office of Child Care and Youth Residential Licensing had a target ratio of child care inspectors to child care centers of 1:75. At the time, DCF indicated the ratio at that time was 1:82 (48 inspectors for 3,934 centers).The ratios appear to be sufficient because centers are monitored at intervals required by law.

b) Provide the policy citation and state/territory ratio of licensing inspectors

NJ Statute concerning child care licensing inspection intervals are found in the Child Care Licensing Act (NJSA 30:5-1) and the Resource Family Parent Licensing Act (NJSA 30:4C-27.3). There are 3,900 Child Care Centers which are on a triennial

licensing cycle but are also subjected to annual monitoring inspections. There are currently 53 Child Care Inspector positions with no current vacancies and 21 Youth Residential Licensing Inspectors with 1 vacancy. The current ratio satisfies the required target.
As a result of additional requirements associated with the federal Child Care Development Block Grant, which expand the number of child care facilities in NJ that
require inspections, the Division of Family Development in the Department of Human
Services has agreed to fund additional 9 child care inspectors and two paralegal assistant positions at DCF. These additional positions have assisted DCF in maintaining
its current inspector to center ratio.

5.3.6 States and territories have the option to exempt relatives (defined in CCDF regulations as grandparents, great-grandparents, siblings if living in a separate residence, aunts, and uncles (98.42(c)) from inspection requirements. Note: This exception only applies if the individual cares only for relative children. Does the state/territory exempt relatives from the inspection requirements listed in 5.3.3?

☐ Yes, relatives are exempt from all inspection requirements.
If the state/territory exempts relatives from all inspection requirements, describe how the state ensures the health and safety of children in relative care.

☐ Yes, relatives are exempt from some inspection requirements.
If the state/territory exempts relatives from the inspection requirements, describe which inspection requirements do not apply to relative providers (including which relatives may be exempt) and how the State ensures the health and safety of children in relative care.

☑ No, relatives are not exempt from inspection requirements.

5.4 Criminal Background Checks

The CCDBG Act requires states and territories to have in effect requirements, policies and procedures to conduct criminal background checks for all child care staff members (including prospective staff members) of all child care programs that are 1) licensed, regulated, or registered under state/territory law; or, 2) all other providers eligible to deliver CCDF services (e.g., license-exempt CCDF eligible providers) (98.43(a)(1)(i)). Background check requirements apply to any staff member who is employed by a child care provider for compensation, including contract employees and self-employed individuals; whose activities involve the care or supervision of children; or who has unsupervised access to children (98.43(2)). For FCC homes, this requirement includes the caregiver and any other adults residing in the family child care home who are age 18 or older (98.43(2)(ii)(C)). This requirement does not apply to individuals who are related to all children for whom child care services are provided (98.43(2)(B)(ii)).

A criminal background check must include 8 specific components (98.43(2)(b)), which encompass 3 in-state checks, 2 national checks, and 3 inter-state checks

Components	In-State	National	Inter-State
1. Criminal registry or repository using fingerprints in the current state of residency	x		
2. Sex offender registry or repository check in the current state of residency	x		
3. Child abuse and neglect registry and database check in the current state of residency	x		
4. FBI fingerprint check		x	
5. National Crime Information Center (NCIC) National Sex Offender Registry (NSOR)		x	
6. Criminal registry or repository in any other state where the individual has resided in the past 5 years, with the use of fingerprints being optional			x
7. Sex offender registry or repository in any other state where the individual has resided in the past 5 years			x
8. Child abuse and neglect registry and database in any other state where the individual has resided in the past 5 years			x

In recognition of the significant challenges to implementing the Child Care and Development Fund (CCDF) background check require+J514ments, all States applied for and received extensions through September 30, 2018. The Office of Child Care (OCC)/Administration for Children and Families (ACF)/U. S. Department of Health and Human Services (HHS) is

committed to granting additional waivers of up to 2 years, in one year increments (i.e., potentially through September 30, 2020) if significant milestones for background check requirements are met.

In order to receive these time-limited waivers, states and territories will demonstrate that the milestones are met by responding to questions 5.4.1 through 5.4.4 and then apply for the time-limited waiver by completing the questions in Appendix A: Background Check Waiver Request Form. By September 30, 2018, states and territories must have requirements, policies and procedures for four specific background check components, and must be conducting those checks for all new (prospective) child care staff, in accordance with 98.43 and 98.16(o):

--The national FBI fingerprint check; and,	
--The three in-state background check provisions for the current state of residency:	
	--state criminal registry or repository using fingerprints;
	--state sex offender registry or repository check;
	--state-based child abuse and neglect registry and database.

All four components are required in order for the milestone to be considered met.

Components	New (Prospective) Staff	Existing Staff
1. Criminal registry or repository using fingerprints in the current state of residency	Milestone/Prerequisite for Waiver	Possible Time Limited Waiver for current (existing) staff
2. Sex offender registry or repository check in the current state of residency	Milestone/Prerequisite for Waiver	Possible Time Limited Waiver for current (existing) staff
3. Child abuse and neglect registry and database check in the current state of residency	Milestone/Prerequisite for Waiver	Possible Time Limited Waiver for current (existing) staff
4. FBI fingerprint check	Milestone/Prerequisite for Waiver	Possible Time Limited Waiver for current (existing) staff
5. National Crime Information Center (NCIC) National Sex Offender Registry (NSOR)	Possible Time Limited Waiver for: --Establishing requirements and procedures and/or --Conducting checks on all new (prospective) staff and/or --Conducting checks on current (existing) staff	
6. Criminal registry or repository in any other state where the individual has resided in the past 5 years, with the use of fingerprints being optional	Possible Time Limited Waiver for: --Establishing requirements and procedures and/or --Conducting checks on all new (prospective) staff and/or --Conducting checks on current (existing) staff	
7. Sex offender registry or repository in any other state where the individual has resided in the past 5 years	Possible Time Limited Waiver for: --Establishing requirements and procedures and/or --Conducting checks on all new (prospective) staff and/or --Conducting checks on current (existing)	

	staff
8. Child abuse and neglect registry and database in any other state where the individual has resided in the past 5 years	Possible Time Limited Waiver for: --Establishing requirements and procedures and/or --Conducting checks on all new (prospective) staff and/or --Conducting checks on current (existing) staff

Use the questions below to describe the status of the requirements, policies and procedures for background check requirements. These descriptions must provide sufficient information to demonstrate how the milestone prerequisites are being met and the status of the other components that are not part of the milestone. Lead Agencies have the opportunity to submit a waiver request in Appendix A: Background Check Waiver Request Form, for components not included in the milestones. Approval of these waiver requests will be subject to verification that the milestone components have been met as part of the CCDF Plan review and approval process.

In-state Background Check Requirements

5.4.1 In-State Criminal Registry or Repository Checks with Fingerprints Requirements (98.43(b)(3)(i)).

Note: A search of a general public facing judicial website does not satisfy this requirement. This check is required in addition to the national FBI criminal history check (5.4.4 below) to mitigate any gaps that may exist between the two sources.

a) Milestone #1 Prerequisite for New (Prospective) Child Care Staff: Describe the requirements, policies and procedures for the search of the in-state criminal registry or repository, with the use of fingerprints required in the state where the staff member resides.

i. Describe how these requirements, policies and procedures apply to all licensed, regulated, or registered child care providers, in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

New Jersey's Criminal History Record Information, or CHRI, fingerprint check fulfills the In-State Criminal Registry Check Fingerprint Requirements at 98.43(b)(3)(i)).

The CHRI check produces information collected by criminal justice agencies that is stored in the central repository of the New Jersey State Police State Bureau of Identification, the National Crime Information Center (NCIC), or other States' computerized repositories containing criminal history record information.

This includes identifiable descriptions and notations of arrests, indictments, or other formal criminal charges, and any dispositions arising therefrom, including convictions, pending court actions, dismissals, acquittals, sentencing, correctional supervision and release. N.J.A.C. 13:59-1.1.
Licensed child care centers must undergo a CHRI check as a condition of securing a license.
The business must ensure that all relevant staff members and leadership complete the CHRI fingerprint background check. Any applicant 18 years or older applying for a position at child care center or registered home must undergo a CHRI by submitting a request form prescribed by either the State or the federal government. The DHS Office of Program Integrity and Accountability Central Fingerprint Unit manage the CHRI process for this specific purpose. This Unit collects fingerprint and applicant information and conveys it to State Police and the FBI. The results are then supplied back to the Unit which in turn relays them to DHS or DCF.

ii. Describe how these requirements, policies and procedures apply to all other providers eligible to deliver CCDF services (e.g., license-exempt CCDF eligible providers), in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations
Programs operated by the board of education of a local public school district, charter and private schools and youth camps are considered exempt from licensure pursuant to the laws specified in N.J.A.C. 3A:52-1.1(a). With the exception of youth camps, private, public and charter schools are required to be licensed and therefore subject to background checks to qualify for funds through CCDF
The Criminal History Review Unit (CHRU) is responsible for conducting criminal history background checks on employees in the public, private handicap, and nonpublic schools in New Jersey. This unit is responsible for executing the statutory mandates of the enabling legislation, N.J.S.A.18A:6-7.1 et seq., N.J.S.A.18A:39-17 et seq., N.J.S.A. 18A:6-4.13 et seq., and N.J.S.A. 18A:12-1 et seq. in a comprehensive manner. The criminal history record check process includes a fingerprint search of the applicant/employee by the New Jersey State Police (NJSP) and the Federal Bureau of Investigation (FBI).
Youth camps are required to be licensed under the Youth Camp Safety Act of New Jersey pursuant to N.J.S.A. 26:12-1 et seq. Youth camp operators are required to conduct a criminal history check for each adult staff member pursuant to NJAC 8:25 - 3.2)(j).

b) Has the search of the in-state criminal registry or repository, with the use of fingerprints, been conducted for all current (existing) child care staff?

☐ Yes

Describe, if applicable, any differences in the process for existing staff than what was described for new staff and provide citations.

☑ No. (Waiver request allowed. See Appendix A). Describe the status of conducting the search of the state criminal registry or repository, using fingerprints for current (existing) child care staff including:

-- Efforts to date to complete the requirement for all existing child care staff in licensed, regulated or registered programs

-- Efforts to date to complete the requirement for all existing child care staff in other programs eligible to receive CCDF services (e.g. license-exempt CCDF eligible providers)

-- Key challenges to fully implementing this requirements

-- Strategies used to address these challenges

Describe:

In-State Criminal Registry Fingerprints Requirements currently apply to all licensed child care providers.

Full compliance will include expanding In-State Criminal Registry or Repository Checks to license exempt providers defined at 3A:52-1.3 and Registered Family Child Care Providers (defined at 3A:54-1.2).

Challenges:

License-Exempt Efforts to Date:

NJ has been working with license exempt providers (defined at 3A:52-1.3)over the past 3 years to transition them into the licensed system in order to ensure that this population undergoes the in-state criminal registry fingerprint check under one unified system. Private and public schools are required to be licensed and complete the in-state criminal

fingerprint check. We anticipate by the end of 2018 - the schools participating in the subsidy program would have completed the in-state registry fingerprint check process. After phasing in and processing the public and private schools personnel, New Jersey will transition the Family Child Care Providers.

Family Child Care

In June 2017, an act requiring criminal history background checks for family day care providers was passed (30:5B-25.6, amendment to P.L 2000, c.77).

New Jersey is currently waiting for the passing of an amended Bill. NJ anticipates, the Bill will be passed before the end of the year - which will authorize FBI to provide information to the State.

In the interim, NJ is working on making significant systemic changes and developing a phase-in plan to process an anticipated number of over 1700 Family Child Care Providers and an unknown number of members over the age of 18 years old.

The Child Care Resource and Referral Agencies will also receive training on this new process. They will be working with the Criminal Background unit to prepare FCC providers for this new change. NJ anticipates having an implementation Plan finalized by the end of this year and procedural changes which will allow FCC fingerprinting to begin with new providers starting in 2019.

Youth Camps

Youth camps are required to be licensed under the Youth Camp Safety Act of New Jersey pursuant to N.J.S.A. 26:12-1 et seq. Youth camp operators are required to conduct a criminal history check for each adult staff member pursuant to NJAC 8:25 - 3.2)(j).

These settings and circumstances present unique challenges to achieving the required comprehensive background check due to only operating an 8 week seasonal program. New Jersey is still exploring how to meet the above requirements.

Achieved Benchmarks and Progress

1) Standardized policy was released which required public and private schools that operate a child care program to become licensed under Office of Licensing. Through this this approximately 300 new programs were added to the licensing system.

2) These newly licensed centers were identified as priority to undergo the criminal background check. In 2017, NJ Department of Human Services Criminal Background Check Unit processed over 33,000 staff.

3) Improved coordination of services between New Jersey Department of Human Services and Department of Children and Families, Office of Licensing which resulted in

the development of a joint enhanced licensing system. This system is expected to go live Fall 2018 and will be the single entry point for collecting, tracking and monitoring of licensing and criminal background information to be stored.
4) In 2017, a Family Child Care Provider bill was passed to allow and authorized fingerprinting of Family Child Care Providers.

5.4.2 In-State Sex Offender Registry Requirements (98.43(b)(3)(B)(ii))..

Note: This check must be completed in addition to the national NCIC sex offender registry check (5.4.5 below) to mitigate any gaps that may exist between the two sources. Use of fingerprints is optional to conduct this check.

a) Milestone #2 Prerequisite for New (Prospective) Child Care Staff: Describe the requirements, policies and procedures for the search of the in-state sex offender registry.

i. Describe how these requirements, policies and procedures apply to all licensed, regulated, or registered child care providers, in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

New Jersey's Criminal History Record Information, or CHRI, fingerprint check fulfills theIn-State Sex Offender Registry Requirements at (98.43(b)(3)(B)(ii)).
When a person submits his or her fingerprints for the CHRI to the New Jersey State Police, that background check includes a search of the National and New Jersey sex offender registries.

The CHRI check produces information collected by criminal justice agencies that is stored in the central repository of the New Jersey State Police State Bureau of Identification, the National Crime Information Center (NCIC), or other States' computerized repositories containing sex offender registry information.
This includes identifiable descriptions and notations of arrests, indictments, or other formal criminal charges, and any dispositions arising therefrom, including convictions, pending court actions, dismissals, acquittals, sentencing, correctional supervision and

release. N.J.A.C. 13:59-1.1.

Licensed child care centers must demonstrate fingerprint based CHRI compliance as a condition of securing a license.
The business must ensure that all relevant staff members and leadership complete the CHRI fingerprint background check which includes a check of the NJ and national sex offender registry. Any applicant 18 years or older applying for a position at child care center or registered home must undergo a CHRI by submitting a request form prescribed by either the State or the federal government. The DHS Office of Program Integrity and Accountability Central Fingerprint Unit manage the CHRI process for this specific purpose. This Unit collects fingerprint and applicant information and conveys it to State Police and the FBI. The results are then supplied back to the Unit which in turn relays them to DHS or DCF.

In -State Sex Offender check requirements (through the NJ CHRI) applies to licensed child care center providers. N.J.A.C. 3A:52-4.11(a)(1). Note: Although public schools are exempt from licensing, (N.J.S.A.18A:6-7.2 require school staff to undergo a criminal history record check (CHRI) regardless of pupil contact.

ii. Describe how these requirements, policies and procedures apply to all other providers eligible to deliver CCDF services (e.g., license-exempt CCDF eligible providers), in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations
Programs operated by the board of education of a local public school district, centers/special classes operated for religious institution, and youth camps are considered exempt from licensure by State regulations (N.J.A.C. 3A:52-1.1(a). However licensed child care provider centers are subject to background checks (which include a check of the in-state sex offender registry) by other state agencies:

The Criminal History Review Unit (CHRU) is responsible for conducting criminal history background checks on employees in the public, private handicap, and nonpublic schools in New Jersey. This unit is responsible for executing the statutory mandates of the enabling legislation, N.J.S.A.18A:6-7.1 et seq., N.J.S.A.18A:39-17 et seq., N.J.S.A. 18A:6-4.13 et seq., and N.J.S.A. 18A:12-1 et seq. in a comprehensive manner. The criminal history record check process includes a fingerprint search of the

applicant/employee by the New Jersey State Police (NJSP) and the Federal Bureau of Investigation (FBI).

Youth camps are required to be licensed under the Youth Camp Safety Act of New Jersey pursuant to N.J.S.A. 26:12-1 et seq. Youth camp operators are required to conduct a criminal history check for each adult staff member pursuant to NJAC 8:25 - 3.2)(j).

b) Has the search of the in-state sex offender registry been conducted for all current (existing) child care staff?

☐ Yes

Describe, if applicable, any differences in the process for existing staff than what was described for new staff and provide citations.

☑ No. (Waiver request allowed. See Appendix A). Describe the status of conducting the search of the state criminal registry or repository, using fingerprints for current (existing) child care staff including:

-- Efforts to date to complete the requirement for all existing child care staff in licensed, regulated or registered programs

-- Efforts to date to complete the requirement for all existing child care staff in other programs eligible to receive CCDF services (e.g. license-exempt CCDF eligible providers)

-- Key challenges to fully implementing this requirements

-- Strategies used to address these challenges

Describe:

Challenges:

License-Exempt Efforts to Date:

NJ has been working with license exempt providers (defined at 3A:52-1.3)over the past 3 years to transition them into the licensed system in order to ensure that this population undergoes the in-state criminal registry fingerprint check in one unified system. The majority of the private and public schools provide part-time before and after school child care services, and summer youth camps only offer child care for a portion of year. Public and provide schools are required to complete comprehensive background checks to

receive funding through CCDF; however summer camps operate 8 to 10 week programs which present a significant challenge because of the short season. Statutory changes are needed to authorize comprehensive background checks to be conducted and to support capacity building (additional staff to will be needed to manage this process and the system changes that will come with it).
New Jersey has requested technical assistance to help meet this requirement for youth camps.

Family Child Care
In June 2017, an act requiring criminal history background checks for family day care providers was passed (30:5B-25.6, amendment to P.L 2000, c.77).
New Jersey is currently seeking approval for the use of the Family Child Care act to conduct FBI background checks as well as seeking a review from the FBI Access Integrity Unit to determine if the statute meets the requirements of Public Law 92-544. Until an amendment is made to this law, the FBI will not permit access to any fingerprint information. Recently, the language for the new amendment was approved by the Governor's council and DFD/DCF received confirmation from the governor's office that a sponsor has been identified. In the interim, NJ will use the National Child Protection Act to give the state the authority to mandate criminal background checks for family child care providers. NJ is also preparing for the significant systemic changes and the challenges to the public dissemination of information that will arise when family child care providers are fingerprinted under the authority of National Child Protection Act.

Family Child Care (FCC) Providers is the next priority group that NJ will target after completing fingerprinting of the newly licensed centers. New Jersey plans to begin phasing in fingerprinting for FCC Providers in 2019. New Jersey is in the process of getting the recent passed FCC bill amended to allow FBI information to be released utilizing our current system. However, while this process moves through the legislative process, the State will make system and procedural changes which will allow FCC fingerprinting to begin with new providers starting in 2019.

Achieved Benchmarks and Progress
1) Standardized policy was released which required public and private schools that operate a child care program to become licensed under Office of Licensing. Through this

this approximately 300 new programs were added to the licensing system.

2) These newly licensed centers were identified as priority to undergo the criminal background check. In 2017, NJ Department of Human Services Criminal Background Check Unit processed over 33,000 staff.

3) Improved coordination of services between New Jersey Department of Human Services and Department of Children and Families, Office of Licensing which resulted in the development of a joint enhanced licensing system. This system is expected to go live Fall 2018 and will be the single entry point for collecting, tracking and monitoring of licensing and criminal background information to be stored.

4) In 2017, a Family Child Care Provider bill was passed to allow and authorized fingerprinting of Family Child Care Providers.

5) Currently - (in October 2018) - New Jersey is waiting for the FCC bill to be amended to authorize the FBI to release information to the State.

6) Currently - Department of Human Services and Department of Health (youth camps) continues to meet and explore ways to comply with the comprehensive background checks for seasonal staff employed for less than 10 weeks

5.4.3 In-State Child Abuse and Neglect Registry Requirements (98.43(b)(3)(B)(iii)).

Note: This is a name-based search.

a) Milestone #3 Prerequisite for New (Prospective) Child Care Staff: Describe the requirements, policies and procedures for the search of the in-state child abuse and neglect registry.

i. Describe how these requirements, policies and procedures apply to all licensed, regulated, or registered child care providers, in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

The New Jersey Child Abuse Record Information Background Check, or CARI, is used to determine if an incident of child abuse or neglect has been substantiated against the subject. Records of child abuse reports, information obtained through investigations, and all reports of findings are maintained by the Department of Children and Families (DCF). N.J. Stat. § 9:6-9.10(a).

The DCF Office of Legal Affairs Child Abuse Record Information Unit performs CARI background checks. As a condition of securing a child care center license or a certificate of registration or for family child care, providers must adhere to CARI rules. The providers must terminate staff who refuse to consent to a CARI or when negative information is revealed from the CARI. Providers must ensure proper oversight of anyone not required to have a CARI.

At a licensed child care center, directors must maintain a file for each individual staff member indicating that the center has obtained documentation of the completion of a CARI background check for all staff who will be working at the center on a regularly scheduled basis. N.J.A.C. 3A52-4.1(b)(4).

In a registered or approved family child care home, every member of the applicant's household who are at least 14 years of age and any other persons who will be working at the home on a regular basis must have a CARI background check completed. Citations: N.J.A.C. 10:15-2.4(a). N.J.A.C. 3A:54-4.1(c)(3), N.J.A.C. 3A:52-4.10(a)(4)

In summary, the following child care providers are subject to the Child Abuse Record Information (CARI) checks:

- Licensed Child Care Center Employees - N.J.S.A. 30:5B-6.2
- Registered Family Child Care providers - N.J.S.A. 30:5B-25.3
- Division of Family Development (DFD) Approved Homes - N.J.S.A. 30:5B-32

ii. Describe how these requirements, policies and procedures apply to all other providers eligible to deliver CCDF services (e.g., license-exempt CCDF eligible providers), in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

The Child Abuse Record Information (CARI) Unit performs the background checks for child abuse/neglect for the New Jersey Department of Children and Families (DCF). The NJ Department of Children and Families Office of Licensing would need to be granted additional authority to conduct Child Abuse Record Information checks beyond their current jurisdiction in order to provide this service to Summer Camps, private schools, and public schools. There are currently no state laws in place that mandate a CARI check for staff in child care settings aside from those listed above.

b) Has the search of the in-state child abuse and neglect registry been conducted for all

current (existing) child care staff?

☐ Yes

Describe, if applicable, any differences in the process for existing staff than what was described for new staff and provide citations.

☑ No. (Waiver request allowed. See Appendix A). Describe the status of conducting the search of the state child abuse and neglect registry for current (existing) child care staff including:

-- Efforts to date to complete the requirement for all existing child care staff in licensed, regulated or registered programs

-- Efforts to date to complete the requirement for all existing child care staff in other programs eligible to receive CCDF services (e.g. license-exempt CCDF eligible providers)

-- Key challenges to fully implementing this requirements

-- Strategies used to address these challenges

Describe:

As of November 19, 2017, DHS/DFD requires that all subsidy payments for the DHS/DFD Child Care Subsidy Program be authorized only for licensed, registered providers, and approved providers, Pursuant to state law, all staff working at these types of settings must submit to a CARI check. (DFDI 17-12-03)

The NJ Department of Children and Families Office of Licensing would need to be granted additional authority to conduct Child Abuse Record Information checks beyond their current jurisdiction (which includes licensed child care centers, family child care homes, and approved homes) in order to provide this service to summer youth camps, public schools and private schools.

Summer Youth Camps

Summer youth camps are licensed by the Department of Health (DOH). As a start, as of the summer 2018, DHS/DFD has already transitioned enrollment into the subsidy program from the CCR&Rs to the DHS/DFD Office of Child Care for closer oversight.

Public Schools Operated by the Board of Education

Teachers and staff working in public schools (that provide child care) are currently required to undergo a Criminal History Record Information Fingerprint Check

(CHRI). However, this population is not required to undergo a CARI check. Over the past 3 years, NJ has been working with providers in public schools to transition them into the licensing system. By getting a child care center license, NJ can ensure that this population undergoes the CARI check.
DFD is assessing next steps to ensure full implementation.

Achieved Benchmarks an Progress to date:
1)New Jersey conducts the Federal and State criminal background checks, as well as the In-State Child Abuse Record Information (CARI) check for all licensed centers and registered homes.

2) Improved coordination of services between New Jersey Department of Human Services and Department of Children and Families, Office of Licensing which resulted in the development of a joint enhanced licensing system. This system is expected to go live Fall 2018 and will be the single entry point for collecting, tracking and monitoring of licensing and criminal background information related to child abuse/neglect.

National Background Check Requirements

5.4.4 National FBI Criminal Fingerprint Search Requirements (98.43(b)(1)).

Note: The in-state (5.4.1 above) and the inter-state (5.4.6 below) criminal history check must be completed in addition to the FBI fingerprint check because there could be state crimes that do not appear in the national repository. Also note, that an FBI fingerprint check satisfies the requirement to perform an interstate check of another State's criminal history records repository if the responding state (where the child care staff member has resided within the past five years) participates in the National Fingerprint File program (CCDF-ACF-PIQ-2017-01).

a) Milestone #4 Prerequisite for New (Prospective) Child Care Staff. Describe the requirements, policies and procedures for the search of the National FBI fingerprint check.

i. Describe how these requirements, policies and procedures apply to all licensed, regulated, or registered child care providers, in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

The N.J. Criminal History Record Information or CHRI background check includes a National FBI Next Generation Fingerprint Background Check (at 98.43(b)(1)). All entities subject to a CHRI background check are therefore subject to a National FBI Fingerprint Background Check.

The CHRI check produces information collected by criminal justice agencies that is stored in the central repository of the New Jersey State Police State Bureau of Identification, the National Crime Information Center (NCIC), or other States' computerized repositories containing criminal history record information.
This includes identifiable descriptions and notations of arrests, indictments, or other formal criminal charges, and any dispositions arising therefrom, including convictions, pending court actions, dismissals, acquittals, sentencing, correctional supervision and release. N.J.A.C. 13:59-1.1.
Licensed child care centers must demonstrate fingerprint based CHRI compliance as a condition of securing a license.
The business must ensure that all relevant staff members and leadership complete the CHRI fingerprint background check. Any applicant 18 years or older applying for a position at child care center or registered home must undergo a CHRI by submitting a request form prescribed by either the State or the federal government. The DHS Office of Program Integrity and Accountability Central Fingerprint Unit manage the CHRI process for this specific purpose. This Unit collects fingerprint and applicant information and conveys it to State Police and the FBI. The results are then supplied back to the Unit which in turn relays them to DHS or DCF.

National FBI Criminal Fingerprint Search requirements (through the NJ CHRI) applies to licensed child care center providers. N.J.A.C. 3A:52-4.11(a)(1)

ii. Describe how these requirements, policies and procedures apply to all other providers eligible to deliver CCDF services (e.g., license-exempt CCDF eligible providers), in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations
Programs operated by the board of education of a local public school district,

centers/special classes operated for religious institution, and youth camps are considered exempt from licensure by the NJ Department of Children and Families, Office of Licensing pursuant to the laws specified in N.J.A.C. 3A:52-1.1(a). However these child care provider settings are still subject to background checks by other other state agencies:
The Criminal History Review Unit (CHRU) is responsible for conducting criminal history background checks on employees in the public, private handicap, and nonpublic schools in New Jersey. The unit executes the statutory mandates of the enabling legislation, N.J.S.A.18A:6-7.1 et seq., N.J.S.A.18A:39-17 et seq., N.J.S.A. 18A:6-4.13 et seq., and N.J.S.A. 18A:12-1 et seq. in a comprehensive manner. The criminal history record check process includes a fingerprint search of the applicant/employee by the New Jersey State Police (NJSP) and the Federal Bureau of Investigation (FBI).

Summer youth camps are licensed under the Youth Camp Safety Act of New Jersey pursuant to N.J.S.A. 26:12-1 et seq and are required to conduct a criminal history check for each adult staff member pursuant to NJAC 8:25 - 3.2)(j).

b) For all current (existing) child care staff, has the FBI criminal fingerprint check been conducted?

☐ Yes

Describe, if applicable, any differences in the process for existing staff than what was described for new staff and provide citations.

☑ No. (Waiver request allowed. See Appendix A). Describe the status of conducting the FBI fingerprint check for current (existing) child care staff including:

-- Efforts to date to complete the requirement for all existing child care staff in licensed, regulated or registered programs

-- Efforts to date to complete the requirement for all existing child care staff in other programs eligible to receive CCDF services (e.g. license-exempt CCDF eligible providers)

-- Key challenges to fully implementing this requirements

-- Strategies used to address these challenges

Describe:

National FBI Criminal Fingerprint Search Requirements currently apply to all licensed

child care and providers.

Full compliance will include expanding National FBI Criminal Fingerprint Search Requirements to license exempt providers defined at 3A:52-1.3 and Registered Family Child Care Providers (defined at 3A:54-1.2).

Challenges:

License-Exempt Efforts to Date:
NJ has been working with license exempt providers (defined at 3A:52-1.3)over the past 3 years to transition them into the licensed system in order to ensure that this population undergoes the National FBI Criminal Fingerprint Search Requirements within one unified system. Private and public schools are more likely to offer part-time before and after school child care services, and summer youth camps only offer child care for a portion of year. These settings and circumstances present unique challenges to achieving licensure.

Family Child Care
In June 2017, an act requiring criminal history background checks for family day care providers was passed (30:5B-25.6, amendment to P.L 2000, c.77).
New Jersey s currently seeking approval for the use of the Family Child Care act to conduct FBI background checks as well as seeking a review from the FBI Access Integrity Unit to determine if the statute meets the requirements of Public Law 92-544. Until an amendment is made to this law, the FBI will not permit access to any fingerprint information. Recently, the language for the new amendment was approved by the Governor's council and DFD/DCF received confirmation from the governor's office that a sponsor has been identified. In the interim, NJ will use the National Child Protection Act to give the state the authority to mandate criminal background checks for family child care providers. NJ is also preparing for the significant systemic changes and the challenges to the public dissemination of information that will arise when family child care providers are fingerprinted under the authority of National Child Protection Act.

Family Child Care (FCC) Providers are the next priority group that NJ will target after completing fingerprinting of the newly licensed centers. New Jersey plans to begin phasing in fingerprinting for FCC Providers January 2019. New Jersey is in the process

of getting the recent passed FCC bill amended to allow FBI information to be released utilizing our current system. However, while this process moves through the legislative process, the State will make system and procedural changes which will allow FCC fingerprinting to begin with new providers starting in January 2019.

Achieved Benchmarks and Progress
1) Standardized policy was released which required public and private schools that operate a child care program to become licensed under Office of Licensing. Through this this approximately 300 new programs were added to the licensing system.
2) These newly licensed centers were identified as priority to undergo the criminal background check. In 2017, NJ Department of Human Services Criminal Background Check Unit processed over 33,000 staff.
3) Improved coordination of services between New Jersey Department of Human Services and Department of Children and Families, Office of Licensing which resulted in the development of a joint enhanced licensing system. This system is expected to go live Fall 2018 and will be the single entry point for collecting, tracking and monitoring of licensing and criminal background information to be stored.
4) In 2017, a Family Child Care Provider bill was passed to allow and authorized fingerprinting of Family Child Care Providers.

National Background Check Requirements

5.4.5 National Crime Information Center (NCIC) National Sex Offender Registry (NSOR) Search Requirements (98.43(b)(2)).

Note: This is a name-based search. Searching general public facing sex offender registries does not satisfy this requirement. This national check must be required in addition to the in-state (5.4.2 above) or inter-state (5.4.7 below) sex offender registry check requirements. This check must be performed by law enforcement.

a) Has the National Crime Information Center (NCIC) National Sex Offender Registry (NSOR) check been put in place for all new (prospective) child care staff

☑ Yes. If yes,

i. Describe how these requirements, policies and procedures apply to all licensed, regulated, or registered child care providers, in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

New Jersey's Criminal History Record Information, or CHRI produces information collected by criminal justice agencies that is stored in the central repository of the New Jersey State Police State Bureau of Identification, the National Crime Information Center (NCIC), and other States' computerized repositories containing criminal history record information.

The N.J. Criminal History Record Information or CHRI background check includes a check of the NSOR. All entities subject to a CHRI background check are therefore subject to the NCIC NSOR check. Licensed child care centers must demonstrate fingerprint based CHRI compliance as a condition of securing a license.

ii. Describe how these requirements, policies and procedures apply to all other providers eligible to deliver CCDF services (e.g., license-exempt CCDF eligible providers), in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

Programs operated by the board of educaiton of a local public school district, centers/special classes operated for religious insitution, and youth camps are considered exempt from licensure by the NJ Department of Children and Families, Office of Licensing pursuant to the laws specified in N.J.A.C. 3A:52-1.1(a). However these these child care provider settings are still subject to background checks (which include an NSOR check) by other other state agencies:

The Criminal History Review Unit (CHRU) is responsible for conducting criminal history background checks (which includes an NSOR check) on employees in the public, private handicap, and nonpublic schools in New Jersey. The unit executes the statutory mandates of the enabling legislation, N.J.S.A.18A:6-7.1 et seq., N.J.S.A.18A:39-17 et seq., N.J.S.A. 18A:6-4.13 et seq., and N.J.S.A. 18A:12-1 et seq.

in a comprehensive manner. The criminal history record check process includes a fingerprint search of the applicant/employee by the New Jersey State Police (NJSP) and the Federal Bureau of Investigation (FBI).

In addition, y **outh are camps required to be licensed under the Youth Camp Safety Act of New Jersey pursuant to N.J.S.A. 26:12-1 et seq. Youth camp adult staff are subject to a crminal history checks pursuant to NJAC 8:25 - 3.2)(j).**

☐ No. (Waiver request allowed. See Appendix A). Describe the status of conducting the the National Crime Information Center (NCIC) National Sex Offender Registry (NSOR) for new (prospective) child care staff including:

-- Efforts to date to complete the requirement for all existing child care staff in licensed, regulated or registered programs

-- Efforts to date to complete the requirement for all existing child care staff in other programs eligible to receive CCDF (e.g. license-exempt CCDF eligible providers)

-- Key challenges to fully implementing this requirements

-- Strategies used to address these challenges

Describe:

New Jersey's Criminal History Record Information, or CHRI, fingerprint check fulfills the National Crime Information Center (NCIC) National Sex Offender Registry (NSOR) Search Requirements (98.43(b)(2)).

The CHRI check produces information collected by criminal justice agencies that is stored in the central repository of the New Jersey State Police State Bureau of Identification, the National Crime Information Center (NCIC), or other States' computerized repositories containing criminal history record information.

This includes identifiable descriptions and notations of arrests, indictments, or other formal criminal charges, and any dispositions arising therefrom, including convictions, pending court actions, dismissals, acquittals, sentencing, correctional supervision and release. N.J.A.C. 13:59-1.1.

Licensed child care centers must demonstrate fingerprint based CHRI compliance as a condition of securing a license.

The business must ensure that all relevant staff members and leadership complete the CHRI fingerprint background check. Any applicant 18 years or older applying

for a position at child care center or registered home must undergo a CHRI by submitting a request form prescribed by either the State or the federal government. The DHS Office of Program Integrity and Accountability Central Fingerprint Unit manage the CHRI process for this specific purpose. This Unit collects fingerprint and applicant information and conveys it to State Police and the FBI. The results are then supplied back to the Unit which in turn relays them to DHS or DCF.

In -State Criminal Registry Fingerprint requirements (through the NJ CHRI) applies to licensed child care center providers. N.J.A.C. 3A:52-4.11(a)(1)

When a person submits his or her fingerprints for the CHRI to the New Jersey State Police, that background check includes a search of the National and New Jersey sex offender registries.

See 5.4.1(a). Note: Although public schools are exempt from licensing, (N.J.S.A.18A:6-7.2 require school staff to undergo a criminal history record check (CHRI) regardless of pupil contact.

The following child care programs are exempt from licensure pursuant to the laws specified in

N.J.A.C. 3A:52-1.1(a) and are therefore exempt from the National Crime Information Center (NCIC) National Sex Offender Registry (NSOR) Search Requirement check (98.43(b)(2)):

- **Programs operated by the board of education of a local public school district**
- **Centers or special classes operated primarily for religious instruction**
- **Youth camps required to be licensed under the Youth Camp Safety Act of New Jersey pursuant to N.J.S.A. 26:12-1 et seq.**

b) Has the National Crime Information Center (NCIC) National Sex Offender Registry (NSOR) check been put in place for all current (existing) child care staff?

☐ Yes

Describe, if applicable, any differences in the process for existing staff than what was described for new staff and provide citations.

☑ No. (Waiver request allowed. See Appendix A). Describe the status of conducting the National Crime Information Center (NCIC) National Sex Offender Registry (NSOR) check for current (existing) child care staff including:

-- Efforts to date to complete the requirement for all existing child care staff in licensed, regulated or registered programs

-- Efforts to date to complete the requirement for all existing child care staff in other programs eligible to receive CCDF services (e.g. license-exempt CCDF eligible providers)

-- Key challenges to fully implementing this requirements

-- Strategies used to address these challenges

Describe:
National Crime Information Center (NCIC) National Sex Offender Registry (NSOR) Search Requirements currently **apply to all licensed child care and providers.**

Full compliance will include expanding In National Crime Information Center (NCIC) National Sex Offender Registry (NSOR) Search Requirements **to license exempt provider defined at 3A:52-1.3 and Registered Family Child Care Providers (defined at 3A:54-1.2).**

Challenges:

License-Exempt Efforts to Date:
NJ has been working with license exempt providers (defined at 3A:52-1.3)over the past 3 years to transition them into the licensed system in order to ensure that this population undergoes the in-state criminal registry fingerprint check (which includes the NSOR check) in one unified system. Private and public schools are more likely to offer part-time before and after school child care services, and summer youth camps only offer child care for a portion of year. These settings and circumstances present unique challenges to achieving licensure and therefore background checks.
Note however that pursuant to N.J.S.A.18A:6-7.2, public and private school staff must undergo the Criminal History Record Information (CHRI) check regardless of pupil contact .

Family Child Care
In June 2017, an act requiring criminal history background checks for family day care providers was passed (30:5B-25.6, amendment to P.L 2000, c.77).
New Jersey s currently seeking approval for the use of the Family Child Care act to conduct FBI background checks as well as seeking a review from the FBI Access Integrity Unit to determine if the statute meets the requirements of Public Law 92-544. Until an amendment is made to this law, the FBI will not permit access to any fingerprint information. Recently, the language for the new amendment was approved by the Governor's council and DFD/DCF received confirmation from the governor's office that a sponsor has been identified. In the interim, NJ will use the

National Child Protection Act to give the state the authority to mandate criminal background checks for family child care providers. NJ is also preparing to the significant systemic changes and the challenges to the public dissemination of information that will arise when family child care providers are fingerprinted under the authority of National Child Protection Act.

Family Child Care (FCC) Providers is the next priority group that NJ will target after completing fingerprinting of the newly licensed centers. New Jersey plans to begin phasing in fingerprinting for FCC Providers January 2019. New Jersey is in the process of getting the recent passed FCC bill amended to allow FBI information to be released utilizing our current system. However, while this process moves through the legislative process, the State will make system and procedural changes which will allow FCC fingerprinting to begin with new providers starting in January 2019.

Achieved Benchmarks and Progress
1) Standardized policy was released which required public and private schools that operate a child care program to become licensed under Office of Licensing. Through this this approximately 300 new programs were added to the licensing system.
2) These newly licensed centers were identified as priority to undergo the criminal background check. In 2017, NJ Department of Human Services Criminal Background Check Unit processed over 33,000 staff.
3) Improved coordination of services between New Jersey Department of Human Services and Department of Children and Families, Office of Licensing which resulted in the development of a joint enhanced licensing system. This system is expected to go live Fall 2018 and will be the single entry point for collecting, tracking and monitoring of licensing and criminal background information to be stored.
4) In 2017, a Family Child Care Provider bill was passed to allow and authorized fingerprinting of Family Child Care Providers.

Inter-state Background Check Requirements

Checking a potential employee's history in any state other than that in which the provider's services are provided qualifies as an inter-state check, per the definition of required criminal background checks in 98.43(b)(3). For example, an inter-state check would include situations when child care staff members work in one state and live in another state. The statute and regulations require background checks in the state where the staff member resides and each state where the staff member resided during the previous 5 years. Background checks in the state where the staff member is employed may be advisable, but are not strictly required.

5.4.6 Interstate Criminal Registry or Repository Check Requirement (including in any other state where the individual has resided in the past 5 years). (98.43 (b)(3)(i)).

Note: It is optional to use a fingerprint to conduct this check. Searching a general public facing judicial website does not satisfy this requirement. This check must be completed in addition to the national FBI history check (5.4.4 above) to mitigate any gaps that may exist between the two sources (unless the responding state participates in the National Fingerprint File program).

a) Has the interstate criminal registry or repository check been put in place for all new (prospective) child care staff?

☐ Yes. If yes,

i. Describe how these requirements, policies and procedures apply to all licensed, regulated, or registered child care providers, in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

ii. Describe how these requirements, policies and procedures apply to all other providers eligible to deliver CCDF services (e.g., license-exempt CCDF eligible providers), in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

☑ No. (Waiver request allowed. See Appendix A). Describe the status of conducting the the interstate criminal registry or repository check for new (prospective) child care staff including:

-- Efforts to date to complete the requirement for all existing child care staff in licensed, regulated or registered programs

-- Efforts to date to complete the requirement for all existing child care staff in other programs eligible to receive CCDF (e.g. license-exempt CCDF eligible providers)

-- Key challenges to fully implementing this requirements

-- Strategies used to address these challenges

Describe:

DHS/DFD is continuing to develop and research policy options in this area. DHS/DFD is exploring what opportunities are afforded by the Compact Council, the National Fingerprint File, and other cooperative agreements outside of the multilateral scope of the Compact Council. Additionally, DHS/DFD is considering what obstacles that states

that have "closed record" laws present to the implementation of any inter-state background check policy for licensed and registered providers. DHS-DFD has posted details on the www.ChildCareNJ.gov website and NJ State Policy website https://www.njsp.org/criminal-history-records/, of how another state can obtain a New Jersey CHRI. DCF/OOL and DHS/DFD are also working with providers to conduct name searches and with reaching out to other states where appropriate to obtain basic CHRI. In the meantime, DHS/DFD is relying on the Criminal History Record Check (CHRI)'s check of the NJ state repository and the National Criminal Information Center repositories to attain criminal history information of child care staff.

b) Has the interstate criminal registry or repository check been put in place for all current (existing) child care staff?

☐ Yes

Describe, if applicable, any differences in the process for existing staff than what was described for new staff and provide citations.

☑ No. (Waiver request allowed. See Appendix A). Describe the status of conducting the interstate criminal registry or repository check for current (existing) child care staff including:

-- Efforts to date to complete the requirement for all existing child care staff in licensed, regulated or registered programs

-- Efforts to date to complete the requirement for all existing child care staff in other programs eligible to receive CCDF services (e.g. license-exempt CCDF eligible providers)

-- Key challenges to fully implementing this requirements

-- Strategies used to address these challenges

Describe:

NJ participates in the FBI's Rap back program which provides on-going status updates and continuously monitors employee's criminal and arrest records by receiving alerts from the FBI if there are any additions to an employee's FBI records. NJ is also a participant of both the National Crime Prevention and Privacy Compact and the National Fingerprint File (NFF) which would grant NJ access to other states' criminal registries.

National Crime Prevention and Privacy Compact:
The Compact is an interstate and Federal/state compact that establishes formal procedures and governance structures for the use of the Interstate Identification Index (III). It is designed to facilitate the exchange of criminal history data among states for noncriminal justice purposes and to eliminate the need for the FBI to maintain duplicate data about state offenders. The key concept underlying the Compact is agreement among all signatory states that all criminal history information (except sealed records) will be provided in response to noncriminal justice requests from another state. Ratification of the Compact will have the effect of amending existing state legislation governing interstate record dissemination, since most states do not currently authorize dissemination to all of the Federal agencies and out-of-state users authorized under the Compact.

National Fingerprint File (NFF):
The NFF is a system and set of procedures designed as a component of the III system and would contain fingerprints of Federal offenders and at least one set of fingerprints on state offenders from each state in which an offender has been arrested, primarily for a felony or a serious misdemeanor.

As a participating state of both cooperative agreements, NJ hopes that full implementation of the Compact and NFF will establish a decentralized system for the interstate exchange of criminal history records.

DHS/DFD efforts to comply with the comprehensive criminal background check requires short and long-term strategies that involve significant and complex policy, regulatory, statutory and system changes.
Achieved Benchmarks and Progress
1) Standardized policy was released which required public and private schools that operate a child care program to become licensed under Office of Licensing. Through this this approximately 300 new programs were added to the licensing system.
2) These newly licensed centers were identified as priority to undergo the criminal background check. In 2017, NJ Department of Human Services Criminal Background Check Unit processed over 33,000 staff.
3) Improved coordination of services between New Jersey Department of Human Services and Department of Children and Families, Office of Licensing which resulted in

the development of a joint enhanced licensing system. This system is expected to go live Fall 2018 and will be the single entry point for collecting, tracking and monitoring of licensing and criminal background information to be stored.

4) In 2017, a Family Child Care Provider bill was passed to allow and authorized fingerprinting of Family Child Care Providers.

Challenges

1. Interstate Criminal Repository in other States of residence for past 5 years. Currently, when someone is identified with an out-of-state address within the past five years, the center is required to obtain a child abuse background check from the state where the staff member previously and/or currently resides. This clearance is accompanied by notice of a child care registry clearance from the state the applicant previously and/or currently lived.

In the interim, NJ is exploring mirroring the same process for Criminal Background Check as well, while assessing interstate agreements with the States.

5.4.7 Interstate Sex Offender Registry or Repository Check Requirements (including in any state where the individual has resided in the past 5 years). (98.43 (b)(3)(ii)).

Note: It is optional to use a fingerprint to conduct this check. This check must be completed in addition to the National Crime Information Center (NCIC) National Sex Offender Registry (NSOR) (5.4.5 above) to mitigate any gaps that may exist between the two sources.

a) Has the interstate sex offender registry or repository check been put in place for all new (prospective) child care staff?

☐ Yes. If yes,

i. Describe how these requirements, policies and procedures apply to all licensed, regulated, or registered child care providers, in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

ii. Describe how these requirements, policies and procedures apply to all other providers eligible to deliver CCDF services (e.g., license-exempt CCDF eligible

providers), in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

☑ No. (Waiver request allowed. See Appendix A). Describe the status of conducting the interstate sex offender registry or repository check for new (prospective) child care staff including:

-- Efforts to date to complete the requirement for all existing child care staff in licensed, regulated or registered programs

-- Efforts to date to complete the requirement for all existing child care staff in other programs eligible to receive CCDF (e.g. license-exempt CCDF eligible providers)

-- Key challenges to fully implementing this requirements

-- Strategies used to address these challenges

Describe:

DHS/DFD is continuing to develop and research policy options in this area. DHS/DFD is exploring what opportunities are afforded by the Compact Council, the National Fingerprint File, and other cooperative agreements outside of the multilateral scope of the Compact Council. Additionally, DHS/DFD is considering what obstacles that states that have "closed record" laws present to the implementation of any inter-state sex offender registry check policy for licensed and registered providers. DHS-DFD has posted details on the www.ChildCareNJ.gov website and NJ State Policy website https://www.njsp.org/criminal-history-records/, of how another state can obtain a New Jersey CHRI (which contains a check of state sex offendor registry). DCF/OOL and DHS/DFD are also working with providers to conduct name searches and with reaching out to other states where appropriate to obtain basic CHRI. In the meantime, DHS/DFD is relying on the Criminal History Record Informaton (CHRI)'s check of the NJ state repository and check of National Criminal Information Center repositories to attain criminal history information of child care staff.

b) Has the interstate sex offender registry or repository check been put in place for all current (existing) child care staff?

☐ Yes

Describe, if applicable, any differences in the process for existing staff than what was described for new staff and provide citations.

☑ No. (Waiver request allowed. See Appendix A). Describe the status of conducting the interstate sex offender registry or repository check for current (existing) child care staff including:

-- Efforts to date to complete the requirement for all existing child care staff in licensed, regulated or registered programs

-- Efforts to date to complete the requirement for all existing child care staff in other programs eligible to receive CCDF services (e.g. license-exempt CCDF eligible providers)

-- Key challenges to fully implementing this requirements

-- Strategies used to address these challenges

Describe:

NJ participates in the FBI's Rap back program which provides on-going status updates and continuously monitors employee's criminal and arrest records by receiving alerts from the FBI if there are any additions to an employee's FBI records. NJ is also a participant of both the National Crime Prevention and Privacy Compact and the National Fingerprint File (NFF) which would grant NJ access to other states' criminal registries.

National Crime Prevention and Privacy Compact:
The Compact is an interstate and Federal/state compact that establishes formal procedures and governance structures for the use of the Interstate Identification Index (III). It is designed to facilitate the exchange of criminal history data among states for noncriminal justice purposes and to eliminate the need for the FBI to maintain duplicate data about state offenders. The key concept underlying the Compact is agreement among all signatory states that all criminal history information (except sealed records) will be provided in response to noncriminal justice requests from another state. Ratification of the Compact will have the effect of amending existing state legislation governing interstate record dissemination, since most states do not currently authorize dissemination to all of the Federal agencies and out-of-state users authorized under the Compact.

National Fingerprint File (NFF):
The NFF is a system and set of procedures designed as a component of the III system and would contain fingerprints of Federal offenders and at least one set of fingerprints on state offenders from each state in which an offender has been arrested, primarily for a

felony or a serious misdemeanor.

As a participating state of both cooperative agreements, NJ hopes that full implementation of the Compact and NFF will establish a decentralized system for the interstate exchange of criminal history records.

DHS/DFD efforts to comply with the comprehensive criminal background check requires short and long-term strategies that involve significant and complex policy, regulatory, statutory and system changes.
Achieved Benchmarks and Progress
1) Standardized policy was released which required public and private schools that operate a child care program to become licensed under Office of Licensing. Through this this approximately 300 new programs were added to the licensing system.
2) These newly licensed centers were identified as priority to undergo the criminal background check. In 2017, NJ Department of Human Services Criminal Background Check Unit processed over 33,000 staff.
3) Improved coordination of services between New Jersey Department of Human Services and Department of Children and Families, Office of Licensing which resulted in the development of a joint enhanced licensing system. This system is expected to go live Fall 2018 and will be the single entry point for collecting, tracking and monitoring of licensing and criminal background information to be stored.
4) In 2017, a Family Child Care Provider bill was passed to allow and authorized fingerprinting of Family Child Care Providers.

Challenges

1. Interstate Criminal Repository in other States of residence for past 5 years. Currently, when someone is identified with an out-of-state address within the past five years, the center is required to obtain a child abuse background check from the state where the staff member previously and/or currently resides. This clearance is accompanied by notice of a child care registry clearance from the state the applicant previously and/or currently lived.

In the interim, NJ is exploring mirroring the same process for Criminal Background Check as well, while assessing interstate agreements with the States.

5.4.8 Interstate Child Abuse and Neglect Check Registry Requirements (98.43 (b)(3)(iii)).

Note: This is a name-based search.

a) Has the interstate child abuse and neglect check been put in place for all new (prospective) child care staff?

☐ Yes. If yes,

i. Describe how these requirements, policies and procedures apply to all licensed, regulated, or registered child care providers, in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

ii. Describe how these requirements, policies and procedures apply to all other providers eligible to deliver CCDF services (e.g., license-exempt CCDF eligible providers), in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

☑ No. (Waiver request allowed. See Appendix A). Describe the status of conducting the interstate child abuse and neglect check for new (prospective) child care staff including:

-- Efforts to date to complete the requirement for all existing child care staff in licensed, regulated or registered programs

-- Efforts to date to complete the requirement for all existing child care staff in other programs eligible to receive CCDF (e.g. license-exempt CCDF eligible providers)

-- Key challenges to fully implementing this requirements

-- Strategies used to address these challenges

Describe:

Those who are subject to Child Abuse Record Information (CARI) check in NJinclude:

- Child Care Center Employees - N.J.S.A. 30:5B-6.2
- Registered Family Child Care providers - N.J.S.A. 30:5B-25.3
- Division of Family Development (DFD) Approved Homes - N.J.S.A. 30:5B-32

The following programs currently receive CCDF funding, but are not subject to CARI checks in NJ. It is unknown whether or not these same entities would be exempt from a child abuse registry check in another state:

- **Programs operated by the board of education of a local public school district**
- **Centers or special classes operated primarily for religious instruction**
- **Youth camps required to be licensed under the Youth Camp Safety Act of New Jersey pursuant to N.J.S.A. 26:12-1 et seq.**

The State Child Care Center Licensing Law, N.J.S.A. 30:5B-1 to 15, is designed to ensure that child care centers operate in a manner so as to promote, protect and safeguard the health, safety, physical and intellectual growth and general well-being of children attending the center and to ensure that their personnel meet certain background check requirements.

For propspective child care staff in (in licensed centers, registered homes, and approved centers) who have an out-of-state address listed on their CARI application (within the last 5 years), it is **required** that the center or home obtain a child abuse background check from the state where the staff member previously and/or currently resides. This clearance must be accompanied by notice of a child care registry clearance from the **state the applicant previously and/or currently lived**. The center is responsible to have this child abuse background check clearance from the other state available on site and provide a copy of this clearance to the Office of Licensing (OOL).

DCF maintains the results of the State of New Jersey CARI background check and related correspondence on file in a confidential manner (N.J.A.C. 3A:52-4.10(h)). If the out-of-state child abuse background check reveals that an incident of child abuse and/or neglect has been substantiated against a staff member, the center shall immediately notify the Office of Legal Affairs/CARI Unit.
The State Child Care Center Licensing Law, N.J.S.A. 30:5B-1 to 15, is designed to ensure that child care centers operate in a manner so as to promote, protect and safeguard the health, safety, physical and intellectual growth and general well-being of children attending the center and to ensure that their personnel meet certain background check requirements. Pursuant to N.J.S.A. 30:5B-6.4 the Department of Children and Families (DCF) is required to conduct Child Abuse Record Information (CARI) background checks on Child Care Center staff members.

Although there are procedures in place to conduct out of state CARI checks, DHS/DFD is continuing to develop and research policy options in this area. DHS/DFD is exploring what opportunities are afforded by the Compact Council, the National Fingerprint File,

and other cooperative agreements outside of the multilateral scope of the Compact Council.

b) Has the interstate child abuse and neglect check been put in place for all current (existing) child care staff?

☐ Yes

Describe, if applicable, any differences in the process for existing staff than what was described for new staff and provide citations.

☑ No. (Waiver request allowed. See Appendix A). Describe the status of conducting the interstate child abuse and neglect check for current (existing) child care staff including:

-- Efforts to date to complete the requirement for all existing child care staff in licensed, regulated or registered programs

-- Efforts to date to complete the requirement for all existing child care staff in other programs eligible to receive CCDF services (e.g. license-exempt CCDF eligible providers)

-- Key challenges to fully implementing this requirements

-- Strategies used to address these challenges

Describe:

Those who are subject to Child Abuse Record Information (CARI) check in NJinclude:

- Child Care Center Employees - N.J.S.A. 30:5B-6.2
- Registered Family Child Care providers - N.J.S.A. 30:5B-25.3
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For propspective child care staff in (in licensed centers, registered homes, and approved centers) who have an out-of-state address listed on their CARI application (within the last 5 years), it is **required** that the center or home obtain a child abuse background check from the state where the staff member previously and/or currently resides. This clearance must be accompanied by notice of a child care registry clearance from the **state the applicant previously and/or currently lived**. The center is responsible to have this child abuse background check clearance from the other state available on site and provide a copy of this clearance to the Office of Licensing (OOL).

DCF maintains the results of the State of New Jersey CARI background check and related correspondence on file in a confidential manner (N.J.A.C. 3A:52-4.10(h)). If the out-of-state child abuse background check reveals that an incident of child abuse and/or neglect has been substantiated against a staff member, the center shall immediately notify the Office of Legal Affairs/CARI Unit.
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Although there are procedures in place to conduct out of state CARI checks, DHS/DFD is continuing to develop and research policy options in this area. DHS/DFD is exploring what opportunities are afforded by the Compact Council, the National Fingerprint File, and other cooperative agreements outside of the multilateral scope of the Compact Council.

Provisional Employment

The CCDF final rule states a child care provider must submit a request to the appropriate state/territory agency for a criminal background check for each child care staff member, including prospective staff members, prior to the date an individual becomes a child care staff member and at least once every 5 years thereafter (98.43(d)(1) and (2). A prospective

child care staff member may not begin work until one of the following results have been returned as satisfactory: either the FBI fingerprint check or the search of the state/territory criminal registry or repository using fingerprints in the state/territory where the staff member resides. The child care staff member must be supervised at all times pending completion of all the background check components (98.43(d)(4)).

Note: In recognition of the concerns and feedback OCC received related to the provisional hire provision of the CCDF final rule, OCC will allow states and territories to request time-limited waiver extensions for the provisional hire provision. State/territories may submit a waiver request to allow additional time to meet the requirements related to provisional hires (see Appendix A). A state/territory may receive a waiver from this requirement only when:

1. the state requires the provider to submit the background check requests before the staff person begins working; and
2. the staff member, pending the results of the elements of the background check, is supervised at all times by an individual who has completed the background check.

5.4.9 Describe the state/territory requirements related to prospective child care staff members using the checkboxes below. (Waiver request allowed. See Appendix A). Check all that apply.

☐ The state/territory allows prospective staff members to begin work on a provisional basis (if supervised at all times) after completing and receiving satisfactory results on either the FBI fingerprint check or a fingerprint check of the state/territory criminal registry or repository in the state where the child care staff member resides.

Describe and include a citation:

☑ The state/territory allows prospective staff members to begin work on a provisional basis (if supervised at all times) after the request has been submitted, but before receiving satisfactory results on either the FBI fingerprint check or a fingerprint check of the state/territory criminal registry or repository in the state where the child care staff member resides. Note: A waiver request is allowed for this provision (see Appendix A).

Describe and include a citation:

Within two weeks after a new staff member begins working at the center, the sponsor or sponsor representative shall submit to theDepartment a completed CARI consent form for the new staff member and/or ensure the new staff member completes the CHRI fingerprinting process. Until the results of the CARI background check or CHRI background check for a new staff member is

been received from the Department, the center shall ensure oversight of the new staff member by another staff member, and ensure that person is not left alone to supervise a child or group of children. Citation: N.J.A.C. 3A:52-4.10 and 3A:52-4.11

☐ Other.

Describe:

5.4.10 The state/territory must conduct the background checks as quickly as possible and shall not exceed 45 days after the child care provider submitted the request. The state/territory shall provide the results of the background check in a statement that indicates whether the staff member is eligible or ineligible, without revealing specific disqualifying information. If the staff member is ineligible, the state/territory will provide information about each disqualifying crime to the staff member.

Describe the requirements, policies, and procedures in place to respond as expeditiously as possible to other states', territories', and tribes' requests for background check results to accommodate the 45-day timeframe, including any agencies/entities responsible for responding to requests from other states (98.43(a)(1)(iii)).

New Jersey Administrative Code (N.J.A.C.) 13:59-1 et seq. authorizes the dissemination of New Jersey criminal history record information (CHRI) by the New Jersey State Police (NJSP), Identification & Information Technology Section (I&ITS), State Bureau of Identification (SBI) for noncriminal justice purposes.

The Central Fingerprint Unit ensures compliance with state statutes and administrative codes requiring the Department of Human Services (DHS) and the Department of Children and Families (DCF) to conduct criminal history background checks.

Individuals who need a background check within the state of New Jersey but are no longer a resident can email the Division of State Police, Criminal Information Unit, at CIU@gw.njsp.org. The CIU will supply the individual with a package, including a fingerprint card and full instructions. In the event that the individual is unable to email there is also a telephone number to call: (609) 882-2000 extension 2918.

The online Fingerprint Approval Retrieval Application (FARA) (https://www.nj.gov/humanservices/staff/opia/cfu/fara.html) allows users to retrieve an

approval notification for those applicants fingerprinted for certain programs by the Department of Human Services or the Department of Children and Families.

- Availability of results can vary from **1-10** business days. If a response is not received after 10 business days, individuals are instructed to contact the New Jersey State Police Criminal Information Unit at (609) 882-2000, ext. 2918. The unit will then contact the Central Fingerprint Unit as soon as possible prior to the 90 day deadline. Instructions are outlined here: https://www.njsp.org/criminal-history-records/
- Agencies **must** obtain applicant approval notifications within **45** days of the fingerprint date
- Results beyond **45** days of the fingerprint date will not be available in the FARA system
- For results over **45** days or missing receipts, applicatns **must** use the **Fingerprint Result Request Form** found at https://www.nj.gov/humanservices/staff/opia/cfu/fara.html
- The Central Fingerprint Unit **cannot** be responsible for substitute approval notifications beyond **45** days of the fingerprint date
- Applicant approval information **can only be** retrieved for the specified agency
- Applicants previously fingerprinted for other agencies **must be** fingerprinted again under your agency's license number or certificate number or cost code
- FARA has a hotline: **609-777-2777**

Once fingerprinting is completed, scanned fingerprints are sent electronically to the New Jersey State Police Criminal Information Unit for dissemination to the Department of Human Services or Department of Children and Families agencies.

Individuals/requesters receive a response within 10 business days.

In some cases, if the fingerprints are not clear or a transmission error occurred, fingerprinting may be necessary again.

Also, any agency requests for fingerprint results, which may have been misplaced or lost, would require fingerprints to be taken again if the request is more than 90 days past the initial fingerprint date.

5.4.11 Child care staff members cannot be employed by a child care provider receiving CCDF subsidy funds if they refuse a background check, make materially false statements in connection with the background check, or are registered or required to be registered on the state or National Sex Offender Registry. Potential staff members also cannot be employed by a provider receiving CCDF funds if they have been convicted of: a felony consisting of murder, child abuse or neglect, crimes against children, spousal

abuse, crimes involving rape or sexual assault, kidnapping, arson, physical assault or battery, or - subject to an individual review (at the state/territory's option)- a drug-related offense committed during the preceding 5 years; a violent misdemeanor committed as an adult against a child, including the following crimes - child abuse, child endangerment, or sexual assault; or a misdemeanor involving child pornography (98.43(c)(1)).

Note: The Lead Agency may not publicly release the results of individual background checks. It may release aggregated data by crime as long as the data do not include personally identifiable information (98.43(e)(2)(iii)).

Does the state/territory disqualify child care staff members based on their conviction for other crimes not specifically listed in 98.43(c)(i)?

☐ No

☑ Yes.

Describe other disqualifying crimes and provide citation:

Yes. NJ disqualifies child care staff members based on their conviction for the following crimes: Endangering the welfare of an incompetent person (pursuant to N.J.S.A. 2C:24-7), manslaughter, (pursuant to N.J.S.A.2C:11-4), stalking (pursuant to **P.L. 1992, c. 209 (N.J.S.A. 2C:12-10)) , false imprisonment, interference with custody (pursuant to N.J.S.A. 2C:13-1 through 13-6), causing or risking widespread injury or damage (pursuant to N.J.S.A. 2C:17-2), aggravated assault, robbery, burglary, domestic violence, and attempt to commit any of the enumerated crimes. The citation is at NJAC 3A:52-4.11.**

5.4.12 The state/territory has a process for a child care staff member to appeal the the results of his or her background check to challenge the accuracy or completeness of the criminal background report, as detailed in 98.43(e)(3).

Describe how the Lead Agency ensures the privacy of background checks and provides opportunities for applicants to appeal the results of background checks. In addition, describe whether the state/territory has a review process for individuals disqualified due to a felony drug offense to determine if that individual is still eligible for employment

(98.43(e)(2-4)).

DCF Office of Licensing affords individuals the opportunity to challenge the accuracy of CHRI and CARI background check results for Licensed Child Care Centers and the CARI results for Registered Family Child Care Providers and Approved Homes, respectively. 3A:52-4.10(g)(2); 3A:52-4.11(f); 3A:54-5.3(f).Furthermore, a provider's application cannot be denied on the basis of any conviction disclosed by the CHRI background check without an opportunity to challenge the accuracy of the disqualifying criminal history record. Approved home providers are afforded an opportunity to be heard and appeal the results of CARI background checks. Results of the checks can only be shared with the government agencies involved, the provider and the subject.

Procedures for Challenging the Accuracy of a Criminal History Record Background Check: (NJAC 3A:52-4.11(f -i)

If the CHRI background check reveals a record of conviction by the child care facility or a staff member, the Department of Children and Families (DCF) shall inform the convicted individual of the opportunity to challenge the accuracy of the CHRI.

If the CHRI background check reveals a record of conviction by a staff member for a crime or offense specified in the NJAC 3A:52 list of disqualifying crimes and offenses, the child care center will immediately terminate the staff member's employment at the center.

If the CHRI background check reveals a record of conviction by the child care center for a crime or offense specified NJAC 3A:52, the Department shall deny the application or revoke or refuse to renew the license or Certificate of Life/Safety Approval, as applicable.

If the CHRI background check reveals a record of conviction by the child care center director or a staff member for a crime or offense other than those specified in NJAC 3A:52, the child care center director or staff member may be eligible for employment at, or ownership, or sponsorship of, a child care center if the Department determines that the person has affirmatively demonstrated to the Department clear and convincing evidence of rehabilitation.

1. In determining whether a person has affirmatively demonstrated rehabilitation, the Department shall consider the following factors:
   - The nature and responsibility of the position at the child care center which the convicted person would hold, has held or currently holds, as the case may be;
   - The nature and seriousness of the offense;

- The circumstances under which the offense occurred;
- The date of the offense;
- The age of the person when the offense was committed;
- Whether the offense was an isolated or repeated incident;
- Any social conditions that may have contributed to the offense; and
- Any evidence of rehabilitation, including good conduct in prison or in the community, counseling or psychiatric treatment received, acquisition of additional academic or vocational schooling, successful participation in correctional work-release programs, or the recommendation of those individuals who have had the person under their supervision.

2. The Department shall make the final determination regarding the employment of a Child care director or staff member with a criminal conviction.

5.4.13 The state/territory may not charge fees that exceed the actual costs of processing applications and administering a criminal background check (98.43(f)).

Describe how the state/territory ensures that fees charged for completing the background checks do not exceed the actual cost of processing and administration, regardless of whether they are conducted by the state/territory or a third-party vendor or contractor. Lead Agencies can report that no fees are charged if applicable (98.43(f)).

The cost of the Child Abuse Record Information Background check is $10. The providers are reimbursed by the Department of Children and Families. The cost of the Criminal History Record Information Background Check is $62.00. The Department of Human Services - Division of Family Development covers the costs of Criminal History Record Information Check for child care staff. Neither charge exceeds the cost of processing and administration.

5.4.14 Federal requirements do not address background check requirements for relative providers who receive CCDF; therefore, states have the flexibility to decide which background check requirements relative providers must meet, as defined by CCDF in 98.2 under eligible child care provider.

Note: This exception only applies if the individual cares only for relative children. Does the state/territory exempt relatives from background checks?

- ☐ No, relatives are not exempt from background check requirements.
- ☐ Yes, relatives are exempt from all background check requirements.
- ☑ Yes, relatives are exempt from some background check requirements. If the state/territory exempts relatives from some background check requirements, describe which background check requirements do not apply to relative providers.

  Relative providers must submit to a CARI background check. Relative providers are currently exempt from the CHRI background check. However, NJ is in the process of making a determination as to which relatives (if any) may be exempt from this check in the future.

6 Recruit and Retain a Qualified and Effective Child Care Workforce

This section covers the state or territory framework for training, professional development, and post-secondary education (98.44(a)); provides a description of strategies used to strengthen the business practices of child care providers (98.16(z)); and addresses early learning and developmental guidelines.

States and territories are required to describe their framework for training, professional development, and post-secondary education for caregivers, teachers, and directors, including those working in school-age care (98.44(a)). This framework is part of a broader systematic approach building on health and safety training (as described in section 5) within a state/territory. States and territories must incorporate their knowledge and application of health and safety standards, early learning guidelines, responses to challenging behavior, and the engagement of families. States and territories are required to establish a progression of professional development opportunities to improve the knowledge and skills of CCDF providers (658E(c)(2)(G)). To the extent practicable, professional development should be appropriate to work with a population of children of different ages, English-language learners, children with disabilities, and Native Americans (98.44(b)(2)(iv)). Training and professional development is one of the options that states and territories have for investing their CCDF quality funds (658G(b)(1)).

6.1 Professional Development Framework

6.1.1 Each state or territory must describe their professional development framework for training, professional development, and post-secondary education for caregivers, teachers and directors, which is developed in consultation with the State Advisory Council on Early Childhood Education and Care or similar coordinating body. The framework should include these components: (1) professional standards and competencies, (2) career pathways, (3) advisory structures, (4) articulation, (5) workforce information, and (6) financing (98.44(a)(3)). Flexibility is provided on the strategies, breadth, and depth with which states and territories will develop and implement their framework.

a) Describe how the state/territory's framework for training and professional development addresses the following required elements:

-- State/territory professional standards and competencies. Describe:

New Jersey's *Core Knowledge and Competencies for Early Childhood Professional* identify specific knowledge areas that a professional must have and be able to apply when working with children, their families and other professionals. Although presented individually, all areas are intrinsically interrelated and interdependent. The *Core Knowledge and Competencies for Early Childhood Professionals* provide a framework of common evidence-based skills that can serve children and families, including programs in centers, homes, and schools. These standards are an integral part of building a statewide comprehensive professional development system.

The areas of the Core Knowledge and Competencies are:

1. **Child Growth and Development**
2. **Family and Community Relationships**
3. **Learning Environment and Curriculum**
4. **Teaching-Learning Interactions and Approaches**
5. **Child Assessment**
6. **Child Wellness: Health, Safety, Nutrition and Physical Activities**
7. **Serving Diverse Populations**
8. **Professionalism and Leadership**
9. **Program Organization and Management**

-- Career pathways. Describe:

All training coordinated through DHS/DFD provides a pathway for individuals. It begins with the foundational training to meet CCDBG training requirements and is complimented with progressive training offerings through Grow NJ Kids (QRIS) training and other training contracts. Consecutively, the workforce is supported with scholarships to further educational achievements; including scholarships for Child Development Associate (CDA) training, CDA Assessment Fees, and college coursework.

All training and professional development coordinated through DHS/DFD contracts are posted on the NJ Workforce Registry through our State's integrated data system, NJCCIS. The NJ Workforce Registry allows training agencies to post training and allows the workforce to search and register for training. All training posted on the NJ Workforce Registry will demonstrate alignment with some or all of the Core Knowledge and Competency Areas. This alignment helps professionals identify their areas of strength and areas of need when selecting training to support their individual needs for ongoing professional development. In addition, the NJ Workforce Registry supports the workforce in maintaining a professional profile, tracking professional development, training, and educational achievements, and the ability to apply for a higher career level within the NJ Career Lattice.

-- Advisory structure. Describe:

The New Jersey Council for Young Children was created in 2010 by an Executive Order to serve as the Governor's State Advisory Council for Early Childhood Systems as authorized under the Improving Head Start for School Readiness Act of 2007. The mission of the Council is to align and improve New Jersey's numerous and complex early childhood programs and initiatives. The New Jersey Council for Young Children is a 25-member Council that is in the DOE, and represents all state agencies with oversight of programs serving families and children from birth to thirteen. This includes the DOE, DHS, DOH, LWD, and DCF. Also represented on the Council are Head Start agencies, advocacy groups, child care organizations, school districts, universities, and foundations. The work of the Council mostly occurs in the committees and workgroup. The Council has 5 working committees and 1 workgroup. The Early Care & Education Workforce

Committee provides support and recommendations regarding the professional development framework.

-- Articulation. Describe:

DHS/DFD worked with Atlantic Cape Community College to develop and implement the online CDA Course to provide the workforce the ability to obtain a credit bearing CDA through a different modality. Through this partnership, attendees were assigned a mentor/coach who assisted them in navigating a higher education to ensure their success. Scholarships were provided to support individuals who enrolled in the online CDA.

In addition, to our work with Atlantic Cape Community College, ongoing discussion with community college partners and higher education institutions have brought about several articulation agreements between the CCR&Rs and community college partners to articulate CDA training into college credit.

-- Workforce information. Describe:

A component of New Jersey's Child Care Information System (NJCCIS), is the NJ Workforce Registry. The NJ Workforce Registry maintains workforce data including demographic information such as, the address/county, age, race, and ethnicity of the workforce. In addition, the NJ Workforce Registry maintains training records, certifications, transcripts, career levels, scholarships, and educational achievements for the workforce.

-- Financing. Describe:

DHS/DFD provides statewide training and professional development supports through contracts with the Child Care Resource and Referral Agencies, Grow NJ Kids Training Services, NJ School Age Coalition, NJ First Step Infant Toddler Specialists, and the Child Care Health Consultants. Many training projects are funded with the quality set-aside funds.

b) The following are optional elements, or elements that should be implemented to the extent

practicable, in the training and professional development framework.

☐ Continuing education unit trainings and credit-bearing professional development to the extent practicable

Describe:

☑ Engagement of training and professional development providers, including higher education, in aligning training and educational opportunities with the state/territory's framework

Describe:

New Jersey offers CCDBG online training for Health and Safety through the Penn State University, Better Kid Care on demand training system. Social-Emotional/behavioral training supports are offered through Montclair State University, Center for Autism and Early Childhood Mental Health. In addition, the QRIS professional development training academy is offered through the Rutgers University, School of Social Work, Institute for Families. The Rowan University, College of Education, Center for Access, Success, and Equity provides training and support to the Quality Improvement Specialists and Technical Assistance Specialists for Grow NJ Kids. Our higher education partners provide high quality training supports to our workforce.

☐ Other

Describe:

6.1.2 Describe how the state/territory developed its professional development framework in consultation with the State Advisory Council on Early Childhood Education and Care (if applicable) or similar coordinating body if there is no SAC that addresses the professional development, training, and education of child care providers and staff.

The framework development for Grow NJ Kids (QRIS) was started by the New Jersey Child Care Advisory Council (CCAC) and the Child Care Aware of New Jersey. New Jersey wanted a strong system to enhance the preparation and continuing education for all professionals providing care and education to the State's children. Progressive training and professional development offerings are aligned with CCDBG progressive training topics and the QRIS standards.

6.1.3 Describe how the framework improves the quality, diversity, stability, and retention of caregivers, teachers, and directors (98.44(a)(7)).

Grow NJ Kids has a number of initiatives in place to increase educational attainment in the child care workforce as a strategy to recruit and retain a highly qualified and diverse workforce.

Quality:

A critical step toward professionalism in the early education and child care workforce is the establishment of a credential defining the qualifications for those authorized to work in the field. An infant/toddler credential in particular is a qualification that asserts that the holder has specialized knowledge and skills that serve as a foundation for high quality interactions and care of babies and toddlers. Purpose is to create universal standards of quality for all ECE programs (Head Start, Child Care, State Preschool, etc.) and provide families with a better understanding of quality. Grow NJ Kids offers scholarships for CDA Coursework endorsed by the Council for Professional Recognition. , CDA Assessment Fees, and College Coursework from any NJ college or university or training organization that has an articulation agreement with a NJ college or university. Applicants must be instructional staff (teacher or teacher's assistant) working at a program currently enrolled in Grow NJ Kids or working at a program that currently receives payment on behalf of children that receive a subsidy through the Child Care Subsidy Program (CCDBG).

Diversity

Serving a growing and changing population and reflecting the diversity of that population requires an intentional focus on building a highly-qualified, effective, and diverse early childhood workforce for New Jersey is one of the core competencies promoted in the NJ Core Knowledge and Competencies for Early Childhood Professionals across all competency levels. The framework outlined regarding diversity provides professionals with the opportunity to evaluate and chart progress from one level to the next through a combination of training, experience, education, self-reflection, and assessment that affirm and respect cultural, ethnic, and linguistic diversity.

Stability:

Scholarships are offered to instructional staff (teacher or teacher's assistant) and family child care providers for CDA Training ($1500 maximum), CDA Assessment Fee (online only), CDA Renewal (reimbursement), College Scholarships ($6000 maximum), P-3 Scholarships ($6000 maximum), Book Stipend (reimbursement up to $175), Merit Award ($500 for scholarship recipients who receive credential – CDA, AA, BA, P-3). As discussed above under 6.1.2(Financing) most of the professional development initiatives have been put in place to provide stability and support for the early child care workforce and are funded with quality set-aside funds.

Retention:

Grow NJ Kids standards focus not only on the children in care but also on the mental health of the staff/providers who are caring for the children. All professional development offered through Grow NJ Kids and other contracted training vendors support the overall growth and development of the workforce. Examples of Grow NJ Kids standards that directly address the mental health of the workforce include opportunities for teachers to engage in reflective teaching practices through the use of peer groups, coaches, and/or mentors; and Ongoing professional development and supervision is offered for staff in order to support positive and responsive relationships and interactions that are warm and nurturing. In addition, instructional staff and providers receive on-site technical assistance from NJ First Steps, Child Care Health Consultants, Quality Improvement Specialists, and Grow NJ Kids Technical Assistance Specialists to provide hands on support.

6.2 Training and Professional Development Requirements

The Lead Agency must describe how its established health and safety requirements for pre-service or orientation training and ongoing professional development requirements--as described in Section 5 for caregivers, teachers, and directors in CCDF programs--align, to the extent practicable, with the state/territory professional development framework. These requirements must be designed to enable child care providers to promote the social, emotional, physical, and cognitive development of children and to improve the knowledge and skills of the child care workforce. Such requirements shall be applicable to child care providers caring for children receiving CCDF funds across the entire age span, from birth through age 12 (658E(c)(2)(G)). Ongoing training and professional development should be accessible and appropriate to the setting and age of the children served (98.44(b)(2)).

6.2.1 Describe how the state/territory incorporates the knowledge and application of its early learning and developmental guidelines (where applicable); its health and safety standards (as described in section 5); and social-emotional/behavioral and early childhood mental health intervention models, which can include positive behavior intervention and support models (as described in section 2) in the training and professional development framework (98.44(b)).

New Jersey has implemented a dual modality approach to offer required trainings to all programs and providers caring for children receiving CCDF funds. Online training and face to face training are offered to ensure that all staff and providers who need the training have access. Training is offered in both English and Spanish in both modalities. Training topics include: Mandated Reporting Child Abuse and Neglect (Positive Guidance and Discipline), Safe Spaces, Transportation Safety, Handling and Storage of Hazardous Materials, Emergency Preparedness, Prevention and Control of Infectious Disease, Food and Allergic Reactions and How to Respond, Safe Sleep and SUIDS Prevention, Prevention of Shaken Baby Syndrome, an overview of Administration of Medication and Foundations of Child Development (birth to preschool) or Youth Growth and Development (school age and summer camp). In addition, CPR and First Aid Training are offered in a face to face modality throughout the state by the local Child Care Resource and Referral Agencies along with other training vendors.

New Jersey also provides statewide training on Keeping Babies and Children in Mind and the Pyramid Model for Supporting Social Emotional Competence in Infants and Young Children. Technical assistance supports are also provided to reinforce training through our various contracted agencies including the Child Care Health Consultants, the NJ First Steps Infant Toddler Specialists, NJ School Age Coalition, mental health consultants, and the Grow NJ Kids Technical Assistance Specialists and Quality Improvement Specialists in the form of annual trainings.

6.2.2 Describe how the state/territory's training and professional development are accessible to providers supported through Indian tribes or tribal organizations receiving CCDF funds (as applicable) (98.44(b)(2)(vi)).

N/A

6.2.3 States/territories are required to facilitate participation of child care providers with limited English proficiency and disabilities in the subsidy system (98.16 (dd)). Describe how the state/territory will recruit and facilitate the participation of providers:

a) with limited English proficiency

NJ offers bilingual caseworkers or translators for parents and providers, provides informational materials about child care assistance in non-English languages, offers child care assistance applications in other languages besides English, and covers English language development in state early learning guidelines for English Language Learners. NJCCIS provides translation in over 100 languages to support those with limited English proficiency in navigating the system. Training is offered online and statewide in both English and Spanish and translations are available upon request based on the need for additional language.

Career pathways outlined in the "NJ Preschool Teaching and Learning Standards" and "NJ Core Knowledge and Competencies for Early Childhood Professionals" are meant to assist the child care workers in understanding career options and identifying steps for advancing in the workforce. Additionally, career pathways are meant to recognize and reward higher levels of preparation and mastery of practice to promote higher quality services for children. NJ offers career pathways for those in their child care workforce that include specializations or credentials for working with English language learners and children with disabilities. Scholarships and merit rewards have been established in these areas in an effort to recruit and support career ladders for bilingual early childhood professionals and those who speak languages other than English as well as those who want to serve children with disabilities.

b) who have disabilities

The State's Web Accessibility Policy 07-12-NJOIT is attached to all state websites, web-based applications, and online services including the www.ChildCareNJ.gov website. The purpose of the policy is to improve the ease with which all users, including those with disabilities, can access and benefit from web-based government services and information. While developing the website, special attention was put into the development of "easy-to-read" and "frequently asked questions" documents with clear, user-focused language. Some of the information on the website is available in alternative formats other than plain text such as audio recordings (including recorded webinars) and videos.
In addition, users who are deaf or hard of hearing may call TTY (877) 294-4356 to access any of the hotlines listed on the "Resources" page of the website (voice calls use 7-1-1 NJ Relay).

Career pathways outlined in the "NJ Preschool Teaching and Learning Standards" and "NJ Core Knowledge and Competencies for Early Childhood Professionals" are meant to assist the child care workers in understanding career options and identifying steps for advancing in the workforce. Additionally, career pathways are meant to recognize and reward higher levels of preparation and mastery of practice to promote higher quality services for children. NJ offers career pathways for those in their child care workforce that include specializations or credentials for working with English language learners and children with disabilities. Scholarships and merit rewards have been established in these areas in an effort to recruit and support career ladders for bilingual early childhood professionals and those who speak languages other than English as well as those who want to serve children with disabilities.

6.2.4 Describe how the state/territory's training and professional development requirements are appropriate, to the extent practicable, for child care providers who care for children receiving child care subsidies, including children of different age groups (such as specialized credentials for providers who care for infants and/or school-age children); English-language learners; children with developmental delays and disabilities; and Native Americans, including Indians and Native Hawaiians (98.44(b)(2)(iii--iv)).

New Jersey offers training and professional development that supports the workforce in their

work with children birth to age 13. The various supports outlined in Section 6.2.1 focus on developmentally appropriate practices in working with all children. In New Jersey, all contracted agencies that provide training and professional development focus content on meeting the individualized needs of all children. In addition, all Quality Improvement Specialists and Technical Assistance Specialists have received rigorous training on Dual Language Leaners and Cultural Competency. The intent is to provide programs and providers with hands on supports to individualize education and care for children.

DHS/DFD has developed a series of online training modules to support staff of school age programs in the areas of Positive Behavior Management, School age Standards and Afterschool Space.

6.2.5 The Lead Agency must provide training and technical assistance to providers and appropriate Lead Agency (or designated entity) staff on identifying and serving children and families experiencing homelessness (658E(c)(3)(B)(i)).

a) Describe the state/territory's training and TA efforts for providers in identifying and serving homeless children and their families (relates to question 3.2.2).

DFD is in the process of building of a repository of targeted training resources for providers which will include interactive modules and technical assistance from the National Center on Parent, Family, and Community Engagement: "Supporting Children and Families Experiencing Homelessness in Early Childhood Programs", the National Center on Early Childhood Health and Wellness: "Caring for the Health and Wellness of Children Experiencing Homelessness", as well as SchoolHouse Connection's Early Care and Education Advocacy Training.

Once trained, CCR&RS will also be responsible for delivering targeted technical assistance to child care providers in understanding the federal definition of homelessness, DFD's eligibility policy to support families experiencing homelessness, establishing connections with local service providers that work with children experiencing homelessness, and how to engage families experiencing homelessness.

b) Describe the state/territory's training and TA efforts for Lead Agency (or designated entity) staff in identifying and serving children and their families experiencing homelessness (connects to question 3.2.2).

DFD will provide technical assistance and training to CCR&Rs on how to develop an outreach plan to establish partnerships that will help identify and refer families experiencing homelessness to the CCDF program. DFD-required elements of the CCR&Rs' outreach plan include:

- Utilizing a residency questionnaire that prompts families to answer key questions about their living situation and training staff to be able to ask sensitive questions;
- Establishing partnerships with their counties' designated McKinney-Vento liaison(s). County-based McKinney-Vento liaison would provide technical assistance in:

1. Identifying children and youth experiencing homelessness;
2. Ensuring that children experiencing homelessness can enroll immediately and participate fully in school;
3. Supporting unaccompanied youth in school selection and dispute resolution;

DFD's policy also includes a mechanism for helping CCR&Rs to identify and prioritize homeless children and families including:

- Ranking homeless families higher on the waiting/admissions list
- Expediting application processing for homeless families;
- Understanding the federal definition of homelessness
- Utilizing a referral form (completed by an organization that provides services to homeless families) to verify a family's homeless status;
- Posting program Subsidy Program flyers at sites that serve homeless families.

6.2.6 States and territories are required to describe effective internal controls that are in place to ensure program integrity and accountability (98.68(a)). Describe how the state/territory ensures that all providers for children receiving CCDF funds are informed and trained regarding CCDF requirements and integrity (98.68(a)(3)). Check all that apply

- [x] Issue policy change notices
- [ ] Issue new policy manual
- [x] Staff training
- [x] Orientations

☑ Onsite training

☑ Online training

☑ Regular check-ins to monitor the implementation of CCDF policies

Describe the type of check-ins, including the frequency.

Check ins and monitoring schedules are based on issues that have been identified as needing the most technical assistance.

☐ Other

Describe:

6.2.7 Lead Agencies must develop and implement strategies to strengthen the business practices of child care providers to expand the supply and to improve the quality of child care services (98.16 (z)). Describe the state/territory's strategies to strengthen provider's business practices, which can include training and/or TA efforts.

a) Describe the strategies that the state/territory is developing and implementing for training and TA.

Training supports through the local Child Care Resource and Referral agencies provide training on management and administration for programs and providers. In addition, Grow NJ Kids standards in the Administration and Management Category prompt providers to implement financial policies including budgeting, professional and accounting standards, and marketing/recruitment plans. The Grow NJ Kids Technical Assistance Specialists support programs and providers by providing technical assistance in those areas during the self-assessment process. Training is offered online in the Program Administration Scale (PAS) to all programs enrolled in Grow NJ Kids.

b) Check the topics addressed in the state/territory's strategies. Check all that apply.

☑ Fiscal management

☑ Budgeting

☑ Recordkeeping

☑ Hiring, developing, and retaining qualified staff

- [x] Risk management
- [x] Community relationships
- [x] Marketing and public relations
- [x] Parent-provider communications, including who delivers the training, education, and/or technical assistance
- [ ] Other

Describe:

6.3 Early Learning and Developmental Guidelines

6.3.1 States and territories are required to develop, maintain, or implement early learning and developmental guidelines that are appropriate for children in a forward progression from birth to kindergarten entry (i.e., birth-to-three, three-to-five, birth-to-five), describing what children should know and be able to do and covering the essential domains of early childhood development. These early learning and developmental guidelines are to be used statewide and territory-wide by child care providers and in the development and implementation of training and professional development (658E(c)(2)(T)). The required essential domains for these guidelines are cognition, including language arts and mathematics; social, emotional, and physical development; and approaches toward learning (98.15(a)(9)). At the option of the state/territory, early learning and developmental guidelines for out-of-school time may be developed. Note: States and territories may use the quality set-aside, discussed in section 7, to improve on the development or implementation of early learning and developmental guidelines.

a) Describe how the state/territory's early learning and developmental guidelines are research-based, developmentally appropriate, culturally and linguistically appropriate, and aligned with kindergarten entry

The New Jersey Birth to Three Early Learning Standards provides a common framework for understanding and communicating developmentally appropriate expectations for infants and toddlers. These standards are based on research about what children should know and do in different domains of learning and development. The New Jersey Birth to Three Early Learning Standards is divided into five domains that reflect the full range of child development. The Birth-to-Eight Early Learning and Development Standards Committee developed the standards based on a model from another state. Extensive

training is provided on the NJ Birth to Three Early Learning Standards by the NJ Infant Toddler Specialists that our regionally contracted by DHS/DFD. An online overview of the NJ Birth to Three Early Learning Standards is currently in development.

b) Describe how the state/territory's early learning and developmental guidelines are appropriate for all children from birth to kindergarten entry.

The New Jersey Preschool Teaching and Learning Standards are aligned with the Early Learning Standards. These standards are grounded in a strong theoretical framework for delivering high quality educational experiences to young children.

The Preschool Teaching and Learning Standards:

- Define supportive learning environments for preschool children;
- Provide guidance on the assessment of young children;
- Articulate optimal relationships between and among families, the community, and preschools;
- Identify expected learning outcomes for preschool children by domain, as well as developmentally appropriate teaching practices that are known to support those outcomes

For each standard, effective preschool teaching practices are listed, and then are followed by the preschool competencies that develop as a result of those practices.

An online training module for the New Jersey Preschool Teaching and Learning Standards is available at www.GrowNJKids.gov .

c) Verify by checking the domains included in the state/territory's early learning and developmental guidelines. Responses for "other" is optional

- [x] Cognition, including language arts and mathematics
- [x] Social development
- [x] Emotional development
- [x] Physical development
- [x] Approaches toward learning
- [ ] Other

Describe:

d) Describe how the state/territory's early learning and developmental guidelines are implemented in consultation with the educational agency and the State Advisory Council or similar coordinating body.

The NJCYC adopted the Birth to Three Learning Standards and aligned them with the NJ Preschool Teaching & Learning Standards which were developed by the New Jersey Department of Education. The Inter-Departmental Planning Group (IPG) meets monthly to discuss early care and education topics. The IPG is comprised of state leadership representatives from the Departments of Children and Families, Education, Health, and Human Services.

e) Describe how the state/territory's early learning and developmental guidelines are updated and include the date first issued and/or the frequency of updates

The NJCYC began the process of developing Birth to Three Early Learning Standards in 2010. A field review of a draft version of the New Jersey Birth to Three Early Learning Standards was conducted from during May 2012 through August 2012. The review involved the feedback and contributions from many individuals and groups throughout the state.

I n April 2000, the Department of Education first developed and published Early Childhood Program Expectations: Standards to guide adults working with young children. In July 2004, the State Board of Education adopted a revised version of this work called Preschool Teaching and Learning Expectations: Standards of Quality. In 2007, the Department embarked on revising the latter work and aligning the preschool standards directly with New Jersey's K-12 Core Curriculum Content Standards. In 2009, after extensive review by education experts, stakeholders, and the public, the State Board adopted the Preschool Teaching and Learning Standards, with additional revisions. In 2013, the standards were modified to directly align with the Common Core Standards, and Approaches to Learning was added. There have been no recent updates.

f) If applicable, discuss the state process for the adoption, implementation and continued improvement of state out-of-school time standards

There have been no recent updates to the state out-of-school time standards.

g) Provide the Web link to the state/territory's early learning and developmental guidelines.

New Jersey Birth to Three Early Learning Standards

http://www.state.nj.us/education/ece/guide/standards/birth/standards.pdf

New Jersey Preschool Teaching and Learning Standards

http://www.nj.gov/education/ece/guide/standards.pdf

6.3.2 CCDF funds cannot be used to develop or implement an assessment for children that:

-- Will be the primary or sole basis to determine a child care provider ineligible to participate in the CCDF,

-- Will be used as the primary or sole basis to provide a reward or sanction for an individual provider,

-- Will be used as the primary or sole method for assessing program effectiveness,

-- Will be used to deny children eligibility to participate in the CCDF (658E(c)(2)(T)(ii)(I); 98.15(a)(2)).

Describe how the state/territory's early learning and developmental guidelines are used.

The guidelines developed for the NJ Birth to Three Early Learning Standards and the NJ Preschool Teaching and Learning Standards are based on an educational philosophy for achieving desired educational outcomes through the presentation of an organized scope and sequence of activities with a description and/or inclusion of appropriate instructional materials. The early learning and preschool standards are not a curriculum, but are the learning targets for a curriculum. All early learning/preschool programs must implement a comprehensive, evidence-based curriculum in order to meet the standards. The chosen curriculum must align to the NJ State Standards/Early Learning Guidelines.

7 Support Continuous Quality Improvement

Lead Agencies are required to reserve and use a portion of their Child Care and Development Fund program expenditures for activities designed to improve the quality of child care services and to increase parental options for and access to high-quality child care (98.53). The quality activities should be aligned with a statewide or territory-wide assessment of the state's or territory's need to carry out such services and care. States and territories are required to report on these quality improvement investments through CCDF in three ways:

1. In the Plan, states and territories will describe the types of activities supported by quality investments over the 3-year period (658G(b); 98.16(j)).

2. ACF will collect annual data on how much CCDF funding is spent on quality activities using the expenditure report (ACF-696). This report will be used to determine compliance with the required quality and infant and toddler spending requirements (658G(d)(1); 98.53(f)).

3. For each year of the Plan period, states and territories will submit a separate annual Quality Progress Report that will include a description of activities to be funded by quality expenditures and the measures used by the state/territory to evaluate its progress in improving the quality of child care programs and services within the state/territory (658G(d); 98.53(f)).

States and territories must fund efforts in at least one of the following 10 activities:

-- Supporting the training and professional development of the child care workforce

-- Improving on the development or implementation of early learning and developmental guidelines

-- Developing, implementing, or enhancing a tiered quality rating and improvement system for child care providers and services

-- Improving the supply and quality of child care programs and services for infants and toddlers

-- Establishing or expanding a statewide system of child care resource and referral services

-- Supporting compliance with state/territory requirements for licensing, inspection, monitoring, training, and health and safety (as described in section 5)

-- Evaluating the quality of child care programs in the state/territory, including evaluating how programs positively impact children

-- Supporting providers in the voluntary pursuit of accreditation

-- Supporting the development or adoption of high-quality program standards related to health, mental health, nutrition, physical activity, and physical development

-- Performing other activities to improve the quality of child care services, as long as outcome measures relating to improved provider preparedness, child safety, child well-being, or kindergarten entry are possible.

Throughout this Plan, states and territories will describe the types of quality improvement activities where CCDF investments are being made, including but not limited to, quality set-aside funds and will describe the measurable indicators of progress used to evaluate state/territory progress in improving the quality of child care services for each expenditure (98.53(f)) These activities can benefit infants and toddlers through school age populations.

This section covers the quality activities needs assessment and quality improvement activities and indicators of progress for each of the activities undertaken in the state or territory.

7.1 Quality Activities Needs Assessment for Child Care Services

7.1.1 Lead Agencies must invest in quality activities based on an assessment of the state/territory's needs to carry out those activities. Lead Agencies have the flexibility to design an assessment of their quality activities that best meet their needs, including how often they do the assessment. Describe your state/territory assessment process, including the frequency of assessment (658G(a)(1); 98.53(a)).

An Evaluation of The Department of Human Services Division of Family Development's QRIS System (Grow NJ Kids) was conducted by Open Road Inclusive Community Consulting in July 2018. The purpose of this evaluation was to better understand the perspectives of New Jersey early child care and learning providers on the Quality Rating Improvement System (QRIS), known as Grow NJ Kids and the process by which it was developed, in order to evaluate the system and inform future decisions. The evaluation engaged providers of early child care and learning programs in conversations about the

Grow NJ Kids QRIS and explored their perceptions of and experiences with the QRIS. Specifically, the conversations focused on their perceptions of the quality, usefulness and feasibility of the QRIS, the supports they were provided through Grow NJ Kids, the process of the implementation of the QRIS and what they believe parents are thinking about the Grow NJ Kids system.

Three focus groups or listening sessions were conducted in the Northern, Central and Southern parts of the state. The groups in the different areas of New Jersey were planned for two primary reasons: Firstly, New Jersey is a relatively large state. Having multiple sessions lessened the burden of travel time for participants. Secondly, New Jersey's social and economic context vary considerably and contain rural, suburban and urban communities. Focus groups in multiple areas increased the likelihood of diversity in the communities of the participants. The focus groups ranged in size from 8 to 19 participants and lasted on average one hour and forty-five minutes. All participants were directors or in direct leadership positions of early child care and learning programs in the state. In total, 42 providers participated.

The focus groups/listening session lasted on average 1 hour and 45 minutes. All focus groups were recorded using a digital, audio-recorder and each was transcribed verbatim. At the beginning of all of the sessions the participants were informed that their participation was entirely voluntary and that although their words and ideas would be shared in the reporting of the sessions, their identities would not and their confidentiality would be protected.

All of the notes taken during the sessions by the facilitator and the transcriptions of each focus group/listening session were analyzed using grounded theory. Grounded theory is an approach to data collection and analysis in which the researcher looks for themes, patterns, commonalities and ideas from within the data. Consistent with grounded theory all the data were analyzed line by line to look for patterns. Each response was analyzed individually and then compared to the other responses

This evaluation will be conducted on an annual basis. Regular assessments and evaluation drive New Jersey's investment in quality activities including the development of the NJCCIS Workforce Registry and the development of the NJ Enterprise Analysis System for Early Learning (NJ-EASEL).

7.1.2 Describe the findings of the assessment and if any overarching goals for quality improvement were identified.

Ten general themes and key findings emerged from the data related to early child care and learning provider's perceptions of the quality, usefulness and feasibility of Grow NJ Kids and the process by which it was developed. The themes that emerged were: That Grow NJ kids is a valuable tool in promoting ongoing quality improvement and standardization of quality in early child care and learning in New Jersey; Providers would like more accessible and varied professional development and training opportunities; Providers find some of the training requirements, standards and parts of the documentation and rating process burdensome; Providers noted challenges in the clarity of expectations and consistency of communication they received through Grow NJ Kids; Providers wanted greater overlap and alignment with other related accreditation, regulatory and quality improvement systems such as, NAEYC; Providers felt that although there were benefits to the Grow NJ Kids system it took on a one-size-fits-all approach that did not work well for some types of centers in some types of communities; Providers noted a lack of trust in state systems and noted fears of changes in policy related to early childhood; Providers had questions and concerns about the sustainability of their involvement in Grow NJ Kids as well as the Grow NJ Kids system itself; Providers felt that parents had little information or interest in the Grow NJ Kids system; Providers felt they would benefit from greater opportunities for peer support in the Grow NJ Kids process. These findings support the overarching goals for quality improvement of the Grow NJ Kids QRIS System.

7.2 Use of Quality Funds

7.2.1 Check the quality improvement activities in which the state/territory is investing

☑ Supporting the training and professional development of the child care workforce If checked, respond to section 7.3 and indicate which funds will be used for

this activity. Check all that apply.

☑ CCDF funds

☑ Other funds

Describe:

DHS/DFD and DOE entered into a Memorandum of Understanding with Rutgers University. The purpose of the MOU is to continue a study of classroom quality in Kindergarten through Third Grade classrooms, and to continue work supporting materials and trainings for First through Third Grade Guidelines.
In addition, DFD has entered into an agreement with Rutgers University, School of Social Work, and Institute for Families to handle all logistical aspects of training related to Grow NJ Kids. The agreement took effect April of 2016.
Ongoing supports for the Environment Rating Scale (ERS) sustainability have been instituted in 2017 along with reliability training for the Early Childhood Environmental Rating Scale (ECERS- 3). In late 2017, NJ hosted reliability training for the Infant Toddler Environmental Rating Scale (ITERS-3) and began using the tool for rating infant and toddler programs in July of 2018.
In July 2015, four regional technical assistance centers were created. These centers are charged with providing intensive training and technical assistance based on the needs of the program. Training and technical assistance topics includes social, emotional, physical, and cognitive development of children, training on behavior management, family engagement, developmentally and culturally appropriate curriculum, providing access to comprehensive services to support learning and development, caring for children with disabilities, . This has allowed NJ to move to a multi-tiered approach to assist programs through the process more efficiently and effectively.

☑ Developing, maintaining, or implementing early learning and developmental guidelines. If checked, respond to section 6.3 and indicate which funds will be used for this activity. Check all that apply.

☑ CCDF funds

☑ Other funds

Describe:

Through a memorandum of understanding, William Paterson University created Preschool Classroom Implementation guidelines based on the latest research, and developed corresponding videos to support implementation with funding

provided by the Race to the Top Early Learning Challenge (RTT-ELC) Grant. The three videos support the implementation of the new guidelines by highlighting best practices in regards to:

• Environment;

• Intentional Teaching/Interactions (focus on literacy);

• Infusing math.

Existing NJDOE guidelines (NJ's Birth to Three Early Learning Standards and NJ Preschool Teaching and Learning Standards) were reviewed to ensure they align and complement the NJ Kindergarten standards. Input was gathered from Pre-k teachers, master teachers, early childhood supervisors and preschool directors.

The New Jersey Kindergarten standards were also updated to include a revised schedule, assessment map, chronic absenteeism resources, new section on homework, new guidance on out-of-school suspensions and expulsions, retention, the new Approaches to Learning for K-3, NGSS, World Languages standards and a new design (to coordinate with the new Grades 1-3 Guidelines) .

☑ Developing, implementing, or enhancing a tiered quality rating and improvement system. If checked, respond to 7.4 and indicate which funds will be used for this activity. Check all that apply.

☑ CCDF funds

☑ Other funds

Describe:

Over the course of the Race to the Top grant, January 1, 2017-December 31, 2017, Grow NJ Kids rated 70 programs and 26 providers. Our rating partner, William Paterson University, participates in the Grow NJ Kids curriculum review process and all outcomes are provided to programs that submit documentation for review. The rating process is both a portfolio review and onsite observation. A point system was developed for each level of the TQRIS and provides an opportunity for programs to implement systematic and systemic change. It also includes specific threshold scores for the Environmental Rating Scales (ERS) for each star rating and curriculum training requirements.

☑ Improving the supply and quality of child care services for infants and toddlers. If checked, respond to 7.5 and indicate which funds will be used for this activity. Check all that apply

☑ CCDF funds

☑ Other funds

Describe:

Enrollment in the QRIS is ongoing, also ongoing is attrition of program. As of December 31, 2017, a total of 1,373 center-based programs and family child care providers had enrolled in Grow NJ Kids. Increasing the number of Grow NJ Kids enrolled programs improves the supply and quality of child care services for infants and toddlers in NJ. There are approximately 1,154 programs and family child care providers that are activity participating in Grow NJ Kids. Over the course of this past year, the Grow NJ Kids team has developed a continuous quality improvement protocol for programs that have gone through ratings to clearly articulate post rating guidance and support quality improvements. Furthermore, the Grow NJ Kids administrative team continues to encourage programs to move through the rating process. A rating incentive is available for programs and providers who complete the rating process.

With Race to the Top Funding, the Grow NJ Kids website has been updated to include a Provider Search for parents looking for quality early education programs. The website is inclusive of all programs and providers enrolled in Grow NJ Kids and as the pool of rated programs and providers increase the ability to filter by rated programs and providers will exist. The website also includes information for families, which includes a checklist for parents to be used while choosing an early education program for their child/children.

In addition, $1.2 million will be made available to create a new $100-per-infant-per-month incentive for new infant care slots - available for 12 months on top of the base rate and any Grow NJ Kids incentive payment increases - to provide a further incentive for child care centers to expand infant care.

This initiative was created to address the demand and unmet need for infant care slots in subsidized child care programs and the importance of increasing rates for these services. This new investment is intended to start to close that gap.

☑ Establishing or expanding a statewide system of CCR&R services, as discussed in 1.7. If checked, respond to 7.6 and indicate which funds will be used for this activity. Check all that apply.

☑ CCDF funds

☑ Other funds

Describe:

Using a combination of State of Race to the Top Funding, NJ has developed a system that will house all licensing and workforce registry activities. The new NJ Workforce Registry will allow early care and education professionals to track their education and professional development activities. TCC Software Solutions and DFD entered into an Agreement in October 2016 to create a data system that supports facility and staff licensing, child care facility quality rating, professional development, and the ongoing monitoring of child care and early learning programs. With this new system in development, the role of the CCR&Rs has been expanded (from a mostly manual process to a systemically driven one). CCR&Rs will now be charged with managing systemic components of the licensing process for certain providers as well as the systemic components of the professional development process.

☑ Facilitating compliance with state/territory requirements for inspection, monitoring, training, and health and safety standards (as described in section 5). If checked, respond to 7.7 and indicate which funds will be used for this activity. Check all that apply.

☑ CCDF funds

☑ Other funds

Describe:

DFD is making $6.8 million available for grants to fund child care centers' acquisition of classroom curricula to enhance the quality of the child care experience as well as physical plant improvements to support healthy and safe environments. Grants will also be used to help programs participate in Grow NJ Kids and support staff training.

☑ Evaluating and assessing the quality and effectiveness of child care services within the state/territory. If checked, respond to 7.8 and indicate which funds will be used for this activity. Check all that apply.

☑ CCDF funds

☑ Other funds

Describe:

Race to the Top Funding was used to develop a memorandum of understanding with William Paterson University to create Preschool Classroom Implementation guidelines based on the latest research, and developed corresponding videos to support implementation. Existing NJDOE guidelines were reviewed to ensure alignment. Input was gathered from Pre-k teachers, master teachers, early childhood supervisors and preschool directors.

Based on new research, changes were made to the following sections: Assessment, English Language Learners, School, Family and Community Connections and the Pre-intervention and Inclusion.

☑ Supporting accreditation. If checked, respond to 7.9 and indicate which funds will be used for this activity. Check all that apply.

☑ CCDF funds

☑ Other funds

Describe:

The State of NJ implemented a subsidy rate increase for child care centers providing care to infants, toddlers, and preschool age children ranging from one to four percent. An estimated $15 million was appropriated in the state fiscal year 2018 budget for the rate increase. The rate increase was implemented in two phases during the first half of calendar year 2018. On June 1, 2018, New Jersey introduced a tiered reimbursement system of payments that paid quality based differential payments to providers in center-based settings that have a Grow NJ Kids Quality Rating level of 3, 4, or 5.

Grow NJ Kids QRIS is the New Jersey Child Care Subsidy Program's quality benchmark and accreditation system for infants, toddlers, and preschool children.

Payment rates will increase further for programs that are rated by Grow NJ Kids in January 2019. Funding for this rate increase is a combination of federal Child Care Development Fund (CCDF), the Temporary Assistance to Needy Families program funds, and state appropriations. This new funding is a result of increases in the CCDF.

☑ Supporting state/territory or local efforts to develop high-quality program standards relating to health, mental health, nutrition, physical activity, and physical development. If checked, respond to 7.10 and indicate which funds will be used for this activity. Check all that apply.

☑ CCDF funds

☑ Other funds

Describe:

New Jersey continues to promote health standards across all five levels of the Tiered Grow NJ Kids QRIS (Race to the Top funded). Health standards are organized in the following categories: Category 1: Safe, Healthy Learning Environments) that are adapted from Stepping Stones: Caring for Our Children. Grow NJ Kids is aligned with nationally accepted practices that promote high quality learning within a safe and healthy environment. Participating sites must meet standards for the physical environment, i.e., furnishings and classroom conditions; and offer age-appropriate activities/services that promote healthy eating, physical activity and oral health, based on the developmental abilities and capacities of the children. Grow NJ Kids establishes a common set of health standards for developmental, behavioral, and sensory screening, referral, and follow up; and health literacy is also addressed in the levels and categories.

Routine screening for child development and linkage to pediatric primary care/medical home is an important focus of NJ's work with young children. Screening is also a priority for several major federal initiatives that are currently in place in the state. These include Early Childhood Comprehensive Systems (ECCS), MIECHV, Help Me Grow (HMG), Project LAUNCH, and Race to the Top-Early Learning Challenge (RTT-ELC) Grants. NJ has a strong alignment of health service components with the Medicaid/NJ Family Care (CHIP) Early Periodic Screening, Diagnostic and Treatment requirements. In fact, NJ licensing standards for early learning programs require children to have a medical exam upon entry that includes immunizations, and lead testing, thus providing a basis for the Medicaid/NJ FamilyCare (CHIP) Early Periodic Screening, Diagnostic and Treatment (EPSDT) program requirements.

☑ Other activities determined by the state/territory to improve the quality of child care services and which measurement of outcomes related to improved provider

preparedness, child safety, child well-being, or kindergarten entry is possible. If checked, respond to 7.11 and indicate which funds will be used for this activity. Check all that apply

☑ CCDF funds

☑ Other funds

Describe:

DFD monitored and updated the NJ Enterprise Analysis System for Early Learning (NJ-EASEL) data system Project Schedule through ongoing planning sessions, to continue to streamline activities and keep the project within scope, on time and within budget, for the initial NJ-EASEL implementation. This NJ-EASEL Phase 1 implementation is scheduled for the fourth quarter of 2018, as a result of receiving approval of the No-Cost Extension. We also completed the NJ-EASEL Sustainability Plan, following vetting by the NJ-EASEL Policy & Data Governance Council, and review and approval by the NJ-EASEL Steering Committee. The NJ-EASEL Sustainability Plan was then incorporated into the overall RTT-ELC NJ Sustainability plan (Race to the Top has been the main source of funding for this initiative).

7.3 Supporting Training and Professional Development of the Child Care Workforce With CCDF Quality Funds

Lead Agencies can invest in the training, professional development, and post-secondary education of the child care workforce as part of a progression of professional development activities, such as those included at 98.44 in addition to the following (98.53(a)(1)).

7.3.1 Describe how the state/territory funds the training and professional development of the child care workforce

a) Check and describe which content is included in training and professional development activities and describe who or how an entity is funded to address this topic. Check all that apply.

☑ Promoting the social, emotional, physical, and cognitive development of children, including those efforts related to nutrition and physical activity, using

scientifically based, developmentally appropriate, and age-appropriate strategies

Describe:

Through a partnership with the Center for Autism and Early Childhood Mental Health at Montclair State University, NJ has been offering a series of provider trainings for early childhood professionals. This free training is called "Keeping Babies and Children in Mind: Professional Training and Support of the Promotion of Infant and Early Childhood Mental Health." The trainings involve evidence-based practices which support the emotional, social and neurological foundations for all development and learning. Included in the training series are topics on promoting infant and early childhood mental health (IECMH), understanding and responding to trauma, supporting children and family strengths, and utilizing reflective practices and self-care. The Keeping Babies and Children in Mind trainings promote awareness about the unique social and emotional development of young children and the importance of reflective caregiving and parenting. These initiatives are funded with state or federal dollars.

☑ Implementing behavior management strategies, including positive behavior interventions and support models that promote positive social-emotional development and early childhood mental health and that reduce challenging behaviors, including a reduction in expulsions of preschool-age children from birth to age five for such behaviors. (See also section 2.5.)

Describe:

The Center for Autism and Early Childhood Mental Health at Montclair State University also provides certified trainers on the "Pyramid Model." The "Pyramid Model for Supporting Social-Emotional Competence in Infants and Young Children" (the Pyramid Model) is a conceptual model of evidence-based practices for increasing the social-emotional competency of infants and young children across New Jersey.

Successful implementation of the Pyramid Model in early childhood settings measures the extent to which the model increases social skills and positive behaviors in infants and young children, enhances awareness of the significance of early childhood mental health, and reduces the number of problem behavior incidents in young children. After training, NJ is currently supporting programs that serve as implementation sites and demonstration sites that support our network of providers as they implement the Pyramid

Model.

These initiatives are funded with State or federal dollars.

☑ Engaging parents and families in culturally and linguistically appropriate ways to expand their knowledge, skills, and capacity to become meaningful partners in supporting their children's positive development

Describe:

Grow NJ Kids will significantly influence professional development. It requires programs to show evidence of how they meet the cultural and linguistic needs of families. Trainings are also provided on how to support dual-language learners. Grow NJ Kids and the trainings are funded with State or federal dollars

☑ Implementing developmentally appropriate, culturally and linguistically responsive instruction, and evidence-based curricula and designing learning environments that are aligned with state/territory early learning and developmental standards.

Describe:

Grow NJ Kids requires programs to prove that they are implementing a research-based curriculum that aligns to the States Early Learning Standards. Programs must show evidence that they are embedding the standards into daily lesson planning.

☑ Providing onsite or accessible comprehensive services for children and developing community partnerships that promote families' access to services that support their children's learning and development

Describe:

Grow NJ Kids has five categories in its self-assessment tool. One category is Family and Community Engagement. This category has numerous standards for programs and providers that require evidence on how they are connecting families to services that meet the needs of the family.

Grown NJ Kids is funded with State or federal dollars.

☑ Using data to guide program evaluation to ensure continuous improvement

Describe:

As mentioned above, Grow NJ Kids, NJCCIS, and NJ EASEL all provide or will

provide data to guide program evaluation. These initiatives are funded with state or federal dollars.

☑ Caring for children of families in geographic areas with significant concentrations of poverty and unemployment

Describe:

DHS/DFD is assessing this area for future policy development.

☑ Caring for and supporting the development of children with disabilities and developmental delays

Describe:

NJ currently offers a provider training module to help programs and providers learn about the importance and purpose of developmental screenings for young children. The trainings promote hands-on use of the Ages and Stages Questionnaire-3 (ASQ-3). Early childhood educators and care providers discuss the domains and features of this evidenced-based developmental screening tool; practice administering, scoring, and interpreting results of the ASQ-3; and discuss methods of sensitively communicating results and talking with families about community referrals. This training is funded with State or federal dollars.

☑ Supporting the positive development of school-age children

Describe:

As mentioned in section 6, DHS/DFD **is** developing a series of online training modules to support staff of school age programs in the areas of Positive Behavior Management, School-Age Standards, and Afterschool Space. That initiative is funded with State or federal dollars.

☑ Other

Describe:

As stated in section 6.1.1, as part of their orientation, staff at licensed child care centers, registered and approved homes, and summer youth camps, must complete a DFD procured training module that covers training and professional development topics as part of their orientation.

b) Check how the state/territory connects child care providers with available federal and state/territory financial aid or other resources to pursue post-secondary education relevant for the early childhood and school-age workforce. Check all that apply

- [x] Coaches, mentors, consultants, or other specialists available to support access to post-secondary training, including financial aid and academic counseling
- [x] Statewide or territory-wide, coordinated, and easily accessible clearinghouse (i.e., an online calendar, a listing of opportunities) of relevant post-secondary education opportunities
- [x] Financial awards, such as scholarships, grants, loans, or reimbursement for expenses, from the state/territory to complete post-secondary education
- [x] Other

Describe:

With a combination of RTT ELC grant funding and state funding and existing quality funds, NJ expanded the technical assistance that is provided to programs enrolled in Grow New Jersey Kids, enhanced the incentives offered to programs, and improved the NJ Workforce Registry to support a comprehensive tracking of professional development. NJ has also developed partnerships with higher education to provide trainings to meet the standards of Grow NJ Kids, Social Emotional Supports and Pyramid Model Training. Trainings are offered free of charge to subsidy providers and those programs/providers enrolled in Grow NJ Kids.

Furthermore, the Department of Human Services, Division of Family Development (DHS/DFD) has a scholarship initiative that provides educational opportunities for instructional staff within programs and for Family Child Care providers who serve CCDF families.

The scholarship funds are aimed to support teachers, paraprofessionals, and providers interested in furthering their educational goals that will lead to a CDA in two year institutions as well as associate degrees, bachelor's degrees in early childhood education, or preschool-3rd grade certifications.

DHS/DFD is in the process of issuing a payment that will reimburse providers for the cost of paying for substitute teachers for their primary teachers that miss time due to health and safety trainings.

7.3.2 Describe the measureable indicators of progress relevant to this use of funds that the state/territory will use to evaluate its progress in improving the quality of child care programs and services within the state/territory and the data on the extent to which the state or territory has met these measures

Grow NJ Kids is New Jersey's statewide QRIS system. It is administered by the State's Child Care Operations unit. The State contracts with the local CCR&Rs to employ quality improvement specialists who provide targeted technical assistance, monitoring and coaching. Furthermore, the Regional Technical Assistance Centers also provide ongoing and intensive support to programs enrolled in Grow NJ Kids. The numerous rating criteria and the number of rated programs are the measurable indicators of progress. New Jersey measures progress with positive data showing that programs are meeting as many of the criteria as possible and data showing that more programs are reaching higher rating levels.

Programs receive technical assistance for up to 18 months prior to receiving an official rating. Family Child Care Providers receive up to 24 months of technical assistance and coaching prior to an official rating.

Programs and Providers are re-rated every three years. In between ratings, ongoing technical assistance is provided to support continuous quality improvement.

Current Workforce Registry data also serve as measures of progress.

In the future measures will also be derived from NJCCIS and NJ EASEL data.

7.4 Quality Rating and Improvement System (QRIS)

Lead Agencies may respond in this section based on other systems of quality improvement, even if not called a QRIS, as long as the other quality improvement system contains the elements of a QRIS. QRIS refers to a systematic framework for evaluating, improving and communicating the level of quality in early childhood programs and contains five key elements:

1. Program standards

2. Supports to programs to improve quality
3. Financial incentives and supports
4. Quality assurance and monitoring
5. Outreach and consumer education

7.4.1 Does your state/territory have a quality rating and improvement system or other system of quality improvement?

☐ No, but the state/territory is in the QRIS development phase. If no, skip to 7.5.1.

☐ No, the state/territory has no plans for QRIS development. If no, skip to 7.5.1.

☑ Yes, the state/territory has a QRIS operating statewide or territory-wide

Describe how the QRIS is administered (e.g., statewide or locally or through CCR&R entities) and any partners and provide a link, if available.

Grow NJ Kids is New Jersey's statewide QRIS system. It is administered by the State's Child Care Operations unit. The State contracts with the local CCR&Rs to employ quality improvement specialists who provide targeted technical assistance, monitoring and coaching. Furthermore, the regional technical assistance centers also provide ongoing and intensive support to programs enrolled in Grow NJ Kids. Here is the link to Grow NJ Kids: www.GrowNJKids.gov

Programs receive technical assistance for up to 18 months prior to receiving an official rating. Family Child Care Providers receive up to 24 months of technical assistance and coaching prior to an official rating.

Programs and Providers are rated every three years. In between ratings, ongoing technical assistance is provided to support continuous quality improvement.

☐ Yes, the state/territory has a QRIS initiative operating as a pilot-test in a few localities or only a few levels but does not have a fully operating initiative on a statewide or territory-wide basis.

Provide a link, if available.

☐ Yes, the state/territory has another system of quality improvement

If the response is yes to any of the above, describe the measureable indicators of progress relevant to this use of funds that the state/territory will use to evaluate its progress in improving the quality of child care programs and services within the state/territory and the data on the extent to which the state or territory has met these measures.

The numerous rating criteria and the increasing number of rated programs in NJ's QRIS are the measurable indicators of progress. New Jersey measures progress with positive data showing that programs are meeting as many of the criteria as possible and data showing that more programs are reaching higher rating levels. Or in other words, as programs are progressing through the system they are in turn increasing in quality.

Over the course of this past year, the Grow NJ Kids team has developed a continuous quality improvement protocol for programs that have gone through ratings to clearly articulate post rating guidance and support quality improvements.

Grow NJ Kids is working on tracking tends and monitoring how programs are progressing through the system of GNJK. We can infer that as programs are progressing through the system they are in turn increasing quality. In addition, we have the incentives embedded at different stages of the QRIS that support the quality improvement efforts. (i.e. health and safety incentives, quality improvement plan incentives, rating incentive).

Lastly, the state has developed a multi-layered technical assistance approach. Once programs or providers have completed the online orientation they are assigned a Quality Improvement Specialist (QIS).

This technical assistance approach helps ensure that measurable progress is made by the end of the grant period. The technical assistance centers track performance outcomes, such as, increased Environmental Rating Scale (ERS) scores, implementation of curriculum, etc.

In addition, in July 2018, DFD conducted an evaluation of participating providers' perceptions of the quality, usefulness, and feasibility related to the Grow NJ Kids QRIS activities listed above. This evaluation system based on provider feedback and focus groups is the cornerstone of quality improvement and will help DFD **evaluate its progress in improving the quality of child care programs and services in NJ.**

7.4.2 QRIS participation

a) Are providers required to participate in the QRIS?

- [x] Participation is voluntary
- [ ] Participation is mandatory for providers serving children receiving a subsidy. If checked, describe the relationship between QRIS participation and subsidy (e.g., minimum rating required, reimbursed at higher rates for achieving higher ratings, participation at any level).

- [ ] Participation is required for all providers.

b) Which types of settings or distinctive approaches to early childhood education and care participate in the state/territory's QRIS? Check all that apply

- [x] Licensed child care centers
- [x] Licensed family child care homes
- [ ] License-exempt providers
- [x] Early Head Start programs
- [x] Head Start programs
- [x] State prekindergarten or preschool programs
- [x] Local district-supported prekindergarten programs
- [x] Programs serving infants and toddlers
- [ ] Programs serving school-age children
- [ ] Faith-based settings
- [ ] Tribally operated programs
- [ ] Other

Describe:

7.4.3 Support and assess the quality of child care providers.

The Lead Agency may invest in the development, implementation, or enhancement of a tiered quality rating and improvement system for child care providers and services. Note: If a Lead

Agency decides to invest CCDF quality dollars in a QRIS, that agency can use the funding to assist in meeting consumer education requirements (98.33). If the Lead Agency has a QRIS, respond to questions 7.4.3 through 7.4.6.

Do the state/territory's quality improvement standards align with or have reciprocity with any of the following standards?

- [ ] No
- [x] Yes. If yes, check the type of alignment, if any, between the state/territory's quality standards and other standards. Check all that apply.
  - [ ] Programs that meet state/territory preK standards are able to meet all or part of the quality improvement standards (e.g., content of the standards is the same, there is a reciprocal agreement between preK programs and the quality improvement system) .
  - [x] Programs that meet federal Head Start Program Performance Standards are able to meet all or part of the quality improvement standards (e.g., content of the standards is the same, there is a reciprocal agreement between Head Start programs and the quality improvement system).
  - [ ] Programs that meet national accreditation standards are able to meet all or part of the quality improvement standards (e.g., content of the standards is the same, an alternative pathway exists to meeting the standards).
  - [ ] Programs that meet all or part of state/territory school-age quality standards.
  - [ ] Other.

  Describe:

7.4.4 Do the state/territory's quality standards build on its licensing requirements and other regulatory requirements?

- [ ] No
- [x] Yes. If yes, check any links between the state/territory's quality standards and licensing requirements
  - [x] Requires that a provider meet basic licensing requirements to qualify for the base level of the QRIS.
  - [x] Embeds licensing into the QRIS

- [ ] State/territory license is a "rated" license
- [ ] Other.

Describe:

7.4.5 Does the state/territory provide financial incentives and other supports designed to expand the full diversity of child care options and help child care providers improve the quality of services that are provided through the QRIS

- [ ] No
- [x] Yes. If yes, check all that apply
  - [x] One time grants, awards, or bonuses.
  - [ ] Ongoing or periodic quality stipends
  - [x] Higher subsidy payments
  - [x] Training or technical assistance related to QRIS.
  - [x] Coaching/mentoring.
  - [ ] Scholarships, bonuses, or increased compensation for degrees/certificates
  - [x] Materials and supplies
  - [ ] Priority access for other grants or programs
  - [ ] Tax credits (providers or parents)
  - [ ] Payment of fees (e.g., licensing, accreditation)
  - [x] Other

Describe:

A **s funds are available, various incentives are provided to support programs in meeting needs in the care environments, curriculum and professional development, as well as scholarships to obtain credentials or degrees related to early childhood. Most recently, the State implemented a tiered reimbursement system for the subsidy based on the programs official rating.**

Additionally, New Jersey plans to issue additional support for curriculum to the vendors who work with providers enrolled in Grow NJ Kids.

7.4.6 Describe the measureable indicators of progress relevant to this use of funds that the state/territory will use to evaluate its progress in improving the quality of child care programs and services within the state/territory and the data on the extent to which the state or territory has met these measures

Grow NJ Kids is a 5 star system with 5 categories and standards in each category that are delineated by level. A program or provider must meet all standards at a level 2 in order to progress to the level 3, 4, and 5 standards. Once programs are working on the higher level standards they are able to accumulate points in any of the level 3, 4 or 5 standards and the number of points required is dependent on the star rating request. Programs also must meet thresholds on the environmental rating scales and also meet a number of curriculum training hours which progresses depending on the star rating requested.

The numerous rating standards and the number of rated programs are the measurable indicators of progress. The rating levels are based on approximately 110 criteria. The criteria include health and safety criteria, teacher qualifications and others. The ratings factors can found through the following links:

http://www.GrowNJKids.gov/getattachment/76059975-cbf2-4447-bac4-d2964035d02e/3,-4-and-5-Star-Rating-Point-Requirements.aspx

http://www.GrowNJKids.gov/getattachment/3800f879-98bf-4482-8f8d-02c5d36241f4/3,-4-and-5-Star-Rating-Point-Requirements-FCC.aspx

Positive data showing that programs are meeting as many of the standards as possible and data showing that more programs are reaching higher rating levels is how New Jersey measures progress. Current Workforce Registry data also serve as measures of progress.

In the future measures will also be derived from NJCCIS and NJ EASEL data.

7.5 Improving the Supply and Quality of Child Care Programs and Services for Infants and Toddlers

Lead Agencies are encouraged to use the needs assessment to systematically review and improve the overall quality of care that infants and toddlers receive, the systems in place or needed to support and enhance the quality of infant and toddler providers, the capacity of the infant and toddler workforce to meet the unique needs of very young children, and the methods in place to increase the proportion of infants and toddlers in higher quality care, including any partnerships or coordination with Early Head Start and IDEA Part C programs. Lead Agencies are required to spend 3 percent of their total CCDF expenditures on activities to improve the supply and quality of their infant and toddler care. This is in addition to the general quality set-aside requirement.

7.5.1 What activities are being implemented by the state/territory to improve the supply (see also section 4) and quality of child care programs and services for infants and toddlers? Check all that apply and describe

☐ Establishing or expanding high-quality community- or neighborhood-based family and child development centers. These centers can serve as resources to child care providers to improve the quality of early childhood services for infants and toddlers from low-income families and to improve eligible child care providers' capacity to offer high-quality, age-appropriate care to infants and toddlers from low-income families

Describe:

☐ Establishing or expanding the operation of community- or neighborhood-based family child care networks.

Describe:

☑ Providing training and professional development to enhance child care providers' ability to provide developmentally appropriate services for infants and toddlers

Describe:

CCR&Rs administer the First Steps Initiative, the Statewide Parent Advocacy Network (SPAN), and professional development trainings for providers that serve infants and toddlers. The goal of these initiatives is to improve providers'

knowledge and expertise in developmentally appropriate practices. A Professional Development training calendar is offered by each of the above entities. Providers are able to select from an array of topics that provide information, training and resources on the latest research on infant and toddler development.

☑ Providing coaching, mentoring, and/or technical assistance on this age group's unique needs from statewide or territory-wide networks of qualified infant-toddler specialists

Describe:

First Steps is NJ's infant toddler specialist network. Through this network, there are nine Parent Infant Toddler Care (PITC) trained, Infant Toddler Specialists. These specialists provide onsite technical assistance, coaching and training to providers that care for infants and toddlers. Providers receive a preliminary and subsequent Infant/Toddler Environment Rating Scale (ITERS)/ Family Child Care Environment Rating Scale (FCCERS) conducted by the Infant Toddler Specialist. Then, a quality improvement plan is developed in partnership with the program director to address areas needed to raise the ITERS/FCCERS score. A total of 17 hours of intervention are provided to the program to address the identified areas of need. In addition, the Infant Toddler Specialist offers training on topics specific to the age group's needs (i.e., SIDS, child development, primary caregiving, room arrangement).

☐ Coordinating with early intervention specialists who provide services for infants and toddlers with disabilities under Part C of the Individuals with Disabilities Education Act (20 U.S.C. 1431 et seq.).

Describe:

☑ Developing infant and toddler components within the state/territory's QRIS, including classroom inventories and assessments

Describe:

In 2013 a Program Standards Subcommittee of the New Jersey Council on Young Children developed a separate set of Birth to Age Three early learning guidelines based on the Preschool Learning and Teaching guidelines. The guidelines are aligned with the Department of Education's preschool standards and are embedded in NJ's QRIS system.

☐ Developing infant and toddler components within the state/territory's child care licensing regulations

Describe:

☑ Developing infant and toddler components within the early learning and developmental guidelines

Describe:

The New Jersey Birth to Three Early Learning Standards provide families, child care providers, early childhood teachers, institutions of higher learning, community members and policy makers with research-based information to support the best learning and development for infants and toddlers.

☐ Improving the ability of parents to access transparent and easy-to-understand consumer information about high-quality infant and toddler care that includes information on infant and toddler language, social-emotional, and both early literacy and numeracy cognitive development

Describe:

☑ Carrying out other activities determined by the state/territory to improve the quality of infant and toddler care provided within the state/territory and for which there is evidence that the activities will lead to improved infant and toddler health and safety, cognitive and physical development, and/or well-being

Describe:

- New Jersey participated in a three-year infant and early childhood mental health (I-ECMH) learning community facilitated by the National Center on Children in Poverty, ZERO TO THREE, and the BUILD Initiative, funded by the Alliance for Early Success.
- New Jersey completed the process to bring the Michigan Association for Infant Mental Health Endorsement® system to the state. Since its inception in January 2014, over 60 professionals have received the New Jersey Infant Mental Health Endorsement (IMH-E®).

- The Keeping Babies and Children in Mind (KBCM) training was developed by Montclair State University-Center for Autism and Early Childhood Mental Health to help professionals address I-ECMH in their work with infants, children from birth through age eight, and their families. This free training series reached over 1,850 individuals in the 10-county impact area. KBCM also provided 24 hours of reflective supervision to over 100 professionals throughout the 10 counties. KBCM has now

become a foundational training for early childhood professionals across the State and is continues to be funded. .
- New Jersey supports the Center on the Social and Emotional Foundations for Early Learning Pyramid Model.
- New Jersey implemented Project LAUNCH activities at the State level and in Essex County.
- New Jersey's centralized intake system, developed by the DCF in collaboration with DOH exists in all 21 counties. The system extends beyond home visiting to focus on broader early childhood services. This work at the local level includes an early screening and assessment using the Perinatal Risk Assessment and appropriate referrals as needed. Central intake sites have an information system to support collecting and tracking data. State partners are providing technical support to strengthen local linkages and continuous quality improvement.

☑ Coordinating with child care health consultants.

Describe:

The Health Consultant Quality Initiative is designed to inform and support early childhood staff and directors in order to ensure health, safety and nutrition in programs. Additionally, the Health Consultants will collaborate with other DHS/DFD sponsored programs and initiatives to improve the quality of care and promote the health and safety of infant and toddlers, their families and their teachers.

☑ Coordinating with mental health consultants.

Describe:

Health consultants, and mental health on-site consultations and services are now available to providers to support programs, the workforce and families of infant and toddler age children experiencing challenging behaviors.

☑ Other

Describe:

New Jersey is in the process of rolling out a cash incentive for providers who are not currently serving infants eligible for the Child Care Subsidy program on or about January 2019.

New Jersey is also set to implement special grants for Classrooms enhancements and supplies on or about January 2019.

7.5.2 Describe the measureable indicators of progress relevant to this use of funds that the state/territory will use to evaluate its progress in improving the quality of child care programs and services for infants and toddlers within the state/territory and the data on the extent to which the state or territory has met these measures

The numerous rating criteria in Grow NJ Kids and the number of rated programs are the measurable indicators of progress. Positive data showing that programs are meeting as many of the criteria as possible and data showing that more programs are reaching higher rating levels are how New Jersey measures progress. The rating levels are based on approximately 110 criteria. The criteria include health and safety criteria, teacher qualifications and others. The ratings factors can found through the following links:

http://www.GrowNJKids.gov/getattachment/76059975-cbf2-4447-bac4-d2964035d02e/3,-4-and-5-Star-Rating-Point-Requirements.aspx

http://www.GrowNJKids.gov/getattachment/3800f879-98bf-4482-8f8d-02c5d36241f4/3,-4-and-5-Star-Rating-Point-Requirements-FCC.aspx

Current Workforce Registry data also serve as measures of progress.

In the future measures will also be derived from additional data from the NJCCIS and NJ EASEL data.

7.6 Child Care Resource and Referral

A Lead Agency may expend funds to establish or expand a statewide system of child care resource and referral services (98.53(a)(5)). It can be coordinated, to the extent determined appropriate by the Lead Agency, by a statewide public or private non-profit, community-based, or regionally based lead child care resource and referral organization (658E(c)(3)(B)(iii)). This effort may include activities done by local or regional child care and resource referral agencies, as discussed in section 1.7.

7.6.1 Describe the measureable indicators of progress relevant to this use of funds that the state/territory will use to evaluate its progress in improving the quality of child care programs and services within the state/territory and the data on the extent to which the state or territory has met these measures

CCR&Rs promote quality child care services in the counties they serve through a multi pronged approach of parent information, child care resource development, child care provider training, and advocacy.

The rating levels are based on approximately 110 criteria. The criteria include health and safety criteria, teacher qualifications and others. The ratings factors can found through the following links:

http://www.GrowNJKids.gov/getattachment/76059975-cbf2-4447-bac4-d2964035d02e/3,-4-and-5-Star-Rating-Point-Requirements.aspx

http://www.GrowNJKids.gov/getattachment/3800f879-98bf-4482-8f8d-02c5d36241f4/3,-4-and-5-Star-Rating-Point-Requirements-FCC.aspx

DHS/DFD tracks CCR&R progress through program and fiscal audits. The measures of success are the level compliance by each CCR&R with each of its contracted duties.

7.7 Facilitating Compliance With State Standards

7.7.1 What strategies does your state/territory fund with CCDF quality funds to facilitate child care providers' compliance with state/territory requirements for inspection, monitoring, training, and health and safety and with state/territory licensing standards? Describe:

- CCDF funds are used to enhance Office of Licensing (OOL) inspections and monitoring by funding additional inspectors to conduct annual monitoring of health, safety, and licensing standards. CCDF funds or other child care funds also pay for Child Abuse Record Information (CARI) background checks and Criminal History Record Information checks.
- CCDF funds are allocated to pay for the 10 required pre-service health and safety trainings through the CCR&Rs and through third party contracts
- DHS/DFD is currently working to implement special funding that will help providers come

into compliance with state standards and CCDBG standards. This assistance will be in the form of Remediation Grants for renovations that are not considered “major renovations” under CCDF law. This will include minor renovation and improvements or minor remodeling when necessary to bring the facility into compliance with health and safety requirements. The funding will also include special funding for abatement of licensing violations in order to be able to serve families being supported by the Child Care Subsidy program.

7.7.2 Does the state/territory provide financial assistance to support child care providers in complying with minimum health and safety requirements?

- [x] No
- [ ] Yes. If yes, which types of providers can access this financial assistance?
  - [ ] Licensed CCDF providers
  - [ ] Licensed non-CCDF providers
  - [ ] License-exempt CCDF providers
  - [ ] Other

  Describe:

7.7.3 Describe the measureable indicators of progress relevant to this use of funds that the state/territory will use to evaluate its progress in improving the quality of child care programs and services within the state/territory and the data on the extent to which the state or territory has met these measures

NJ implemented Grow NJ Kids, quality rating improvement system, which will measure quality improvement process. Meeting OOL minimum standards is the foundation and first level of Grow NJ Kids; therefore, program assessments and improvement plans, as well as environmental rating scales are performance and research based instruments that will be utilized to measure and evaluate continuous quality improvement.

Additionally, the number of trainings completed serve as an indication of program improvement.

The ratings factors related to training can found through the following links:
http://www.GrowNJKids.gov/getattachment/76059975-cbf2-4447-bac4-d2964035d02e/3,-4-and-5-Star-Rating-Point-Requirements.aspx
http://www.GrowNJKids.gov/getattachment/3800f879-98bf-4482-8f8d-02c5d36241f4/3,-4-and-5-Star-Rating-Point-Requirements-FCC.aspx

7.8 Evaluating and Assessing the Quality and Effectiveness of Child Care Programs and Services

7.8.1 Describe how the state/territory measures the quality and effectiveness of child care programs and services in both child care centers and family child care homes currently being offered, including any tools used to measure child, family, teacher, classroom, or provider improvements, and how the state/territory evaluates how those tools positively impact children

Documentation for meeting quality standards comes in the form of a program's self-assessment, and a formal trainer led observation or assessment. These programs complete a self-assessment and are provided with assistance to develop a quality improvement plan. Ratings are determined by the center/schoolwide average score on the ERS/CLASS assessments conducted by the NJ Center for Quality.
An increased star rating is evidence of implementing a selected researchbased curriculum and the total number of points a program earns from meeting standards across all five quality categories quality: 1) Safe, Health Learning Environment, 2) Curriculum and Learning Environment, 3) Family and Community Engagement, 4) Workforce/Professional Development, 5) Administration and Management. A center/school acquires points by meeting standards during the onsite review of documentation by the NJ Center for Quality.
The ratings factors can found through the following links:
http://www.GrowNJKids.gov/getattachment/76059975-cbf2-4447-bac4-d2964035d02e/3,-4-and-5-Star-Rating-Point-Requirements.aspx
http://www.GrowNJKids.gov/getattachment/3800f879-98bf-4482-8f8d-02c5d36241f4/3,-

4-and-5-Star-Rating-Point-Requirements-FCC.aspx

7.8.2 Describe the measureable indicators of progress relevant to this use of funds that the State/Territory will use to evaluate its progress in improving the quality of child care programs and services in child care centers and family child care homes within the state/territory and the data on the extent to which the state or territory has met these measures

The numerous rating criteria in Grow NJ Kids and the number of rated programs are the measurable indicators of progress. Positive data showing that programs are meeting as many of the criteria as possible and data showing that more programs are reaching higher rating levels are how New Jersey measures progress.

The ratings factors can found through the following links:

http://www.GrowNJKids.gov/getattachment/76059975-cbf2-4447-bac4-d2964035d02e/3,-4-and-5-Star-Rating-Point-Requirements.aspx

http://www.GrowNJKids.gov/getattachment/3800f879-98bf-4482-8f8d-02c5d36241f4/3,-4-and-5-Star-Rating-Point-Requirements-FCC.aspx

Current Workforce Registry data also serve as measures of progress.

7.9 Accreditation Support

7.9.1 Does the state/territory support child care providers in the voluntary pursuit of accreditation by a national accrediting body with demonstrated, valid, and reliable program standards of high quality?

☑ Yes, the state/territory has supports operating statewide or territory-wide for both child care centers and family child care homes

Describe the support efforts for all types of accreditation that the state/territory provides to child care centers and family child care homes to achieve accreditation

New Jersey is implementing a tiered system of reimbursement payment for quality in order to provide recognition and incentives to child care centers that serve infants, toddlers, and preschool children and achieve a Grow NJ Kids rating of 3, 4, or 5. The initial Grow NJ Kids payment incentives are being implemented in 2018. The incentive will range from 4-24 percent of the base rates, weighted towards infant care. We expect higher enrollment as the incentives continue to phase in.

Center-based providers that are accredited by the National School Age Child Care Coalition (SACC) or the American Camp Association (ACA) and serve school-age children will continue to receive the 5% differential payment for new and renewal accreditations.

In addition, Family Child Care (FCC) providers accredited by the National Association for Family Child Care will continue to receive the 5% differential payment for new and renewal accreditations.

☐ Yes, the state/territory has supports operating statewide or territory-wide for child care centers only. Describe the support efforts for all types of accreditation that the state/territory provides to child care centers.

Describe:

☐ Yes, the state/territory has supports operating statewide or territory-wide for family child care homes only. Describe the support efforts for all types of accreditation that the state/territory provides to family child care

Describe:

☐ Yes, the state/territory has supports operating as a pilot-test or in a few localities but not statewide or territory-wide

☐ Focused on child care centers

Describe:

☐ Focused on family child care homes

Describe:

☐ No, but the state/territory is in the accreditation development phase

☐ Focused on child care centers

Describe:

☐ Focused on family child care homes

Describe:

☐ No, the state/territory has no plans for accreditation development

7.9.2 Describe the measureable indicators of progress relevant to this use of funds that the state/territory will use to evaluate its progress in improving the quality of child care programs and services within the state/territory and the data on the extent to which the state or territory has met these measures

One measure is the number of accredited programs serving CCDF families.

The ratings factors related to accreditation can found through the following links:

http://www.GrowNJKids.gov/getattachment/76059975-cbf2-4447-bac4-d2964035d02e/3,-4-and-5-Star-Rating-Point-Requirements.aspx

http://www.GrowNJKids.gov/getattachment/3800f879-98bf-4482-8f8d-02c5d36241f4/3,-4-and-5-Star-Rating-Point-Requirements-FCC.aspx

7.10 Program Standards

7.10.1 Describe how the state/territory supports state/territory or local efforts to develop or adopt high-quality program standards, including standards for infants and toddlers, preschoolers, and/or school-age children

Grow NJ Kids QRIS teacher assessments are reflective of the NJ Birth to Three Standards and/or the NJ Preschool Teaching and Learning Standards. A $1.2 million has been made available to create a new $100-per-infant-per-month incentive for new infant care slots to provide a further incentive for child care centers to expand infant care and to come into alignment with these standards to better serve infants.

New Jersey Department of Human Services, and Department of Education has developed Preschool Classroom Implementation Guidelines and corresponding videos to support implementation, with funding provided by the Race to the Top Early Learning Challenge (RTT-ELC) Grant.

In addition, the New Jersey Kindergarten standards were updated to include a revised schedule, assessment map, chronic absenteeism resources, new section on homework, new guidance on out-of-school suspensions and expulsions, retention, the new Approaches to Learning for K-3, NGSS, World Languages standards and a new design (to coordinate with the new Grades 1-3 Guidelines) .

Based on teacher feedback, a new section on Literacy Centers was created, updates were made to the organization of the kindergarten day, and the sample schedule was revised.

NJSACC: The Statewide Network for NJ's

Afterschool Communities - with support from the NJ Department of Education and NJ Department of Human Services convened a group of afterschool leaders develop the NJ Quality Standards for Afterschool which are organized into seven categories:

•Administration
•Human Relationships
•Safety and Environmental Health
•Indoor and Outdoor Environment
•Programming and Activities
•Special Needs and the Whole Child
•Health Behavior: Nutrition and Physical Activity.

The Department of Human Services is a sponsor of the NJSACC Annual Conference on Afterschool which specializes in providing leadership, best practices, training and support to people and organizations who serve school age children.

7.10.2 Describe the measureable indicators of progress relevant to this use of funds that the state/territory will use to evaluate its progress in improving the quality of child care programs and services within the state/territory and the data on the extent to which the

state or territory has met these measures

The numerous rating standards and the number of rated programs are the measurable indicators of progress. The rating levels are based on approximately 110 criteria. The criteria include health and safety criteria, teacher qualifications and others. The ratings factors can found through the following links:

http://www.grownjkids.gov/getattachment/76059975-cbf2-4447-bac4-d2964035d02e/3,-4-and-5-Star-Rating-Point-Requirements.aspx

http://www.GrowNJKids.gov/getattachment/3800f879-98bf-4482-8f8d-02c5d36241f4/3,-4-and-5-Star-Rating-Point-Requirements-FCC.aspx

Positive data showing that programs are meeting as many of the standards as possible and data showing that more programs are reaching higher rating levels are how New Jersey measures progress. Current Workforce Registry data also serve as measures of progress.

In the future measures will also be derived from NJCCIS and NJ EASEL data.

7.11 Early Learning and Development Guidelines and Other Quality Improvement Activities

7.11.1 If quality funds are used to develop, maintain, or implement early learning and development guidelines, describe the measureable indicators that will be used to evaluate the state/territory's progress in improving the quality of child care programs and services and the data on the extent to which the state/territory has met these measures (98.53(f)(3)).

NJ-EASEL is New Jersey’s Early Childhood Integrated Data System (ECIDS) to gather, integrate, store, and report information from early childhood programs across multiple agencies within the state that serves children and families from prenatal to age eight. NJ-Easel helps the State answer questions that cannot be answered with any one program data system and provides concrete data that enables NJ to measure it’s progress in improving the quality of child care programs and services based on the established goals of the system (see below).

The Goals of the NJ-EASEL's Initiative include;

- **Integrate data from four partnering agencies (DOE, DCF, DHS, DOH).**
- **Answer critical questions about early care and education programs and services for children, prenatal through age eight.**
- **Produce reports to measure the collective impact of cross-agency programs.**
- **Use reports to inform the administration of programs and services essential to the development and growth of New Jersey's youngest children, leading to:**
- **Increased access to high-quality early care and education programs for children families living in communities with large numbers of vulnerable families.**
- **Increased access to needed support services for children who are at risk.**
- **More equitable access to critical programs and services.**

The extent to which NJ reaches these goals are the state's measurable indicator of progress.

NJ-EASEL Phase 1 Reports are set to be implemented in Fall 2018 and will reflect the integration of data from three source systems:

- **DOE Student Data**
- **DOE County District School Reference Data**
- **DHS Child Care Subsidies Data**

NJ-Easel will provide de-identified aggregated counts of children served from multiple cross-agency programs, based on matching individually identifiable information about children from the partnering agencies and will provide 20 reports which will address multiple critical NJEASEL Questions and Objectives about children, including the following questions:

- **What are the characteristics of New Jersey's vulnerable children and families beginning prenatally and where are they located?**
- **How many children are participating in high-quality early care and education programs, and where are they located?**

The purpose of the second phase of NJ-Easel implementation is to enhance the above listed reports with the following:

- **Birth Record Social-Emotional and Situational Condition data and Home Visiting Condition and Program data**
- **More children in the NJ-EASEL cohort**
- **Count of children associated with each Social-Emotional and Situational Condition, which provides a reference point for the program participation rate, displayed as percentages on the report.**
- **Health-Related Conditions by Program**
- **Health-Related Conditions by Social Emotional and Situational Conditions**

7.11.2 List and describe any other activities that the state/territory provides to improve the quality of child care services for infants and toddlers, preschool-aged, and school-aged children, which may include consumer and provider education activities, and also describe the measureable indicators of progress for each activity relevant to this use of funds that the state/territory will use to evaluate its progress in improving provider preparedness, child safety, child well-being, or kindergarten entry and the data on the extent to which the state or territory has met these measures. Describe:

N/A

8 Ensure Grantee Program Integrity and Accountability

Program integrity and accountability activities are integral to the effective administration of the CCDF program. Lead Agencies are required to describe in their Plan effective internal controls that ensure integrity and accountability while maintaining the continuity of services (98.16(cc)). These accountability measures should address reducing fraud, waste, and abuse, including program violations and administrative errors.

This section includes topics on internal controls to ensure integrity and accountability and processes in place to investigate and recover fraudulent payments and to impose sanctions on clients or providers in response to fraud. Respondents should consider how fiscal controls, program integrity and accountability apply to:

-- Memorandums of understanding within the Lead Agency's various divisions that administer or carry out the various aspects of CCDF

-- MOU's, grants, or contracts to other state agencies that administer or carry out various aspects of CCDF

-- Grants or contracts to other organizations that administer or carry out various aspects of CCDF such as professional development and family engagement activities

-- Internal processes for conducting child care provider subsidy

8.1 Internal Controls and Accountability Measures To Help Ensure Program Integrity

8.1.1 Check and describe how the Lead Agency ensures that all its staff members and any staff members in other agencies who administer the CCDF program through MOUs, grants and contracts are informed and trained regarding program requirements and integrity. Check all that apply:

☐ Train on policy manual

Describe:

☑ Train on policy change notices

Describe:

DFD meets regularly with the CCR&Rs to discuss policies and provide ongoing on-site technical assistance to aid in implementation. Regularly scheduled webinars led by DFD staff are also used to train DFD field staff and CCR&R staff on new policies and procedures. Joint in-person trainings occur when policy implementation involves other state agencies outside of DFD. DFD also meets regularly with and distributes policy communications to relevant State departments and vendors to ensure program integrity.

☑ Ongoing monitoring and assessment of policy implementation

Describe:

CCR&R representatives are part of a policy workgroup that provides input for policy development. Once policies are finalized, DFD meets with the CCR&Rs to discuss operational concerns and feedback on new policies. Each CCR&R has a designated policy specialist to ensure that all staff is educated on new policies. DFD staff members also attend county provider meetings where policies are discussed.

☐ Other

Describe:

8.1.2 Lead Agencies must ensure the integrity of the use of funds through sound fiscal management and must ensure that financial practices are in place (98.68 (a)(1)). Describe the processes in place for the Lead Agency to ensure sound fiscal management practices for all expenditures of CCDF funds. Check all that apply:

☑ Verifying and processing billing records to ensure timely payments to providers

Describe:

The mission of the Division of Family Development (DFD) is to support the well-being of families with financial assistance and/or supportive services to help families move towards and/or sustain economic stability. Through the administration of several Federal and State programs including the Child Care Development Block Grant (CCDBF), Temporary Assistance for Needy Families (TANF), Title IV-E (Foster Care), and other funding sources, DFD collaborates with our provider agencies to support the various programs and services administered.

Provider Agencies will be responsible for locally managing the daily program with DFD oversight and monitoring. Provider agencies have administrative, fiscal accountability, reporting requirements, and program integrity obligations to ensure program compliance and performance standards. As recipients of government funds, Provider Agencies must adhere to all Federal and State laws and regulations as stated above.

As contractual agents for DFD, Provider Agencies are primarily responsible to:

1. Provide program management services
2. Provide supportive services to clients
3. Maintain community outreach, partnership collaboration and service coordination
4. Ensure program accountability, integrity and oversight
5. Maintain compliance with all program and contractual requirements and regulations

As such, administration of the program must adhere to all governing laws and regulations including those contained in the:

•Federal regulations;

•New Jersey regulations;
•DHS/DFD Contract terms contained in the Standard Language Document SLD and Request for Proposal RFP;
•DHS/DFD contract rules and regulations contained in the Contract Reimbursement Manual and Contract Policy and Information Manual and clarification memorandums;
•DFD instructions and guidance memos, including all approved amendments or revisions; and
•All other Federal, State and local laws and regulations.

As outlined in the SLD, the contract requires a sound financial management system and the implementation of internal controls. Provider Agencies must comply with all applicable policies and procedures issued by the Department including, but not limited to, the policies and procedures contained in the Department's Contract Reimbursement Manual and the Department's Contract Policy and Information Manual. Failure to comply with these policies and procedures shall be grounds to terminate this Contract.
The Provider Agency's financial management system shall provide for the following:

1. accurate, current and complete disclosure of the financial results of this Contract and any other contract, grant, program or other activity administered by the Provider Agency;
   (b) records adequately identifying the source and application of all Provider Agency funds and all funds administered by the Provider Agency. These records shall contain information pertaining to all contract and grant awards and authorizations, obligations, unobligated balances, assets, liabilities, outlays and income;

   (c) effective internal control structure over all funds, property and other assets. The Provider Agency shall adequately safeguard all such assets and shall ensure that they are used solely for authorized purposes;

   (d) comparison of actual outlays with budgeted amounts for this Contract and for any other contract, grant, program or other activity administered by the Provider Agency;

   (e) accounting records supported by source documentation;

   (f) procedures to minimize elapsed time between any advance payment issued and the disbursement of such advance funds by the Provider Agency; and

   (g) procedures consistent with the provisions of any applicable Department policies and procedures for determining the reasonableness, allowability and allocability of

costs under this Contract.

All procurement transactions must meet general procurement standards. These standards include:

1. Free and open competition
2. Conflict of interest
3. Economic Evaluation
4. Small Business
5. Procuring Instrument
6. Records

In addition to Local Public Contracts Law (LPCL) as prescribed by the NJ Division of Consumer Affairs, the New Jersey Office of State Comptroller has outlined Best Practices for procurement of goods and services.

See http://www.nj.gov/comptroller/resources/ for additional details.

☑ Fiscal oversight of grants and contracts

Describe:

The Division of Family Development (DFD) website includes all pertinent contract documents, forms, instructions. The basic contract consists of the Standard language Document (SLD), Annex A, and Annex B and any other pertinent documents. The DFD website includes all pertinent contract documents, forms, instructions, and DHS regulations.

http://www.state.nj.us/humanservices/dfd/info/

See http://www.state.nj.us/humanservices/ocpm/home/resources/manuals/index.html for access to the Cost Reimbursement Manual (CRM) and Contract Policy and Information Manual (CPIM).

The SLD is the official "contract" and incorporates all DHS/DFD contract terms, conditions and requirements as well as all RFP requirements. The 23 page document, sets forth the responsibilities, obligations and rights of the parties and captures the signatures of the contracted parties. The Annex A establishes the program specific requirements including the level of service and program reporting requirements. The Annex B is the official budget and once approved requires strict adherence to the modification policy in order to execute any

changes.

Unsatisfactory Performance, Failure to Meet Program or Level of Service Requirements or Other Violations:

The agency must meet all contract expectations as described in the Request for Proposal (RFP) as well as those detailed in the SLD and related Annexes that constitute the contract. Failure to meet any performance standard and contract expectations may be grounds for revision of the contract whereby current funding is reduced, contract is suspended or terminated and can affect future consideration for funding.

Reporting Requirements

Provider agencies are required to submit program and fiscal reports as specified in the Annex A. Failure to submit the required reports in the format prescribed will delay the issuance of future advance payments, may become grounds for the adjustments of the contract ceiling and/or possible termination.

☑ Tracking systems to ensure reasonable and allowable costs

Describe:

As the lead agency for the coordination and advancement of professional development initiatives in the state, the provider agency is responsible for managing the workforce data system for the educational development of early childhood and primary education, family child care, and after school program professionals.

Key Services include of the Provider Agency (Child Care Resource Referral Agencies) include:

1. NJ Work Registry for Childhood Professionals

2. NJ Registry Career Lattice

3. Financial Assistance Programs

5. NJ Administrators' Credential

6. NJ Infant/Toddler Credential

7. Standards and Core Knowledge & Competencies

8. Grow NJ Kids Quality Ratings

Program Standards include

• Administer an efficient and effective workforce data delivery system to all programs and personnel that register

• Ensure key services are in alignment with DFD's priority and linked with Grow NJ Kids

• Ensure data is available and accessible to DFD administrator to inform planning, policy and investment decisions

• Conduct effective outreach and marketing efforts to increase registry enrollment

• Establish benchmarks for all services provided to assess outcomes

• Update standards to reflect current research and best practices

• Conduct a self-assessment and evaluation to ensure that practice is informed by research, best practices and to measure the impacts of service delivery on programs and practitioners.

Key Goals of the Provider Agency include:

- **To establish an integrated and unified system for tracking professional training and workforce data that is aligned with Grow NJ Kids.**
- **Link all DFD quality initiatives into an integrated Professional Development and Work Force system to track and capture data to inform quality improvement support, target TA quality improvement efforts and evaluate linkage to progress toward quality improvement outcomes.**
- **Enhance coordination efforts with key partners involved with Grow NJ Kids.**
- **Increase enrollment in registry.**

Objectives and Deliverables of the Provider Agency include:

• Update existing data and information in the registry on the early care and education workforce.

• Continue to re-engage non-active participants and increase enrollment of new participants in the registry (early care and education workforce, trainers and professors) by 20% from the number of current active members.

o Complete survey and provide summary report in first quarter

• Enhance collaboration efforts with all DFD quality initiatives (i.e. CCR&Rs and Strengthening Family Initiative).

o Conduct ongoing training to CCR&R staff

• Enhance collaboration efforts with Office of Licensing (OOL)

• Develop a marketing campaign and branding strategy to increase awareness of the registry in the field of early care and education and communicate the added benefit of registry involvement to those currently not enrolled.

o Conduct quarterly regional events to promote the registry

• Improve and increase articulation agreements with 2 and 4 year institutions.

o Establish and/or broker one articulation agreement in this contract with higher education

• Describe the process for the provision of the CDA Assessment scholarship.

o Provide resource listing of institutions that offer credit bearing CDA

• Coordinate and collaborate with the Child Care Resource and Referral Agencies to include all CCRR sponsored trainings in the registry.

o Create a statewide calendar of training

• Work with the Inter-departmental group on gathering data from programs participating in the Grow-NJ Kids QRIS

Reporting and Accountability

The provider agency is required to comply with reporting requirements of the Division of Family Development, both regarding finance and scholarship and reimbursement disbursement. Reporting will occur monthly, upon request and end of the year. Additional requests for ongoing reporting may be needed.

Provider agencies are required to provider monthly detailed reports to help DFD make informed decisions and evaluate needs and gaps in the field of professional development for the early care and education workforce in New Jersey. The reports contain data by county of residence and county of employment.

All funds received in support of the program must be for the support of the program (as listed above). The determination of allowable costs is defined in the Standard Language Document SLD, Request for Proposal RFP, Department of Human Services/Division of Family development Cost Reimbursement Manual (CRM), and Contract Policy and Information Manual (CPIM).

See http://www.state.nj.us/humanservices/ocpm/home/resources/manuals/index.html for access to the Cost Reimbursement Manual (CRM) and Contract Policy and Information Manual (CPIM).

Expenditures are defined as those costs which are restricted to activities related to programmed plan development; complaint files management; public hearing information; program monitoring and coordination; report preparation; evaluation of program outcomes; personnel management; travel; equipment; supplies; audits and response management; and indirect costs such as maintenance of facilities, utilities, and general management staff.

The following section systems and processes that allow DFD to track the Provider Agencies compliance of the contractual conditions, terms and obligations included in the Standard language Document (SLD).

1. **General Requirements of the Contract**

1. The Provider Agency shall comply with all the administrative, programmatic and fiscal terms and conditions described and approved by the Division of Family Development (DFD) and any other standards or special terms or conditions identified in the Provider Agency Contract Policy and Information Manual and the Provider Agency Contract Reimbursement Manual.

- Failure to carry out these terms and conditions as described by the Department of Human Services may result in suspension, termination and/or ineligibility for future funding.

1. The Provider Agency shall accurately complete and submit, according to instructions and time frames provided by DFD, all reports described in Annex A, including program Level of Service (LOS) reports, expenditure reports and any other reports as requested.
2. The Provider Agency shall develop and maintain written policies and procedures that insure the proper administrative controls as prescribed by the DFD for this contract. Copies should be placed in a "policy" manual for easy access. The content of this manual should include protocols for communications with the governing body and policies relating to internal controls, procurement, travel and personnel, salary ranges for each position, professional development of staff. The Provider Agency shall add new policies and protocols as they become necessary.
3. The Provider Agency shall provide staff, facilities, equipment and supplies as needed to efficiently, economically and effectively satisfy the requirements of this contract.
4. The Provider Agency shall ensure that all personnel hired to provide the services for the program meet the requirements as identified by the DFD under this contract. The Provider Agency shall request approval DFD Project Coordinator(s) before changing any requirements or replacing key personnel. It is recommended that the Provider Agency make every effort to recruit and hire individuals that are culturally sensitive to the needs of the target population.
5. The Provider Agency shall ensure that all staff members funded under this grant are available on site during scheduled working hours unless attending off site meetings, conferences, etc. which are directly related to contract operations; accurate staff schedules shall be maintained and available for review.
6. The Provider Agency shall ensure that all program, administrative, clinical and fiscal records are stored and maintained on site in the administrative or clinical office. As the "Funding Agency," DFD is the owner of all records and reserves the right to

monitor all records or data bases or staff records as part of the grant.

7. The Provider Agency shall store and maintain an adequate client record system, available for review, which includes, but is not limited to: adequate supporting documentation for client services, expenditures, overall program assessment, case management and accomplishments.
8. The Provider Agency shall ensure that funds made available under this contract shall not be used to supplant other funding, to engage in lobbying activities or used for sectarian purposes.
9. The Provider Agency shall report all related party transactions of employees, governing board members and/or their families as required by DHS regulations. Any and all transactions of related parties shall also be addressed in the agency audit.
10. The Provider Agency shall ensure through policy, procedure and monitoring of transactions that no conflict of interest or the appearance of conflict of interest on the part of the provider agency staff, governing board members and or their families.
11. The DFD shall approve any subcontract entered into by the Provider Agency with the third-party providers of service authorized under this contract. Reimbursement for services provided by such subcontract shall not be authorized unless the legal agreement for such services has been approved by DFD.
12. The Provider Agency shall be responsible for managing the funds awarded by a subcontract to include a review to insure that adequate financial controls are in place and the agency is in compliance with the terms and conditions of the contract as it relates to specific requirements in this grant.
13. The Provider Agency shall submit adequate information to demonstrate that they shall monitor all third-party expenditures and insure that a financial and compliance audit of the subcontract is performed and issue a report to the DFD to clearly indicate that subcontract has met all conditions of the contract as stipulated in the agreement.
14. The Provider Agency shall submit to DFD at the start of this contract and thereafter within 90 days of the end of the fiscal year an annual organization-wide audit of its agency conducted by a licensed certified public accountant or licensed certified public accounting firm.
15. The Provider Agency shall submit all Certificates of Insurance that ensures liability insurance in accordance with the standards of insurance established by DFD to cover liabilities imposed by law and assumed under this contract.

Performance Requirements of the Contract

1. The Provider Agency shall implement the program requirements according to the Annex A and technical guidance and specifications of the DFD as communicated by the DFD Program Staff.
2. The Provider Agency shall ensure that staff are collecting and adequately documenting referrals, outreach, assessments, prior authorizations, client services, and other program participation and compliance requirements, deemed necessary

to ensure the integrity of the program services and evaluation.

3. The Provider Agency shall ensure that program and client outcomes are used to make recommendations to DFD on modifications in services and service delivery.
4. The Provider Agency is responsible for tracking the obligation of all program activities and client services and for monitoring actual expenditures of authorized services to ensure that funds are not over-encumbered or over spent. Problems with provider services, reimbursement, or other provider issues that affect client services are to be reported in a timely manner to DFD and at least quarterly to DFD.
5. The Provider Agency is responsible for implementing a Management of Information Systems for tracking client services, referrals, utilization, client demographics, recommended and actual utilization of services and other data as required by DFD.
6. The Provider Agency is required to accurately submit required program and level of service reports in the format prescribed by DFD.
7. The Provider Agency shall meet the standards prescribed by DHS Confidentiality regulations and HIPAA. Staff shall receive training on confidentiality guidelines and its limits. The agency shall have written policies on the storage and maintenance and sending and receiving of all confidential electronic and physical records and information. DFD has authority to evaluate and audit all records

☐ Other

Describe:

8.1.3 Check and describe the processes that the Lead Agency will use to identify risk in their CCDF program. Check all that apply:

☐ Conduct a risk assessment of policies and procedures

Describe:

☐ Establish checks and balances to ensure program integrity

Describe:

☐ Use supervisory reviews to ensure accuracy in eligibility determination

Describe:

☑ Other

Describe:

The DHS/DFD Office of Program compliance conducts the payment accuracy audit.

DFD contract agreements with the CCR&Rs clearly identify the roles and responsibilities for meeting the CCDF requirements. The contract also lays out conflict of interest and audit requirements to ensure program integrity.
The Division conducts periodic monitoring of all CCR&Rs to ensure that policy and procedures are followed. Additionally, all CCR&Rs are required to submit copies of all outside audits to DFD as part of their contract requirements.

8.1.4 Lead Agencies conduct a wide variety of activities to fight fraud and ensure program integrity. Lead Agencies are required to have processes in place to identify fraud and other program violations to ensure program integrity. Program violations can include both intentional and unintentional client and/or provider violations, as defined by the Lead Agency. These violations and errors, identified through the error-rate review process may result in payment or nonpayment (administrative) errors and may or may not be the result of fraud, based on the Lead Agency definition. Check and describe any activities that the Lead Agency conducts to ensure program integrity.

a) Check and describe all activities that the Lead Agency conducts to identify and prevent fraud or intentional program violations. Include in the description how each activity assists in the identification and prevention of fraud and intentional program violations. Include a description of the results of such activity.

☑ Share/match data from other programs (e.g., TANF program, Child and Adult Care Food Program, Food and Nutrition Service (FNS), Medicaid) or other databases (e.g., State Directory of New Hires, Social Security Administration, Public Assistance Reporting Information System (PARIS)).

Describe

The child care Wage Match Process is conducted through DHS/DFD's Income and Eligibility Verification System (IEVS). IEVS is a matching system consisting of a coordinated data exchange comprised of various electronic cross matches that match the applicant/recipient name and Social Security Number (SSN) with

various databases. The Wage Match IEVS process is for the ongoing eligibility verification of current recipients of the child care subsidy. DHS/DFD staff also work, often onsite, with the CCR&Rs to review cases.

☑ Run system reports that flag errors (include types).

Describe:

The County Profile Report provides a comprehensive of overview of each caseload by county and is helpful in identifying trends and errors throughout the program. The County Profile report displays the number of families served, new families added to the overall caseload, the average monthly payment per child, the number of families without copay, the total expenditure paid by families, number of families working, number of families with TANF income, number of single-parent families, total hours in licensed Care, number of children in licensed Care, number of children with 2 or more providers, and the number of children being cared for by a relative.

☑ Review enrollment documents and attendance or billing records

Describe:

NJ reviews attendance data to see whether the number of children in care exceeds the licensed capacity of the provider.

☑ Conduct supervisory staff reviews or quality assurance reviews.

Describe:

NJ conducts quality controland quality assurance reviews, including reviews of high-risk cases and agreement files.

☑ Audit provider records.

Describe:

NJ conducts quality controland quality assurance reviews including a review of provider invoices.

☑ Train staff on policy and/or audits.

Describe:

Staff that conduct audit revews receive training all CCDF eligibility policy in order to identify program violations which can include both intentional and unintentional client and/or provider violations.

☐ Other

Describe:

b) Check and describe all activities the Lead Agency conducts to identify unintentional program violations. Include in the description how each activity assists in the identification and prevention of unintentional program violations. Include a description of the results of such activity.

☑ Share/match data from other programs (e.g., TANF program, CACFP, FNS, Medicaid) or other databases (e.g., State Directory of New Hires, Social Security Administration, PARIS).

Describe:

The child care Wage Match Process is conducted through DHS/DFD's Income and Eligibility Verification System (IEVS). IEVS is a matching system consisting of a coordinated data exchange comprised of various electronic cross matches that match the applicant/recipient name and Social Security Number (SSN) with various databases. The Wage Match IEVS process is for the ongoing eligibility verification of current recipients of the child care subsidy. DHS/DFD staff also work, often onsite, with the CCR&Rs to review cases.

☑ Run system reports that flag errors (include types).

Describe:

The County Profile Report provides a comprehensive of overview of each caseload by county and is helpful in identifying trends and errors throughout the program. The County Profile report displays the number of families served, new families added to the overall caseload, the average monthly payment per child, the number of families without copay, the total expenditure paid by families, number of families working, number of families with TANF income, number of single-parent families, total hours in licensed Care, number of children in licensed Care, number of children with 2 or more providers, and the number of children being cared for by a relative.

☑ Review enrollment documents and attendance or billing records

Describe:

NJ reviews attendance data to see whether the number of children in care exceeds the licensed capacity of the provider.

☑ Conduct supervisory staff reviews or quality assurance reviews.

Describe:

NJ conducts quality controland quality assurance reviews, including reviews of high-risk cases and agreement files.

☑ Audit provider records.

Describe:

NJ conducts quality controland quality assurance reviews including a review of provider invoices.

☑ Train staff on policy and/or audits.

Describe:

Staff that conduct audit revews receive training all CCDF eligibility policy in order to identify program violations which can include both intentional and unintentional client and/or provider violations.

☐ Other

Describe:

c) Check and describe all activities the Lead Agency conducts to identify and prevent agency errors. Include in the description how each activity assists in the identification and prevention of agency errors.

☑ Share/match data from other programs (e.g., TANF program, CACFP, FNS, Medicaid) or other databases (e.g., State Directory of New Hires, Social Security Administration, PARIS).

Describe:

The child care Wage Match Process is conducted through DHS/DFD's Income and Eligibility Verification System (IEVS). IEVS is a matching system consisting

of a coordinated data exchange comprised of various electronic cross matches that match the applicant/recipient name and Social Security Number (SSN) with various databases. The Wage Match IEVS process is for the ongoing eligibility verification of current recipients of the child care subsidy. DHS/DFD staff also work, often onsite, with the CCR&Rs to review cases.

☑ Run system reports that flag errors (include types).

Describe:

The County Profile Report provides a comprehensive of overview of each caseload by county and is helpful in identifying trends and errors throughout the program. The County Profile report displays the number of families served, new families added to the overall caseload, the average monthly payment per child, the number of families without copay, the total expenditure paid by families, number of families working, number of families with TANF income, number of single-parent families, total hours in licensed Care, number of children in licensed Care, number of children with 2 or more providers, and the number of children being cared for by a relative.

☑ Review enrollment documents and attendance or billing records

Describe:

NJ reviews attendance data to see whether the number of children in care exceeds the licensed capacity of the provider.

☑ Conduct supervisory staff reviews or quality assurance reviews.

Describe:

NJ conducts quality controland quality assurance reviews, including reviews of high-risk cases and agreement files.

☑ Audit provider records.

Describe:

NJ conducts quality controland quality assurance reviews including a review of provider invoices.

☑ Train staff on policy and/or audits.

Describe:

Staff that conduct audit revews receive training all CCDF eligibility policy in order to identify program violations which can include both intentional and unintentional client and/or provider violations.

☐ Other

Describe:

8.1.5 The Lead Agency is required to identify and recover misspent funds as a result of fraud, and it has the option to recover any misspent funds as a result of errors.

a) Check and describe all activities that the Lead Agency uses to investigate and recover improper payments due to fraud. Include in the description how each activity assists in the investigation and recovery of improper payment due to fraud or intentional program violations. Include a description of the results of such activity. Activities can include, but are not limited to, the following:

☐ Require recovery after a minimum dollar amount of an improper payment and identify the minimum dollar amount

Describe:

☐ Coordinate with and refer to the other state/territory agencies (e.g., state/territory collection agency, law enforcement agency).

Describe:

☑ Recover through repayment plans.

Describe:

When there are earning discrepancies identified through the Wage Match process, DFD coordinates with the CCR&Rs to investigate and gather evidence. DFD sends Wage Match reports containing earned income, unearned income, and employer information to the CCR&Rs to investigate and determine the appropriate action to take.

If the finding results in an improper payment, the CCR&Rs will establish a signed repayment agreement and collect payment.

The timeline for repayment must be established for a one year period. A client may request an extension to the repayment agreement or may request a change to the repayment amount, which must be approved by DFD.

☐ Reduce payments in subsequent months.

Describe:

☑ Recover through state/territory tax intercepts.

Describe:

When parents/applicants fail to comply with their established repayment agreement for six months, or does not set up an agreement, the CCR&Rs initiate the process to have payment collected though the New Jersey Set-Off Individual Liability (SOIL) process. **The client's overpayment claim is forwarded to the Set-off Individual Liability (SOIL) program in the New Jersey Department of Treasury's Division of Revenue (DOR)** which withholds personal NJ Gross Income Tax Refunds, Saver Rebates, Homestead Rebates, and Lottery winnings. DFD also recoups improper payment from providers though the automated payment system and can be collected as a one-time lump sum payment or a series of payments in subsequent months.

☐ Recover through other means.

Describe:

☑ Establish a unit to investigate and collect improper payments and describe the composition of the unit below.

Describe:

The CCR&Rs are responsible for investigating and collecting improper payments. The Office of Child Care monitors collection activities and offers technical assistance. A signed parent/applicant repayment agreement is established in order to collect improper payments.
In addition, DFD has a program integrity manager, compliance specialist and support staff that coordinate with the CCR&Rs to research and investigate

improper payments. DFD staff provide earning discrepancies, as a result the State's matching system to each respective CCR&Rs to research and investigate, and determine the appropriate action to take. Findings of the CCR&Rs investigation is tracked and communicated back to DFD.

☑ Other

Describe:

DFD's New Jersey Child Care Information System is set to launch in Winter 2018. It includes the full scope of policies and processes that will cover qualifying reasons for reducing, suspending, or discontinuing child care services, procedural guidelines for providing notice to parents/providers prior to any reduction, suspension or discontinuation, and due process procedures for filing an appeal. The reporting system for the CCR&Rs to report the outcomes of fraud and intentional program violations are integrated into the NJCCIS system.

b) Check any activities that the Lead Agency will use to investigate and recover improper payments due to unintentional program violations. Include in the description how each activity assists in the investigation and recovery of improper payments due to unintentional program violations. Include a description of the results of such activity. Activities can include, but are not limited to, the following:

☐ Require recovery after a minimum dollar amount of an improper payment and identify the minimum dollar amount

Describe:

☐ Coordinate with and refer to the other state/territory agencies (e.g., state/territory collection agency, law enforcement agency).

Describe:

☑ Recover through repayment plans.

Describe:

When there are earning discrepancies identified through the Wage Match process, DFD coordinates with the CCR&Rs to investigate and gather evidence. DFD sends Wage Match reports containing earned income, unearned income, and employer information to the CCR&Rs to investigate and determine the

appropriate action to take.

If the finding results in an improper payment, the CCR&Rs will establish a signed repayment agreement and collect payment.

The timeline for repayment must be established for a one year period. A client may request an extension to the repayment agreement or may request a change to the repayment amount, which must be approved by DFD.

☐ Reduce payments in subsequent months.

Describe:

☑ Recover through state/territory tax intercepts.

Describe:

When parents/applicants fail to comply with their established repayment agreement for six months, or does not set up an agreement, the CCR&Rs initiate the process to have payment collected though the New Jersey Set-Off Individual Liability (SOIL) process. **The client's overpayment claim is forwarded to the Set-off Individual Liability (SOIL) program in the New Jersey Department of Treasury's Division of Revenue (DOR)** which withholds personal NJ Gross Income Tax Refunds, Saver Rebates, Homestead Rebates, and Lottery winnings. DFD also recoups improper payment from providers though the automated payment system and can be collected as a one-time lump sum payment or a series of payments in subsequent months.

☐ Recover through other means.

Describe:

☑ Establish a unit to investigate and collect improper payments and describe the composition of the unit below.

Describe:

The CCR&Rs are responsible for investigating and collecting improper payments. The Office of Child Care monitors collection activities and offers technical assistance. A signed parent/applicant repayment agreement is established in order to collect improper payments.

In addition, DFD has a program integrity manager, compliance specialist and support staff that coordinate with the CCR&Rs to research and investigate improper payments. DFD staff provide earning discrepancies, as a result the State's matching system to each respective CCR&Rs to research and investigate, and determine the appropriate action to take. Findings of the CCR&Rs investigation is tracked and communicated back to DFD.

☑ Other

Describe:

DFD's New Jersey Child Care Information System is set to launch in Winter 2018. It includes the full scope of policies and processes that will cover qualifying reasons for reducing, suspending, or discontinuing child care services, procedural guidelines for providing notice to parents/providers prior to any reduction, suspension or discontinuation, and due process procedures for filing an appeal. The reporting system for the CCR&Rs to report the outcomes of fraud and intentional program violations are integrated into the NJCCIS system.

c) Check and describe all activities that the Lead Agency will use to investigate and recover improper payments due to agency errors. Include in the description how each activity assists in the investigation and recovery of improper payments due to administrative errors. Include a description of the results of such activity.

☐ Require recovery after a minimum dollar amount of an improper payment and identify the minimum dollar amount

Describe:

☐ Coordinate with and refer to the other state/territory agencies (e.g., state/territory collection agency, law enforcement agency).

Describe:

☐ Recover through repayment plans.

Establish a unit to investigate and collect improper payments.

☐ Reduce payments in subsequent months.

Describe:

☐ Recover through state/territory tax intercepts.

Describe:

☐ Recover through other means.

Describe:

☑ Establish a unit to investigate and collect improper payments and describe the composition of the unit below.

Describe:

The CCR&Rs are responsible for investigating and collecting improper payments. The Office of Child Care monitors collection activities and offers technical assistance. A signed parent/applicant repayment agreement is established in order to collect improper payments.
In addition, DFD has a program integrity manager, compliance specialist and support staff that coordinate with the CCR&Rs to research and investigate improper payments. DFD staff provide earning discrepancies, as a result the State's matching system to each respective CCR&Rs to research and investigate, and determine the appropriate action to take. Findings of the CCR&Rs investigation is tracked and communicated back to DFD.

☑ Other

Describe:

DFD's New Jersey Child Care Information System is set to launch in Winter 2018. It includes the full scope of policies and processes that will cover qualifying reasons for reducing, suspending, or discontinuing child care services, procedural guidelines for providing notice to parents/providers prior to any reduction, suspension or discontinuation, and due process procedures for filing an appeal. The reporting system for the CCR&Rs to report the outcomes of fraud and intentional program violations are integrated into the NJCCIS system.

8.1.6 What type of sanction will the Lead Agency place on clients and providers to help reduce improper payments due to program violations? Check and describe all that apply:

☑ Disqualify the client. If checked, describe this process, including a description of the appeal process for clients who are disqualified.

Describe:

Adverse actions may include, but are not limited to: denial or reduction of child care services, termination of child care services or demand for repayment of child care services rendered.
If a client wishes to request a hearing before the CCR&R Review Committee, they must contact the CCR&R within 10 calendar days of receipt of the adverse action.
If the client is not satisfied with the decision of the CCR&R Review Committee, they have the opportunity to request a review before the Division of Family Development's Bureau of Administrative Review and Appeals (BARA) within 10 calendar days.

☑ Disqualify the provider. If checked, describe this process, including a description of the appeal process for providers who are disqualified.

Describe:

It is the right of every provider who receives a suspension or disqualification notice from DFD to request a review of its case by DFD. A timely request must be made within 10 business days of the date of the adverse notice. For payment violations, if an appeal is requested, the provider may continue to receive child care payments throughout the period of the appeals procedures. If the determination of disqualification is upheld by BARA, the provider will be subject to repayment. The effective date of payment shall be the effective date for disqualification shown in the disqualification notice to the provider.
If DHS/DFD renders a decision in favor of the provider, then the disqualification shall be lifted.

☑ Prosecute criminally.

Describe:

DFD retains the discretion to report any case to a local or federal law enforcement agency.

☑ Other.

Describe:

Serious health and safety violation will result in the immediate suspension of payments and notices of parents of the violations.

Appendix A: Background Check Waiver Request Form

Lead Agencies may apply for a temporary waiver for certain background check requirements if milestone prerequisites have been fully implemented. These waivers will be considered "transitional and legislative waivers" to provide transitional relief from conflicting or duplicative requirements preventing implementation, or an extended period of time in order for the state/territory legislature to enact legislation to implement the provisions (98.19(b)(1)) These waivers are limited to a one-year period and may be extended for at most one additional year from the date of initial approval.

Approval of these waiver requests is subject to and contingent on OCC review and approval of responses in section 5 questions 5.4.1 -- 5.4.4 to confirm that the milestones are met. If milestone prerequisites are not met, the waiver request will not be approved. Approved waivers would begin October 1, 2018 through September 30, 2019. If approved, States and Territories will have the option to renew these waivers for one additional year as long as progress is demonstrated during the initial waiver period. Separate guidance will be issued later on the timeline and criteria for requesting the waiver renewal.

Overview of Background Check Implementation deadlines

Original deadline for implementation (658H(j)(1) of CCDBG Act): September 30, 2017

Initial one-year extension deadline (658H(j)(2) of CCDBG Act): September 30, 2018

One-year waiver deadline (45 CFR 98.19(b)(1)(i)): September 30, 2019

Waiver deadline one-year renewal (45 CFR 98.19(b)(1)(ii)): September 30, 2020

Waiver approval for new (prospective) staff, existing staff or staff hired provisionally until background checks are completed, are subject to and contingent upon the OCC review and approval of responses to 5.4.9 that demonstrate that the state/territory requires: (1) the provider to submit the background check request before the staff person begins working; and (2) pending the results of the background check, the staff person must be supervised at all times by an individual who has completed the background check.

To submit a background check waiver request, complete the form below.

Check and describe each background check provision for which the Lead Agency is requesting a time-limited waiver extension.

☑ **Appendix A.1:** In-state criminal registry or repository checks with fingerprints requirements for existing staff. (See related question at 5.4.1 (b))

Describe the provision from which the state/territory seeks relief.

The In-state criminal registry or repository checks with fingerprint requirement must be completed with the use of a fingerprint for all licensed, regulated or registered providers (whether or not they receive CCDF funds) (with the exception of relatives caring for related children), including all current and prospective providers. This check is required in addition to the national FBI criminal history check to mitigate any gaps that may exist between the two sources.

NJ has completed this check for existing staff members working in licensed child care centers only. NJ is currently working to complete this check for its regulated providers (approved homes), registered providers (registered family child care homes), and license exempt providers (public schools, private schools, and summer camps).

Note: Although public schools are exempt from licensing, (N.J.S.A.18A:6-7.2 require school staff to undergo a criminal history record check (CHRI) regardless of pupil contact. **NJ is still making a determination as to which relatives may be exempt from this check in home based settings.**

Describe how a waiver of the provision will, by itself, improve the delivery of child care services for children

DFD is in the process of conducting ongoing regulatory review of existing rules and regulations to determine the unique approach needed to ensure each provider type moves towards compliance. A waiver of this provision will provide NJ with more time to make the changes needed to implement this provision. Those changes would include statutory and regulatory changes, budgetary appropriations, collaboration with other state agencies, as well as systems development with our contracted vendors.

Certify and describe how the health, safety, and well-being of children served through assistance received through CCDF will not be compromised as a result of the waiver.

Despite the absence of a fingerprint check for the providers listed above, all of them receive either 1) CARI check that tends to reveal acts that rose to the criminal level, 2) a name based background check or 3) are required to self-disclose their criminal history information. Additionally, over the past 3 years, DFD has worked to ensure that all providers are aware of the upcoming changes to the background check requirements. DFD has done this by sending informational letters to all state agencies and providers that will be affected by this new requirement (including the Department of Children, Office of Licensing, Department of Health, and Department of Education). DFD has also started drafting new policies and regulations concerning background checks for the consumer education website and will describe to the public a phase-in timeline to assist each provider type to meet the new requirement.

In addition, NJ participates in the FBI's Rap back program which provides on-going status updates and continuously monitors employee's criminal and arrest records by receiving alerts from the FBI if there are any additions to an employee's FBI records.

☑ **Appendix A.2:** In-state sex offender registry requirements for existing staff. (See related question at 5.4.2 (b))

Describe the provision from which the state/territory seeks relief.

The in-state sex offender registry is a name-based search that must be performed by law enforcement. This check must be completed in addition to the national NCIC sex offender registry check to mitigate any gaps that may exist between the two sources.

The use of fingerprints is optional for this check, however when a person submits his or her fingerprints for the CHRI to the New Jersey State Police, that background check includes a search of the National and New Jersey sex offender registries.

NJ has completed this check for existing staff members working in licensed child care centers only. NJ is currently working to complete this check for its regulated providers (approved homes) and registered providers (registered family child care homes and summer camps). Note: Although public schools are exempt from licensing, (N.J.S.A.18A:6-7.2 require school staff to undergo a criminal history record check (CHRI) regardless of pupil contact.

Describe how a waiver of the provision will, by itself, improve the delivery of child care services for children

DFD is in the process of conducting ongoing regulatory review of existing rules and regulations to determine the unique approach needed to ensure each provider type moves towards compliance. A waiver of this provision will provide NJ with more time to make the changes needed to implement this provision. Those changes would include statutory and regulatory changes, budgetary appropriations, collaboration with other state agencies, as well as systems development with our contracted vendors.

Certify and describe how the health, safety, and well-being of children served through assistance received through CCDF will not be compromised as a result of the waiver.

Despite the absence of a fingerprint check for the providers listed above, all of them receive either 1) CARI check that tends to reveal acts that rose to the criminal level, 2) a name based background check or 3) are required to self-disclose their

criminal history information. Additionally, over the past 3 years, DFD has worked to ensure that all providers are aware of the upcoming changes to the background check requirements. DFD has done this by sending informational letters to all state agencies and providers that will be affected by this new requirement (including the Department of Children, Office of Licensing, Department of Health, and Department of Education). DFD has also started drafting new policies and regulations concerning background checks for the consumer education website and will describe to the public a phase-in timeline to assist each provider type to meet the new requirement.

In addition, NJ participates in the FBI's Rap back program which provides on-going status updates and continuously monitors employee's criminal and arrest records by receiving alerts from the FBI if there are any additions to an employee's FBI records.

☑ **Appendix A.3:** In-state child abuse and neglect registry requirements for existing staff. (See related question at 5.4.3 (b))

Describe the provision from which the state/territory seeks relief.

The in-state child abuse and neglect registry check is a name-based check. The New Jersey Child Abuse Record Information Background Check, or CARI, is used to determine if an incident of child abuse or neglect has been substantiated against the subject. As a condition of securing a center license or a certificate of registration, or home approval providers must undergo a CARI background check.

NJ has completed this check for existing staff members working in licensed child care centers, registered homes, and approved homes. NJ is currently working to determine how this check will be completed for summer camps. Note: Although public schools are exempt from licensing, (N.J.S.A.18A:6-7.2 require school staff to undergo a criminal history record check (CHRI) regardless of pupil contact.

Describe how a waiver of the provision will, by itself, improve the delivery of child care services for children

DFD is in the process of conducting ongoing regulatory review of existing rules and regulations to determine the unique approach needed to ensure each provider type moves towards compliance. A waiver of this provision will provide NJ with

more time to make the changes needed to implement this provision. Those changes would include statutory and regulatory changes, budgetary appropriations, collaboration with other state agencies, as well as systems development with our contracted vendors.

Certify and describe how the health, safety, and well-being of children served through assistance received through CCDF will not be compromised as a result of the waiver.

Although not all providers are subject to the CARI check, all of them receive either 1)CHRI check that reveals acts that rose to the criminal level, 2) a name based background check or 3) are required to self-disclose their criminal history information. Additionally, over the past 3 years, DFD has worked to ensure that all providers are aware of the upcoming changes to the background check requirements. DFD has done this by sending informational letters to all state agencies and providers that will be affected by this new requirement (including the Department of Children, Office of Licensing, Department of Health, and Department of Education). DFD has also started drafting new policies and regulations concerning background checks for the consumer education website and will describe to the public a phase-in timeline to assist each provider type to meet the new requirement.

In addition, NJ participates in the FBI's Rap back program which provides on-going status updates and continuously monitors employee's criminal and arrest records by receiving alerts from the FBI if there are any additions to an employee's FBI records.

☑ **Appendix A.4:** National FBI fingerprint search requirements for existing staff. (See related question at 5.4.4 (b))

Describe the provision from which the state/territory seeks relief.

The in-state and the inter-state criminal history check must be completed in addition to the FBI fingerprint check because there could be state crimes that do not appear in the national repository.The FBI fingerprint check also satisfies the requirement to perform an interstate check of another state's criminal history records repository if the responding state (where the child care staff member has resided within the past five years) participates in the National Fingerprint File

program (CCDF-ACF-PIQ-2017-01). New Jersey's Criminal History Record Information, or CHRI, fingerprint check produces information collected by criminal justice agencies that is stored in the central repository of the New Jersey State Police State Bureau of Identification, the National Crime Information Center (NCIC), or other States' computerized repositories containing criminal history record information. The CHRI Fingerprint requirements apply to all licensed or registered providers. Full compliance will include expanding the comprehensive fingerprint based CHRI to summer youth camps and approved homes. Note: Although public schools are exempt from licensing, (N.J.S.A.18A:6-7.2 require school staff to undergo a criminal history record check (CHRI) regardless of pupil contact.

Describe how a waiver of the provision will, by itself, improve the delivery of child care services for children

DFD is in the process of conducting ongoing regulatory review of existing rules and regulations to determine the unique approach needed to ensure each provider type moves towards compliance. A waiver of this provision will provide NJ with more time to make the changes needed to implement this provision. Those changes would include statutory and regulatory changes, budgetary appropriations, collaboration with other state agencies, as well as systems development with our contracted vendors.

Certify and describe how the health, safety, and well-being of children served through assistance received through CCDF will not be compromised as a result of the waiver.

Despite the absence of a fingerprint check for the providers listed above, all of them receive either 1) CARI check that tends to reveal acts that rose to the criminal level, 2) a name based background check or 3) are required to self-disclose their criminal history information. Additionally, over the past 3 years, DFD has worked to ensure that all providers are aware of the upcoming changes to the background check requirements. DFD has done this by sending informational letters to all state agencies and providers that will be affected by this new requirement (including the Department of Children, Office of Licensing, Department of Health, and Department of Education). DFD has also started drafting new policies and regulations concerning background checks for the consumer education website and will describe to the public a phase-in timeline to assist each provider type to meet the new requirement.

In addition, NJ participates in the FBI's Rap back program which provides on-going status updates and continuously monitors employee's criminal and arrest records by receiving alerts from the FBI if there are any additions to an employee's FBI records.

☑ **Appendix A.5:** National Crime Information Center (NCIC) National Sex Offender Registry (NSOR) search requirements for new or prospective staff. (See related question at 5.4.5 (a))

Describe the provision from which the state/territory seeks relief.

The Interstate sex offender registry or repository requirement must be completed for all licensed, regulated or registered providers (whether or not they receive CCDF funds) which includes a check of the NSOR.

NJ has completed the in-state component of this check for existing staff members working in licensed child care centers only through the CHRI. NJ is currently working to complete the in-state component of this check for its regulated providers (approved homes), registered providers (registered family child care homes), and license exempt providers (public schools, private schools, and summer camps). NJ is still making a determination as to which relatives may be exempt from this check in home based settings.

Note however that pursuant to N.J.S.A.18A:6-7.2, public school staff must undergo the Criminal History Record Information (CHRI) check regardless of pupil contact **It is unknown if NJ would have access to other states' criminal registries (especially if any child care provider populations in the other state are currently exempt from background checks).**

Describe how a waiver of the provision will, by itself, improve the delivery of child care services for children

is in the process of conducting ongoing regulatory review of existing rules and regulations to determine the unique approach needed to ensure each provider type moves towards compliance. A waiver of this provision will provide NJ with more time to make the changes needed to implement this provision. Those changes would include statutory and regulatory changes, budgetary appropriations, collaboration with other state agencies, as well as systems development with our contracted vendors. A waiver might also provide other states that are not participating in the National Crime Prevention and Privacy

Compact National Fingerprint File (NFF) additional time to join in order to facilitate the exchange of criminal history information across states and will allow New Jersey to move exempt providers towards compliance.

Certify and describe how the health, safety, and well-being of children served through assistance received through CCDF will not be compromised as a result of the waiver.
Despite the absence of an interstate fingerprint check for the providers listed above, all of them receive either undergo 1) in-state CHRI; 2) CARI check that tends to reveal acts that rose to the criminal level, 3) a name based background check or 4) are required to self-disclose their criminal history information. NJ is a participant of both the National Crime Prevention and Privacy Compact and the National Fingerprint File (NFF). There are approximately 31 states participating in the Compact and approximately 31 states participating in the Interstate Identification Index (III) National Fingerprint File. Individuals that move to New Jersey from another that would require a criminal background check are more likely moving from the tri-state area (New York, New Jersey, and Connecticut) and other surrounding states such as Pennsylvania, District Columbia (DC), Virginia, Maryland, Rhode Island (all of whom are participating in either III, both III/NFF, and/or the Compact). The participation of these surrounding states in either the III, NFF, or Compact ensures that NJ will be able to access the criminal history of the majority of the individuals that move to NJ from these states.

In addition, NJ participates in the FBI's Rap back program which provides on-going status updates and continuously monitors employee's criminal and arrest records by receiving alerts from the FBI if there are any additions to an employee's FBI records.

☑ **Appendix A.6:** National Crime Information Center (NCIC) National Sex Offender Registry (NSOR) search requirements for existing staff. (See related question at 5.4.5 (b))

Describe the provision from which the state/territory seeks relief.

This National Crime Information Center (NCIC) National Sex Offender Registry (NSOR) search is a name-based search. Searching general public facing sex offender registries does not satisfy this requirement. This national check must be required in addition to the in-state or inter-state sex offender registry check requirements. This check must be performed by law enforcement.
When a licensed center or a registered home person submits his or her

fingerprints for the CHRI to the New Jersey State Police, that background check includes a search of the NCIC, including the NSOR. Full compliance will include expanding the comprehensive fingerprint based CHRI to summer youth camps and approved homes. Note: Although public schools are exempt from licensing, (N.J.S.A.18A:6-7.2 require school staff to undergo a criminal history record check (CHRI) regardless of pupil contact.

Describe how a waiver of the provision will, by itself, improve the delivery of child care services for children

DFD is in the process of conducting ongoing regulatory review of existing rules and regulations to determine the unique approach needed to ensure each provider type moves towards compliance. A waiver of this provision will provide NJ with more time to make the changes needed to implement this provision. Those changes would include statutory and regulatory changes, budgetary appropriations, collaboration with other state agencies, as well as systems development with our contracted vendors.

Certify and describe how the health, safety, and well-being of children served through assistance received through CCDF will not be compromised as a result of the waiver.

Despite the absence of a fingerprint check for the providers listed above, all of themundergo either 1) CARI check that tends to reveal acts that rose to the criminal level, 2) a name based background check or 3) are required to self-disclose their criminal history information. Additionally, over the past 3 years, DFD has worked to ensure that all providers are aware of the upcoming changes to the background check requirements. DFD has done this by sending informational letters to all state agencies and providers that will be affected by this new requirement (including the Department of Children, Office of Licensing, Department of Health, and Department of Education). DFD has also started drafting new policies and regulations concerning background checks for the consumer education website and will describe to the public a phase-in timeline to assist each provider type to meet the new requirement.

In addition, NJ participates in the FBI's Rap back program which provides on-going status updates and continuously monitors employee's criminal and arrest records by receiving alerts from the FBI if there are any additions to an employee's FBI records.

☑ **Appendix A.7:** Interstate criminal registry or repository check for new or prospective staff. (See related question at 5.4.6 (a))

Describe the provision from which the state/territory seeks relief.

It is optional to use a fingerprint to conduct the Interstate Criminal Registry check. Searching a general public facing judicial website does not satisfy this requirement. This check must be completed in addition to the national FBI history check to mitigate any gaps that may exist between the two sources (unless the responding state participates in the National Fingerprint File program).

Describe how a waiver of the provision will, by itself, improve the delivery of child care services for children

DHS/DFD is continuing to develop and research policy options in this area. DHS/DFD is exploring what opportunities are afforded by the Compact Council, the National Fingerprint File, and other cooperative agreements outside of the multilateral scope of the Compact Council. Additionally, DHS/DFD is considering what obstacles that states that have "closed record" laws present to the implementation of any inter-state background check policy for both existing and prospective staff. A waiver of this provision will provide NJ with more time to make the changes needed to implement this provision for existing and prospective staff. Those changes would include statutory and regulatory changes, budgetary appropriations, collaboration with other states, as well as systems development with our contracted vendors. A waiver might also provide other states that are not participating in the National Crime Prevention and Privacy Compact National Fingerprint File (NFF) additional time to join in order to facilitate the exchange of criminal history information across states.

Certify and describe how the health, safety, and well-being of children served through assistance received through CCDF will not be compromised as a result of the waiver.

Despite the absence of an interstate fingerprint check for the providers listed above, all of them receive either undergo 1) in-state CHRI; 2) CARI check that tends to reveal acts that rose to the criminal level, 3) a name based background check or 4) are required to self-disclose their criminal history information. NJ is a participant of both the National

Crime Prevention and Privacy Compact and the National Fingerprint File (NFF). There are approximately 31 states participating in the Compact and approximately 31 states participating in the Interstate Identification Index (III) National Fingerprint File. Individuals that move to New Jersey from another that would require a criminal background check are more likely moving from the tri-state area (New York, New Jersey, and Connecticut) and other surrounding states such as Pennsylvania, District Columbia (DC), Virginia, Maryland, Rhode Island (all of whom are participating in either III, both III/NFF, and/or the Compact). The participation of these surrounding states in either the III, NFF, or Compact ensures that NJ will be able to access the criminal history of the majority of the individuals that move to NJ from these states.

☑ **Appendix A.8:** Interstate criminal registry or repository check for existing staff. (See related question at 5.4.6 (b))

Describe the provision from which the state/territory seeks relief.

The In-state criminal registry or repository checks with fingerprintrequirement must be completed with the use of a fingerprint for all licensed, regulated or registered providers (whether or not they receive CCDF funds) (with the exception of relatives caring for related children), including all current and prospective providers. This check is required in addition to the national FBI criminal history check to mitigate any gaps that may exist between the two sources.

NJ has completed the in-state component of this check for existing staff members working in licensed child care centers only. NJ is currently working to complete the in-state component of this check for its regulated providers (approved homes), registered providers (registered family child care homes), and license exempt providers (public schools, private schools, and summer camps). NJ is still making a determination as to which relatives may be exempt from this check in home based settings. Note that although public schools are exempt from licensing, (N.J.S.A.18A:6-7.2) require school staff to undergo a criminal history record check (CHRI) regardless of pupil contact. **It is unknown if NJ would have access to other states' criminal registries (especially if any child care provider populations in the other state are currently exempt from background checks)**

Describe how a waiver of the provision will, by itself, improve the delivery of child care services for children

DHS/DFD is continuing to develop and research policy options in this area. DHS/DFD is exploring what opportunities are afforded by the Compact Council, the National Fingerprint File, and other cooperative agreements outside of the multilateral scope of the Compact Council. Additionally, DHS/DFD is considering what obstacles that states that have "closed record" laws present to the implementation of any inter-state background check policy for both existing and prospective staff. A waiver of this provision will provide NJ with more time to make the changes needed to implement this provision for existing and prospective staff. Those changes would include statutory and regulatory changes, budgetary appropriations, collaboration with other states, as well as systems development with our contracted vendors. A waiver might also provide other states that are not participating in the National Crime Prevention and Privacy Compact National Fingerprint File (NFF) additional time to join in order to facilitate the exchange of criminal history information across states.

Certify and describe how the health, safety, and well-being of children served through assistance received through CCDF will not be compromised as a result of the waiver.

Despite the absence of an interstate fingerprint check for the providers listed above, all of them receive either undergo 1) in-state CHRI; 2) CARI check that tends to reveal acts that rose to the criminal level, 3) a name based background check or 4) are required to self-disclose their criminal history information. NJ is a participant of both the National Crime Prevention and Privacy Compact and the National Fingerprint File (NFF). There are approximately 31 states participating in the Compact and approximately 31 states participating in the Interstate Identification Index (III) National Fingerprint File. Individuals that move to New Jersey from another that would require a criminal background check are more likely moving from the tri-state area (New York, New Jersey, and Connecticut) and other surrounding states such as Pennsylvania, District Columbia (DC), Virginia, Maryland, Rhode Island (all of whom are participating in either III, both III/NFF, and/or the Compact). The participation of these surrounding states in either the III, NFF, or Compact ensures that NJ will be able to access the criminal history of the majority of the individuals that move to NJ from these states.

☑ **Appendix A.9:** Interstate sex offender registry or repository check for new or prospective staff. (See related question at 5.4.7 (a))

Describe the provision from which the state/territory seeks relief.

The Interstate sex offender registry or repository requirement must be completed for all licensed, regulated or registered providers (whether or not they receive CCDF funds).

NJ has completed the in-state component of this check for existing staff members working in licensed child care centers only through the CHRI. NJ is currently working to complete the in-state component of this check for its regulated providers (approved homes), registered providers (registered family child care homes), and license exempt providers (public schools, private schools, and summer camps). Note that although public schools are exempt from licensing, (N.J.S.A.18A:6-7.2) require school staff to undergo a criminal history record check (CHRI) regardless of pupil contact **NJ is still making a determination as to which relatives may be exempt from this check in home based settings. It is unknown if NJ would have access to other states' criminal registries (especially if any child care provider populations in the other state are currently exempt from background checks).**

Describe how a waiver of the provision will, by itself, improve the delivery of child care services for children

DHS/DFD is continuing to develop and research policy options in this area. DHS/DFD is exploring what opportunities are afforded by the Compact Council, the National Fingerprint File, and other cooperative agreements outside of the multilateral scope of the Compact Council. Additionally, DHS/DFD is considering what obstacles that states that have "closed record" laws present to the implementation of any inter-state background check policy for both existing and prospective staff. A waiver of this provision will provide NJ with more time to make the changes needed to implement this provision for existing and prospective staff. Those changes would include statutory and regulatory changes, budgetary appropriations, collaboration with other states, as well as systems development with our contracted vendors. A waiver might also provide other states that are not participating in the National Crime Prevention and Privacy Compact National Fingerprint File (NFF) additional time to join in order to facilitate the exchange of

criminal history information across states.

Certify and describe how the health, safety, and well-being of children served through assistance received through CCDF will not be compromised as a result of the waiver.

Despite the absence of an interstate sex offender check for the providers listed above, all of them receive either undergo 1) in-state CHRI; 2) CARI check that tends to reveal acts that rose to the criminal level, 3) a name based background check or 4) are required to self-disclose their criminal history information. NJ is a participant of both the National Crime Prevention and Privacy Compact and the National Fingerprint File (NFF). There are approximately 31 states participating in the Compact and approximately 31 states participating in the Interstate Identification Index (III) National Fingerprint File. Individuals that move to New Jersey from another that would require a criminal background check are more likely moving from the tri-state area (New York, New Jersey, and Connecticut) and other surrounding states such as Pennsylvania, District Columbia (DC), Virginia, Maryland, Rhode Island (all of whom are participating in either III, both III/NFF, and/or the Compact). The participation of these surrounding states in either the III, NFF, or Compact ensures that NJ will be able to access the criminal history of the majority of the individuals that move to NJ from these states.

☑ **Appendix A.10:** Interstate sex offender registry or repository check for existing staff. (See related question at 5.4.7 (b))

Describe the provision from which the state/territory seeks relief.

The Interstate sex offender registry or repository requirement must be completed for all licensed, regulated or registered providers (whether or not they receive CCDF funds).

NJ has completed the in-state component of this check for existing staff members working in licensed child care centers only through the CHRI. NJ is currently working to complete the in-state component of this check for its regulated providers (approved homes), registered providers (registered family child care homes), and license exempt providers (public schools, private schools, and summer camps). NJ is still making a determination as to which relatives may be exempt from this check in home based settings. Note that although public schools are exempt from licensing, (N.J.S.A.18A:6-7.2) require school staff to undergo a criminal history record check (CHRI) regardless of pupil contact. **It is unknown if NJ**

would have access to other states' criminal registries (especially if any child care provider populations in the other state are currently exempt from background checks).

Describe how a waiver of the provision will, by itself, improve the delivery of child care services for children

DHS/DFD is continuing to develop and research policy options in this area. DHS/DFD is exploring what opportunities are afforded by the Compact Council, the National Fingerprint File, and other cooperative agreements outside of the multilateral scope of the Compact Council. Additionally, DHS/DFD is considering what obstacles that states that have "closed record" laws present to the implementation of any inter-state background check policy for both existing and prospective staff. A waiver of this provision will provide NJ with more time to make the changes needed to implement this provision for existing and prospective staff. Those changes would include statutory and regulatory changes, budgetary appropriations, collaboration with other states, as well as systems development with our contracted vendors. A waiver might also provide other states that are not participating in the National Crime Prevention and Privacy Compact National Fingerprint File (NFF) additional time to join in order to facilitate the exchange of criminal history information across states.

Certify and describe how the health, safety, and well-being of children served through assistance received through CCDF will not be compromised as a result of the waiver.

Despite the absence of an interstate sex offender check for the providers listed above, all of them receive either undergo 1) in-state CHRI; 2) CARI check that tends to reveal acts that rose to the criminal level, 3) a name based background check or 4) are required to self-disclose their criminal history information. NJ is a participant of both the National Crime Prevention and Privacy Compact and the National Fingerprint File (NFF). There are approximately 31 states participating in the Compact and approximately 31 states participating in the Interstate Identification Index (III) National Fingerprint File. Individuals that move to New Jersey from another that would require a criminal background check are more likely moving from the tri-state area (New York, New Jersey, and Connecticut) and other surrounding states such as Pennsylvania, District Columbia (DC), Virginia, Maryland, Rhode Island (all of whom are participating in either III, both III/NFF, and/or the

Compact). The participation of these surrounding states in either the III, NFF, or Compact ensures that NJ will be able to access the criminal history of the majority of the individuals that move to NJ from these states.
In addition, NJ participates in the FBI's Rap back program which provides on-going status updates and continuously monitors employee's criminal and arrest records by receiving alerts from the FBI if there are any additions to an employee's FBI records.

☑ **Appendix A.12:** Interstate child abuse and neglect registry check for existing staff. (See related question at 5.4.8 (b))

Describe the provision from which the state/territory seeks relief.

The interstate child abuse registry check is currently conducted for licensed, regulated or registered providers (whether or not they receive CCDF funds). NJ has completed the in-state component of this check for existing staff members working in licensed child care centers, registered homes, and approved homes only. NJ is currently working to complete the in-state component of this check for its license exempt providers (public schools, private schools, and summer camps). Note however that pursuant to N.J.S.A.18A:6-7.2, public school staff must undergo the Criminal History Record Information (CHRI) check regardless of pupil contact **It is unknown if NJ would have access to other states' criminal registries (especially if any child care provider populations in the other state are currently exempt from background checks)**

Describe how a waiver of the provision will, by itself, improve the delivery of child care services for children

Although out of state CARI checks can be requested out of state on a case by case basis, **DHS/DFD is continuing to develop and research policy options in this area. DHS/DFD is exploring what opportunities are afforded by the Compact Council, the National Fingerprint File, and other cooperative agreements outside of the multilateral scope of the Compact Council. Additionally, DHS/DFD is considering what obstacles that states that have "closed record" laws present to the implementation of any inter-state background check policy for both existing and prospective staff.**

Certify and describe how the health, safety, and well-being of children served through assistance received through CCDF will not be compromised as a result of the waiver.

For propspective child care staff in (in licensed centers, registered homes, and approved centers) who have an out-of-state address listed on their CARI application (within the last 5 years), it is **required** that the center orhome obtain a child abuse background check from the state where the staff member previously and/or currently resides pursuant to N.J.S.A. 30:5B-6.4,. This clearance must be accompanied by notice of a child care registry clearance from the **state the applicant previously and/or currently lived**. The center is responsible to have this child abuse background check clearance from the other state available on site and provide a copy of this clearance to the Office of Licensing (OOL).

In addition, NJ participates in the FBI's Rap back program which provides on-going status updates and continuously monitors employee's criminal and arrest records by receiving alerts from the FBI if there are any additions to an employee's FBI records.

☑ **Appendix A. 13:** New staff hired to work provisionally until background checks are completed. (See related question at 5.4.9)

Describe the provision from which the state/territory seeks relief.

The CCDF final rule states a child care provider must submit a request to the appropriate state/territory agency for a criminal background check for each child care staff member, including prospective staff members, prior to the date an individual becomes a child care staff member and at least once every 5 years thereafter (98.43(d)(1) and (2). A prospective child care staff member may not begin work until one of the following results have been returned as satisfactory: either the FBI fingerprint check or the search of the state/territory criminal registry or repository using fingerprints in the state/territory where the staff member resides. The child care staff member must be supervised at all times pending completion of all the background check components (98.43(d)(4)).

NJ currently has these procedures in practice **for staff members working in licensed child care centers only. Note that although license-exempt**, public school staff must undergo the Criminal History Record Information (CHRI) check regardless of pupil contact pursuant to N.J.S.A.18A:6-7.2. **NJ is currently working to complete the in-state component of this check for its regulated providers (approved homes), registered providers (registered family child care homes), and license exempt providers (private schools, and summer camps).**

Describe how a waiver of the provision will, by itself, improve the delivery of child care services for children

A waiver would allow NJ to continue its normal procedures when dealing with provisional hires which include: A state/territory may receive a waiver from this requirement only when:

1. requiring the provider to submit the background check requests before the staff person begins working; and
2. allowing the staff member, pending the results of the elements of the background check, to care for children as long as they are supervised at all times by an individual who has completed the background check.

Within two weeks after a new staff member begins working at the center, the sponsor or sponsor representative shall submit to the Department a completed CARI consent form for the new staff member and/or ensure the new staff member completes the CHRI fingerprinting process. Until the results of the CARI background check or CHRI background check for a new staff member is been received from the Department, the center shall ensure oversight of the new staff member by another staff member, and ensure that person is not left alone to supervise a child or group of children. Citation: N.J.A.C. 3A:52-4.10 and 3A:52-4.11

Certify and describe how the health, safety, and well-being of children served through assistance received through CCDF will not be compromised as a result of the waiver.

The majority of providers (licensed and registered providers and certain license exmpt providers) are subject to the provisional hire rule.
Mandating certain license-exempt providers to adhere to this requirements would require **statutory and regulatory changes, budgetaryappropriations. However, currently license exempt providers like summer camps are subject to a state wide name based criminal check as part of their evaluation prior to working with children. In addition, public school staff are also required to undergo a CHRI fingerprint check prior to working with children.**

In addition, NJ participates in the FBI's Rap back program which provides on-going

status updates and continuously monitors employee's criminal and arrest records by receiving alerts from the FBI if there are any additions to an employee's FBI records.